WEST LAFAYETTE
HOME of PURDUE

**CITY COUNCIL**
Monday, October 7, 2024 at 6:30 PM

# Meeting Agenda

Common Council is held at Margerum City Hall, 222 North Chauncey Avenue, West Lafayette, IN 47906. Comments can be submitted to the Clerk's office by emailing clerk@westlafayette.in.gov.

Electronic Options:

- Stream via the Meetings & Agendas section of our website.
- Stream via Microsoft Teams or phone: +1-574-367-5293, Code: 869 451 584

1. CALL TO ORDER: (Pledge of Allegiance)
2. ROLL CALL: Bellisario, Blanco, Burr, Dennis, Lee, Leverenz, Parker, Sanders, Veidemanis
3. PRE-COUNCIL ACTION ITEMS:
4. MINUTES:
   a. Approval of Minutes: August 29, 2024 Pre-Council Meeting and September 3, 2024 Council Meeting
   **Documents:**
   - August 29, 2024 Pre-Council Minutes
   - September 3, 2024 Council Minutes [Updated 10.07.24]
5. REPORTS OF CITY DEPARTMENTS ON FILE IN THE CLERK'S OFFICE :
   a. HR Report - October 2024
   **Documents:**
   - HR Report

   b. Street Dept. Reports
   **Documents:**
   - August 2024
   - September 2024

   c. Building Department
   **Documents:**

- Building

d. Fire Report - September 2024
**Documents:**
- 2024 September Fire Report

e. Rental Inspection Report
**Documents:**
- Rental

f. Parks and Recreation Report - September 2024
**Documents:**
- Parks and Recreation Report - September 2024

g. Engineering Report - September 2024
**Documents:**
- September 2024

h. Police Reports
**Documents:**
- September Calls for Service
- Neighborhood Resource Team (NRT)

i. WWTU Report-August 2024
**Documents:**
- WWTU Report-August 2024

6. REPORT OF APC REPRESENTATIVES: Leverenz, Parker

7. PUBLIC RELATIONS:

8. FINANCIAL REPORT: City Controller

a. Financial Report
**Documents:**
- Financial Report

9. LEGAL REPORT: Corporation Counsel

a. Legal Report
**Documents:**
- September 2024 Legal Report

10. JOINT BOARD REPORT: Burr

11. SPECIAL REPORTS:

12. UNFINISHED BUSINESS:

a. Ordinance No. 24-2024 An Ordinance Concerning The Construction Of Additions And Improvements To The Sewage Works Of The City Of West Lafayette, Indiana, The Issuance Of Revenue Bonds To Provide The Cost Thereof, The Collection, Segregation And Distribution Of The Revenues Of Said Sewage Works, The Safeguarding Of The Interests Of The Owners Of Said Revenue Bonds, Other Matters Connected Therewith, Including The Issuance Of Notes In Anticipation Of Bonds, And Repealing Ordinances Inconsistent Herewith (Sponsored by Mayor Easter) [No. of Readings 2 of 2]
**Documents:**
- Ordinance No. 24-2024
- Track Changes from Ord. No. 22-2024

b. Ordinance No. 28-2024 An Ordinance Permitting And Regulating The Use Of Parking Meters And Parking Spaces Where Parking Meters Are Present In The City Of West Lafayette, Indiana (Sponsored by Councilor Sanders) [No. of Readings 2 of 2]
**Documents:**
- Ordinance No. 28-2024

c. Ordinance No. 29-2024 (Amended) An Ordinance Establishing The West Lafayette Parking Meter Fund (Sponsored by Mayor Easter) [No. of Readings 2 of 2]
**Documents:**
- Ordinance No. 29-2024 (Amended)
- Ordinance No. 29-2024

d. Ordinance No. 30-2024 (Amended) An Ordinance Setting The 2025 City Budget And Setting The 2025 Tax Levy On Property And Tax Rate (Prepared by Controller) [No. of Readings 2 of 2]
**Documents:**
- Ordinance No. 30-2024 (PROPOSED 2nd Amended)
- 2025 3-Year Trend [Updated 09.26.24]
- Ordinance No. 30-2024 (Amended)
- Budget Notice (as of 08.23.24)
- Ordinance No. 30-2024

e. Ordinance No. 31-2024 (Amended) An Ordinance To Establish The Designation And Use Of Unrestricted Opioid Settlement Funds (Sponsored by Councilors Burr and Parker) [No. of Readings 2 of 2]
**Documents:**
- Ordinance No. 31-2024 (Amended)
- Informational: Resolution No. 04-22 (Opt Back Into Opioids Settlement)
- Informational: Resolution No. 27-22 (Establish Funds-Opioid Settlement)
- Ordinance No. 31-2024

13. NEW BUSINESS:

a. Ordinance No. 32-2024 An Ordinance To Set The 2025 Salary Schedule For Elected Officials, Appointed Officers, Employees, Members Of The Police Department, Members Of The Fire Department, Wellness Center, And Wastewater Treatment Utility Of The City Of West Lafayette, Indiana (Presented by Controller) [No. of Readings 1 of 2]
**Documents:**
- Ordinance No. 32-2024

b. Ordinance No. 33-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (UZO Amendment #113) (Omnibus) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]
**Documents:**
- Ordinance No. 33-2024
- APC Certification
- APC Staff Report

c. Ordinance No. 34-2024 An Ordinance Amending Chapter 40, Wastewater Treatment System, Of The West Lafayette City Code (Sponsored by Mayor Easter) [No. of Readings 1 of 2]
**Documents:**
- Ordinance No. 34-2024
- Table of Contents for Tracked Changes Version
- Amended City Code Ch. 40 - Clean

d. Ordinance No. 35-2024 Ordinance Establishing An Equitable Impact Fee For The Purpose Of Planning And Financing Park And Recreational Infrastructure To Serve New Development In The City Of West Lafayette, Indiana (Sponsored by Councilor Parker) [No. of Readings 1 of 2]
**Documents:**
- Ordinance No. 35-2024
- Zone Improvement Plan
- Presentation: Park Impact Fee Study
- November Public Hearing Notice

e. Resolution No. 20-2024 Resolution to Recognize Digital Inclusion Week (Sponsored by Councilors Bellisario and Veidemanis) [No. of Readings 1 of 1]
**Documents:**
- Resolution No. 20-2024
- Data Sheet

f. Resolution No. 21-2024 A Resolution Authorizing The Mayor To Commit And Designate Matching Funds For The Economic Development Administration Public Works And

Economic Adjustment Assistance Program (Prepared by Controller) [No. of Readings 1 of 1]

**Documents:**

- Resolution No. 21-2024

14. REPORT BY THE MAYOR

15. COMMUNICATIONS

16. PUBLIC COMMENTS

We welcome public comment and encourage active participation at this meeting.

There will be an opportunity for public comment on each Ordinance or Resolution currently before the Council, and again at the end of the meeting for general issues or concerns. These comments should be limited to three (3) minutes in length, and we ask that you not repeat what others have said. Your comments should be courteous and respectful of all. If you need additional time, please consider sending your questions, comments, or concerns to the City Clerk at: clerk@ westlafayette.in.gov.

If you wish to speak, we request that you sign in on the designated sheet at the podium.

Your contribution to this meeting aids the efforts of the Council in addressing issues that are important to the citizens of West Lafayette.

17. ADJOURNMENT

Next Regular Council Meeting: November 4, 2024

*Note: Pre-Council meets on an as-needed basis and will be announced on public meeting notices from the Clerk's Office.*

CITY OF WEST LAFAYETTE
COMMON COUNCIL
PRE-COUNCIL MINUTES
August 29, 2024

The Common Council of the City of West Lafayette, Indiana, met in Council Chambers at Margerum City Hall on August 29, 2024, at the hour of 4:30 p.m.

President Leverenz called the meeting to order and presided.

Members Present: Iris O'Donnell Bellisario, Michelle Dennis, Colin Lee, Larry Leverenz, Kathy Parker, David Sanders, and Laila Veidemanis.

Absent: James Blanco and Stacey Baitinger Burr.

Also present: Mayor Erin Easter, Corporation Counsel Eric Burns, Clerk Sana Booker, City Engineer Natalia Bartos, Director of Technology Chris Benavidez, City Controller Peter Gray, Police Chief Troy Harris, WWTU Director David Henderson, Fire Chief Jeff Need, Street Commissioner Jeremy Stinson, and Director of Development Jen Van Schuyver.

PRE-COUNCIL ACTION ITEMS:
Ordinance No. 22-2024 An Ordinance Concerning The Construction Of Additions And Improvements To The Sewage Works Of The City Of West Lafayette, Indiana, The Issuance Of Revenue Bonds To Provide The Cost Thereof, The Collection, Segregation And Distribution Of The Revenues Of Said Sewage Works, The Safeguarding Of The Interests Of The Owners Of Said Revenue Bonds, Other Matters Connected Therewith, Including The Issuance Of Notes In Anticipation Of Bonds, And Repealing Ordinances Inconsistent Herewith (Sponsored by Mayor Easter) [Withdraw] *This item is continued from the August 5, 2024, meeting.*

Councilor Bellisario read Ordinance No. 22-2024 by title only and then moved to withdraw it. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

President Leverenz announced that Ordinance No. 22-2024 is withdrawn.

There was no further discussion.

Ordinance No. 29-2024 An Ordinance Establishing The West Lafayette Parking Meter Fund (Sponsored by Mayor Easter) [No. of Readings 1 of 2]

Councilor Bellisario read Ordinance No. 29-2024 by title only.

President Leverenz explained that a proposed amendment for this to change the definitive effective date to be effective upon passage instead.

Councilor Bellisario moved to amend Ordinance No. 29-2024 as described. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

President Leverenz announced that Ordinance No. 29-2024 is amended.

There was no further discussion.

SPECIAL REPORTS:
VEO Update
President Leverenz explained that he asked City Engineer Bartos to put together a report on the current situation with the VEO scooters, and a VEO representative will also be here.

UNFINISHED BUSINESS:
Ordinance No. 10-2024 An Ordinance Updating Mobility System Enterprise Permit Fees (Sponsored by Councilor Sanders) [No. of Readings 2 of 2] *This item is continued from the June 3, 2024, meeting.*

There was no discussion.

Ordinance No. 21-2024 An Ordinance Requesting An Additional Appropriation to the 2024 Budget (Coronavirus ARPA Fund) (Prepared by Controller) [No. of Readings 2 of 2] PUBLIC HEARING

There was no discussion.

Ordinance No. 23-2024 An Ordinance Amending Chapter 6, Buildings And Building Regulations, Of The West Lafayette City Code (Sponsored by Mayor Easter) [No. of Readings 2 of 2]

There was no discussion.

NEW BUSINESS:
Ordinance No. 24-2024 An Ordinance Concerning The Construction Of Additions And Improvements To The Sewage Works Of The City Of West Lafayette, Indiana, The Issuance Of Revenue Bonds To Provide The Cost Thereof, The Collection, Segregation And Distribution Of The Revenues Of Said Sewage Works, The Safeguarding Of The Interests Of The Owners Of Said Revenue Bonds, Other Matters Connected Therewith, Including The Issuance Of Notes In Anticipation Of Bonds, And Repealing Ordinances Inconsistent Herewith (Sponsored by Mayor Easter) [No. of Readings 1 of 2]

WWTU Director Henderson explained that this bond will be funding the wet weather treatment facility expansion and a new laboratory and administration building at the Plant site.

There was no further discussion.

Ordinance No. 25-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (Purdue Research Foundation) (PDRS to CBW) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

There was no discussion.

Ordinance No. 26-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (Wesley Foundation of Purdue University - Liesl Shen) (Wesley Foundation PD) (R3W to PDMX) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

Ryan Munden (Reiling Teder & Schrier, LLC), representing the petitioner, explained that this rezone is to relocate the Wesley Student Center from State Street to Waldron Street.

There was no further discussion.

Ordinance No. 27-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (Core Lafayette Chauncey, LLC – Jonathan Kubow) (Hub Chauncey PD) (CBW to PDMX) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

There was no discussion.

Ordinance No. 28-2024 An Ordinance Permitting And Regulating The Use Of Parking Meters And Parking Spaces Where Parking Meters Are Present In The City Of West Lafayette, Indiana (Sponsored by Councilor Sanders) [No. of Readings 1 of 2]

Councilor Bellisario read Ordinance No. 28-2024 by title only.

Councilor Sanders noted that this references Ordinance No. 29-2024 and suggested that Ordinance No. 29-2024 should be voted on first and swapped on the agenda. President Leverenz and Counsel Burns agreed. Councilor Sanders then explained that he has been working for a while with the City administration and Police Department to create this Ordinance on parking meters. He noted that there will not be physical meters; it is going to be a parking app. This is necessitated by the growing City and the changes that have happened at Purdue University in terms of parking.

There was no further discussion.

Ordinance No. 29-2024 (Amended) An Ordinance Establishing The West Lafayette Parking Meter Fund (Sponsored by Mayor Easter) [No. of Readings 1 of 2]

President Leverenz explained that this sets up the budget fund for the parking meters.

There was no further discussion.

Ordinance No. 30-2024 An Ordinance Setting The 2025 City Budget And Setting The 2025 Tax Levy On Property And Tax Rate (Prepared by Controller) [No. of Readings 1 of 2] PUBLIC HEARING

Controller Gray noted that the timing of the budget is a little different than previous years. This will get the discussion started and get the budget out there. Normally, there is a work session meeting with the Council before the first reading, but this time it will be held sometime in the next month. That session will allow him to provide more detail and answer questions the Council may have. This is due to the State by November 1, so he wants to get the process started.

President Leverenz stated that the agenda has a note that there will be a public hearing on Tuesday, and asked for confirmation that we do not normally have that on the first reading. Controller Gray stated that it can be done at both so the public has a chance to speak, or it can be done on the second one. He noted that although input is welcome, there has not generally been a lot of input from the public on the budget.

There was no further discussion.

Ordinance No. 31-2024 An Ordinance To Establish The Designation And Use Of Unrestricted Opioid Settlement Funds (Sponsored by Councilors Burr and Parker) [No. of Readings 1 of 2]

Councilor Parker explained that this is to ensure that the funds coming to the City from the opioid settlement will always be used in the future to address the opioid problem.

Councilor Sanders stated that the document makes a reference to the Opioid Mitigation Fund, and he has not been able to find a reference to that in Council records. He asked what that refers to and if it should be defined.

Councilor Parker explained that on the Task Force, there is a schedule of uses for the funds, and the restricted funds must be used for mitigation. There are also unrestricted funds, so the main purpose of this Ordinance is to ensure that the unrestricted funds have a defined purpose. She later noted that the word *mitigation* was used by the federal government when referencing the settlement funds.

Controller Gray explained that there are two funds, required by the State, set up [via Resolution No. 27-22]. The word *mitigation* is not in the title of them. Councilor Sanders stated that he understands there are two funds; however, he has concerns about creating an ordinance that makes a reference that does not exist.

Councilor Sanders motioned to postpone consideration of Ordinance No. 31-2024 to the October meeting since he does not know what the mitigation fund is. He believes the designation for these funds is important, but this Ordinance often uses the phrase *including but not limited to*, which seems to provide no limitation or designation at all. He is concerned that the Ordinance is not quite ready. Councilor Lee seconded the motion.

Councilor Sanders reiterated some concerns and also added concern about the reference to a drug court, which the City does not have; he does not want West Lafayette funds going to a County function.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Nay |
| Blanco | Absent |
| Burr | Absent |
| Dennis | Nay |
| Lee | Nay |
| Leverenz | Nay |
| Parker | Nay |
| Sanders | Aye |
| Veidemanis | Nay |

Clerk Booker stated that the vote was 1 AYE and 6 NAYS.

President Leverenz stated that Ordinance No. 31-2024 will still be heard on Tuesday.

There was no further discussion.

Resolution No. 18-2024 Resolution Requesting The Transfer Of Funds (Communications) (Prepared by Controller) [No. of Readings 1 of 1]

Councilor Bellisario read Resolution No. 18-2024 by title only.

There was no further discussion.

Resolution No. 19-2024 A Resolution Of The City Of West Lafayette, Indiana, In Support Of Exempting Menstrual Products From Indiana Retail Sales Tax (Sponsored by Councilors Bellisario, Burr, Dennis, Parker, and Veidemanis) [No. of Readings 1 of 1]

Councilor Bellisario read Resolution No. 19-2024 by title only.

Councilor Dennis noted that Councilor Burr was the instigator of this. She explained that Indiana is one of the fewer states to still have a sales tax on menstrual products, even though they are essentially medical necessities. Many states have repealed those taxes, including Texas recently and Kentucky will vote soon. The sales tax creates an undue burden on those who must purchase the items. It has been on the Indiana legislators' table a few times, so we want to reinforce that the West Lafayette Council is supportive of being able to provide access to medical devices for our citizens.

There was no further discussion.

COMMUNICATIONS

- Councilor Parker reported that there is a meeting this evening at the Lilly Nature Center to discuss Park plans.

- President Leverenz stated that there were concerns about having a quorum for the October meeting during Purdue's fall break. However, most of the Councilors have indicated that they will be present, including the two Purdue students, so unless he hears differently the meeting will be held as scheduled.

ADJOURNMENT

There being no further business at this time, Councilor Bellisario moved for adjournment. President Leverenz adjourned the meeting, the time being 4:56 p.m.

CITY OF WEST LAFAYETTE
COMMON COUNCIL
MINUTES
September 3, 2024

The Common Council of the City of West Lafayette, Indiana, met in Council Chambers at Margerum City Hall on September 3, 2024, at the hour of 6:30 p.m.

President Leverenz called the meeting to order and presided. The Pledge of Allegiance was recited.

Members Present: Stacey Baitinger Burr, Michelle Dennis, Colin Lee, Larry Leverenz, Kathy Parker, David Sanders, and Laila Veidemanis.

Absent: Iris O'Donnell Bellisario and James Blanco.

Also present: Mayor Erin Easter, Corporation Counsel Eric Burns, Clerk Sana Booker, City Engineer Natalia Bartos, Director of Technology Chris Benavidez, Communication Director Michelle Brantley, City Controller Peter Gray, Police Chief Troy Harris, WWTU Director David Henderson, Parks Superintendent Kathy Lozano, Fire Chief Jeff Need, Building Commissioner Chad Spitznagle, Street Commissioner Jeremy Stinson, and Director of Development Jen Van Schuyver.

PRE-COUNCIL ACTION ITEMS:
President Leverenz reviewed the Pre-Council Action Items, which are detailed in the minutes of that meeting.

MINUTES
Councilor Parker moved for acceptance of the minutes of the August 5, 2024, Common Council Meeting. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

REPORTS OF CITY DEPARTMENTS ON FILE IN THE CLERK'S OFFICE
There were no comments.

REPORT OF THE APC REPRESENTATIVES
President Leverenz reminded that the Council recently asked APC to look at accessory dwelling units (ADUs) [Resolution No. 08-2024], and the APC Ordinance Committee will discuss that tomorrow. If it goes to the full APC meeting, the Council will see it in October or November. He also noted that the APC agenda includes an item for Arbor Chase petitioning for major preliminary approval for Phases 3 and 4. Those phases are on 46.39 acres of land with 102 lots.

PUBLIC RELATIONS: None

FINANCIAL REPORT
Controller Gray reported that at two-thirds through the year, the budget with encumbrances is also right there, at 65%, and with just expenses it is at 54%.

LEGAL REPORT
This report is on file.

JOINT BOARD REPORT
There was no report.

SPECIAL REPORTS:
VEO Update
City Engineer Bartos introduced Aaron Madrid, a representative from VEO, who will be presenting an update on VEO vehicles within City limits. A detailed document was also provided.

Mr. Madrid stated that he is the Policy and Partnerships Manager for VEO, and he manages most of VEO's university markets across the county. He noted that he was born and raised locally, so he has a personal investment in his job as well. He presented some graphs showing VEO vehicle ridership statistics, including how many rides begin and end on versus off campus, as he believes the percentage of activity by location is pertinent. So far this year, there have been over 86,000 trips, with approximately 60,000 on campus and 20,000 off campus. He reviewed the parking violations and how that system currently works. Over the summer, they added geofenced no parking zones, including on many of the multi-use paths, bike lanes, and parks. He noted that the Celery Bog was already a no parking zone because VEO does not like to let their devices go near any large bodies of water, especially when there is a university campus. Zones were expanded in the New Chauncey area following feedback from residents, along with private property locations that were done by request. Mr. Madrid reviewed VEO's recent forced parking implementation. They were able to identify frequent destinations and, working with City Engineer Bartos, prioritized zones and provided potential parking areas that have enough room for the devices to park at those destinations. He noted that if any grass is damaged from the scooters being parking in these locations, VEO will fully repair it and will check on it regularly as they patrol the area. He noted that VEO is still testing the parking implementation in Zone 1 and continue to manually adjust and reconfigure the geofencing based on reports of vehicles that are still improperly parked. VEO plans to have the forced parking implemented in the remaining zones, 2 through 6, by the end of September. They will do more private property outreach, including asking apartment complexes to designated parking areas to reduce clutter on their property. They will also implement new photo enforcement technology that will allow the app to immediately tell the user whether the vehicle is parked correctly or not and assign a fine if needed; it will remove the waiting until VEO finds the issue to enforce the rule break.

Mr. Madrid then answered several questions from the Councilors, and his responses are summarized here. He explained that right now, parking is marked via a map in the app that shows the closest parking location when the user tries to end the ride or beforehand if they are trip-planning on the map. There are challenges with putting signs in grassy areas, but they have also considered concrete pads in some locations. He added that VEO is also talking with City Bus to identify parking spaces at bus stops where there is already right of way and the rider is already trying to accomplish the first/last mile movement. Mr. Madrid acknowledged that there are still vehicles parking in no parking zones because the implementation process of the new method has been slower than VEO expected. They are continuing to adjust the areas, but it is also not 100% accurate due to Global Positioning System (GPS) drift and other things that can happen. He confirmed that an entire neighborhood could be geofenced to not allow parking there while still allowing the scooters to move through them. Mr. Madrid stated that he can gather some metrics before the next Traffic Commission meeting to show number of reports of improperly parked vehicles before and after this new system implementation. There are also heat maps of the on-campus area before and after forced parking, which he believes paints a clear picture of substantial improvement. Responding to concerns about competition for bike rack space on campus, Mr. Madrid explained that VEO has worked with other universities to put caps on the number of their vehicles that can be parked at each rack based on average capacity and utilization. Mr. Madrid stated that he is unable to answer the question of how much the permit fee

VEO is paying to Purdue is. He noted that he only manages off-campus operations due to his prior employment at Purdue; however, his colleague who manages on-campus operations has said that Purdue requested that VEO not volunteer the permit fee information.

President Leverenz thanked Mr. Madrid and Ms. Bartos for the update, saying that it was timely. He recently counted eight VEO vehicles – scooters and bikes – parked in all kinds of places while driving on Yeager Road between Kalberer Road to Salisbury Street. He knows people are getting frustrated with them, so whatever help we can get is appreciated.

Mr. Madrid stated that he is glad we are having regular conversations now, and he thinks it will continue to improve things. He added that VEO is starting a nationwide campaign focused on parking. By signing a pledge saying they will park correctly, users can get some free ride credits.

UNFINISHED BUSINESS:
Ordinance No. 10-2024 An Ordinance Updating Mobility System Enterprise Permit Fees (Sponsored by Councilor Sanders) [No. of Readings 2 of 2] *This item is continued from the June 3, 2024, meeting.*

Councilor Parker read Ordinance No. 10-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 10-2024 on second and final reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Councilor Sanders explained that the second vote on this was delayed in order to try to find out how things were improving. This Ordinance would not affect just VEO, but any mobility system that would come to West Lafayette. We have heard tonight that VEO is implementing a photograph system, which he welcomes, but we want to ensure the next company also has a photograph system. He stated that he and some fellow Councilors agreed that instead of increasing the fee by $10,000.00, it should be increased by $5,000.00.

Councilor Sanders motioned to amend Ordinance No. 10-2024 to have the annual Mobility System Enterprise Permit amount be $20,000.00 instead of $25,000.00. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

Councilor Sanders stated that the Council is the voice of the public on this issue, and the fact that we have been willing to exercise that voice has contributed in a positive manner to the changes that have been proposed and made. It is much better than it was in the spring. However, across from his house there is a scooter parked in the middle of the street, so it is not completely solved. He noted that he confirmed with legal counsel that this must be done through an ordinance instead of administratively, and it requires an ordinance since one already exists for these vehicles.

Councilor Burr expressed agreement that things are improving, and she appreciates the conversation here and at Traffic Commission. We tend to focus on negatives, but she is pleased that we have this capability in our community. It greatly extends the transportation options, particularly for people who do not have cars or are going to locations where the City Bus is not convenient. She thanked VEO for working with us and continuing to upgrade.

Councilor Parker also expressed agreement with Councilors Sanders and Burr. She is curious about the fine for improper parking. Mr. Madrid stated that it starts with a warning, then has fines increasing from $10.00 to $15.00 to $20.00, and then a temporary ban; he believes the temporary ban is three months in the West Lafayette market. After that, the user has to take another education quiz before they can resume using the vehicles.

President Leverenz asked what happens if the vehicle sits in front of Councilor Sanders' home for multiple days, and what someone can do about that. Mr. Madrid stated that while it should never sit there long, there is a phone number on every device that will immediately send a notification to the local team so it can be picked up. There is also a way to report vehicles by taking a photo in the app. Councilor Sanders stated that he called the number, but as a scientist, he cannot say whether the vehicle would have disappeared anyway or not.

Councilor Parker asked if there is a way for VEO to know if scooters are left in the Celery Bog, since they are there despite that they are not supposed to be. Mr. Madrid responded that the operations team has a variety of metrics set up to flag vehicles for different things based on location and other priorities, especially geofenced zones. Councilor Lee asked if VEO is able to tell from the ride data how long a scooter has been parked in a location, and Mr. Madrid confirmed they can.

Councilor Dennis stated expressed appreciation for the presentation and collaboration and that VEO is already going above and beyond with the photo method. She does not agree with being this specific with a certain way to reduce VEO vehicles from being all over the place. We have a fine, and the company knows what they are supposed to do, so specifying the technology used to achieve our unified goals is too prescriptive. Mr. Madrid noted that the current method of photographing the parked vehicle is now standard across the industry.

Councilor Sanders stated that he introduced this at the recommendation of a number of people who have experience in other communities that have a similar component to their ordinances, so it seems like a logical requirement as an effective way of keeping control of who is parking the vehicles inappropriately.

Trinda Steckler (2225 Sandpiper Court N.) stated that she walks around the Celery Bog every morning before sunrise, and she has seen bicycles hit parked scooters, causing cyclists to go over their handlebars. The scooters block the crossing which is already a disaster with the traffic flow and the fact that the flashing light is right there as opposed to a 20-foot buffer. She stated that she describes it as a debris field, and she has neighbors who do not go there anymore with children because the scooters flying up on people on the trails and then being cast aside is a lot of risk. There was a scooter on the sidewalk this morning. She stated that she has watched VEO's collection method, and she has also called the phone number, and it is a "nothingburger." At a gathering in her neighborhood yesterday, they were asking why they are paying property taxes and homeowner association (HOA) fees for sidewalks and trails they cannot use. She feels that is meaningful feedback.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Nay |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |

| Councilperson | Vote |
|---|---|
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 6 AYES and 1 NAYS.

President Leverenz announced that Ordinance No. 10-2024 (Amended) passed on second and final reading.

Ordinance No. 21-2024 An Ordinance Requesting An Additional Appropriation to the 2024 Budget (Coronavirus ARPA Fund) (Prepared by Controller) [No. of Readings 2 of 2] **PUBLIC HEARING**

Councilor Parker read Ordinance No. 21-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 21-2024 on second and final reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Controller Gray explained that through the American Rescue Plan Act (ARPA), the City received a little over $11.4 million. It is required by that Act that the City spends those funds completely by the end of 2026. However, it has to all be encumbered by the end of this year. So far, we have spent or encumbered a little over $10.3 million, so this Ordinance is to encumber the remaining $1.1 million. This gets it into the budget so the City can utilize those funds.

Councilor Parker moved to open a public hearing on Ordinance No. 21-2024. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

There were no comments from the public.

Councilor Parker moved to close the public hearing on Ordinance No. 21-2024. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

There was no further discussion.

Clerk Booker called the roll call vote:

| Councilperson | Vote |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 21-2024 passed on second and final reading.

Ordinance No. 23-2024 An Ordinance Amending Chapter 6, Buildings And Building Regulations, Of The West Lafayette City Code (Sponsored by Mayor Easter) [No. of Readings 2 of 2]

Councilor Parker read Ordinance No. 23-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 23-2024 on second and final reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Building Commissioner Spitznagle stated that this Ordinance includes changes to the Building section of City Code. It changes some registration fees and requirements for rental housing.

There was no further discussion.

Clerk Booker called the roll call vote:

| Councilperson | Vote |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 23-2024 passed on second and final reading.

NEW BUSINESS:
Ordinance No. 24-2024 An Ordinance Concerning The Construction Of Additions And Improvements To The Sewage Works Of The City Of West Lafayette, Indiana, The Issuance Of Revenue Bonds To Provide The Cost Thereof, The Collection, Segregation And Distribution Of The Revenues Of Said Sewage Works, The Safeguarding Of The Interests Of The Owners Of Said Revenue Bonds, Other Matters Connected Therewith, Including The Issuance Of Notes In Anticipation Of Bonds, And Repealing Ordinances Inconsistent Herewith (Sponsored by Mayor Easter) [No. of Readings 1 of 2]

Councilor Parker read Ordinance No. 24-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 24-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

WWTU Director Henderson explained that this bond will fund the final phase of our Combined Sewer Overflow (CSO) long-term control plan that was approved by the Indiana Department of Environmental Management (IDEM). It is for an expansion of the wet-weather treatment facility and a new administration and laboratory building.

Dennis Otten (Bose McKinney & Evans LLP), bond counsel, stated that these bonds are payable from the net revenues of the Utility. These sewer bonds are no different than others that the City has issued in the past, and current issues are listed in the Ordinance. Revenues after paying

operation and maintenance expenses are pledged to the bond holders. On a monthly basis, those revenues get set aside into a debt service account. There is also a reserve fund for the bonds in place in case there is ever a shortfall, though not expected. He noted that these are tax-exempt bonds which will afford the City the best interest rate in the marketplace. Current sewer rates and charges provide sufficient coverage for these bonds. One statutory item that is also listed in the Ordinance is a rate covenant ensuring for the bond holders that the City will always maintain rates and charges of the sewage works at a level sufficient to cover not only operations and maintenance expenses, but debt service as well. He explained that if the Council approves this now and on second reading next month, a required notice of adoption will be advertised that starts a 20-day objection period. He provided a timeline from there of when the City would go to the market for the bonds and get a rating, with the hope to have the bond proceeds in hand by mid-November. He noted that the financial advisor we work with is Jim Treat with Krohn & Associates, and the underwriter is Stifel, which is one of the top underwriting firms in the State.

Councilor Burr stated that at $37.5 million, this is a large bond, and it is one that the public will not really see the impact from it. Though she believes he already answered, she asked Director Henderson if we need to do this bond.

Director Henderson responded that the long-term CSO control plan was approved by IDEM. While some communities have certainly pushed back on doing CSO work, they are assessed fines and then must do the work anyway. We have always been proactive, and he provided some history on that. During Mayor Sonya Margerum's tenure, when he worked with his predecessor, Utility Director Mike Darter, we did an early-action project with the original wet-weather facility before the approved long-term control plan was in place. IDEM was initially slow in approving plans before the Environmental Protection Agency (EPA) prompted IDEM to pick up the pace.

Councilor Burr asked if the CSO capacity is sufficient for anticipated future growth in the community. Director Henderson responded that the CSO relief interceptor, which is the tunnel we built under River Road, and this expansion to the wet-weather facility is strictly to treat what had been going into the River during heavy rains. Those overflows are now being captured, conveyed to the plant and then treated. This does not add capacity to the main plant – it is only a set of projects geared toward reducing CSO impacts to the Wabash River. He noted that over 100 communities in the State have been working on the same thing, some smaller and some much bigger than our projects.

Councilor Burr asked if we anticipate a need to increase sewer rates at all to cover the new bond. Director Henderson responded that probably the best part of this is that we have bond capacity that allows us to avoid increasing rates more than the small increases that were already approved for the next few years. There are no additional rate impacts for this bond issue.

Councilor Sanders asked what the interest rate environment is like. Mr. Otten noted that he is not a certified public accountant (CPA), but from working in this market and documents from the financial advisor, the yield is being projected at 3.75%. That is over the overall life of the bond issue. It can certainly change, but he thinks we are in a good position.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |

| Councilperson | Vote |
|---|---|
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 24-2024 passed on first reading.

Ordinance No. 25-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (Purdue Research Foundation) (PDRS to CBW) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

Councilor Parker read Ordinance No. 25-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 25-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Mike Wylie, Schneider Geomatics, on behalf of the petitioner, stated that the APC did a great job in their Staff Report of what Purdue Research Foundation (PRF) is pursuing with this petition. This is to return the zoning back to what was part of the 2020 overlay district of CBW for the Discovery Park District. It had been rezoned to PDRS for a project that was unsuccessful.

Councilor Burr stated that she was reading the definition of CBW, Central Business for West Lafayette, and the category of the types of businesses or developments that can go in that classification. She asked if that includes gas stations, mini marts, and fast-food drive-throughs. Mr. Wylie responded no, since this is part of the overlay district there are use and architectural standards. Councilor Burr asked if it could include a grocery store, and Mr. Wylie responded yes.

President Leverenz added that it is his understanding that this has to be rezoned in some way in order to be used since the only way it could be used at this point is if that original planned development went forward. Director of Development Van Schuyver confirmed that is correct.

There was no further discussion.

Clerk Booker called the roll call vote:

| Councilperson | Vote |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |

| Councilperson | Vote |
|---|---|
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 25-2024 passed on first and only reading.

Ordinance No. 26-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (Wesley Foundation of Purdue University - Liesl Shen) (Wesley Foundation PD) (R3W to PDMX) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

Councilor Parker read Ordinance No. 26-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 26-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Ryan Munden (Reiling Teder & Schrier, LLC), representing the petitioner, explained that the Wesley Foundation has been on Purdue's campus at its current location on State Street for over 100 years. Due to the expansion of the Daniels School of Business, Purdue and Wesley have agreed to a land swap, resulting in Wesley's relocation to 122 Waldron Street. Purdue has already started demolishing the current building. He stated that Wesley's program is not changing with the relocation; their mission remains: "Open Hearts, Open Minds, Open Doors." The Foundation is excited about the opportunities that this new building will give to them to continue serving the community. The new building will be four stories, and it includes a 34-bed housing component. The previous location has two beds. Along with housing, there will be spaces for a great hall, worship lounges, study lounges, conference rooms, and a library. He reviewed the site plan with the landscaping and streetscape. At the corner of 2nd and Waldron Streets, the goal is to make the building as welcoming as possible. There will be three parallel parking spaces in the alley, and the remaining parking will be accommodated via a licensing agreement with Purdue for 21 on-campus spaces. He noted that this project received recommendation and approval from the Joint Board and APC.

Pastor Glen Robyne stated that he wants to emphasize the partnership Wesley has had with West Lafayette over the past 107 years. He stated that they are not just a campus ministry focused on themselves, but they also reach out to the community as a positive influence. The Foundation has been a place for international students from their beginning and was instrumental in breaking the color bar on campus. Before the Parker Sisters [Frieda and Winifred Parker] were able to get into the residence halls at Purdue, they were at the Wesley Foundation; it was where they met the Purdue President. The Foundation continues that sense of welcoming, where a diversity of people is welcome, more than other local organizations. It is the home of the largest community service project at Purdue, called Winterization, where around 1,400 college students are mobilized to serve around 350 homes of mostly elderly residents in the community. Pastor Robyne stated that the Foundation is looking forward to this project and to continuing to be partners with Purdue and West Lafayette as they try to be a spiritual home on campus to a diversity of students while connecting them to a wider community.

Jim Rau (1106 Cherry Lane) expressed concern at the number of parking spaces and also at having this type of housing instead of University housing for students.

There was no further discussion.

Clerk Booker called the roll call vote:

| Councilperson | Vote |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 26-2024 passed on first and only reading.

Ordinance No. 27-2024 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (Core Lafayette Chauncey, LLC – Jonathan Kubow) (Hub Chauncey PD) (CBW to PDMX) (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

Councilor Parker read Ordinance No. 27-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 27-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Director Van Schuyver provided some background on this property. Two other projects have been proposed for this site in recent years that did not make it to this approval step. She stated that this proposal is truly special and took nearly two years of negotiations. The City wants to ensure that this is the best possible project for this community. The existing space is around 45,000 square feet of retail space with a parking lot. The proposed project will return nearly 37,000 square feet of retail space with a lot of parking dedicated underneath.

Kevin Riley (Reiling Teder & Schrier, LLC), representing the petitioner, stated that this project received unanimous approval at APC and received support at the Joint Board.

Misha Efremov (Core Spaces) stated that this was an exciting and challenging project to design. With the prominence and scale, they took this project very seriously and worked with the City and other parties to come up with this design. He reviewed a slideshow presentation with renderings and plans. He spoke about the public park space provided to the City at the corner, the retail space, and the residential space. He described how the architecture was designed to fit the area, including the visual of it being a gateway to the Purdue campus as people come up the hill, and they also took a lot of cues from the Louis Sullivan building across the street. Since the architects of this project are from Chicago, they always respect the work of Mr. Sullivan as a world-famous architect. They have introduced similar details into this building, including green terre cotta tile and brickwork, as the Sullivan building to help carry that language across and pay homage to Mr. Sullivan. There will be places that provide shade and cover as people walk along the retail front, which will help activate the spaces as students and other residents move to their respective lobbies.

Justin Otanicar (Antunovich Associates) and Mr. Efremov jointly reviewed the floor plans in the slideshow. Most of the parking is below grade or in the back, so that people are not looking at a garage from State Street or Chauncey Avenue. It is split between retail parking, market rate parking, and student resident parking. The residential space has areas of market rate rentals and student residences. The 1st and 13th floors have amenity spaces, including a pool, spa, wellness program with hot and cold plunge pools, and a roof terrace space.

Councilor Sanders asked, regarding the park space, how much of the afternoon will be in the shadow of the tall buildings from the south and west. Mr. Efremov, noting that he does not have the sun study with him, explained that the shade in some portions of the park will vary with the time of year while the corner near the State and Chauncey intersection should have more direct sunlight year-round.

Councilor Sanders stated that Mr. Sullivan's designs are about organic forms, and he asked if those are being incorporated or if we are just having green. Mr. Efremov responded that when designing this project, they looked not just at this bank building but studied Mr. Sullivan's architecture all over the country to understand his design principles and aesthetic. It included having a strong base with rich detail where people interact with it, so that is why this project has the masonry detailing at the lower levels while the green is a literal homage to the bank building itself. It helps tie in the site and just looks nice.

Councilor Sanders asked for an update on the developer's purchase of the Sullivan bank to then donate to the City, which had been discussed as part of the package for the development. Jonathan Kubow (Core Spaces) responded that they are still having ongoing discussions with the bank with positive progress. Councilor Burr asked for more details of that progress or assurances since that would be an important part of the perception of this deal to the Councilors. Mr. Kubow stated that they are currently negotiating now, and they think it is important to have it; it is a win-win situation for the project's building, the City, and the bank. They are making every effort possible to make that acquisition part of this project.

Brantley McCord (221 W. Wood Street) stated that he is in favor of housing, parking, and public places for housed and unhoused people to enjoy. However, he is greatly concerned about affordability. He stated that to offer himself as a data point, he is a part-time worker at the downtown branch of the Tippecanoe County Public Library, and 80% of his wages – 20 hours a week at $14.00 per hour – go to rent alone, priced at $900.00 per month. Many students earn less. Across the street from him, an apartment building with similar rent is being rezoned for luxury-style housing and is expected to approximately double its rental cost. We do desperately need housing and parking; however, if a person can work here and still not afford housing at the redeveloped Chauncey offerings, we will fail before we begin. Many do not have the privileges that allow him to scrape by. He stated that rental costs must meet the people where they are at, or we will face the consequences of displacement. Unaffordable housing will gentrify the area as well as cut off first generation students and underprivileged populations. We must serve the people, not prospects.

Bambi Dean (2400 Beck Lane, Lafayette) stated that displacement is in the forced involuntary relocation of residents, including departure from a home or neighborhood where a tenant would otherwise have wanted to remain if not for socioeconomic and environmental pressures making that infeasible or undesirable. Displacement is deeply intertwined with gentrification. The cause of gentrification can be attributed to private investment, public policy, and public investment. Without controlling these factors for the benefit of all, gentrification can take place. Gentrification has spread widely across many cities for both good and bad. While there are positive outcomes, such as reduction of crime and rehabilitation of spaces, it can adversely impact local populations,

pricing people out of their homes and housing costs to increase. That has been going on all around us. Gentrification needs to be managed with care by local governments to ensure that individuals across the entire spectrum can reap the benefits. The problem is that it can negatively impact the community's history, residents, culture, social capital, and it is a housing and economic health issue that displaces groups of people through urban renewal programs, typically benefitting higher income people as they move into affordable neighborhoods and alter the neighborhood dynamics. The disadvantages include the loss of small businesses, which has been a conversation on the NextDoor app for a while now, loss of affordable housing for residents, increase in costs of living, and the loss of diversity – with Purdue, that is something she would consider us to pride ourselves on.

Jim Pitoukkas (5410 Crocus Drive) stated that he comes before the Council as a citizen who loves this town. He grew up here, and his family operated a restaurant in the Chauncey Hill Mall as one of its original tenants in 1980. He spoke about his history growing up to now working in commercial real estate. It has been exciting to see the growth at Purdue and through the industry partners in town. With growth comes challenges. Our housing shortage and affordability are big problems that we have to address head-on. He looks at these problems also as an opportunity; we are fortunate to have a growing University, a growing industry, and to have people who want to live here. It provides a chance to build more housing and to replace dated infrastructure, services, and retail. He feels for the affordability segment but thinks the only way out of it is to build more product – more housing units. He has seen in his work across the country and Puerto Rico, and it is well documented, that when even expensive products or apartments are added to the market, then overtime the equilibrium is restored with a plateau of rents across the highest sectors. Eventually rents cannot be raised anymore and those decreases trickle down through all housing product types. He commended the Council on some recent approvals that took steps toward adding more housing in the community. He sees this project as having a diversity of unit mix that will appeal to more than just high-end students and also public spaces that our community can enjoy for years to come.

Geno Christofanelli stated that he believes this will be a huge steppingstone for the City with the greenspace and retail, and it is replacing something that is very outdated. He believes it should be approved. Regarding affordability, we do not always need to build luxury student apartments – not everyone needs their own bathroom.

Mr. Rau expressed disagreement that this project will be a gateway for the City; he looks at Mitch Daniels Boulevard as the gateway to Purdue University. This is not affordable housing for the normal student, no way. He is also a local contractor, and he can show "for rent" signs all over the City that are unfilled, residential, and the same market. This is basically a ploy to bring housing under this housing shortage that does not exist. The University should step up and house their students with student housing, not luxury apartments.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |

| Councilperson | Vote |
|---|---|
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Abstain |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 6 AYES, 0 NAYS, and 1 ABSTENTION.

President Leverenz announced that Ordinance No. 27-2024 passed on first reading.

Ordinance No. 29-2024 An Ordinance Establishing The West Lafayette Parking Meter Fund (Sponsored by Mayor Easter) [No. of Readings 1 of 2]

Councilor Parker read Ordinance No. 29-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 29-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Controller Gray explained that this is to give the City authority to establish a parking meter fund on the general ledger, if the fund is needed as discussed on the next Ordinance.

Councilor Lee spoke about the decision to switch the order of Ordinance Nos. 28-2024 and 29-2024 on the agenda, and he said that he noted that this one does reference Ordinance No. 28-2024. He asked if that is an issue. Counsel Burns stated that he realized that the switch we made was not necessary, and from a legal standpoint it does not matter which order they are passed, and they can be switched back next month.

There was no further discussion.

Clerk Booker called the roll call vote:

| Councilperson | Vote |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 29-2024 passed on first reading.

Ordinance No. 28-2024 An Ordinance Permitting And Regulating The Use Of Parking Meters And Parking Spaces Where Parking Meters Are Present In The City Of West Lafayette, Indiana (Sponsored by Councilor Sanders) [No. of Readings 1 of 2]

Councilor Parker read Ordinance No. 28-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 28-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Councilor Sanders stated that work on this Ordinance has been a joint effort between City administration and law enforcement and himself. He stated that with a growing City and student population, parking is increasingly a problem. We are concerned about people being pushed onto West Lafayette streets, so we want to accomplish two things. First is to establish parking time limits in parts of the City which are most valued. The second is enforcement. When people are not paying, they frequently psychologically see signs and time limits as suggestions. It will give people a sense that we do have limits on parking that will be determined by the nature of the areas. He thinks it is time that we have these regulations in place.

Deputy Police Chief David VanVactor stated that he, Code Enforcement, Development, and some other City entities got together a year ago to discuss pay-to-park parking. During that time, they spoke with Park Mobile, which is a pay-to-park app. The team believes this Ordinance will provide an equitable and efficient management of some of the parking areas within our City. One area has 450 spaces with only 8 having timed parking, so realistically that is a surface parking lot 24/7. Some areas that are being developed, along with the area called “The Island,” are premium parking – close to campus and a lot of activity. The intent of this Ordinance is to have a program to help move that parking flow along, so people are not there longer than they need to be, and to have the traffic in and out to assist commuters and visitors with finding parking close to campus. A large portion of the areas listed in the Ordinance are part of those emergency routes, where we encounter problems in the winter months. The plan is to utilize a platform like this to push out messaging to people who are parked in the snow emergency spots so that the vehicles can be moved off the roadway as soon as possible. The current method, since we are not in favor of just ticketing and towing vehicles, is to go out and run license plates and try to find the owners. If we find a phone number, it is often of the parents who own the car, and then we have to track down their children. One instance took the parking enforcement personnel and patrol officers six hours to get the vehicles moved without towing, so it takes a lengthy period of time. We hope this Ordinance passes to help navigate that issue and to potentially free up parking for visitors and commuters to campus.

Councilor Parker asked how many spaces this covers. Deputy Chief VanVactor responded that it is approximately 1,000. Councilor Dennis stated she was surprised to see it free parking on holidays listed and asked if that is typical. Deputy Chief VanVactor responded that he does not know if it is typical, but it is what the team decided. Councilor Dennis asked if we would figure out later what to do with the funds. Deputy Chief VanVactor responded that is mostly regulated, and it will help pay for infrastructure or equipment for code enforcement or school crossings.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |

| Councilperson | Vote |
|---|---|
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 28-2024 passed on first reading.

Ordinance No. 30-2024 An Ordinance Setting The 2025 City Budget And Setting The 2025 Tax Levy On Property And Tax Rate (Prepared by Controller) [No. of Readings 1 of 2] **PUBLIC HEARING**

Councilor Parker read Ordinance No. 30-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 30-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Controller Gray spoke about the proposed amendment on the agenda, explaining that while reviewing the Ordinance a few errors were found. He provided the Councilors with a copy of the amendment with the corrections highlighted and reviewed those. Some issues were due to line shifts for the descriptions, but the dollar amounts were correct. Under the Levy on Property, Funds to be Raised column, the digit 1 was left off the total, so it should be $15,048,000.

Councilor Parker motioned to amend Ordinance No. 30-2024 by substitution. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

Controller Gray reviewed some items on the budget and noted that he will hold a work session, which is also a public meeting, with the Councilors before the second reading to go into more detail. As usual, a 10% increase is budgeted for insurance – medical, dental, vision, and business, and that is now all under the Finance Department instead of split. It includes a 3% raise for City employees. He noted that it took a long time to put this budget together, in part because there were over 30 changes in personnel items. Along with several changes within existing departments, there will be three new departments: Communications, Housing, and the Fire Merit Commission. Additions to the Cumulative Capital Development (CCD) Fund include consolidating software licensing under the IT Department and increasing software support and cyber security. Under Economic Development Income Tax (EDIT), the Parks Department has increased the AmeriCorps program, which has a grant aspect to it, along with the addition of a tree nursery. Controller Gray spoke about the levy, explaining that as in past years, both the dollar amount and the tax rate are estimated on the high end to ensure that when the State reviews it and breaks out the different funds that the City is still covered within each of our funds for the tax rate and the dollars that need to be in those funds. The tax rate is estimated, and he believes it will be around the same as now, but it is uncertain. If it is lowered too much, we risk not getting the maximum amount of levy that we can have.

Councilor Dennis asked about the mention of a housing department. Controller Gray stated that there will be a Housing Director. Mayor Easter stated that as we work through our strategic planning process, housing – as has been heard today – has been one of the most contentious issues that we face as a City. This is not just in terms of student housing, but all housing. When a neighborhood is developed, there is a lot of infrastructure, planning, and development that goes into that. We see the City as having a lot of opportunity that private developers might not as being a conduit between property owners and those future developers. That is an area where we might be able to work in conversations about housing affordability and places that we may have more

leeway, and also to create housing for all within the community. We are placing a priority on creating more housing within the community and doing so thoughtfully with specific staffed help. With that, increased housing means increased revenue, so we anticipate that position more than covering its cost in a short amount of time.

Councilor Burr moved to open a public hearing on Ordinance No. 30-2024. Councilor Parker seconded the motion, and the motion passed by unanimous voice vote.

Mr. Rau said, "When I was reading this budget, it has an estimated assessed valuation of 1.4 billion dollars. There is no reconciliation of what it was the year prior. The assessed values have gone up almost 30% in this crazy town, and yet we talk about a 4% increase on tax rates, and then you talk about affordable housing and having [inaudible] people invest in private housing, and this is far from an incentive, all right, to build homes. You are taxing, think about this, you are taxing a situation here that is not affordable to the normal homebuyer. Why do you need a 4% increase when you have almost a 30% increase in your tax assessed valuation, or can you comment what it was last year? You estimate this 1.45 billion, what was it last year and the year before?"

Controller Gray said, "If I understand the question was the assessed value? Current assessed value for this year, 2024, is 1.59 billion. As talked about earlier, on the budget, we lower that in order to make sure we cover our assessed rate. The actual tax rate is 0.8390 per $100.00. Last year, we had an assessed value of 1.47 billion, and our tax rate was 0.8729. And in 2022, our assessed value was 1.33 billion, and our tax rate was 0.9120. So, our tax rate has been going down the last few years, and as I mentioned, when we actually get everything done at the end and after the review of the State, I am anticipating the tax rate will still be in the low 0.83-0.85 area."

Mr. Rau said, "That is not what this document says. It is just surprising. You would think that the documents would be correct. Thank you."

There were no further comments from the public.

Councilor Parker moved to close the public hearing on Ordinance No. 30-2024. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 30-2024 (Amended) passed on first reading.

Ordinance No. 31-2024 An Ordinance To Establish The Designation And Use Of Unrestricted Opioid Settlement Funds (Sponsored by Councilors Burr and Parker) [No. of Readings 1 of 2]

Councilor Parker read Ordinance No. 31-2024 by title only.

Councilor Parker moved for passage of Ordinance No. 31-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Councilor Burr stated that there is a proposed amended version of this on the agenda. She explained that this is for the opioid settlement funds that come to the City. There are two categories associated with the settlement dollars – restricted and unrestricted. The restricted funds have very defined uses for how the money can be spent to mitigate the harms opioid use. This Ordinance is to ensure that the unrestricted funds are still used to mitigate those harms, including mental health and services in the City that will help mitigate the nationwide crisis as it affects West Lafayette. It ensures the funds are used that way not only by this elected group and administration, but also into the future.

Councilor Parker motioned to amend Ordinance No. 31-2024 by substitution. Councilor Lee seconded the motion.

Councilor Sanders stated he is happy these amendments are being made. In response to a question from Councilor Sanders about a stricken line, Councilor Parker explained that the line was redundant because it is a requirement of the funding.

The motion to amend passed by unanimous voice vote.

Ms. Dean acknowledged that she is not a West Lafayette resident, but she volunteers for a lot of programs that cover residents in the whole greater Lafayette area. She volunteers for Brianna's Hope and a couple other programs regarding recovery from drug usage. She noticed that the prevention programs listed under Section 2 do not mention reduction of prescription and usage at the doctors' level, before it gets to other aspects of people being able to use it. Also, she appreciates the mention of social workers, but she is wondering how much of that is available at the first response. What she sees from the side that she deals with, is that there is not enough knowledge of the psychological aspect coming to the event that law enforcement is called to. She appreciates the inclusion of the harm reduction and needle exchange program.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 31-2024 (Amended) passed on first reading.

Resolution No. 18-2024 Resolution Requesting The Transfer Of Funds (Communications) (Prepared by Controller) [No. of Readings 1 of 1]

Councilor Parker read Resolution No. 18-2024 by title only.

Councilor Parker moved for passage of Resolution No. 18-2024 on first and only reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Controller Gray explained that the Communications Department was not originally in the budget this year, so this is to partially fund that position by moving funds from the Police and Mayor personnel budgets.

There was no further discussion.

Clerk Booker called the roll call vote:

| Councilperson | Vote |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Resolution No. 18-2024 passed on first and only reading.

Resolution No. 19-2024 A Resolution Of The City Of West Lafayette, Indiana, In Support Of Exempting Menstrual Products From Indiana Retail Sales Tax (Sponsored by Councilors Bellisario, Burr, Dennis, Parker, and Veidemanis) [No. of Readings 1 of 1]

Councilor Parker read Resolution No. 19-2024 by title only.

Councilor Parker moved for passage of Resolution No. 19-2024 on first and only reading, and that the vote be by roll call. The motion was seconded by Councilor Lee.

Councilor Burr stated that Indiana is one of 21 states that still tax menstrual products, despite that the Streamlined Sales and Use Tax Agreement (SSUTA) and the Food and Drug Administration (FDA) defining these products to be medical devices. The Indiana General Assembly has loosely explored and had legislation for this in front of it but have never taken it to a vote. There is some conversation in the press that House Speaker Todd Huston would welcome the inclusion of this in the next budget cycle. We would like the City to encourage our State legislators to bring this forward to a vote. We believe that our City is committed to promoting gender equity and supporting initiatives that reduce economic disparities within our community. There is a proposed

amendment document on the agenda, which changes some language for clarity and to note the bipartisan support by Indiana legislators.

Councilor Parker motioned to amend Resolution No. 19-2024 by substitution. Councilor Lee seconded the motion, and the motion passed by unanimous voice vote.

Amanda Eldridge (309 Tippecanoe Street, Battleground) noted that she works in West Lafayette and is a candidate for County Council. She is primarily speaking in support of this as someone who pays this tax and is a volunteer with MADVoters, for Mutually Assured Democracy. She reviewed a ten-year history of this topic being in front of the Indiana General Assembly, and it was most recently halted by Senator Ryan Mishler. She stated that removing this tax is important because it is violating Indiana tax code since the SSUTA has redefined them as menstrual discharge collection devices to make it clear that they are a medical device. This tax creates an economic burden. The State collects $5.6 million per year on this tax, which is 0.01% of the total State budget. One in four Hoosiers face period poverty. The price of period products has gone up 10% in the past year, and many people do not know that the Supplemental Nutrition Assistance Program (SNAP) and the Women, Infants & Children (WIC) program do not cover the cost of these items. It impacts economic and learning issues as people who cannot pay for them are missing work and school. It also impacts health as the products are used longer than they should or other items are used, such as socks or plastic store bags. She asked that this Resolution be passed and that we continue to put pressure on our legislators to benefit Hoosiers.

Ms. Dean added that a health risk of using these products longer than necessary is toxemia, which can be quite an issue for anyone with female anatomy. She expressed agreement with Ms. Eldridge that there be pressure to pass legislation for this.

There was no further discussion.

Clerk Booker called the roll call vote:

| **Councilperson** | **Vote** |
|---|---|
| Bellisario | Absent |
| Blanco | Absent |
| Burr | Aye |
| Dennis | Aye |
| Lee | Aye |
| Leverenz | Aye |
| Parker | Aye |
| Sanders | Aye |
| Veidemanis | Aye |

Clerk Booker stated that the vote was 7 AYES and 0 NAYS.

President Leverenz announced that Resolution No. 19-2024 (Amended) passed on first and only reading.

REPORT BY THE MAYOR

Mayor Easter stated that emails will be going out about surveys, focus groups, and a public workshop at Global Fest for our strategic planning public outreach. There will also be a public information session for the Public Safety Center within the next couple of weeks. Both items

promise to provide a lot of interesting detail about the future of what we see happening with the City, and she would love to have everyone's participation.

COMMUNICATIONS: None

CITIZEN COMMENTS: None

ADJOURNMENT

There being no further business at this time, Councilor Parker moved for adjournment, and President Leverenz adjourned the meeting the time being 8:45 p.m.

WEST LAFAYETTE
HUMAN RESOURCES

## Human Resources Updates

**[October 2024]**

### New Team Members

***Benjamin Neild*** joined the Engineering Department as a Project Manager/GIS on September 3. Benjamin has two bachelor's degrees, one in Interdisciplinary Agriculture from Purdue University and one in Sociology from the University of Southern Indiana. He was previously employed as an Environmental Manager with INDOT where he reviewed federal contracts and conducted GIS mapping.

***Clara Lotz*** joined the Wastewater Department as a Climate Resiliency and Sustainability Officer on September 30. Clara has a Bachelor's in Marine Science from the University of South Carolina where she graduated Cum Laude. Clara recently completed the City's AmeriCorps program as a GIS and Community and Engagement Lead. Clara also worked as a Sustainability Intern for the City of Columbia, South Carolina, where she applied for and initiated the U.S. Green Business Council LEED (Leadership in Energy and Environmental Design) for Cities project, resulting in the City receiving a LEED Gold Certification which was also the first in South Carolina.

***Charles Ricker*** joined the Building Department as an Inspector on September 3. Charles studied Horticulture at Purdue University. He recently worked as a Project Manager at Riverside Construction where he oversaw projects from design to completion which included construction schedules and project budgets.

***David McCartney*** joined the Street & Sanitation Department as a Driver/Collector on September 30. David is a graduate of the Indiana Law Enforcement Academy (ILEA) and has most recently worked as a Patrol Officer and a Street Laborer for the city of Carmel. He also works on his family's farm in Darlington. David has held a Class A CDL with tanker endorsement since 2009.

**Lucas McCalment** joined the Wastewater Department as a Facility Operator on September 16. Lucas studied Political Science at Purdue University. He has worked as a Line Worker at SIA where he applied sealer into car seams and a Load Puller at Lowe's where he filled delivery orders and loaded trucks.

***Thomas Foster*** re-joined the Street & Sanitation Department as an Equipment Operator/Laborer (Wastewater Division) on September 16. Thomas graduated from Lafayette

Jeff High School. He has worked as a Truck Driver for Bulk Transfer in Frankfort where he delivered materials to vendors and as a Construction Laborer/Crew Foreman for LMB Contracting where he performed maintenance on rental properties. Thomas worked for over 10 years during his previous tenure with the City of West Lafayette Street & Sanitation Department where he worked as an Operator/Laborer locating underground sewer and wastewater pipes.

**Career Highlights**

The City of West Lafayette would like to express its appreciation to the following employees for having achieved a major employment milestone.

25 years of service
**John Heitmiller** – Maintenance Technician I, Parks & Recreation Department

5 years of service
**Monica Wontor** – Human Resources Manager, Human Resources Department

**Professional Achievements**

Congratulations to the newly elevated **Police Officer First Class Brendon Cheever**. Officer Cheever completed the FTO Program and has satisfied all requirements for the elevation which was effective August 3rd.

Congratulations to **Police Officer First Class Amber Elliott** on her recent elevation. Officer Elliott successfully completed the FTO Program and met all requirements, with the elevation becoming effective on September 28th.

**Monthly Highlights**

The City's annual open enrollment with American Fidelity Assurance (AFA), our Section 125 voluntary benefits provider, took place the week of September 23rd. The five available voluntary products and services offered to employees through AFA are Accident, Cancer, Critical Illness, Hospital Indemnity and Short-Term Disability.

**Career Opportunities**

- Enterprise Resource Planning (ERP) Administrator—Information Technology
- Assistant City Engineer—Engineering
- Probationary Police Officer—WLPD
- Probationary Dispatcher—WLPD
- Finance Temp—Finance
- Engineering Intern—Engineering

Submitted by the Human Resources Team

- Recreation Staff—Parks & Recreation
- Skate Rink Staff—Parks & Recreation
- Private Lesson Skate Instructor—Parks & Recreation
- Wellness Center Custodian (Temp/PT)—Parks & Recreation/Wellness Center
- Hub Services Associate—Parks & Recreation/Wellness Center
- Sports Staff (Youth Sports Official)—Parks & Recreation/Wellness Center
- Lifeguard—Parks & Recreation/Wellness Center
- Swim Instructor—Parks & Recreation/Wellness Center
- Preschool Staff—Parks & Recreation/Wellness Center
- Program Assistant (Margerum City Hall)—Parks & Recreation
- Personal Trainer—Parks & Recreation/Wellness Center
- Group Exercise Instructor—Parks & Recreation/Wellness Center
- Youth Enrichment Staff (Clubhouse)—Parks & Recreation/Wellness Center

Submitted by the Human Resources Team

**West Lafayette Street/Sanitation/Recycling Department**
**August 2024**

**SANITATION/RECYCLING**

| | | | | |
|---|---|---|---|---|
| August Income Fee | $ 106,581.40 | | To Date | $ 761,169.00 |
| Recyclables Sales | $ - | | To Date | $ 2,308.60 |
| Waste Land Filled | 493.82 | Tons | Tip Fee | $ 27,362.57 |
| Street Sweepings Land Filled | 33.54 | Tons | Tip Fee | $ 1,858.45 |
| Materials Recycled Curb Side | 122.37 | Tons | ATF | $ 6,780.52 |
| Yard Waste Composted | 127.17 | Tons | ATF | $ 7,046.49 |
| Leaves Composted | 0.00 | Tons | ATF | $ - |

**ATF: Avoided Tip Fee is $55.41/ton**

| ACTIVITIES | HOURS | | |
|---|---|---|---|
| Street Sweeping | 98.25 | 33.54 | Tons Collected |
| Leaf Collection | 0.00 | - | Tons Collected |
| Pothole Patching/Street Repair | 2.0 | | |
| Mowing | 58.0 | | |
| Street Painting/Thermo Install | 86.0 | | |
| Signal Maintenance | 20.00 | | |
| Sign Making | 0.00 | | |
| Traffic Locates | 15.00 | | |
| Manhole Repair/Replace | 0.00 | | |
| Cath Basin Repair/Replace | 16.00 | | |
| Sewer Repair/Replace | 0.00 | | |
| Sewer Locates | 101.5 | | |
| Sewer Cleaning | 0.0 | | Feet Cleaned |
| Sewer Televising | 0.0 | 230.00 | Feet Televised |
| Storm Sewer Televising | 4.0 | 280.00 | Feet Televised |
| Combo Sewer Televising | 0.0 | 845.90 | Feet Televised |
| Storm Sewer Cleaning | 0.00 | | Feet Cleaned |

| MATERIALS | TONS | REVENUE | ATF |
|---|---|---|---|
| Bi. & Scrap Metal | 0 | $ - | $ - |
| Comingled- Curbside | 122.37 | $ - | $ 6,780.52 |
| Food Waste | 0.64 | 0 | $ 35.46 |

**West Lafayette Street/Sanitation/Recycling Department**
**September 2024**

**SANITATION/RECYCLING**

| | | | | |
|---|---|---|---|---|
| September Income Fee | $ 91,104.67 | | To Date | $ 852,273.70 |
| Recyclables Sales | $ 797.50 | | To Date | $ 2,308.60 |
| Waste Land Filled | 397.73 | Tons | Tip Fee | $ 22,038.22 |
| Street Sweepings Land Filled | 43.15 | Tons | Tip Fee | $ 2,390.94 |
| Materials Recycled Curb Side | 126.73 | Tons | ATF | $ 7,022.11 |
| Yard Waste Composted | 107.56 | Tons | ATF | $ 5,959.90 |
| Leaves Composted | 0.00 | Tons | ATF | $ - |

**ATF: Avoided Tip Fee is $55.41/ton**

| ACTIVITIES | HOURS | | |
|---|---|---|---|
| Street Sweeping | 99.00 | 43.15 | Tons Collected |
| Leaf Collection | 0.00 | | Tons Collected |
| Pothole Patching/Street Repair | 0.0 | | |
| Mowing | 32.0 | | |
| Street Painting/Thermo Install | 211.0 | | |
| Signal Maintenance | 5.00 | | |
| Sign Making | 0.00 | | |
| Traffic Locates | 10.00 | | |
| Manhole Repair/Replace | 0.00 | | |
| Cath Basin Repair/Replace | 0.00 | | |
| Sewer Repair/Replace | 38.00 | | |
| Sewer Locates | 136.0 | | |
| Sewer Cleaning | 46.0 | 5,982.00 | Feet Cleaned |
| Sewer Televising | 67.0 | 3,610.67 | Feet Televised |
| Storm Sewer Televising | 4.0 | - | Feet Televised |
| Combo Sewer Televising | 0.0 | - | Feet Televised |
| Storm Sewer Cleaning | 0.00 | 90.00 | Feet Cleaned |

| MATERIALS | TONS | REVENUE | ATF |
|---|---|---|---|
| Bi. & Scrap Metal | 7.25 | $ 797.50 | $ 401.72 |
| Comingled- Curbside | 126.73 | $ - | $ 7,022.11 |
| Food Waste | 1.47 | 0 | $ 81.45 |

# City of West Lafayette
## Report of Permits Issued
## 9/1/2024 through 9/30/2024

| Permit Type | Appl. | Issued | Owner | Contractor | Location | Description | Project | Est. Cost |
|---|---|---|---|---|---|---|---|---|
| Commercial - Improvement | 27089 | 09/16/2024 | Midwest Student Housing Properties LLC | Sanchez Systemizing Inc | 111 S River Rd Ste E<br><br>Parcel #<br>79-07-20-307-004.000-026 | Interior remodel - Hala's Grill | New kitchen hood | $18,000.00 |
| | 27035 | 09/16/2024 | First Olympia LLC | ATCS Inc. | 706 Northwestern Ave<br><br>Parcel #<br>79-07-18-466-007.000-026 | Interior remodel - Circle K convenience store | | $40,000.00 |
| | 26986 | 09/09/2024 | Centro Bradley SPE 5 LLC | RESA Construction Inc. | 1044 Sagamore Pkwy W Ste D<br><br>Parcel #<br>79-07-07-176-011.000-026 | Interior renovation - Wingstop | | $250,000.00 |
| | 27043 | 09/16/2024 | Horizon Properties I LLC. | ATCS Inc. | 1209 Sagamore Pkwy W<br><br>Parcel #<br>79-06-12-426-010.000-026 | Interior remodel - Circle K convenience store | | $40,000.00 |
| | **Total** | | | | | | | **$348,000.00** |
| Commercial - New Build | 26844 | 09/18/2024 | Franciscan Alliance Inc. | Tonn & Blank Construction | 2546 Cumberland Ave<br><br>Parcel #<br>79-06-11-200-013.000-029 | New build - OrthoIndy | Medical offices & ambulatory surgery center | $23,994,003.00 |
| | 27109 | 09/12/2024 | Cumberland Partners LLC | Citation Homes LLC | 2575 Cumberland Ave<br><br>Parcel #<br>79-06-11-251-001.000-029 | Add building E - Cumberland Self-Storage | | $250,000.00 |
| | **Total** | | | | | | | **$24,244,003.00** |
| Electrical | 27084 | 09/11/2024 | Coffin, Cheryl | Huston Electric, Inc. | 220 Sheffield Rd<br><br>Parcel #<br>79-07-05-179-014.000-034 | Install generator | | $0.00 |

| | | | | | | | | |
|---|---|---|---|---|---|---|---|---|
| | 27147 | 09/30/2024 | Hawkins, Julie & John | Thiel, Michael | 320 W Stadium Ave<br><br>Parcel #<br>79-07-19-229-025.000-026 | upgrade 100 amp to 200 amp | | $0.00 |
| | 27129 | 09/18/2024 | Trustees Of Purdue University | BK Management | 333 S Grant St Apt 11<br><br>Parcel #<br>79-07-19-451-011.000-026 | Replace main breaker | | $0.00 |
| | 27108 | 09/10/2024 | BC PFED 2 LLC | BK Management | 526 Hayes St<br><br>Parcel #<br>79-07-19-204-004.000-026 | Replace panel | | $0.00 |
| | 27111 | 09/17/2024 | Cochrane, Thomas Arey | M.P. Baker Electric Inc. | 623 N Salisbury St<br><br>Parcel #<br>79-07-18-478-002.000-026 | Service upgrade: 100 amp to 200 amp | | $1,400.00 |
| | 27127 | 09/16/2024 | O'Donnell Bellisario, Iris Aemilia | Moore Electric LLC | 912 Lindberg Rd<br><br>Parcel #<br>79-07-07-376-003.000-026 | Repair damged meter base & mass pipe | | $2,388.00 |
| | 27115 | 09/16/2024 | Easter, Linda | Brand Home Service LLC | 1827 Woodland Ave<br><br>Parcel #<br>79-07-18-131-010.000-026 | Service upgrade: 100 amp to 200 amp | | $7,000.00 |
| | 27110 | 09/12/2024 | Bertin, Francois-Rene & De Boisseson, Co | M.P. Baker Electric Inc. | 2825 Henderson St<br><br>Parcel #<br>79-07-07-230-004.000-026 | Service upgrade: 100 amp to 200 amp | | $0.00 |
| | 27137 | 09/27/2024 | Metzger, Brian P H & Hansen, Jennifer M. | Huston Electric, Inc. | 2940 Soldiers Home Rd<br><br>Parcel #<br>79-07-08-100-003.000-034 | Roof mounted solar array & battery backup system | | $30,000.00 |
| | **Total** | | | | | | | **$40,788.00** |
| Nonprofit - Improvement | 27114 | 09/18/2024 | B.T.C.C.G.L | Built to Last | 1210 Montgomery St<br><br>Parcel #<br>79-06-12-226-001.000-026 | Add covered entrance | | $16,071.00 |
| | **Total** | | | | | | | **$16,071.00** |

| | | | | | | | | |
|---|---|---|---|---|---|---|---|---|
| Residential - Improvement | 27003 | 09/05/2024 | Kyburz, Steven Paul | Kyburz, Steven Paul | 913 Lagrange St<br><br>Parcel #<br>79-07-06-451-016.000-035 | Finish basement | | $25,000.00 |
| | 27116 | 09/17/2024 | Oates, Lawrence | MRK Design Inc | 1420 Ravinia Rd<br><br>Parcel #<br>79-07-18-257-010.000-026 | Build foundation walls & install elevator | | $116,000.00 |
| | 27102 | 09/17/2024 | McKinney, Jason & Amanda Horansky | S Brown Construction Co. | 1592 Pathfinder Dr<br><br>Parcel #<br>79-06-24-427-041.000-029 | Addition above garage | | $161,000.00 |
| | 27136 | 09/27/2024 | Dewell, Reece & Melody | The Wooden Approach | 1846 King Eider Dr<br><br>Parcel #<br>79-06-13-128-005.000-034 | Finish basement: 2 bd, 1 ba, family rm | | $50,000.00 |
| | 27091 | 09/23/2024 | Maloney, Eric & Brittany | Coors Home Builders/Coors Remodeling | 3088 Hamilton St<br><br>Parcel #<br>79-07-05-355-025.000-035 | Replace deck & add patio | | $17,000.00 |
| | 27072 | 09/04/2024 | Wei, Alexander & Mariko | Riverside Construction | 3400 Covington St<br><br>Parcel #<br>79-07-06-403-023.000-035 | Bathroom remodel | | $59,045.00 |
| | **Total** | | | | | | | **$428,045.00** |
| Sign - Permanent | 27106 | 09/12/2024 | 224 State St Owner LLC | SignCraft Industries | 200 Brown St<br><br>Parcel #<br>79-07-20-305-001.000-026 | Permanent Sign - Rambler | | $1,800.00 |
| | **Total** | | | | | | | **$1,800.00** |
| Sign - Temporary | 27130 | 09/25/2024 | University Lutheran Church | University Lutheran Church | 460 Northwestern Ave<br><br>Parcel #<br>79-07-19-202-014.000-026 | Temporary sign - University Lutheran Church | Oktoberfest Homecoming Tailgate | $0.00 |
| | **Total** | | | | | | | **$0.00** |
| **Grand Total** | | | | | | | | **$25,078,707.00** |

| Permit Type | # Permits | Total Estimated Cost |
|---|---|---|
| **Commercial - Improvement** | 4 | $348,000.00 |
| **Commercial - New Build** | 2 | $24,244,003.00 |
| **Electrical** | 9 | $40,788.00 |
| **Nonprofit - Improvement** | 1 | $16,071.00 |
| **Residential - Improvement** | 6 | $428,045.00 |
| **Sign - Permanent** | 1 | $1,800.00 |
| **Sign - Temporary** | 1 | $0.00 |
| **Grand Total** | **24** | **$25,078,707.00** |

# WEST LAFAYETTE FIRE DEPARTMENT

# REPORT

*Ensuring West Lafayette is always a safe and great place to work, live, and play.*

**TO:** West Lafayette Common Council
**FROM:** Jeff A. Need, Fire Chief
**DATE:** October 7, 2024
**SUBJECT:** September 2024 Fire Report

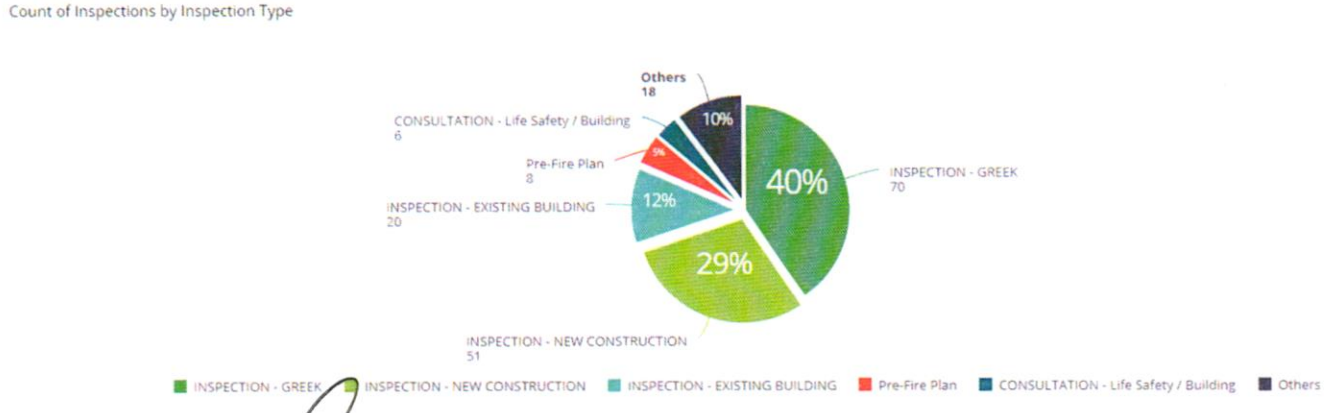
**CALL TOTALS:** West Lafayette Fire responded to 294 total calls in September.

| | | |
|---|---|---|
| EMS: 195 | Fire: 8 | HazMat: 16 |
| Service Call: 17 | False Alarm: 40 | Good Intent: 18 |
| | | |
| **TOTAL RUNS: 294** | **TOTAL RUNS/YEAR: 2,203** | |

**TRAINING:** West Lafayette Fire performed 990 total hours of training in September.

| EMS | MONTHLY | CLASSES |
|---|---|---|
| | Joint fire training with Lafayette Fire department. Three days, all shifts. | Mayday & Rapid Intervention Team Course |
| | Vehicle extraction training. Vehicles donated by Subaru. | Rope anchoring class at Advanced Rescue |
| | | CPM Phase I and Phase II |
| | | Fire Inspector 1 Course |
| **TOTAL HOURS: 990** | **TOTAL HOURS/YEAR: 9,216.25** | |

**INSPECTIONS:** West Lafayette Fire's fire prevention and education totaled 103 units in September and 2,001 units/year.




Respectfully submitted,

Jeff A. Need
Fire Chief, City of West Lafayette

# WEST LAFAYETTE FIRE DEPARTMENT

**300 NORTH STREET**
**WEST LAFAYETTE, INDIANA 47906**
**765.775.5175**

***Ensuring West Lafayette is always a safe and great place to work, live, and play.***

In September, we had our second joint fire training of the year with the Lafayette Fire Department. The West Lafayette Fire Department conducted this training. We also included the Purdue University Fire Department and the Wabash Township Fire Department. The training took place over three days and included all shifts. There were three different training groups each day. Instructors from all four departments assisted with the training. We also included another round of vehicle extrication on three cars donated to us by Subaru of Indiana Automotive.

Our Captains continued with their Certified Public Manager course at Ball State in Fishers, Indiana.

Firefighter Tiffany Zavitsky attended a two-day course in West Chester, Pennsylvania, which was Mayday and Rapid Intervention Team responsibility. The course focused on self-rescue situations and Rapid Intervention Team Response.

Firefighter Clayton Zak attended a Fire Inspector I course provided by Indiana Homeland Security District 4. Firefighter Shane Chapman and Captain Eric Lamb participated in a rope anchoring class at Advanced Rescue Solutions in Greenwood, Indiana

A total of 990 hours was spent on training this month by fire department members.

Presented by Captain Grant Birge

# WEST LAFAYETTE BUILDING DEPARTMENT

## RENTAL INSPECTION

## MONTHLY REPORT

**September 2024**

## RENTAL HOUSING INSPECTION

| INITIAL INSPECTIONS | | Monthly | Cumulative Total |
|---|---|---|---|
| Number of Properties by Category | | | |
| Category 1 | Single Family | 86 | 358 |
| Category 3 | Multifamily | 10 | 85 |
| Category 4 | Converted | 16 | 82 |
| Category 5 | Condos | 16 | 41 |
| | **Total Number of Properties:** | **128** | **566** |
| Total Number of Units | | 335 | 2085 |
| Total Number of Violations | | 91 | 794 |
| **RE-INSPECTIONS** | | 32 | 206 |
| **3rd PARTY INSPECTIONS** | | | |
| Category 3 | Multifamily | 0 | 1 |
| Number of Units | | 0 | 206 |
| **APPEALS** | | | |
| Number of Appeals Requested | | 0 | 0 |
| **CERTIFICATIONS** | | | |
| Number of Properties by Category | | | |
| Category 1 | Single Family | 40 | 279 |
| Category 3 | Multifamily | 6 | 73 |
| Category 4 | Converted | 4 | 64 |
| Category 5 | Condos | 5 | 20 |
| | **Total Number of Properties:** | **55** | **436** |
| **FEES COLLECTED** | | $23,586 | $276,937 |
| **LEGAL ACTION** | | | |
| Number Referred | | 0 | 0 |
| Number Resolved | | 0 | 0 |
| Liens Filed | | 0 | 0 |
| Liens Released | | 0 | 0 |
| **NEW SINGLE FAMILY RENTALS** | | 5 | 33 |
| **COMPLAINTS** | | | |
| Tenant | | 0 | 5 |
| Other (ie: neighbor) | | 0 | 0 |

## Violations by Type

September 2024

| | | |
|---|---|---|
| **Number of Units Inspected:** | 335 | |
| | | |
| **Interior Violations** | | **Cumulative Totals since 1/1/24** |
| Electrical | 19 | 158 |
| Plumbing | 14 | 84 |
| HVAC | 3 | 45 |
| Fire Protection Systems | 45 | 392 |
| Egress | 0 | 1 |
| Fire Stop Penetrations | 0 | 3 |
| Improper Use of Space | 0 | 7 |
| Interior Handrails | 0 | 3 |
| Stairs (Interior) | 0 | 3 |
| Windows & Doors | 0 | 19 |
| Interior Paint | 0 | 0 |
| Unsanitary Conditions | 0 | 4 |
| Other (Interior) | 5 | 42 |
| | | |
| Subtotal Interior Violations: | 86 | 761 |
| | | |
| **Exterior Violations** | | |
| Masonry | 0 | 2 |
| Roof | 0 | 3 |
| Gutters & Downspouts | 0 | 4 |
| Siding & Trim | 1 | 8 |
| Stairs (Exterior) | 0 | 1 |
| Balconies | 0 | 0 |
| Ext. Handrails & Guardrails | 0 | 1 |
| Exterior Concrete | 0 | 0 |
| Exterior Paint | 0 | 1 |
| Structural | 0 | 2 |
| Other (Exterior) | 4 | 11 |
| | | |
| Subtotal Exterior Violations: | 5 | 33 |
| | | |
| **Total Number of Violations:** | **91** | **794** |

WEST LAFAYETTE parks and recreation

# MEMO

**TO:** West Lafayette Parks and Recreation Board

**FROM:** Kathy Lozano

**DATE:** Monday, October 7, 2024

**SUBJECT:** West Lafayette Parks and Recreation Department Report

Below is a summary of the progress Department staff have made during the months of August 2024 – September 2024.

**PARKS:**
**Shelters** reservation season continues. The Fall colors are emerging. It is a good time to reserve a shelter and picnic.

**PROGRAMS:**
**We continue to seek instructors to teach dance, music, acting, etc. for Fall and Winter Programming. Please contact Brandy Payne to discuss class proposals at (765) 775-5110.**

**West Lafayette Parks and Recreation Programs and Activities –** Look for Fall programs and activities **–** check out the following classes **–** Pickle Ball, Guitar Lessons, Song Writing Classes, Kitchen Academy, Brick Builders, Ballroom Dance, Karate, Yoga, Art and more! The programming for the community spaces at the Margerum City Hall is filling fast.
Find the classes here: Catalog - City of West Lafayette Parks & Recreation (rec1.com)

**WEST LAFAYETTE FARMERS MARKET:**
The West Lafayette Farmers Market count down is on. Only five (including the Thanksgiving Market the day before Thanksgiving) more Wednesdays to purchase fresh produce, prepared foods, flowers, crafts and much more. Come out to join us from 3:30 – 7:30 PM Wednesdays through October. Information will follow regarding the day before Thanksgiving market.

WEST LAFAYETTE parks and recreation

# MEMO

**LILLY NATURE CENTER / CELERY BOG NATURE AREA:**

- Check out the new exhibits at the Lilly Nature Center – the snake is home with more to come.
- A new bench has been installed along the trail.
- Four public input sessions were held to help update a Master Plan for the Celery Bog and the Lilly Nature Center. Over 60 people attended. Lots of feedback and ideas were shared. Look for the completed plan some time before the end of the year.
- New this year, we are offering local school corporations field trip packages to the Lilly Nature Center, as well as party packages. Packages will include 2 hours of booked time in the classroom, with a choice of program.

**JOHN R. DENNIS WELLNESS CENTER:**

The John R. Dennis Wellness Center is open and is adding to its program offerings every day. Membership Sales are brisk. Please consider becoming a member!

Register online at: Catalog - City of West Lafayette Parks & Recreation (rec1.com)

**Dennis Wellness Center Monthly Report**
**September 2024**

| Category | Month Prior (August) | YTD | Notes |
|---|---|---|---|
| Total Active Membership Units | 3,815 | 3,793 | Total membership units to date= – still up 363 from July 2023 |
| Total Family Membership Units | 1,215 | 1,187 | Total active family membership units to date= 49 up from July 2023 |
| Total Scans | 23,751 | 195,392 | |
| Total Active Members | 8,124 | 7,959 | Still Up 581 from July 2023 |

| | | | |
|---|---|---|---|
| Total Insurance Based Members | 1,138 | 1,132 | |

**ACCOMPLISHMENTS:** Fall Break Camp will be making its return this year. This popular program had not been done for a couple of years, but the Youth Enrichment team is once again bringing it back. Students will enjoy a fun and interactive fall break full of games, crafts, activities, and art. The camp programs offered throughout the year are an extension of our popular summer camp programming.

**CHALLENGES:** With any facility that is well used, the Wellness Center is starting to show some cosmetic flaws. Wall scuffs, paint chips, dinged up chairs, and the like can all be expected from a popular family-friendly facility, but these are issues that will need to be addressed this fall and winter. While maintaining the facility is challenging in its own, trying to get ahead of things can be even harder. Staff will be working over the next few months touching up paint, and deep cleaning areas throughout the building.

**STAFF HIGHLIGHT:** Doug Ashman, Maintenance Tech I at the Wellness Center, has been doing a fantastic job of finishing up projects that have been piling up over the last several months. From installing an accessible changing table, to painting different areas of the building, to helping coordinate and update cleaning schedules and maintenance plans, Doug is really a jack of all trades. His knowledge and skillset set him apart, and we are very lucky to have Doug as a member of the team.

**NOW HIRING:**
Dennis Wellness Center continues to seek staff members to work part time in the following areas: Camp Counselors, Custodians, Lifeguards, Swim Instructors, Water Safety, Water Exercise, Group Exercise Instructors, Personal Trainers, Fitness Coaches, Front Desk, Housekeeping, Childcare and many more.

Apply online at: Employment opportunities (munisselfservice.com)

**AFTERSCHOOL PROGRAM:**
School Bus Driver needed for fall – will train. We are hiring a bus driver for the 2024-2025 school year! Contact Kevin Noe via email at knoe@westlafayette.in.gov if interested.

**HARVEST HUSTLE 5K:** Join us for the 2nd annual Harvest Hustle 5k on Friday, October 11, 2024, at 6 PM. Visit the Foundation's website for all the details and the link to register.

WEST LAFAYETTE parks and recreation

# MEMO

**MUNICIPAL POOL:**
The Municipal Pool season ended at the closing of the day on Sunday, August 4, 2024. Despite early cool temperatures, with then rising heat, the facility had a good season with the following number of participants:
Group Lessons – 564
Lap Swimmers – 326
Swimmers – 8,685

**RIVERSIDE SKATING CENTER:**
Amanda Jeffries, Recreation Coordinator, has announced the Skating Center will open the day after Thanksgiving (weather permitting).

Click here for more information: Sports, Recreation, and Programs | West Lafayette, IN

**GLOBALFEST 2024:**
The 23rd annual GlobalFest was a rousing success. Great weather, great food and great entertainment. Work now begins to top the next year's festival.

**CASON FAMILY PARK:**
Work continues on the park as we march toward an opening on May 22, 2025.

- Playgrounds are going in
- Pond is ready for water.
- Trees will be in the ground by December
- Buildings are near completion

**PARK MAINTENANCE:**
Keeping our parks clean and attractive takes hard work and diligence. Aside from normal activities like mowing, cleaning and mulching, our Parks Department accomplished the following list of projects in the past month:

- Winter preparation has begun -
- Pruning and cleaning of landscape beds is ongoing
- Closed and shut down the Municipal Pool for the season
- Continue to mow, trim
- Started the project for the new playground at Tapawingo Park with sidewalks now installed
- Assisted with the installation of the new Tapawingo playground
- Installed a new memorial bench at the Celery Bog Nature Area
- Prepping the Happy Hollow Dog Park for some much-needed repairs and rest

- Happy Hollow Board Walk is receiving renovation to the deck
- sHired a new Horticulture Tech, Dane Jacques, and a Maintenance Tech, Miles Romans

**COMMUNITY FORESTRY AND GREENSPACE:**

- Operation Re-Leaf:
  - 2024 Operation Re-Leaf applications are available on the website.
- West Lafayette Tree Friends Update:
  West Lafayette Tree Friends meets on the second Tuesday of each month at noon.

**FORESTRY INTERNS**

- 11 Tree City USA signs provided by the Arbor Day Foundation celebrating 33 Years of recognition were installed with the assistance from the Street Department. Locations are near the Welcome to West Lafayette signage on major arteries entering the City.
- The Municipal Tree Nursery greenhouse and headhouse structures are close to completion. Power to the facility was installed this month.
- The Tree Friends launched a watering program for newly planted trees. Focus this year has been Salisbury and Grant streets, as well as Operation ReLeaf trees planted in 2023.
- Removed and pruned over one hundred street trees with assistance from the Park's maintenance team, forestry interns, and AmeriCorps.

WEST LAFAYETTE parks and recreation

# MEMO

WEST LAFAYETTE parks and recreation | AmeriCorps

**City of West Lafayette Park Allies**
**AmeriCorps Update**

**Segal AmeriCorps Education Award**

Federal Dollars Dispersed in 2024/2025: **$55,874.98**

After successfully completing an AmeriCorps term of service, members are eligible to receive the Segal AmeriCorps Education Award. This award can be used to repay qualified student loans and to pay current educational expenses at eligible institutions of higher education and training programs.

**Announcement:** On September 10th, AmeriCorps Alumni Clara Lotz was hired with our City as the Climate Resiliency and Sustainability Officer. Previously served as GIS and Community Engagement Lead.

**Volunteer Engagement Hours:** 107

WEST LAFAYETTE AmeriCorps PARK ALLIES

WEST LAFAYETTE
ENGINEERING

**Engineering Department**
**Monthly Report**
**September – 2024**

## DEPARTMENT STATISTICS

### Permits and Inspections

| | Permits Issued | Inspections |
|---|---|---|
| **Right of Way/Excavation** | 20 | 6 |
| **Storm Water** | 2 | 82 |

### Sewer Taps

| | Permits Issued |
|---|---|
| **Regional Sewer Tap – 3 Meadows** | 2 |
| **Regional Sewer Tap – Aub Meadows** | 2 |

## CONSTRUCTION PHASE PROJECTS

- **Cherry Lane Trail**
  - **Location:** Cherry Lane between Northwestern Avenue and US-231.
  - **Scope:** To include a paved non-motorized trail connecting US-231 to Northwestern Avenue. The current design places the trail on the south side of the road.
  - **Update:** Construction of the trail from McCormick Road to the roundabout has begun. The trail and Cherry Lane are open. The remaining minor construction items, as well as the removal of four (4) Duke Energy light poles, are expected to be completed in October 2024.

- **Sagamore Parkway Trail (INDOT Project)**
  - **Location:** The Sagamore Parkway Trail project is a new, 10-foot asphalt trail construction from Happy Hollow Road to the Wabash River Bridge.
  - **Scope:** The Sagamore Parkway Trail provides a connection from the Nighthawk Trail to the Wabash Heritage Trail, as well as connecting to an existing path across the Wabash River Bridge to the City of Lafayette. The path to the bridge includes a meandering, scenic ride through woods to your destination. The project was awarded to HIS Constructors, Inc., for the amount of $4,978,000.00. This included the installation of the trail, as well as needed stormwater infrastructure including a 96” concrete pipe underneath the trail.
  - **Project Completion:** The trail was opened in the spring of 2024.

- **Update:** The trail construction is completed and open. Punch list items are ongoing and expected to be completed by the end of 2024.

- **Salisbury Street/Grant Street Corridor Improvements**
  - **Location:** Salisbury Street between Cumberland Avenue and Grant Street, and Grant Street between Salisbury Street and Northwestern Avenue.
  - **Scope:** The Salisbury Street/Grant Street Redevelopment Project aimed to connect our trail systems from north to south, improving access and safety for multimodal travelers.
    A build-operate-transfer (BOT) with White Construction and GM Development team was agreed to at a guaranteed maximum price of $7,012,499.57. This project includes pavement overlay between Grant Street and Cumberland Avenue, pavement preservation, curb reconstruction, trail construction, pedestrian safety improvements, and traffic signal upgrades.
  - **Projected Completion:** Construction was completed in fall 2023, while punch list and final surface for Grant Street will take place in fall 2024.
  - **Update:** Crews will be working in fall 2024 on punch list items and landscaping holdovers. Additionally, one section of sidewalk on Salisbury Street north of Navajo has yet to be constructed. Utility relocations are expected to be completed by early October 2024, followed by the trail completion.

**DESIGN PHASE PROJECTS**

- **Soldiers Home Road – Phase 1 (INDOT Project)**
  - **Location:** Rural to urban cross-section conversion from Old US 52 to Hamilton Street.
  - **Scope:** To include pavement reconstruction, new sidewalk & trail construction, and stormwater drainage improvements. Soldiers Home Road is a minor arterial in need of reconstruction to accommodate increased traffic and pedestrian demands, as well as to correct structural pavement issues.
  - **Update:** The project is currently in the Design Phase and construction will begin as early as 2028. A second public meeting took place on January 18, 2024.

- **Soldiers Home Road – Phase 2 (INDOT Project)**
  - **Location:** Rural to urban cross-section conversion from Hamilton Street to Kalberer Road.
  - **Scope:** To include pavement reconstruction, new sidewalk & trail construction, and stormwater drainage improvements. Soldiers Home Road is a minor arterial in need of reconstruction to accommodate increased traffic and pedestrian demands, as well as to correct structural pavement issues.

  - **Update:** Request for Proposals for the design is posted on the INDOT and West Lafayette websites with bid opening on October 22, 2024. Construction is expected to begin after 2029.

- **McCormick Road Reconstruction and Culvert Replacement**
  - **Location:** McCormick Road, from Cherry Lane to north of Lindberg Road.
  - **Scope:** To include pavement reconstruction, new sidewalk construction, and stormwater drainage improvements. McCormick Road is a minor arterial in need of reconstruction to accommodate increased traffic and pedestrian demands, as well as to correct structural pavement issues.
  - **Update:** The agenda item to solicit Request for Quotes/Qualifications for the design will go before the RDC at their October meeting. Design work is expected to begin in January 2025.

Visit WLmoves or the Engineering Department page for information about projects.

# Calls for Service
## September 2024

Incidents Created From: 01-September-2024 to 30-September-2024

| Unit Org | Event | Event Description | Type Count |
|---|---|---|---|
| WLPD | 911UNK | 911 UNKNOWN | 51 |
| WLPD | ABNBIK | ABANDONED BICYCLE | 1 |
| WLPD | ALARM | ALARM HOLD UP/BURGLAR/PANIC | 50 |
| WLPD | ANIMAL | ANIMAL COMPLAINT | 47 |
| WLPD | ARG | ARGUMENT | 5 |
| WLPD | ASOTD | ASSIST OTHER DEPARTMENTS | 21 |
| WLPD | AT RES | ATTEMPTED RESIDENTIAL ENTRY | 2 |
| WLPD | AUTOMI | AUTO DAMAGE NOT ACCIDENT | 3 |
| WLPD | AUTTFT | AUTO THEFT | 4 |
| WLPD | BATTER | BATTERY | 2 |
| WLPD | BURG | BURGLARY | 5 |
| WLPD | CHLDAB | CHILD ABUSE | 1 |
| WLPD | CIVIL | CIVIL MATTER | 8 |
| WLPD | CKWB | CHECK WELL BEING | 56 |
| WLPD | CP | COMMUNITY POLICING | 2 |
| WLPD | CRASH H&R | CRASH HIT & RUN | 24 |
| WLPD | CRASH PD | CRASH PD | 103 |
| WLPD | CRASH PI | CRASH WITH INJURY | 17 |
| WLPD | CRMMIS | CRIMINAL MISCHIEF | 6 |
| WLPD | DAMAG | DAMAGED PROPERTY | 4 |
| WLPD | DEATH | DEATH | 4 |
| WLPD | DELMSG | DELIVER MESSAGE | 2 |
| WLPD | DISTRB | DISTURBANCE | 16 |
| WLPD | DISVEH | DISABLED VEHICLE | 44 |
| WLPD | DOMBAT | DOMESTIC W/ BATTERY | 2 |
| WLPD | DOMSTC | DOMESTIC | 2 |
| WLPD | DOMVER | DOMESTIC VERBAL | 9 |
| WLPD | DPINFO | DEPT INFO | 12 |
| WLPD | DRNKDR | DRUNK DRIVER | 4 |
| WLPD | DRUG | DRUG LAW VIOLATION | 7 |
| WLPD | ESCORT | ESCORT | 2 |
| WLPD | EXPAT | EXPATROL | 175 |
| WLPD | FIGHT | FIGHT | 9 |
| WLPD | FIR | FIRE CALL MISC | 2 |
| WLPD | FIRALM | FIRE ALARM | 1 |
| WLPD | FIRBLD | FIRE BUILDING/ STRUCTURE | 3 |
| WLPD | FIRFLD | GRASS/MULCH/BRUSH/FIELD FIRE OFF ROAD | 1 |
| WLPD | FIRGAS | GAS LEAK | 3 |
| WLPD | FIRHAZ | FIRE HAZMAT/ SPILLS | 1 |
| WLPD | FIRLIN | FIRE POWER LINE/TRANSFORMER | 1 |
| WLPD | FIRODO | FIRE ODOR | 1 |

| | | | |
|---|---|---|---|
| WLPD | FIRVEH | VEHICLE FIRE | 2 |
| WLPD | FLGDWN | FLAG DOWN | 10 |
| WLPD | FLOCK | FLOCK HIT | 2 |
| WLPD | FOLLUP | FOLLOW UP | 61 |
| WLPD | FOPROP | FOUND PROPERTY | 23 |
| WLPD | FPAT | FOOT PATROL | 6 |
| WLPD | FRAUD | FRAUD/SCAM/COUNTERFEIT | 17 |
| WLPD | HARASS | HARASSMENT | 2 |
| WLPD | HARPHO | HARASSMENT (PHONE/INTERNET) | 1 |
| WLPD | HOUSCH | HOUSE CHECK | 1 |
| WLPD | IDTHEF | IDENTITY THEFT | 2 |
| WLPD | INDEXP | INDECENT EXPOSURE | 2 |
| WLPD | INFO | INFORMATION | 2 |
| WLPD | JUVPRO | JUVENILE PROBLEM | 4 |
| WLPD | JUVTRN | JUVENILE TRANSPORT | 1 |
| WLPD | K9 | K9 DETAIL | 1 |
| WLPD | LOSTPR | LOST PROPERTY | 9 |
| WLPD | MEDPRO | MEDICAL PROBLEM | 58 |
| WLPD | MENTAL | MENTAL PROBLEM | 3 |
| WLPD | MISC | MISCELLANEOUS | 5 |
| WLPD | MISEND | MISSING/ENDANGERED CHILD | 1 |
| WLPD | MISSNG | MISSING PERSON | 4 |
| WLPD | NO TOW | NO TOW | 6 |
| WLPD | NOISE | NOISE COMPLAINTS | 58 |
| WLPD | OPENDR | OPEN DOOR | 3 |
| WLPD | OPNBRN | OPEN BURN | 1 |
| WLPD | ORD | ORDINANCE VIOLATIONS | 6 |
| WLPD | OVERDS | OVERDOSE | 1 |
| WLPD | PAPER | PAPERWORK DETAILS/COURTWORK | 21 |
| WLPD | PARKIN | PARKING PROBLEM | 33 |
| WLPD | PROTEC | PO/RESTRAINING ORDER VIOLATION | 1 |
| WLPD | PUBINT | PUBLIC INTOX | 3 |
| WLPD | RECDRV | RECKLESS DRIVER/TRAFFIC | 31 |
| WLPD | REGCHK | SEX OFFENDER REGISTRY CHECK | 5 |
| WLPD | REPO | REPO | 4 |
| WLPD | RESIDE | RESIDENTIAL ENTRY | 2 |
| WLPD | RESIST | RESISTING LAW ENFORCEMENT | 1 |
| WLPD | RUNAWY | RUNAWAY | 1 |
| WLPD | SCHGRD | SCHOOL GUARD DUTY | 2 |
| WLPD | SEXOFF | SEX OFFENSE | 3 |
| WLPD | SHOTS | SHOTS FIRED/ HEARD SOMEWHERE | 4 |
| WLPD | SOLIC | SOLICITING / PANHANDLING | 4 |
| WLPD | SPKSUB | SPEAK TO SUBJECT | 70 |
| WLPD | STALK | STALKING | 1 |
| WLPD | STAND | STAND BY DETAIL | 4 |
| WLPD | SUICAT | SUICIDE ATTEMPT | 1 |
| WLPD | SUICTH | SUICIDAL THREATS | 1 |
| WLPD | SUSINC | SUSPICIOUS INCIDENT | 51 |
| WLPD | SUSPER | SUSPICIOUS PERSON | 38 |
| WLPD | SUSVEH | SUSPICIOUS VEHICLE | 30 |
| WLPD | TEST | TEST CALL | 2 |
| WLPD | TFPRV | THEFT PREVENTION | 1 |
| WLPD | TFTBIK | THEFT OF A BIKE | 18 |
| WLPD | TFTPRO | THEFT OF PROPERTY | 25 |
| WLPD | TFTSHP | THEFT/ BY SHOPLIFTING | 9 |

| | | | |
|---|---|---|---|
| WLPD | TFTVEH | THEFT FROM VEHICLE | 7 |
| WLPD | THREAT | THREATS | 9 |
| WLPD | TOWPVT | TOW/PRIVATE PROPERTY | 212 |
| WLPD | TRAINI | TRAINING | 1 |
| WLPD | TRANSP | TRANSPORT | 15 |
| WLPD | TRESPA | TRESPASSING | 18 |
| WLPD | TRF24H | TRAFFIC 24 HR TAG | 13 |
| WLPD | TRF72H | TRAFFIC 72 HOUR COMPLAINT | 3 |
| WLPD | TRFBLK | BLOCKING DRIVE COMPLAINT | 3 |
| WLPD | TRFCON | TRAFFIC CONTROL | 3 |
| WLPD | TRFHAZ | TRAFFIC HAZARD OBJECT IN ROAD | 8 |
| WLPD | TRFPPR | TRAFFIC PRIVATE PROPERTY | 1 |
| WLPD | TRFREP | TRAFFIC REPAIR SIGNS/SIGNALS/LIGHTS | 6 |
| WLPD | TRFRPS | TRAFFIC PARKING REQUEST | 26 |
| WLPD | TRFWHL | WHEEL LOCK | 17 |
| WLPD | TS | TRAFFIC STOP | 635 |
| WLPD | UNKPRO | UNKNOWN PROBLEM | 1 |
| WLPD | UNWANT | UNWANTED GUEST | 26 |
| WLPD | VEHAST | VEHICLE/MOTORIST ASSIST | 1 |
| WLPD | VEHLOC | VEHICLE LOCK OUT | 34 |
| WLPD | VEHREL | VEHICLE RELEASE | 7 |
| WLPD | VIN CH | VIN CHECK | 17 |
| WLPD | WARSVC | WARRANT SERVICE | 18 |
| WLPD | WEATHR | WEATHER RELATED CALLS | 1 |
| WLPD | WLORDC | WLORDINANCE CONTAINER | 25 |
| WLPD | WLORDD | WLORDINANCE SIGNAGE | 5 |
| WLPD | WLORDF | WLORDINANCE FURNITURE | 14 |
| WLPD | WLORDG | WLORDINANCE GRASS/WEEDS | 11 |
| WLPD | WLORDP | WLORDINANCE PARKING | 3 |
| WLPD | WLORDR | WLORDINANCE RENTAL VIOLATION | 3 |
| WLPD | WLORDT | WLORDINANCE TRASH | 22 |
| WLPD | WLORDW | WLORDINANCE SCOOTER | 35 |
| WLPD | WLSOCIAL | WLPD SOCIAL WORKER CONTACT | 7 |
| WLPD | WOW | WOW LOOKING FOR SUBJ. | 3 |
| | | Type Count Total | 2581 |

**Calls for Service - is a request for police response to any given situatiion both criminal and non-criminal, some of which results in police action and requires a case report. Not all Calls for Service result in a need for a case report.**

WEST LAFAYETTE
HOME of PURDUE

***Neighborhood Resource Team***

***September 2024***

| Code Enforcement | Parking Enforcement | Animal Control |
|---|---|---|
| **CFS – 268** | **Tickets –1022** | **30 Complaints** |
| | **Wheel locks – 17** | **11 sheltered** |
| | **$48,630 (Parking revenue)** | |

| | DATE | NATURE | LOCATION |
|---|---|---|---|
| 1 | 9/1/24 | EXPATROL | 249 S CHAUNCEY |
| 2 | 9/1/24 | WLORDINANCE FURNITURE | 225 W LUTZ |
| 3 | 9/1/24 | WLORDINANCE SCOOTER | 403 MAPLE |
| 4 | 9/1/24 | COMMUNITY POLICING | 212 E LUTZ |
| 5 | 9/1/24 | WLORDINANCE SCOOTER | 619 N SALISBURY |
| 6 | 9/1/24 | WLORDINANCE TRASH | 208 W STADIUM |
| 7 | 9/1/24 | WLORDINANCE TRASH | 210 W STADIUM AVE, WEST LAFAYETTE |
| 8 | 9/1/24 | WLORDINANCE SIGNAGE | 412 W STADIUM AVE |
| 9 | 9/1/24 | WLORDINANCE SCOOTER | 601 DODGE |
| 10 | 9/1/24 | WLORDINANCE FURNITURE | 415 DODGE |
| 11 | 9/3/24 | WLORDINANCE TRASH | 100 FOUNDRY DR,WEST LAFAYETTE APT 18 |
| 12 | 9/3/24 | TRAFFIC PARKING REQUEST | 616 ROSE ST, WEST LAFAYETTE |
| 13 | 9/3/24 | TRAFFIC PARKING REQUEST | 200 QUINCY ST, WEST LAFAYETTE |
| 14 | 9/3/24 | TRAFFIC PARKING REQUEST | HAYES ST/ EVERGREEN ST, WEST LAFAYETTE |
| 15 | 9/3/24 | TRAFFIC PARKING REQUEST | 317 N SALISBURY ST, WEST LAFAYETTE |
| 16 | 9/3/24 | ANIMAL COMPLAINT | 516 N GRANT ST, WEST LAFAYETTE |
| 17 | 9/3/24 | TRAFFIC 24 HR TAG | 1189 CUMBERLAND AVE, WEST LAFAYETTE |
| 18 | 9/3/24 | WHEEL LOCK | 10 WALDRON ST, WEST LAFAYETTE |
| 19 | 9/3/24 | WHEEL LOCK | 248 S CHAUNCEY AVE, WEST LAFAYETTE |
| 20 | 9/3/24 | WLORDINANCE RENTAL VIOLATION | 1704 SANDPIPER DR, WEST LAFAYETTE |
| 21 | 9/3/24 | WLORDINANCE RENTAL VIOLATION | 2212 SANDPIPER CT S, WEST LAFAYETTE |
| 22 | 9/3/24 | WHEEL LOCK | 611 EVERGREEN ST, WEST LAFAYETTE |
| 23 | 9/3/24 | WLORDINANCE GRASS/WEEDS | 2253 SANDPIPER CT S, WEST LAFAYETTE |
| 24 | 9/3/24 | TRAFFIC 24 HR TAG | 1265 MITCH DANIELS BLVD, WEST LAFAYETTE |
| 25 | 9/4/24 | ANIMAL COMPLAINT | US HWY 231 N / LINDBERG RD, WEST LAFAYETTE |
| 26 | 9/4/24 | WLORDINANCE SCOOTER | 2270 LINDBERG RD |
| 27 | 9/4/24 | WLORDINANCE SCOOTER | 1638 TREELINE DR |
| 28 | 9/4/24 | WHEEL LOCK | 241 SHEETZ ST, WEST LAFAYETTE |
| 29 | 9/4/24 | FOLLOW UP | 1704 SANDPIPER DR, WEST LAFAYETTE |
| 30 | 9/4/24 | WLORDINANCE TRASH | 969 MARWYCK |
| 31 | 9/4/24 | WLORDINANCE RENTAL VIOLATION | 832 ASHLAND |
| 32 | 9/4/24 | TRAFFIC PARKING REQUEST | E STADIUM AVE/ N SALISBURY ST, WEST LAFAYETTE |
| 33 | 9/4/24 | PARKING PROBLEM | EVERGREEN ST/ HAYES ST, WEST LAFAYETTE |
| 34 | 9/4/24 | FOLLOW UP | 1415 WOODLAND AVE, WEST LAFAYETTE |
| 35 | 9/4/24 | WLORDINANCE SIGNAGE | SYCAMORE LN/ SAGAMORE PKWY W, WEST LAFAYETTE |
| 36 | 9/5/24 | TRAFFIC PARKING REQUEST | 200 N CHAUNCEY AVE, WEST LAFAYETTE |
| 37 | 9/5/24 | PARKING PROBLEM | 906 ROSE |
| 38 | 9/5/24 | FOLLOW UP | 2860 LINDA LANE |
| 39 | 9/5/24 | TRAFFIC 24 HR TAG | 1245 MITCH DANIELS BLVD, WEST LAFAYETTE |
| 40 | 9/5/24 | WLORDINANCE GRASS/WEEDS | 854 ASLAND |
| 41 | 9/5/24 | WLORDINANCE CONTAINER | 824 ASLAND |
| 42 | 9/5/24 | WLORDINANCE CONTAINER | 2832 WILSHIRE |
| 43 | 9/5/24 | WLORDINANCE CONTAINER | 998 DEVON |
| 44 | 9/5/24 | WLORDINANCE SIGNAGE | LAGRANGE/N SALISBURY |
| 45 | 9/5/24 | ANIMAL COMPLAINT | 8131 W 400 N, WEST LAFAYETTE |
| 46 | 9/5/24 | WLORDINANCE GRASS/WEEDS | 217 CONNOLLY ST, WEST LAFAYETTE |
| 47 | 9/5/24 | ANIMAL COMPLAINT | 1000 LINDBERG RD, WEST LAFAYETTE |

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|---|---|---|---|
| 48 | 9/5/24 | WLORDINANCE SCOOTER | 610 W NAVAJO |
| 49 | 9/6/24 | WLORDINANCE TRASH | 405 N SALISBURY ST,WL |
| 50 | 9/6/24 | WLORDINANCE SCOOTER | N/W CORNER N SALISBURY & FOWLER,WL |
| 51 | 9/6/24 | EXPATROL | 360 BROWN ST ,WL |
| 52 | 9/6/24 | TRAFFIC 24 HR TAG | BREES WAY/ TAPAWINGO DR N, WEST LAFAYETTE |
| 53 | 9/6/24 | ANIMAL COMPLAINT | 2501 SOLDIERS HOME RD, WEST LAFAYETTE |
| 54 | 9/6/24 | FOLLOW UP | 906 ROSE |
| 55 | 9/6/24 | WLORDINANCE CONTAINER | 930 ROSE |
| 56 | 9/6/24 | EXPATROL | 50 STUEBEN CT |
| 57 | 9/6/24 | ASSIST OTHER DEPARTMENTS | 320 BROWN # 709 |
| 58 | 9/6/24 | PARKING PROBLEM | 300 BLK N SALISBURY |
| 59 | 9/6/24 | FOLLOW UP | 1415 WOODLAND |
| 60 | 9/6/24 | ANIMAL COMPLAINT | 2501 W KESTRAL BLVD APT OFFICE, WEST LAFAYETTE |
| 61 | 9/9/24 | ANIMAL COMPLAINT | CUMBERLAND AVE / KENT AVE,WEST LAFAYETTE |
| 62 | 9/9/24 | WLORDINANCE SCOOTER | 2434 SYCAMORE |
| 63 | 9/9/24 | WLORDINANCE GRASS/WEEDS | 842 KENT |
| 64 | 9/9/24 | TRAFFIC PARKING REQUEST | 500 HAYES ST, WEST LAFAYETTE |
| 65 | 9/9/24 | WHEEL LOCK | 100 S MACARTHUR DR, WEST LAFAYETTE |
| 66 | 9/9/24 | WLORDINANCE GRASS/WEEDS | 1823 NORTHWESTERN AVE, WEST LAFAYETTE |
| 67 | 9/9/24 | WLORDINANCE TRASH | 1600 LINDBERG RD, WEST LAFAYETTE |
| 68 | 9/9/24 | FOLLOW UP | 419 DODGE |
| 69 | 9/9/24 | WLORDINANCE SCOOTER | 328 LAWN AVE, WEST LAFAYETTE |
| 70 | 9/9/24 | ANIMAL COMPLAINT | 824 KENT AVE, WEST LAFAYETTE |
| 71 | 9/9/24 | WLORDINANCE SCOOTER | E LUTZ/MAPLE |
| 72 | 9/9/24 | TRAFFIC PARKING REQUEST | 613 EVERGREEN ST, WEST LAFAYETTE |
| 73 | 9/9/24 | WLORDINANCE SCOOTER | 2406 YEAGER RD |
| 74 | 9/10/24 | ANIMAL COMPLAINT | N RIVER RD/ E COLUMBIA ST, WEST LAFAYETTE |
| 75 | 9/10/24 | ANIMAL COMPLAINT | 1013 HILLCREST RD, WEST LAFAYETTE |
| 76 | 9/10/24 | FOLLOW UP | 600 EVERGREEN ST, WEST LAFAYETTE |
| 77 | 9/10/24 | WHEEL LOCK | 300 S GRANT ST, WEST LAFAYETTE |
| 78 | 9/10/24 | ANIMAL COMPLAINT | 1929 INDIAN TRL |
| 79 | 9/10/24 | ANIMAL COMPLAINT | 1600 BLOCK US 231,WL |
| 80 | 9/10/24 | WLORDINANCE SCOOTER | ROBINSON ST/ E STADIUM AVE, WEST LAFAYETTE |
| 81 | 9/10/24 | EXPATROL | 3014 YEAGER RD, WEST LAFAYETTE |
| 82 | 9/10/24 | ANIMAL COMPLAINT | 1008 CUMBERLAND AVE APT 353, WEST LAFAYETTE |
| 83 | 9/11/24 | TRAFFIC PARKING REQUEST | 100 SYLVIA ST, WEST LAFAYETTE |
| 84 | 9/11/24 | TRAFFIC 24 HR TAG | 100 SYLVIA ST, WEST LAFAYETTE |
| 85 | 9/11/24 | ANIMAL COMPLAINT | 2300 BLOCK YEAGER RD,WL |
| 86 | 9/11/24 | WLORDINANCE CONTAINER | 914 VINE |
| 87 | 9/11/24 | WLORDINANCE CONTAINER | 910 VINE |
| 88 | 9/11/24 | WLORDINANCE CONTAINER | 822 VINE |
| 89 | 9/11/24 | WLORDINANCE CONTAINER | 801 VINE |
| 90 | 9/11/24 | TRAFFIC PARKING REQUEST | 125 DEHART ST, WEST LAFAYETTE |
| 91 | 9/11/24 | WLORDINANCE TRASH | 133 TECUMSEH PK CT |
| 92 | 9/11/24 | TRAFFIC PARKING REQUEST | N SALISBURY ST/ SYLVIA ST, WEST LAFAYETTE |
| 93 | 9/11/24 | WLORDINANCE CONTAINER | 3492 BURNLEY DR,WL |
| 94 | 9/11/24 | WLORDINANCE CONTAINER | 3458 BRIXFORD LN,WL |
| 95 | 9/11/24 | WLORDINANCE CONTAINER | 725 N CHAUNCEY AVE, WEST LAFAYETTE |

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| 96 | 9/11/24 | ANIMAL COMPLAINT | YEAGER RD/ ANTHROP DR, WEST LAFAYETTE |
| 97 | 9/11/24 | TRAFFIC PARKING REQUEST | 437 VINE ST, WEST LAFAYETTE |
| 98 | 9/12/24 | TRAFFIC PARKING REQUEST | 222 N CHAUNCEY AVE, WEST LAFAYETTE |
| 99 | 9/12/24 | WLORDINANCE CONTAINER | 2713 HENDERSON ST, WEST LAFAYETTE |
| 100 | 9/12/24 | WLORDINANCE CONTAINER | 801 SPARTA ST,WL |
| 101 | 9/12/24 | ANIMAL COMPLAINT | US HWY 231 N / CUMBERLAND AVE, WEST LAFAYETTE |
| 102 | 9/12/24 | FOLLOW UP | 341 SMILEY ST, WEST LAFAYETTE |
| 103 | 9/12/24 | PARKING PROBLEM | NORTH ST/ N SALISBURY ST, WEST LAFAYETTE |
| 104 | 9/12/24 | WLORDINANCE CONTAINER | 414 MAPLE |
| 105 | 9/12/24 | WLORDINANCE SCOOTER | MAPLE ST/ E LUTZ AVE, WEST LAFAYETTE |
| 106 | 9/12/24 | FOLLOW UP | 108 TECUMSEH PARK CT, WEST LAFAYETTE |
| 107 | 9/12/24 | ANIMAL COMPLAINT | 1700 BLOCK MCCORMICK RD,WL |
| 108 | 9/13/24 | PARKING PROBLEM | 1016 VINE ST, WEST LAFAYETTE |
| 109 | 9/13/24 | NO TOW | 1136 CHERRY LN, WEST LAFAYETTE |
| 110 | 9/13/24 | WLORDINANCE CONTAINER | 498 LITTLETON |
| 111 | 9/13/24 | WLORDINANCE CONTAINER | 457 LITTLETON ST, WEST LAFAYETTE |
| 112 | 9/13/24 | ANIMAL COMPLAINT | LINCOLN ST/ ROBINSON ST, WEST LAFAYETTE |
| 113 | 9/13/24 | WLORDINANCE CONTAINER | 2208 CARLISLE RD,WL |
| 114 | 9/13/24 | WLORDINANCE SCOOTER | 1010 NORTHWESTERN AVE,WL |
| 115 | 9/13/24 | FOLLOW UP | 50 STEUBEN CT, WEST LAFAYETTE |
| 116 | 9/13/24 | WLORDINANCE GRASS/WEEDS | 123 SYLVIA |
| 117 | 9/13/24 | WLORDINANCE CONTAINER | 916 N SALISBURY ST, WEST LAFAYETTE |
| 118 | 9/15/24 | WLORDINANCE TRASH | 801 HAYES |
| 119 | 9/15/24 | WLORDINANCE SCOOTER | DODGE ST/ HAYES ST, WEST LAFAYETTE |
| 120 | 9/15/24 | WLORDINANCE TRASH | 320 W STADIUM |
| 121 | 9/15/24 | WLORDINANCE TRASH | 249 S CHAUNCEY AVE, WEST LAFAYETTE |
| 122 | 9/15/24 | WLORDINANCE SCOOTER | 100 W FOWLER AVE, WEST LAFAYETTE |
| 123 | 9/15/24 | WLORDINANCE SCOOTER | 20 N SALISBURY ST, WEST LAFAYETTE |
| 124 | 9/15/24 | WLORDINANCE PARKING | 514 EVERGREEN ST, WEST LAFAYETTE |
| 125 | 9/15/24 | WLORDINANCE TRASH | 306 W STATE |
| 126 | 9/16/24 | FOLLOW UP | 50 STEUBEN CT,WEST LAFAYETTE |
| 127 | 9/16/24 | TRAFFIC 72 HOUR COMPLAINT | 105 W NAVAJO ST, WEST LAFAYETTE |
| 128 | 9/16/24 | FOLLOW UP | 514 EVERGREEN ST, WEST LAFAYETTE |
| 129 | 9/16/24 | WLORDINANCE TRASH | 360 BROWN ST,WL |
| 130 | 9/16/24 | TRAINING | 711 W NAVAJO DR,WL |
| 131 | 9/16/24 | ANIMAL COMPLAINT | 400 BLOCK N RIVER RD,WL |
| 132 | 9/16/24 | WLORDINANCE FURNITURE | 447 VINE ST, WEST LAFAYETTE |
| 133 | 9/16/24 | WLORDINANCE FURNITURE | 115 W LUTZ ST,WL |
| 134 | 9/17/24 | ORDINANCE VIOLATIONS | 1120 NORTHWESTERN AVE, WEST LAFAYETTE |
| 135 | 9/17/24 | TRAFFIC 72 HOUR COMPLAINT | CATHERWOOD/CATHERWOOD CT |
| 136 | 9/17/24 | ANIMAL COMPLAINT | 100 BLOCK E FOWLER AVE,WL |
| 137 | 9/17/24 | ANIMAL COMPLAINT | 1000 BLOCK LINDBERG RD,WL |
| 138 | 9/17/24 | WLORDINANCE SIGNAGE | KALBERER/SHRD |
| 139 | 9/17/24 | MISCELLANEOUS | TCPO,LAF |
| 140 | 9/17/24 | WLORDINANCE TRASH | 108 TECUMSEH PK CT |
| 141 | 9/17/24 | WLORDINANCE PARKING | JOSHUA CT, WEST LAFAYETTE |
| 142 | 9/17/24 | TRAFFIC 24 HR TAG | 140 E STADIUM |
| 143 | 9/17/24 | EXPATROL | 100 HILLCREST |

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|---|---|---|---|
| 144 | 9/17/24 | TRAFFIC PRIVATE PROPERTY | 2268 YEAGER RD, WEST LAFAYETTE |
| 145 | 9/17/24 | WLORDINANCE FURNITURE | 220 SYLVIA ST,WL |
| 146 | 9/17/24 | WLORDINANCE FURNITURE | 343 SYLVIA ST,WL |
| 147 | 9/18/24 | ANIMAL COMPLAINT | LINDBERG RD/ WOODLAND AVE, WEST LAFAYETTE |
| 148 | 9/18/24 | ANIMAL COMPLAINT | 2100 N SALISBURY ST, WEST LAFAYETTE |
| 149 | 9/18/24 | FOLLOW UP | 105 W NAVAJO |
| 150 | 9/18/24 | FOLLOW UP | CATHERWOOD/CATHERWOOD CY |
| 151 | 9/18/24 | EXPATROL | 1001 HILLCREST RD,WL |
| 152 | 9/18/24 | WHEEL LOCK | 400 SYLVIA ST, WEST LAFAYETTE |
| 153 | 9/18/24 | WHEEL LOCK | 1225 MITCH DANIELS BLVD, WEST LAFAYETTE |
| 154 | 9/18/24 | PARKING PROBLEM | 4521 JOSHUA CT |
| 155 | 9/18/24 | WLORDINANCE CONTAINER | 3024 BENTON |
| 156 | 9/18/24 | EXPATROL | 360 BROWN ST,WL |
| 157 | 9/18/24 | WLORDINANCE SCOOTER | 200 BLK NORTH |
| 158 | 9/18/24 | TRAFFIC CONTROL | HARRISON/S. CHAUNCEY |
| 159 | 9/18/24 | WLORDINANCE FURNITURE | 348 W OAK ST,WL |
| 160 | 9/18/24 | WLORDINANCE SCOOTER | HILLCREST/N GRANT |
| 161 | 9/18/24 | WLORDINANCE FURNITURE | 516 W STADIUM AVE,WL |
| 162 | 9/18/24 | WLORDINANCE FURNITURE | 702 N GRANT |
| 163 | 9/18/24 | WLORDINANCE SCOOTER | 729 N GRANT |
| 164 | 9/18/24 | ORDINANCE VIOLATIONS | 810 N GRANT |
| 165 | 9/19/24 | TRAFFIC PARKING REQUEST | 900 5TH ST, WEST LAFAYETTE |
| 166 | 9/19/24 | TRAFFIC PARKING REQUEST | 600 WALDRON ST, WEST LAFAYETTE |
| 167 | 9/19/24 | PARKING PROBLEM | 600 BLK WALDRON |
| 168 | 9/19/24 | TRAFFIC 24 HR TAG | 1000 5TH ST, WEST LAFAYETTE |
| 169 | 9/19/24 | ANIMAL COMPLAINT | 2678 US HWY 52 W, WEST LAFAYETTE |
| 170 | 9/19/24 | TRAFFIC PARKING REQUEST | 200 N CHAUNCEY AVE, WEST LAFAYETTE |
| 171 | 9/19/24 | TRAFFIC PARKING REQUEST | W COLUMBIA ST/ N CHAUNCEY AVE, WEST LAFAYETTE |
| 172 | 9/19/24 | ANIMAL COMPLAINT | 200 BLOCK KINGSTON,WL |
| 173 | 9/19/24 | ANIMAL COMPLAINT | 2634 TRACE 26 CAMELBACK,WL |
| 174 | 9/19/24 | WLORDINANCE FURNITURE | 352 W OAK ST, WEST LAFAYETTE |
| 175 | 9/19/24 | WLORDINANCE SCOOTER | 300 BLOCK N RIVER RD,WL |
| 176 | 9/19/24 | WLORDINANCE SCOOTER | S/E CORNER ROSE & E STADIUM AVE,WL |
| 177 | 9/19/24 | WLORDINANCE FURNITURE | 351 W OAK |
| 178 | 9/20/24 | TRAFFIC PARKING REQUEST | NORTHWESTERN / W COLUMBIA ST, WEST LAFAYETTE |
| 179 | 9/20/24 | WHEEL LOCK | 400 SYLVIA ST, WEST LAFAYETTE |
| 180 | 9/20/24 | WLORDINANCE FURNITURE | 217-219 W LUTZ ST,WL |
| 181 | 9/20/24 | WLORDINANCE GRASS/WEEDS | 833 HILLCREST RD, WEST LAFAYETTE |
| 182 | 9/20/24 | FOLLOW UP | 1415 WOODLAND AVE, WEST LAFAYETTE |
| 183 | 9/20/24 | WLORDINANCE GRASS/WEEDS | 4631 ELIJAH ST, WEST LAFAYETTE |
| 184 | 9/20/24 | FOLLOW UP | 50 STUEBEN CT |
| 185 | 9/20/24 | WLORDINANCE SCOOTER | 2009 N SALISBURY |
| 186 | 9/20/24 | WLORDINANCE SCOOTER | SYCAMORE/SALISBURY |
| 187 | 9/20/24 | TRAFFIC 72 HOUR COMPLAINT | 100 BLOCK SYLVIA ST,WL |
| 188 | 9/20/24 | WLORDINANCE SCOOTER | 100 BLOCK NORTH ST,WL |
| 189 | 9/20/24 | ANIMAL COMPLAINT | 3807 CAMPUS SUITES DR,WL |
| 190 | 9/20/24 | TRAFFIC 24 HR TAG | 912 ROBINSON ST, WEST LAFAYETTE |
| 191 | 9/20/24 | WLORDINANCE SIGNAGE | KALBERER RD/ N SALISBURY ST, WEST LAFAYETTE |

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| 192 | 9/23/24 | ANIMAL COMPLAINT | LINDBERG RD/ WOODLAND AVE, WEST LAFAYETTE |
| 193 | 9/23/24 | FOLLOW UP | 1120 NORTHWESTERN |
| 194 | 9/23/24 | FOLLOW UP | 820 HILLCREST |
| 195 | 9/23/24 | WHEEL LOCK | 100 PIERCE ST, WEST LAFAYETTE |
| 196 | 9/23/24 | ANIMAL COMPLAINT | 2728 COVINGTON |
| 197 | 9/24/24 | TRAFFIC PARKING REQUEST | 110 ANDREW PL, WEST LAFAYETTE |
| 198 | 9/24/24 | WHEEL LOCK | 511 EVERGREEN ST, WEST LAFAYETTE |
| 199 | 9/24/24 | WHEEL LOCK | 209 HARRISON ST, WEST LAFAYETTE |
| 200 | 9/24/24 | WHEEL LOCK | 806 N CHAUNCEY AVE, WEST LAFAYETTE |
| 201 | 9/24/24 | WHEEL LOCK | 100 SHEETZ ST, WEST LAFAYETTE |
| 202 | 9/24/24 | TRAFFIC 24 HR TAG | 100 S MACARTHUR DR, WEST LAFAYETTE |
| 203 | 9/24/24 | WLORDINANCE TRASH | 306 W STATE ST, WEST LAFAYETTE |
| 204 | 9/24/24 | WLORDINANCE GRASS/WEEDS | 242 LEATHERWOOD |
| 205 | 9/24/24 | PARKING PROBLEM | 300 blk N SALISBURY |
| 206 | 9/24/24 | ORDINANCE VIOLATIONS | 712 BEXLEY |
| 207 | 9/24/24 | FOLLOW UP | 1415 WOODLAND AVE, WEST LAFAYETTE |
| 208 | 9/24/24 | EXPATROL | 1001 HILLCREST |
| 209 | 9/24/24 | TRAFFIC PARKING REQUEST | N SALISBURY ST/ DEHART ST, WEST LAFAYETTE |
| 210 | 9/25/24 | ORDINANCE VIOLATIONS | 921 ROBINSON |
| 211 | 9/25/24 | WLORDINANCE SCOOTER | 617 ROBINSON |
| 212 | 9/25/24 | WLORDINANCE CONTAINER | 829 N CHAUNCEY |
| 213 | 9/25/24 | WLORDINANCE CONTAINER | 918 VINE |
| 214 | 9/25/24 | TRAFFIC PARKING REQUEST | 200 LINCOLN ST, WEST LAFAYETTE |
| 215 | 9/25/24 | WLORDINANCE CONTAINER | 910 VINE |
| 216 | 9/25/24 | WLORDINANCE CONTAINER | 820 VINE ST, WEST LAFAYETTE |
| 217 | 9/25/24 | WLORDINANCE PARKING | 536 VINE ST, WEST LAFAYETTE |
| 218 | 9/25/24 | WLORDINANCE CONTAINER | 3111 SULLIVAN ST, WEST LAFAYETTE |
| 219 | 9/26/24 | PARKING PROBLEM | 1ST ST/ WALDRON ST, WEST LAFAYETTE |
| 220 | 9/26/24 | ORDINANCE VIOLATIONS | 204 DEHART |
| 221 | 9/26/24 | TRAFFIC 24 HR TAG | E STATE ST/ ROEBUCK DR, WEST LAFAYETTE |
| 222 | 9/26/24 | TRAFFIC PARKING REQUEST | 100 BLK DEHART |
| 223 | 9/26/24 | WHEEL LOCK | 116 PIERCE ST, WEST LAFAYETTE |
| 224 | 9/26/24 | WLORDINANCE GRASS/WEEDS | 271 S RIVER RD, WEST LAFAYETTE |
| 225 | 9/26/24 | TRAFFIC 24 HR TAG | 1000 5TH ST, WEST LAFAYETTE |
| 226 | 9/26/24 | PAPERWORK DETAILS/COURTWORK | 222 N CHAUNCEY |
| 227 | 9/26/24 | WLORDINANCE SCOOTER | N SALISBURY/SYLVIA |
| 228 | 9/26/24 | ANIMAL COMPLAINT | 711 W NAVAJO |
| 229 | 9/26/24 | FOLLOW UP | 108 TECUMSEH PK CT |
| 230 | 9/26/24 | FOLLOW UP | 921 ROBINSON |
| 231 | 9/26/24 | TRAFFIC REPAIR/SIGNALS/LIGHTS | 300 HARRISON ST, WEST LAFAYETTE |
| 232 | 9/27/24 | TRAFFIC 24 HR TAG | 705 SAGAMORE PKWY |
| 233 | 9/27/24 | TRAFFIC 24 HR TAG | 700 DODGE ST, WEST LAFAYETTE |
| 234 | 9/27/24 | WHEEL LOCK | 300 LAWN AVE, WEST LAFAYETTE |
| 235 | 9/27/24 | WHEEL LOCK | 465 VINE ST, WEST LAFAYETTE |
| 236 | 9/27/24 | WLORDINANCE CONTAINER | 441 LITTLETON |
| 237 | 9/27/24 | FOLLOW UP | 1415 WOODLAND |
| 238 | 9/27/24 | WLORDINANCE TRASH | 1001 HILLCREST RD, WEST LAFAYETTE |
| 239 | 9/27/24 | TRAFFIC PARKING REQUEST | 300 N CHAUNCEY AVE, WEST LAFAYETTE |

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| 240 | 9/29/24 | WLORDINANCE TRASH | 514 DODGE |
| 241 | 9/29/24 | WLORDINANCE SCOOTER | 614 EVERGREEN |
| 242 | 9/29/24 | WLORDINANCE TRASH | 601 DODGE |
| 243 | 9/29/24 | WLORDINANCE SCOOTER | 508 W STADIUM |
| 244 | 9/29/24 | WLORDINANCE SCOOTER | 419 W STADIUM AVE, WEST LAFAYETTE |
| 245 | 9/29/24 | WLORDINANCE TRASH | 249 S CHAUNCEY |
| 246 | 9/29/24 | WLORDINANCE TRASH | 172 LITTLETON ST, WEST LAFAYETTE |
| 247 | 9/29/24 | WLORDINANCE SCOOTER | N SALISBURY/STADIUM |
| 248 | 9/29/24 | WLORDINANCE TRASH | 1134 NORTHWESTERN |
| 249 | 9/30/24 | TRAFFIC PARKING REQUEST | 426 S GRANT ST, WEST LAFAYETTE |
| 250 | 9/30/24 | TRAFFIC PARKING REQUEST | 249 S CHAUNCEY AVE, WEST LAFAYETTE |
| 251 | 9/30/24 | TRAFFIC PARKING REQUEST | 209 S CHAUNCEY AVE,WEST LAFAYETTE |
| 252 | 9/30/24 | PARKING PROBLEM | 3356 MORGAN ST, WEST LAFAYETTE |
| 253 | 9/30/24 | WLORDINANCE SCOOTER | N/E CORNER MCCORMICK & CHERRY,WL |
| 254 | 9/30/24 | WLORDINANCE TRASH | 352 W OAK ST,WL |
| 255 | 9/30/24 | WLORDINANCE FURNITURE | 215 W STADIUM AVE,WL |
| 256 | 9/30/24 | DEPT INFO | 300 HIGHLAND DR, WEST LAFAYETTE |
| 257 | 9/30/24 | WLORDINANCE FURNITURE | 206 W STADIUM AVE,WL |
| 258 | 9/30/24 | WLORDINANCE GRASS/WEEDS | 200 W STADIUM AVE,WL |
| 259 | 9/30/24 | WLORDINANCE SCOOTER | 176 E STADIUM AVE,WL |
| 260 | 9/30/24 | WLORDINANCE SCOOTER | KENT AVE/ N SALISBURY ST, WEST LAFAYETTE |
| 261 | 9/30/24 | TRAFFIC CONTROL | 1501 MITCH DANIELS BLVD |
| 262 | 9/30/24 | TRAFFIC CONTROL | 1148 CHERRY LANE |
| 263 | 9/30/24 | ORDINANCE VIOLATIONS | 1020 LINDBERG RD, WEST LAFAYETTE |
| 264 | 9/30/24 | WLORDINANCE TRASH | 100 FOUNDRY DR, WEST LAFAYETTE |
| 265 | 9/30/24 | FOLLOW UP | 705 SAGAMORE PKWY W, WEST LAFAYETTE |
| 266 | 9/30/24 | PARKING PROBLEM | 100 BLK KNOX |
| 267 | 9/30/24 | ABANDONED BICYCLE | 1333 ENDEAVOUR DR, WEST LAFAYETTE |

WEST LAFAYETTE
WATER RESOURCE RECOVERY

**Wastewater Treatment Utility**
500 South River Road
West Lafayette, Indiana 47906
Voice: (765) 775-5145
Fax: (765) 775-5149

# MONTHLY REPORT OF OPERATIONS

**N**ational **P**ollutant **D**ischarge **E**limination **S**ystem -- **NPDES**

| **August 2024--MONTHLY AVERAGES** | | | | **Limit** |
|---|---|---|---|---|
| TSS | | 2.3 | mg/l | (30.00) |
| CBOD5 | | 2.1 | mg/l | (25.00) |
| $NH_4$ | | 0.25 | mg/L | (6.00) |
| $Cl_2$ | | 0.02 | mg/L | (0.06) |
| Phosphorus | | 0.843 | mg/L | (1.00) |
| E. COLI | | 4 | #/100ml | 125.00 |
| FLOW | TOTAL | 220.57 | MG | |
| | AVG | 7.12 | MGD | |
| | MAX | 11.08 | MGD | |
| | MIN | 5.506 | MGD | |
| PRECIPITATION | | 2.53 | INCHES | |

**August 2024--PERCENT REMOVALS**

| | | |
|---|---|---|
| TSS | 98.6 | REPORT ONLY |
| CBOD | 98.7 | REPORT ONLY |
| Ammonia | 99 | REPORT ONLY |
| Phosphorus | 80.8 | REPORT ONLY |

**COMBINED SEWER OVERFLOWS**

| **August 2024** | **MG** | **HOURS** | **Events** |
|---|---|---|---|
| **TOTAL FLOW** | **221.20** | | |
| **PERCENT FULLY TREATED** | **99.71** | | |
| **OVERFLOW POINT** | | | |
| **DEHART STREET** | 0.0000 | 0 | 0 |
| **QUINCY STREET** | 0.0000 | 0 | 0 |
| **Wet Weather Treatment Facility** | 0.6330 | 0.87 | 1 |
| **OVERFLOW TOTAL** | **0.6330** | **0.87** | **0** |

City of West Lafayette, Indiana
Budget Report - YTD
September 2024

| Row Labels | Original Appropriation | Transfers/ Adjustments | Revised Budget | YTD Expensed | Encumbrances | Available Budget | % Used |
|---|---|---|---|---|---|---|---|
| 1010 General Fund | 19,309,107 | 543,909 | 19,853,016 | 12,958,042 | 650,914 | 6,244,061 | 69% |
| 2010 Motor Vehicle Highway (MVH) | 2,349,042 | 1,561,896 | 3,910,938 | 1,141,187 | 1,235,322 | 1,534,429 | 61% |
| 2015 MVH-Restricted | 555,000 | 589,514 | 1,144,514 | 540,302 | 304,132 | 300,080 | 74% |
| 2020 Local Road & Street | 408,600 | 168,030 | 576,630 | 270,441 | 48,706 | 257,483 | 55% |
| 2040 Parks and Recreation | 1,795,946 | 46,099 | 1,842,045 | 1,210,912 | 47,498 | 583,635 | 68% |
| 2090 Economic Development IT | 3,123,794 | 766,160 | 3,889,954 | 2,184,136 | 718,932 | 986,887 | 75% |
| 2330 Law Enforce Continuing Ed | 18,500 | - | 18,500 | 17,040 | - | 1,460 | 92% |
| 2490 Public Safety LIT | 980,531 | 216,373 | 1,196,904 | 658,378 | 59,466 | 479,060 | 60% |
| 2540 Rental Housing Inspection | 312,496 | - | 312,496 | 201,011 | 104 | 111,381 | 64% |
| 2780 Fire Fighting | 8,000 | - | 8,000 | 7,766 | - | 234 | 97% |
| 4020 Cumulative Capital Dev | 935,700 | 278,994 | 1,214,694 | 590,755 | 225,900 | 398,039 | 67% |
| 4180 Coronavirus ARPA Fund | - | 3,083,582 | 3,083,582 | 1,533,265 | 463,374 | 1,086,944 | 65% |
| 8010 Fire Pension-1937 | 745,342 | - | 745,342 | 501,657 | - | 243,685 | 67% |
| 8020 Police Pension-1925 | 818,211 | - | 818,211 | 540,580 | - | 277,631 | 66% |
| **Grand Total** | **31,360,269** | **7,254,558** | **38,614,827** | **22,355,472** | **3,754,348** | **12,505,008** | **68%** |

**Corporation Counsel**
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**October 7, 2024**

**Legal Report**
**For September 2024**

During September 2024, the following areas of note were addressed by the Corporation Counsel's office:

**General Legal**

Attend BOW, conference with S.C., C.E. regarding tort claim deposition notice, conference with Mayor regarding Council agenda items, public works issue regarding lighting, legal research; Attend to 34b6 notice via email; Conference with Mayor, department heads regarding agenda items, attend meeting, conference with members; Conferences with CC regarding Salisbury deposition and potential lit matter, review of email corr. regarding same; Attend Dept. Head meeting, conference with Mayor, RD, CE Parks regarding numerous projects, grass enforcement, use of local vendors for supplies; Attend to e-verify memo review/edit and transmit; Review of trial rules regarding 30(b)(6) deposition and applicable case law, conference with CC regarding same; Conference with CC regarding various pending matters i.e. parking meters, HPC, public works, and other items; review, research and respond to title /ownership questions from County Highway Engineer, review GIS records; Attend to Tort claim reporting to former insurance carrier; Review of state code and code of ordinances regarding HPC, review of case law regarding HPC right of action, email memorandum to CC regarding same; Review and revise encroachment agreement; Attend to construction defect claim on Sagamore Parkway Trail with C.E.; Attend to email corr. from Deputy Clerk regarding publication of Ordinance; Attend to email corr. regarding HRC Complaint; Attend BOW, conference with PC regarding filling positions timing and procedure; Review donation agreement edits for FD; Review and edit encroachment agreement, conference with associate regarding same; Attend to multiple emails regarding HRC complaint, review of email corr. from Complainant, review of HRC rules and state code; Review documents - SIA donation agreement for Chief Need; Review and respond to inquiry regarding applicable criminal statute to chaining another person's bicycle; Review, edit and conference regarding the Standard Encroachment Agreement; Review and revise changes to Standard at WL Encroachment Agreement; Attend to multiple emails regarding HRC complaint, legal research regarding filing of HRC Complaint and HUD complaint permissibility, conference with CC regarding same; Attend to remedy proposal for Sagamore Trail; Review Parks Impact fee materials, review Sheetz Supreme Court case; Attend to telephone calls and emails regarding conversion inquiry by Councilor; Attend BOW, conference with dept heads; Attend to multiple emails regarding HRC Complaint, review of rules regarding notice of selection of investigator; Review encroachment agreement edits, conference with associate; Attend to revisions of The Standard at WL Encroachment Agreement, transmit to City; Review of HRC rules regarding Complaint deadlines following Answer by Respondent; Continued attention to encroachment agreement for the Standard via emails and plat review; Attend to correspondence from ku regarding

Complaint, Investigator, Response, etc.; Draft SBOA Opinion response letter, emails from P. Gray, emails with Corporation Counsel and City Attorney, telephone conference with Corp. Counsel, email to SBOA; Attend to immediately needed audit letter via emails, telephone calls and tort claim notice review of file materials; Attend BOW, conference with dept. heads; Review and revise correspondence regarding investigator and HRC Complaint; Final approval to file Parks Impact Fee ordinance, final review and comments; Attend to numerous council filing deadline issues; Attend to Parks impact fee ordinance via email; Review numerous emails, review state statute regarding impact fees, review ordinance regarding same; Review, edit, transmit Easement agreement for the Hub plaza; Review of HRC rules regarding Investigator, attend to email corr. regarding investigator responsibilities; Conference with CC and review of emails regarding Park Impact Fee.

**General Development**

Review of documents regarding Duke Energy Light Pole Installation, review of State Code and emails, review of email corr. from City Staff; Additional attention to Salisbury Releases; Complete legal research regarding Duke Energy Light Pole, review of purchasing and public works code, review of applicable case law, draft memorandum to City Staff, conference with CC regarding same; Attend virtual conference with Mayor, DD, R. Starkey, Esq., J. Treat CPA, review agreement, review online sources regarding IEDC staff; Attend to Plaza project agreement for services, review and transmit comments; Email corr. regarding finalization of Salisbury Lane Design Dispute, conference with CC regarding same; Review code regarding public works and bidding process, email corr. with Duke Energy, attend to email correspondence with City regarding same; Attend to IDD call and overall strategy regarding SK Hynix project, related projects, review prior agreement/MOU drafts, annotate same, online research regarding opposing counsel, previous projects; Attend to numerous Landmark emails, review documents signed for assignments; Review documents regarding SK Hynix, conference Mayor regarding same, discuss strategy for continued discussions to insure bonding capacity; Attend to assignment of Landmark Agreement to new owner via numerous emails; Conference with CC and ku regarding Salisbury Lane Design settlement, review of documents, attend to email corr. from adverse, email corr. to ku, adverse, and P. Gray regarding same; Attend Joint Board internal meeting, attend childcare center meeting with PRF, conference with dept. heads; Attend to public records request, review data to be released; Attend tele conference with City Staff and Duke regarding Robinson lighting, review of emails and other items regarding preparation for same; Attend to emails regarding Duke Energy Robinson Street Lights, review of purchasing/lease/public works rules and AIM Summary regarding same; Conduct legal research and review of Code/Case Law regarding light poll construction, review of additional contract from Duke and other documents, draft email memorandum regarding same; Review agenda items, attend RDC ,conference with members, Mayor, dept heads regarding pending projects; online research regarding PRF/RDC early child education MOU; Review of email corr. from Duke Energy regarding Robinson Light Polls, email corr. to city staff regarding same; Review RDC statute regarding uses for funds, conference with CA regarding Enhancement Comm uses for RDC funding; Review IDD documents, email threads, attend conference call with Mayor et al regarding same; Draft MOU for RDC/WLCSC Cumberland Tennis Courts; Attend to RDC TIN issue.

Attend to email corr. from JVS regarding Chauncey Housing Assoc.; Conference with JVS regarding various WLEF matters; Review of state code regarding Development and RDC, review memorandum regarding use of RDC funds, review of other items regarding same for New Chauncey; Continue legal research regarding Rentals/SFA, RDC Code, conference with CC regarding same, review of state code; Review of memorandum previously prepared regarding purchase of deed restrictions, review of case law regarding use of TIF funds, review of Levee/Village TIF district documents; Complete draft email memorandum regarding JVS question on property acquisition.

**Police Merit Commission**

Prepare for and attend PMC meeting; Email corr. to ku regarding PMC special meeting, attend to notes regarding same; Conference with ku regarding PMC special meeting and documents, review of same; Prepare Eligibility list for special meeting and certification; Final preparation for and attend special PMC meeting; Attend to multiple emails regarding PMC.

**Code Enforcement**

Attend to parking code change via email, review email threads, conference with CA; Attend to planning for native plantings regulations, research into other jurisdiction code provisions, review emails regarding same; Review research materials on yard code restrictions; Review emails regarding yard ordinance, review Zionsville ordinance; Email from city official regarding Woodland trust; Attend to email from R. Ray regarding Bowden; Email exchange with Ashlyn from city court discussing scheduling issues; Draft motion to continue bench trial and proposed order for D. Ghering bench trial; Review Zionsville code regarding lawns/natural lawns, online research regarding same; Email CS and RW regarding inspection dates for Bowden's residence; Email Bowden's attorney about proposed inspection dates; Review stormwater agreement, emails regarding same; Attend to email regarding Bowden; Review and research regarding natural yards; Phone call with RW regarding 1415 Woodland Trust; Phone call with R. Ray regarding Bowden's inspection; Conference with Mayor, DD, B.C., consultant regarding housing issues, review report; Review of City Code and State Statue regarding HPC Venue; Attend to email regarding Ghering complaints; Inspection at 810 N Grant for unsafe building; Review Bowden photos and discuss with CC; Attend to email regarding Ghering pending case; Review unsafe building statute; Attend to email from RW and CS regarding unsafe building at 810 N Grant, legal research regarding notice for same; Begin review of WL Code regarding HPC enforcement; Review 1415 Woodland Trust's Brief in Support of Motion to Set Aside Default Judgment; 1415 Woodland Trust legal research and begin drafting Response Brief; Complete review of HPC remedies and complaint process; Continue legal research and draft of response brief for 1415 Woodland Trust; Conference with Mayor, B.C., R. W., staff regarding natural lawns, ordinance change; Attend conference regarding HPC code enforcement with various City Staff, preparation for same; Attend to legal research and conference with associate regarding natural yard code changes; Attend to Fairway lawsuit for delinquent inspection fees; Meeting with RW et al regarding 1415 Woodland Trust; Phone call with clerk discussing L. Zhao; Attend to email from health department regarding Bowden; Attend city court; Review invoices for Fairway Apartment liens; Review Ghering's incident reports, Email update regarding cases, Email TCPO regarding same; Attend to Fairway claim; Attend to email from city court staff regarding pending old tickets; Attend to email regarding Ghering case; Draft notice of claim, Phone call with KU discussing lis pendens for Fairway claim; Attend to email regarding Ghering's case; Attend to email from RW regarding depositing of personal trash in city cans; Review WL city code regarding waste disposal in city dumpsters by private citizens.

**Wastewater**

Attend to SUO amendments via email; Review roofing contract and emails with WWS; Attend to public hearing issue re bond ordinance; Attend to finalizing settlement for Waterfront; Attend to Fairway Apartments debt via telephone and email; Review and comment on MOU regarding facility at WWTU plant; Attend to Fairway Apartments lien status; Review and comment on Sewer Use Ordinance for council consideration; Review correspondence with attachments from Greg Martz regarding wet weather improvements, transmit to bond counsel, F.A.; Further review of the SUO

changes, draft additional Ordinance language; Attend to BOT documents via numerous emails with bond counsel, F.A., G. Martz, review of documents; Review and advise on SUO publication requirement; Review ,edit and transmit conveyance documents for Soldier's Home Project; Attend to completion of BOT agreement; Work on schedule of payments for BOT/Bond; Attend to final draft of release regarding collection of delinquent charges, emails regarding same; Continued attention to BOT/Bond terms.

Respectfully Submitted,

*/s/ Eric H. Burns*

Eric H. Burns
Corporation Counsel

Sponsored by Mayor Erin R. Easter

**ORDINANCE NO. 24-2024**

AN ORDINANCE CONCERNING THE CONSTRUCTION OF ADDITIONS AND IMPROVEMENTS TO THE SEWAGE WORKS OF THE CITY OF WEST LAFAYETTE, INDIANA, THE ISSUANCE OF REVENUE BONDS TO PROVIDE THE COST THEREOF, THE COLLECTION, SEGREGATION AND DISTRIBUTION OF THE REVENUES OF SAID SEWAGE WORKS, THE SAFEGUARDING OF THE INTERESTS OF THE OWNERS OF SAID REVENUE BONDS, OTHER MATTERS CONNECTED THEREWITH, INCLUDING THE ISSUANCE OF NOTES IN ANTICIPATION OF BONDS, AND REPEALING ORDINANCES INCONSISTENT HEREWITH

WHEREAS, the City of West Lafayette, Indiana (the "City") has heretofore established, constructed and financed its sewage works, and now owns and operates said sewage works pursuant to Indiana Code 36-9-23, as in effect on the issue date of the bonds authorized herein, and other applicable laws (the "Act")(all references hereinafter to the Indiana Code are designated as "IC" followed by the applicable code section or sections); and

WHEREAS, the Common Council of the City (the "Common Council") finds that certain improvements and extensions to said works are necessary; that plans, specifications and estimates have been prepared and filed by Wessler Engineering, the engineers employed by the City for the construction of said improvements and extensions (as more fully set forth in summary fashion in Exhibit A hereto and made a part hereof) (the "Project"), which plans and specifications have been submitted to all governmental authorities having jurisdiction, particularly the Indiana Department of Environmental Management, and will be approved by the aforesaid governmental authorities and are incorporated herein by reference and open for inspection at the office of the Clerk of the City as required by law; and

WHEREAS, the City will enter into one or more contracts for the construction of the Project in accordance with Indiana law, which contract or contracts will be subject to the City's determination to construct the Project and obtaining funds to pay for the Project; and

WHEREAS, based upon the information provided to the City by the engineers for the Project, the estimated costs of the Project, including capitalized interest, if necessary, engineering, municipal advisory and legal fees, is in the estimated amount not to exceed Thirty-Seven Million Five Hundred Thousand Dollars ($37,500,000); and

WHEREAS, the Common Council finds that it is necessary to authorize the financing of the entire costs of the Project by the issuance of sewage works revenue bonds, in one or more series, in an aggregate principal amount not to exceed Thirty-Seven Million Five Hundred Thousand Dollars ($37,500,000) and, if necessary, bond anticipation notes (the "BANs"); and

WHEREAS, the Common Council finds that there are outstanding bonds of the sewage works payable out of the Net Revenues (as hereinafter defined) thereof designated as (i) the "Sewage Works Revenue Bonds of 2012", dated October 31, 2012 (the "2012 Bonds"), now

outstanding in the aggregate principal amount of Two Million Three Hundred Forty-Five Thousand Dollars ($2,345,000) and maturing annually on July 1 over a period ending July 1, 2033, (ii) the "Sewage Works Revenue Bonds, Series 2014", dated April 22, 2014 (the "2014 Bonds"), now outstanding in the aggregate principal amount of One Million Five Hundred Seventy Thousand Dollars ($1,570,000) and maturing annually on July 1 over a period ending July 1, 2029, (iii) the "Sewage Works Refunding Revenue Bonds, Series 2014", dated November 5, 2014 (the "2014 Refunding Bonds"), now outstanding in the aggregate principal amount of Three Million Eight Hundred Thirty-Five Thousand Dollars ($3,835,000) and maturing annually on July 1 over a period ending July 1, 2026, (iv) the "Sewage Works Revenue Bonds, Series 2014 B", dated December 15, 2014 (the "2014 B Bonds"), now outstanding in the aggregate principal amount of One Million Four Hundred Sixty-Five Thousand Dollars ($1,465,000) and maturing annually on July 1 over a period ending July 1, 2034, (v) the "Sewage Works Revenue Bonds, Series 2016", dated January 29, 2016 (the "2016 Bonds"), now outstanding in the aggregate principal amount of Fifteen Million Three Hundred Twenty-Five Thousand Dollars ($15,325,000) and maturing annually on July 1 over a period ending July 1, 2040, (vi) the "Sewage Works Refunding Revenue Bonds, Series 2017", dated June 7, 2017 (the "2017 Bonds"), now outstanding in the aggregate principal amount of Two Million Nine Hundred Ninety Thousand Dollars ($2,990,000) and maturing annually on July 1 over a period ending July 1, 2028, and (vii) the "Sewage Works Revenue Bonds, Series 2022", dated April 7, 2022 (the "2022 Bonds"), now outstanding in the aggregate principal amount of Seven Million Six Hundred Thirty Thousand Dollars ($7,630,000) and maturing annually on July 1 over a period ending July 1, 2042, which 2012 Bonds, 2014 Bonds, 2014 Refunding Bonds, 2014 B Bonds, 2016 Bonds, 2017 Bonds and 2022 Bonds (collectively, the "Outstanding Parity Bonds") constitute a first charge on the Net Revenues of the sewage works; and

WHEREAS, the ordinances authorizing the issuance of the Outstanding Parity Bonds permit the issuance of additional bonds ranking on a parity with the Outstanding Parity Bonds provided certain conditions can be met, and the City finds that the finances of the sewage works of the City will enable the City to meet the conditions for the issuance of additional parity bonds and that, accordingly, the revenue bonds authorized herein shall rank on a parity with the Outstanding Parity Bonds; and

WHEREAS, the bonds to be issued pursuant to this ordinance will constitute a first charge against the Net Revenues of the sewage works, on a parity with the payment of the Outstanding Parity Bonds, and are to be issued subject to the provisions of the laws of the Act and the terms and restrictions of this ordinance; and

WHEREAS, the City desires to authorize the issuance of BANs hereunder, if necessary, payable from the proceeds of sewage works revenue bonds issued hereunder and, with respect to interest only, proceeds of the BANs allocable to capitalized interest and/or Net Revenues of the sewage works, junior and subordinate to the Outstanding Parity Bonds, the bonds herein authorized and any additional bonds issued pursuant to Section 21 hereof, and to authorize the refunding of said BANs, if issued; and

WHEREAS, on October 2, 2023, the Common Council adopted its Resolution No. 20-2023 (the "Reimbursement Resolution") authorizing the reimbursement of expenditures related to the Project from proceeds of the bonds herein authorized in accordance with Section 1.150-2 of the Treasury Regulations on Income Tax (the "Reimbursement Regulations"); and

WHEREAS, the Common Council has been advised by the City's municipal advisor that it may be economically efficient to acquire a municipal bond insurance policy for the bonds hereby authorized; and

WHEREAS, the Common Council now finds that all conditions precedent to the adoption of an ordinance authorizing the issuance of said revenue bonds and BANs have been complied with in accordance with the provisions of the Act; now, therefore,

BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, THAT:

Section 1. Authorization of Project. The City proceed with the construction of the Project pursuant to the plans and specifications therefore as prepared and filed by Wessler Engineering, the consulting engineers employed by the City for the Project, two copies of which plans and specifications are on file in the office of the Clerk of the City (the "Clerk") and open for public inspection pursuant to IC 36-1-5-4. The estimated cost for the construction of said Project, based upon the information provided to the City by its engineers for the Project, will not exceed Thirty-Seven Million Five Hundred Thousand Dollars ($37,500,000), plus investment earnings on the BAN and bond proceeds, without further authorization of the Common Council. The terms "sewage works," "sewage works system," "works," "system," and words of like import where used in this ordinance shall be construed to mean and include the Treatment Works, as defined in the Financial Assistance Agreements between the City and the Indiana Finance Authority (the "Authority") in connection with the Outstanding Parity Bonds which are held by the Authority, and also includes the existing sewage works system, including items defined at IC 36-9-1-8, and all real estate and equipment used in connection therewith and appurtenances thereto, and all extensions, additions and improvements thereto and replacements thereof now or at any time hereafter constructed or acquired. The Project shall be constructed in accordance with the plans and specifications heretofore mentioned, which Project and plans and specifications are hereby approved. The Project shall be constructed and the BANs and bonds herein authorized shall be issued pursuant to and in accordance with the Act.

Section 2. Issuance of BANs. The City shall issue, if necessary, its BANs in one or more series for the purpose of procuring interim financing to apply on the costs of the Project, capitalized interest, if necessary, and to pay cost of issuance. The City may issue its BANs in an aggregate principal amount not to exceed Thirty-Seven Million Five Hundred Thousand Dollars ($37,500,000) to be designated "Sewage Works Bond Anticipation Notes, Series 202_ _", to be completed with the year in which issued and appropriate series designation. The BANs shall be sold at not less than 99.0% of their par value, numbered consecutively from 1 upward and shall be in denominations of Five Thousand Dollars ($5,000) and integral multiples thereof or One Hundred Thousand Dollars ($100,000) and integral multiples of Five Thousand Dollars ($5,000)

in excess thereof, as designated in the purchase agreement for said BANs. The BANs shall be dated as of the date of delivery thereof and shall bear interest at a rate not to exceed 6.0% per annum (the exact rate or rates to be determined through negotiations with the purchaser of the BANs) payable either upon maturity or redemption. Interest on the BANs may, as determined by the Controller of the City (the "Controller"), with the advice of the City's municipal advisor, also be payable semiannually on January 1 and July 1 of each year, commencing on either the first January 1 or the first July 1 following delivery of the BANs.

The BANs will mature no later than five (5) years after their date of delivery. The BANs are subject to renewal or extension at an interest rate or rates not to exceed 6.0% per annum (the exact rate or rates to be negotiated with the purchaser of the BANs). The term of the BANs and all renewal BANs may not exceed five (5) years from the date of delivery of the initial BANs. The BANs shall be registered in the name of the purchasers thereof. Interest on the BANs shall be calculated according to a 360-day calendar year containing twelve 30-day months.

The BANs shall be issued pursuant to IC 5-1.5-8-6.1 if sold to the Indiana Bond Bank or pursuant to IC 5-1-14-5 if sold to a financial institution or any other purchaser. The City shall pledge to the payment of the principal of and interest on the BANs the proceeds from the issuance of revenue bonds pursuant to and in the manner prescribed by the Act.

Interest on the BANs may, as determined by the Controller with the advice of the City's municipal advisor, also be payable from capitalized interest and/or Net Revenues of the sewage works. Any pledge of Net Revenues of the sewage works to the payment of interest on the BANs shall be junior and subordinate to the payment of the Outstanding Parity Bonds, any bonds issued pursuant to this ordinance and any additional parity bonds issued in the future pursuant to Section 21 of this ordinance (the "Parity Bonds"). The BANs shall rank on a parity with respect to the pledge of Net Revenues of the sewage works in the event more than one (1) series of BANs is outstanding and secured, with respect to the payment of interest thereon, by the Net Revenues of the sewage works.

Section 3. Issuance of Bonds. The City shall issue its sewage works revenue bonds in one or more series in the aggregate principal amount not to exceed Thirty-Seven Million Five Hundred Thousand Dollars ($37,500,000) to be designated "Sewage Works Revenue Bonds, Series 202_ _", to be completed with the year in which issued and appropriate series designation (the "Bonds"), for the purpose of procuring funds to apply on the costs of the Project, refunding the BANs, if issued, capitalized interest, if necessary, and costs of issuance of the Bonds including, if necessary, a premium for municipal bond insurance. If the Bonds are sold in more than one series, any sale and issuance of Bonds which follows the issuance of the first series of Bonds hereunder shall be subject to the requirements established by Section 21 of this ordinance.

The Bonds shall be issued and sold at a price not less than 99.0% of the par value thereof. The Bonds shall be issued in fully registered form in denominations of (i) Five Thousand Dollars ($5,000) or integral multiples thereof or (ii) One Hundred Thousand Dollars ($100,000) and any integral multiple of Five Thousand Dollars ($5,000) in excess thereof, as determined by the Controller with the advice of the City's municipal advisor. The Bonds shall be numbered

consecutively from 1 up and shall be originally dated as of their date of delivery. The Bonds shall bear interest at a rate or rates not exceeding 6.0% per annum (the exact rate or rates to be determined by bidding or through negotiation). The interest on the Bonds shall be payable semiannually on January 1 and July 1 in each year, commencing on either the first January 1 or the first July 1 following the date of delivery of the Bonds, as determined by the Controller, with the advice of the City's municipal advisor. The principal of the Bonds shall be payable in lawful money of the United States of America at the principal office of the Paying Agent (as hereinafter defined). The Bonds shall mature annually on July 1 of each year, or be subject to mandatory sinking fund redemption on July 1, over a period ending no later than twenty-five (25) years after the date of delivery of the Bonds. The Bonds shall mature in such amounts which as determined by the Controller prior to the sale of the Bonds, with the advice of the City's municipal advisor, will (i) produce as level annual debt service as practicable taking into account the denominations of the Bonds, (ii) produce as level annual debt service as practicable taking into account the denominations of the Bonds and the annual debt service on the Outstanding Parity Bonds or (iii) comport with the long term debt financing plan for the sewage works, as determined by the Controller, with the advice of the City's municipal advisor.

All or a portion of the Bonds may be issued as one or more term bonds, upon election of the purchaser. Such term bonds shall have a stated maturity or maturities consistent with the maturity schedule determined in accordance with the preceding paragraph, on the dates as determined by the purchaser, but in no event later than the last serial maturity date of the Bonds as determined in the preceding paragraph. The term bonds shall be subject to mandatory sinking fund redemption and final payment(s) at maturity at 100% of the principal amount thereof, plus accrued interest to the redemption date, on principal payment dates which are hereafter determined in accordance with the preceding paragraph.

The Bonds will be payable solely out of and constitute a first charge against the Net Revenues (herein defined as gross revenues of the sewage works remaining after the payment of the reasonable expenses of operation, repair and maintenance excluding transfers for payment in lieu of property taxes) of the sewage works of the City, including the works authorized herein and all additions and improvements thereto and replacements thereof subsequently constructed or acquired, on a parity with the payment of the Outstanding Parity Bonds. Interest on the Bonds shall be calculated according to a 360-day calendar year containing twelve 30-day months.

Section 4. Registrar and Paying Agent. The Controller is hereby authorized to select and appoint a qualified financial institution to serve as Registrar and Paying Agent for the Bonds and the BANs, which Registrar is hereby charged with the responsibility of authenticating the Bonds (the "Registrar" or "Paying Agent"). The Controller is hereby authorized to enter into such agreements or understandings with such institution as will enable the institution to perform the services required of a Registrar and Paying Agent. The Controller is further authorized to pay such fees as the institution may charge for the services it provides as Registrar and Paying Agent, and such fees may be paid from the Sewage Works Sinking Fund established to pay the principal of and interest on the Bonds as fiscal agency charges. As to the BANs and as to the Bonds, if sold to a purchaser that does not object to such designation, the Controller may serve as Registrar

and Paying Agent and is, in such case, hereby charged with the duties of a Registrar and Paying Agent.

The principal of the Bonds shall be payable at the principal office of the Paying Agent and all payments of interest on the Bonds shall be paid by check mailed one business day prior to the interest payment date to the registered owners thereof, as of the fifteenth day of the month preceding each payment (the "Record Date"), at the addresses as they appear on the registration books kept by the Registrar or at such other address as is provided to the Paying Agent in writing by such registered owner on or before such Record Date. If payment of principal or interest is made to a depository, payment shall be made by wire transfer on the payment date in same-day funds. If the payment date occurs on a date when financial institutions are not open for business, the wire transfer shall be made on the next succeeding business day. The Paying Agent shall be instructed to wire transfer payments by 1:00 p.m. (New York City time) so such payments are received at the depository by 2:30 p.m. (New York City time).

All payments on the BANs and Bonds shall be made in any coin or currency of the United States of America, which on the date of such payment, shall be legal tender for the payment of public and private debts.

Each Bond shall be transferable or exchangeable only upon the books of the City kept for that purpose at the principal office of the Registrar, by the registered owner thereof in person, or by its attorney duly authorized in writing, upon surrender of such Bond together with a written instrument of transfer or exchange satisfactory to the Registrar duly executed by the registered owner or its attorney duly authorized in writing, and thereupon a new fully registered Bond or Bonds in the same aggregate principal amount and of the same maturity shall be executed and delivered in the name of the transferee or transferees or the registered owner, as the case may be, in exchange therefor. The costs of such transfer or exchange shall be borne by the City. The City and the Registrar and Paying Agent for the Bonds may treat and consider the person in whose name such Bonds are registered as the absolute owner thereof for all purposes including for the purpose of receiving payment of, or on account of, the principal thereof and interest due thereon.

Interest on Bonds which are authenticated on or before the Record Date which precedes the first interest payment date shall be paid from their original date. Interest on Bonds authenticated subsequent to the Record Date which precedes the first interest payment date thereon shall be paid from the interest payment date to which interest has been paid as of the date on which such Bonds are authenticated, unless a Bond is authenticated between the Record Date and the interest payment date in which case the interest shall be paid from such interest payment date.

Section 5. Redemption of BANs. The BANs are prepayable by the City, in whole or in part, on any date, upon twenty (20) days' notice to the owner of the BANs, without any premium; provided, the Controller, with the advice of the City's municipal advisor, may negotiate call protection on the BANs for a term not exceeding two (2) years and in such case such call protection shall be reflected in the purchase agreement for the BANs.

Section 6. Redemption of Bonds. The Bonds may be redeemable at the option of the City upon such dates, premiums if any but not to exceed one percent (1%) of par, and terms as determined by the Controller, with the advice of the City's municipal advisor, prior to the sale of the Bonds; provided, however, that if the Bonds are subject to optional redemption such redemption provisions shall provide that the Bonds are redeemable on thirty (30) days' notice, in whole or in part, in the order of maturity as determined by the City, and by lot within a maturity.

If any Bond is issued as a term bond, the Paying Agent shall credit against the mandatory sinking fund requirement for the Bonds maturing as term bonds, and corresponding mandatory redemption obligation, in the order determined by the City, any Bonds maturing as term bonds which have previously been redeemed (otherwise than as a result of a previous mandatory redemption requirement) or delivered to the Registrar for cancellation or purchased for cancellation by the Paying Agent and not theretofore applied as a credit against any redemption obligation. Each Bond maturing as a term bond so delivered or canceled shall be credited by the Paying Agent at 100% of the principal amount thereof against the mandatory sinking fund obligation on such mandatory sinking fund date, and any excess of such amount shall be credited on future redemption obligations, and the principal amount of the Bonds to be redeemed by operation of the mandatory sinking fund requirement shall be accordingly reduced; provided, however, the Paying Agent shall credit only such Bonds maturing as term bonds to the extent received on or before forty-five (45) days preceding the applicable mandatory redemption date.

Each $5,000 principal amount shall be considered a separate Bond for purposes of optional and mandatory redemption. If less than an entire maturity is called for redemption, the Bonds to be called for redemption shall be selected by lot by the Registrar. If some Bonds are to be redeemed by optional redemption and mandatory sinking fund redemption on the same date, the Registrar shall select by lot the Bonds for optional redemption before selecting the Bonds by lot for the mandatory sinking fund redemption.

In either case, notice of redemption shall be given not less than thirty (30) days prior to the date fixed for redemption unless such redemption notice is waived by the owner of the Bond or Bonds redeemed. Such notice shall be mailed to the address of the registered owner as shown on the registration record of the City as of the date which is forty-five (45) days prior to such redemption date. The notice shall specify the date and place of redemption and sufficient identification of the Bonds called for redemption. The place of redemption may be determined by the City. Interest on the Bonds so called for redemption shall cease on the redemption date fixed in such notice if sufficient funds are available at the place of redemption to pay the redemption price on the date so named.

Section 7. Book-Entry Provisions. The City may, upon the advice of its municipal advisor, have the Bonds held by a central depository system pursuant to an agreement between the City and The Depository Trust Company, New York, New York (the "DTC") and have transfers of the Bonds effected by book-entry on the books of the central depository system. In such case, the Bonds shall be issued in the name of Cede & Co., as nominee for DTC, as registered owner of the Bonds, and held in the custody of DTC and the terms and conditions of this Section 7 shall apply.

If the Bonds are held by DTC, a single certificate will be issued and delivered to DTC for each maturity of the Bonds. The actual purchasers of the Bonds ("Beneficial Owners") will not receive physical delivery of the Bond certificates except as provided herein. Beneficial Owners are expected to receive a written confirmation of their purchase providing details of each Bond acquired. For so long as DTC shall continue to serve as securities depository for the Bonds as provided herein, all transfers of beneficial ownership interests will be made by book-entry only, and no investor or other party purchasing, selling or otherwise transferring beneficial ownership of the Bonds is to receive, hold, or deliver any Bond certificate.

For every transfer and exchange of the Bonds, the Beneficial Owner may be charged a sum sufficient to cover such Beneficial Owner's allocable share of any tax, fee, or other governmental charge that may be imposed in relation thereto. Bond certificates are required to be delivered to and registered in the name of the Beneficial Owner, under the following circumstances:

(i) DTC determines to discontinue providing its service with respect to the Bonds (such a determination may be made at any time by giving thirty (30) days' notice to the City and the Registrar and discharging its responsibilities with respect thereto under applicable law), or

(ii) the City determines that continuation of the system of book-entry transfers through DTC (or a successor securities depository) is not in the best interests of the Beneficial Owners.

The City and the Registrar will recognize DTC or its nominee as the holder of the Bonds for all purposes, including notices and voting. The City and the Registrar covenant and agree, so long as DTC shall continue to serve as securities depository for the Bonds, to meet the requirements of DTC with respect to required notices and other provisions of a Letter of Representations between the City and DTC. If necessary to comply with the terms and provisions of the Letter of Representations, a supplemental ordinance shall be adopted to amend this ordinance as necessary.

The Registrar is authorized to rely conclusively upon a certificate furnished by DTC and corresponding certificates from DTC participants and indirect participants as to the identity of, and the respective principal amount of Bonds beneficially owned by, the Beneficial Owner or Beneficial Owners.

The City may, upon the advice of its municipal advisor, have the BANs held in the custody of DTC. In such case, the aforementioned terms and conditions of this Section 7 shall apply to the BANs.

Section 8. Execution of Bonds and BANs; Pledge of Net Revenues to Bonds. The BANs and Bonds shall be signed in the name of the City by the manual or facsimile signature of the Mayor of the City (the "Mayor"), countersigned by the manual or facsimile signature of the Controller, and attested by the manual or facsimile signature of the Clerk, who shall affix the seal

of said City to each of said Bonds and BANs manually or shall have the seal imprinted or impressed thereon by facsimile. These officials, by the signing of a Signature and No Litigation Certificate, shall adopt as and for their own proper signatures their facsimile signatures appearing on said Bonds and BANs. In case any officer whose signature or facsimile signature appears on the Bonds or BANs shall cease to be such officer before the delivery of the Bonds or BANs, the signature of such officer shall nevertheless be valid and sufficient for all purposes the same as if such officer had remained in office until such delivery. The Bonds shall also be authenticated by the manual signature of an authorized representative of the Registrar and no Bond shall be valid or become obligatory for any purpose until the certificate of authentication thereon has been so executed.

The Bonds, and any bonds ranking on a parity therewith, as to both principal and interest, shall be payable from and secured by an irrevocable pledge of and shall constitute a first charge upon the Net Revenues of the sewage works of the City, on a parity with the payment of the Outstanding Parity Bonds. The City shall not be obligated to pay said Bonds or the interest thereon except from the Net Revenues of said works, and said Bonds shall not constitute an indebtedness of the City within the meaning of the provisions and limitations of the constitution of the State of Indiana. Said Bonds and BANs shall have all of the qualities of negotiable instruments under the laws of the State of Indiana subject to the provisions for registration herein.

Section 9. Form of Bonds. The form and tenor of the Bonds shall be substantially as follows, all blanks to be filled in properly and all necessary additions and deletions to be made prior to delivery thereof:

*Form of Bond*

[Unless this Bond is presented by an authorized representative of The Depository Trust Company to the Registrar or its agent for registration or transfer, exchange or payment, and any bond issued is registered in the name of Cede & Co. or such other name as requested by an authorized representative of The Depository Trust Company and any payment is made to Cede & Co., ANY TRANSFER, PLEDGE OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL since the registered owner hereof, Cede & Co., has an interest herein.]

No. _____

UNITED STATES OF AMERICA

STATE OF INDIANA COUNTY OF TIPPECANOE

CITY OF WEST LAFAYETTE
SEWAGE WORKS REVENUE BOND, SERIES 202_ _

[Maturity Date] [Interest Rate] [Original Date] [Authentication Date] [CUSIP]

Registered Owner:

Principal Sum:

The City of West Lafayette, Indiana (the "City"), in Tippecanoe County, State of Indiana, for value received, hereby promises to pay to the Registered Owner (named above) or registered assigns, solely out of the special revenue fund hereinafter referred to, the Principal Sum set forth above on the Maturity Date set forth above (unless this Bond be subject to and shall have been duly called for redemption and payment as provided for herein), and to pay interest hereon until the Principal Sum shall be fully paid at the rate per annum specified above from the interest payment date to which interest has been paid next preceding the Authentication Date of this Bond unless this Bond is authenticated after the fifteenth day of the month preceding an interest payment date and on or before such interest payment date in which case it shall bear interest from such interest payment date, or unless this Bond is authenticated on or before _____ 15, 202_, in which case it shall bear interest from the Original Date, which interest is payable semiannually on the first days of January and July of each year, beginning on _____ 1, 202_. Interest shall be calculated according to a 360-day calendar year containing twelve 30-day months.

The principal of this Bond is payable at the principal office of _____ (the "Registrar" or "Paying Agent"), in the _____of _____, Indiana. All payments of interest on this Bond shall be paid by check mailed one business day prior to the interest payment date to the registered owner hereof, as of the fifteenth day of the month preceding such payment, at the address as it appears on the registration books kept by the Registrar or at such other address as is provided to the Paying Agent in writing by the registered owner. If payment of principal or interest is made to a depository, payment shall be made by wire transfer on the payment date in same-day funds. If the payment date occurs on a date when financial institutions are not open for business, the wire transfer shall be made on the next succeeding business day. The Paying Agent shall wire transfer payments by 1:00 p.m. (New York City time) so such payments are received at the depository by 2:30 p.m. (New York City time). All payments on the Bond shall be made in any coin or currency of the United States of America, which on the dates of such payment, shall be legal tender for the payment of public and private debts.

This Bond shall not constitute an indebtedness of the City of West Lafayette, Indiana, within the meaning of the provisions and limitations of the constitution of the State of Indiana, and the City shall not be obligated to pay this Bond or the interest hereon except from the special fund provided from the Net Revenues.

This Bond is one of an authorized issue of Bonds of the City of West Lafayette, Indiana, of like tenor and effect, except as to numbering, interest rate, and dates of maturity, in the total amount of _____ Dollars ($_____) for this series (the "Bonds"), numbered from 1 up, issued for the purpose of providing funds to be applied on the cost of the construction of additions and improvements to the City's sewage works, [to refund interim notes issued in

anticipation of the Bonds,][capitalized interest] and to pay costs of issuance of the Bonds[, including a premium for [municipal bond insurance], as authorized by an Ordinance adopted by the Common Council of the City of West Lafayette, Indiana, on the ___ day of _____, 2024, entitled "AN ORDINANCE CONCERNING THE CONSTRUCTION OF ADDITIONS AND IMPROVEMENTS TO THE SEWAGE WORKS OF THE CITY OF WEST LAFAYETTE, INDIANA, THE ISSUANCE OF REVENUE BONDS TO PROVIDE THE COST THEREOF, THE COLLECTION, SEGREGATION AND DISTRIBUTION OF THE REVENUES OF SAID SEWAGE WORKS, THE SAFEGUARDING OF THE INTERESTS OF THE OWNERS OF SAID REVENUE BONDS, OTHER MATTERS CONNECTED THEREWITH, INCLUDING THE ISSUANCE OF NOTES IN ANTICIPATION OF BONDS, AND REPEALING ORDINANCES INCONSISTENT HEREWITH" (the "Ordinance"), and in strict compliance with the provisions of Indiana Code 36-9-23, as amended (the "Act"), as in effect on the issue date of the Bonds.

[The Bonds shall be initially issued in a book entry system by The Depository Trust Company ("DTC"). The provisions of this Bond and of the Ordinance are subject in all respect to the provisions of the Letter of Representations between the City and DTC, or any substitute agreement affecting such book entry system under DTC.]

Pursuant to the provisions of said Act and said Ordinance, the principal and interest of this Bond and all other Bonds of said issue, and any bonds hereafter issued on a parity therewith, are payable solely from the Sewage Works Sinking Fund (continued by the Ordinance) to be provided from the Net Revenues (defined as the gross revenues remaining after the payment of the reasonable expenses of operation, repair and maintenance excluding transfers for payment in lieu of property taxes) of the sewage works of the City, including the works authorized under the Ordinance to be acquired and constructed and all additions and improvements thereto and replacements thereof subsequently constructed or acquired. The payment of this Bond ranks on a parity with the payment of the Outstanding Parity Bonds (as defined in the Ordinance). The City reserves the right to issue additional bonds on a parity with this Bond and the issue of which it is a part, as provided in the Ordinance.

The City of West Lafayette, Indiana irrevocably pledges the entire Net Revenues of said sewage works to the prompt payment of the principal of and interest on the Bonds authorized by said Ordinance, of which this is one, and any bonds ranking on a parity therewith, including the Outstanding Parity Bonds, to the extent necessary for that purpose, and covenants that it will cause to be fixed, maintained and collected such rates and charges for service rendered by said works as are sufficient in each year for the payment of the proper and reasonable expenses of operation, repair and maintenance of said works and for the payment of the sums required to be paid into said Sinking Fund under the provisions of the Act and the Ordinance. If the City or the proper officers of the City shall fail or refuse to so fix, maintain and collect such rates or charges, or if there be a default in the payment of the interest on or principal of this Bond, the owner of this Bond shall have all of the rights and remedies provided for in the Act, including the right to have a receiver appointed to administer the works and to charge and collect rates sufficient to provide for the payment of this Bond and the interest hereon.

The City of West Lafayette, Indiana further covenants that it will set aside and pay into its Sewage Works Sinking Fund a sufficient amount of the Net Revenues of said works to meet (a) the interest on all bonds which by their terms are payable from the revenues of the sewage works, as such interest shall fall due, (b) the necessary fiscal agency charges for paying the bonds and interest, (c) the principal of all bonds which by their terms are payable from the revenues of the sewage works, as such principal shall fall due, and (d) an additional amount to [create and] maintain the reserve required by the Ordinance. Such required payments shall constitute a first charge upon all the Net Revenues of said works, on a parity with the payment of the Outstanding Parity Bonds.

The Bonds of this issue maturing on July 1, 20__, and thereafter, are redeemable at the option of the City on _____1, 20__, or any date thereafter, on thirty (30) days' notice, in whole or in part, in the order of maturity as determined by the City and by lot within a maturity, at face value [together with the following premiums:

_% if redeemed on _____ 1, 20__ or thereafter
on or before _____, 20__;
_% if redeemed on _____1, 20__ or thereafter
on or before _____, 20__;
0% if redeemed on _____1, 20__, or thereafter
prior to maturity;]

plus in each case accrued interest to the date fixed for redemption.

[The Bonds maturing on July 1, _____ are subject to mandatory sinking fund redemption prior to maturity, at a redemption price equal to the principal amount thereof plus accrued interest, on July 1 in the years and in the amounts set forth below:

| Year | Amount |
|---|---|

*Final Maturity]

Each Five Thousand Dollar ($5,000) principal amount shall be considered a separate bond for purposes of optional [and mandatory] redemption. If less than an entire maturity is called for redemption, the Bonds to be called for redemption shall be selected by lot by the Registrar. [If some Bonds are to be redeemed by optional redemption and mandatory sinking fund redemption on the same date, the Registrar shall select by lot the Bonds for optional redemption before selecting the Bonds by lot for the mandatory sinking fund redemption.]

Notice of redemption shall be mailed to the address of the registered owner as shown on the registration record of the City, as of the date which is forty-five (45) days prior to such redemption date, not less than thirty (30) days prior to the date fixed for redemption. The notice shall specify the date and place of redemption and sufficient identification of the Bonds called for redemption. The place of redemption may be determined by the City. Interest on the Bonds

so called for redemption shall cease on the redemption date fixed in such notice, if sufficient funds are available at the place of redemption to pay the redemption price on the date so named.

If this Bond shall not be presented for payment or redemption on the date fixed therefor, the City may deposit in trust with its depository bank, an amount sufficient to pay such Bond or the redemption price, as the case may be, and thereafter the registered owner shall look only to the funds so deposited in trust with said bank for payment and the City shall have no further obligation or liability in respect thereto.

This Bond is transferable or exchangeable only upon the books of the City kept for that purpose at the office of the Registrar, by the registered owner hereof in person, or by its attorney duly authorized in writing, upon surrender of this Bond together with a written instrument of transfer or exchange satisfactory to the Registrar duly executed by the registered owner or its attorney duly authorized in writing, and thereupon a new fully registered Bond or Bonds in the same aggregate principal amount and of the same maturity, shall be executed and delivered in the name of the transferee or transferees or to the registered owner, as the case may be, in exchange therefor. The City, the Registrar and any paying agent for this Bond may treat and consider the person in whose name this Bond is registered as the absolute owner hereof for all purposes including for the purpose of receiving payment of, or on account of, the principal hereof and interest due hereon.

This Bond is subject to defeasance prior to redemption or payment as provided in the Ordinance referred to herein. THE OWNER OF THIS BOND, BY THE ACCEPTANCE HEREOF, HEREBY AGREES TO ALL THE TERMS AND PROVISIONS CONTAINED IN THE ORDINANCE. The Ordinance may be amended without the consent of the owners of the Bonds as provided in the Ordinance.

The Bonds maturing in any one year are issuable only in fully registered form in the denomination of _____ Dollars ($_____) [or][and] any [$5,000] integral multiple [in excess] thereof not exceeding the aggregate principal amount of the Bonds maturing in such year.

It is hereby certified and recited that all acts, conditions and things required to be done precedent to and in the preparation and complete execution, issuance and delivery of this Bond have been done and performed in regular and due form as provided by law.

This Bond shall not be valid or become obligatory for any purpose until the certificate of authentication hereon shall have been executed by an authorized representative of the Registrar.

IN WITNESS WHEREOF, the City of West Lafayette, in Tippecanoe County, Indiana, has caused this Bond to be executed in its corporate name by the manual or facsimile signature of its Mayor, countersigned by the manual or facsimile signature of the Controller of the City, its corporate seal to be hereunto affixed, imprinted or impressed by any means and attested manually or by facsimile by its Clerk.

CITY OF WEST LAFAYETTE, INDIANA

By: _____
Mayor

[SEAL]

Countersigned:

By: _____
Controller

Attest:

_____
Clerk

REGISTRAR'S CERTIFICATE OF AUTHENTICATION

It is hereby certified that this Bond is one of the Bonds described in the Ordinance.

_____,
as Registrar

By:_____
Authorized Representative

[MUNICIPAL BOND INSURANCE LEGEND]

ASSIGNMENT

FOR VALUE RECEIVED the undersigned hereby sells, assigns and transfers unto _____, the within Bond and all rights thereunder, and hereby irrevocably constitutes and appoints _____, attorney, to transfer the within Bond in the books kept for the registration thereof with full power of substitution in the premises.

Dated:_____

| | |
|---|---|
| NOTICE: Signature(s) must be guaranteed by an eligible guarantor institution participating in a Securities Transfer Association recognized signature guarantee program. | NOTICE: The signature to this assignment must correspond with the name as it appears on the face of the within Bond in every particular, without alteration or enlargement or any change whatsoever. |

*End of Bond Form*

Section 10. Preparation and Sale of BANs and Bonds; Official Statement; Investment Letter; Rating; Municipal Bond Insurance. The Controller is hereby authorized and directed to have said BANs and Bonds prepared. The Mayor, the Controller and the Clerk of the City are hereby authorized and directed to execute said BANs and Bonds in the form and manner herein provided. The Controller is hereby authorized and directed to deliver said BANs and Bonds to the respective purchasers thereof after sale made in accordance with the provisions of this ordinance, provided that at the time of said delivery the Controller shall collect the full amount which the respective purchasers have agreed to pay therefor, which amount shall not be less than 99.0% of the par value of said BANs and not less than 99.0% of the par value of said Bonds, as the case may be. The City may receive payment for the Bonds and BANs in installments. The Bonds herein authorized, as and to the extent paid for and delivered to the purchaser, shall be the binding special revenue obligations of the City, payable out of the Net Revenues of the City's sewage works to be set aside into the Sewage Works Sinking Fund as herein provided. The proceeds derived from the sale of the Bonds shall be and are hereby set aside for application on the cost of the Project hereinbefore referred to, the refunding of the BANs, if issued, capitalized interest, if necessary, and the expenses necessarily incurred in connection with the BANs and Bonds. The proper officers of the City are hereby directed to draw all proper and necessary warrants, and to do whatever acts and things which may be necessary to carry out the provisions of this ordinance.

The preparation and distribution of an official statement (preliminary and final) on behalf of the City for each series of the Bonds and BANs is hereby authorized. The Mayor and Controller are hereby authorized and directed to execute any such preliminary official statement on behalf of the City in a form consistent with this ordinance and are further authorized to designate any such preliminary official statement as "nearly final" for purposes of Rule 15c2-12 of the Securities and Exchange Commission (the "Rule"). If the Bonds or BANs will be sold to the Indiana Bond Bank, the Mayor and Controller are hereby authorized to provide information and materials to the Indiana Bond Bank relating to the City, its sewage works and the Bonds or BANs, as the case may be (the "City Material"), for inclusion in any official statement relating to any financing of the Indiana Bond Bank the proceeds of which will be used to acquire the Bonds or BANs. The Mayor and Controller are further authorized to deem any such City Material as "nearly final" for purposes of the Rule.

Alternatively, in lieu of preparing and distributing an official statement, the City may obtain a sophisticated investment letter from the purchaser of the Bonds or BANs at the time of delivery of the Bonds or BANs which satisfies applicable state and federal securities laws.

The Controller, with the advice of the City's municipal advisor, is hereby authorized to obtain one or more ratings for the Bonds if such rating or ratings will facilitate the sale of the Bonds.

In the event the municipal advisor to the City certifies to the City that it would be economically advantageous for the City to obtain bond insurance for the Bonds, the City hereby authorizes the purchase of such bond insurance. In such case, the Mayor and the Controller are hereby authorized to execute and deliver all agreements with the provider of the bond insurance to the extent necessary to comply with the terms of such bond insurance and the commitment to issue such bond insurance. The acquisition of bond insurance is hereby deemed economically advantageous if the difference between the present value of (i) the total debt service on the Bonds if issued without the bond insurance and (ii) the total debt service on the Bonds if issued with the bond insurance, is greater than the cost of the premium for the bond insurance. The cost of obtaining bond insurance shall be considered as a part of the cost of issuance of the Bonds and may be paid out of the proceeds of the Bonds or out of other funds of the sewage works.

Section 11. Sale of Bonds. As determined by the Controller, with the advice of the City's municipal advisor, the Bonds may be sold by either a competitive sale or a negotiated sale.

If the Bonds are sold at a competitive sale, the Controller shall cause to be published either (i) a notice of such sale in the *Journal and Courier*, or any other newspaper published in Tippecanoe County, Indiana, with general circulation in the City, in such manner as advised by Bond Counsel (as hereinafter defined), or (ii) a notice of intent to sell in the *Journal and Courier* and a newspaper published in Indianapolis, Indiana, all in accordance with IC 5-1-11 and IC 5-3-1. A notice of sale may also be published one time in a newspaper published in Indianapolis, Indiana, and a notice or summary notice may also be published in *The Bond Buyer* in New York, New York. The notice shall state the character and amount of the Bonds, the maximum rate of interest thereon, the terms and conditions upon which bids will be received and the sale made, and such other information as the Controller and the attorneys employed by the City, including Bond Counsel, shall deem advisable and any summary notice may contain any information deemed so advisable. The notice may provide, among other things, that the successful bidder will be required to assist the City in establishing the initial issue price of the Bonds, that each bid shall be accompanied by a certified or cashier's check in an amount equal to one percent (1%) of the principal amount of the Bonds described in the notice and that in the event the successful bidder shall fail or refuse to accept delivery of the Bonds and pay for the same as soon as the Bonds are ready for delivery, or at the time fixed in the notice of sale, then said check and the proceeds thereof shall be the property of the City and shall be considered as its liquidated damages on account of such default; that bidders for said Bonds will be required to name the rate or rates of interest which the Bonds are to bear, not exceeding the maximum rate hereinbefore fixed, and that such interest rate or rates shall be in multiples of one-eighth (1/8), one-twentieth (1/20) or one-hundredth (1/100) of one percent (1%). Bids may be received electronically

through PARITY or such other electronic bidding service acceptable to the Controller, with the advice of the City's municipal advisor. No conditional bid or bid for less than ninety-nine percent (99%) of the par value of the Bonds will be considered. The opinion of Bose McKinney & Evans LLP, nationally recognized bond counsel of Indianapolis, Indiana ("Bond Counsel"), approving the legality of said Bonds, will be furnished to the purchaser at the expense of the City.

In the case of a competitive sale of the Bonds, the Bonds shall be awarded by the Controller to the best bidder who has submitted its bid in accordance with the terms of this ordinance and the notice of sale. The best bidder will be the one who offers the lowest net interest cost to the City, to be determined by computing the total interest on all of the Bonds to their maturities, adding thereto the discount bid, if any, and deducting the premium bid, if any. The right to reject any and all bids shall be reserved. If an acceptable bid is not received on the date of sale, the sale may be continued from day to day thereafter without further advertisement for a period of thirty (30) days, during which time no bid which provides a higher net interest cost to the City than the best bid received at the time of the advertised sale will be considered.

As an alternative to public sale, the Controller may negotiate the sale of said Bonds to a purchaser selected by the Controller, with the advice of the City's municipal advisor. In such case, the Mayor and the Controller are hereby authorized to execute a Bond Purchase Agreement with the purchaser with terms conforming to this ordinance and sell such Bonds upon such terms as are acceptable to the Mayor and the Controller consistent with the terms of this ordinance.

Section 12. Use of Proceeds. The accrued interest received at the time of the delivery of the Bonds, if any, shall be deposited in the Sewage Works Sinking Fund. If there is any premium on the Bonds, such premium shall be deposited by the Controller, with the advice of the City's municipal advisor, in either the hereinafter described Construction Account or in the Sewage Works Sinking Fund. The remaining proceeds from the sale of the Bonds, to the extent not used to refund BANs or fund a reserve for the Bonds, and BAN proceeds shall be deposited in a bank or banks which are legally designated depositories for the funds of the City, in a special account or accounts to be designated as the "City of West Lafayette, Sewage Works Construction Account" (the "Construction Account"). All funds deposited to the credit of said Sewage Works Sinking Fund or Construction Account shall be deposited, held, secured or invested in accordance with the laws of the State of Indiana relating to the depositing, holding, securing or investing of public funds, including particularly IC 5-13, and the acts amendatory thereof and supplemental thereto. The funds in the Construction Account shall be expended only for the purpose of paying the cost of the Project, refunding the BANs, if issued, capitalized interest on the BANs or Bonds, if necessary, or as otherwise required by the Act or for the expenses of issuance of the Bonds or BANs. The cost of obtaining the legal services of Bose McKinney & Evans LLP as Bond Counsel shall be considered as a part of the cost of the Project on account of which the BANs and Bonds are issued.

Any balance or balances remaining unexpended in such special account or accounts after completion of the Project, which are not required to meet unpaid obligations incurred in connection with such Project, shall either (1) be paid into the Sewage Works Sinking Fund and

used solely for the purposes thereof or (2) be used for the same purpose or type of project for which the Bonds were originally issued, all in accordance with IC 5-1-13, as amended and supplemented.

The City hereby ratifies and confirms its Reimbursement Resolution declaring its "official intent", as such term is used in the Reimbursement Regulations, to reimburse the City's advances to the Project, such advances from the City's General Fund or Improvement Fund (as hereinafter defined), from proceeds of the BANs or the Bonds herein authorized by this ordinance. The City reasonably expects to make such advances for the costs of the Project.

In the event the City receives a certificate from the Controller of the City in accordance with IC 5-1-13, as amended and supplemented, declaring that there are surplus proceeds from any of the Outstanding Parity Bonds, such surplus proceeds, if any, are hereby authorized to be applied to the costs of the Project and shall in such case be deposited to the Construction Account for such purpose.

Section 13. Revenue Fund. There is hereby continued the "Revenue Fund" (the "Revenue Fund"). All income and revenues derived from the operation of the sewage works and from the collection of sewer rates and charges, including all revenues from storm water and garbage/waste collection charges, shall be deposited in the Revenue Fund. Out of these revenues, the proper and reasonable expenses of operation, repair and maintenance of the works shall be paid, the principal and interest of all bonds and fiscal agency charges of registrars and paying agents shall be paid, the hereinafter described Reserve Account shall be funded, and the costs of replacements, extensions, additions and improvements shall be paid.

Section 14. Operation and Maintenance Fund. The "Operation and Maintenance Fund" (the "Operation and Maintenance Fund") is hereby continued. On the last day of each calendar month, revenues of the sewage works shall be transferred from the Revenue Fund to the Operation and Maintenance Fund so that the balance maintained in this fund shall be sufficient to pay the expenses of operation, repair and maintenance of the sewage works for the then next succeeding two (2) calendar months. The moneys credited to this fund shall be used for the payment of the reasonable and proper operation, repair and maintenance expenses of the sewage works on a day-to-day basis, but none of the moneys in the Operation and Maintenance Fund shall be used for payment in lieu of property taxes, depreciation, replacements, improvements, extensions or additions. Any moneys in said fund may be transferred to the Sewage Works Sinking Fund if necessary to prevent a default in the payment of principal of or interest on the outstanding bonds of the sewage works.

Section 15. Sewage Works Sinking Fund. There is hereby continued a sinking fund for the payment of the principal of and interest on revenue bonds which by their terms are payable from the Net Revenues of the sewage works, and the payment of any fiscal agency charges in connection with the payment of bonds, which fund is designated the "Sewage Works Sinking Fund" (the "Sinking Fund"). There shall be set aside and deposited in the Sinking Fund, as available, and as provided below, a sufficient amount of the Net Revenues of the sewage works to meet the requirements of the Bond and Interest Account and the Reserve Account hereby

continued in the Sinking Fund. Such payments shall continue until the balances in the Bond and Interest Account and the Reserve Account equal the principal of and interest on all of the then outstanding bonds of the sewage works to their final maturity.

(a) Bond and Interest Account. There is hereby continued, within said Sinking Fund, the "Bond and Interest Account". After making the credit to the Operation and Maintenance Fund, there shall be credited on the last day of each calendar month from the Revenue Fund to the Bond and Interest Account an amount of the Net Revenues equal to (i) at least one-sixth (1/6) of the interest on all then outstanding bonds payable on the then next succeeding interest payment date and (ii) at least one-twelfth (1/12) of the principal of all then outstanding bonds payable on the then next succeeding principal payment date, until the amount of interest and principal payable on the then next succeeding interest and principal payment dates shall have been so credited. There shall similarly be credited to the account any amount necessary to pay the bank fiscal agency charges for paying interest on outstanding bonds as the same become payable. The City shall, from the sums deposited in the Sinking Fund and credited to the Bond and Interest Account, remit promptly to the registered owner or to the bank fiscal agency sufficient moneys to pay the interest and principal on the due dates thereof together with the amount of bank fiscal agency charges.

(b) Reserve Account. There is hereby continued, within the Sinking Fund, the Reserve Account (the "Reserve Account"). On the date of delivery of the Bonds, the City may deposit funds on hand, Bond proceeds, or a combination thereof into the Reserve Account. The balance to be maintained in the Reserve Account shall equal but not exceed the least of (i) the maximum annual debt service on the Outstanding Parity Bonds, the Bonds and any Parity Bonds, (ii) 125% of average annual debt service on the Outstanding Parity Bonds, the Bonds and any Parity Bonds or (iii) 10% of the proceeds of the Outstanding Parity Bonds, the Bonds and any Parity Bonds (the "Reserve Requirement"); provided, however, that so long as any of the Outstanding Parity Bonds are held by the Authority, the Reserve Requirement shall be as described in (i) above. If the initial deposit into the Reserve Account does not cause the balance therein to equal the Reserve Requirement or if no deposit is made, an amount of Net Revenues shall be credited to the Reserve Account on the last day of each calendar month until the balance therein equals the Reserve Requirement. The monthly deposits shall be equal in amount and sufficient to accumulate the Reserve Requirement within five (5) years of the date of delivery of the Bonds.

The Reserve Account shall constitute the margin for safety and a protection against default in the payment of principal of and interest on the Outstanding Parity Bonds, the Bonds and any Parity Bonds, and the moneys in the Reserve Account shall be used to pay current principal and interest on the Outstanding Parity Bonds, the Bonds and any Parity Bonds, to the extent that moneys in the Bond and Interest Account are insufficient for that purpose. Any deficiency in the balance maintained in the Reserve Account shall be made up from the next available Net Revenues remaining after credits into the Bond and Interest Account. Any moneys in the Reserve Account in excess of the Reserve Requirement shall either be transferred to the Sewage Works Improvement Fund or be used for the purchase of outstanding bonds or installments of principal of fully registered bonds.

Section 16. Improvement Fund. After meeting the requirements of the Operation and Maintenance Fund and the Sinking Fund, any excess revenues may be transferred or credited to the Sewage Works Improvement Fund (the "Improvement Fund"), hereby continued, and said fund shall be used for improvements, replacement, additions and extensions of the sewage works, and for payment in lieu of property taxes. Moneys in the Improvement Fund shall be transferred to the Sinking Fund if necessary to prevent a default in the payment of principal or interest on any outstanding bonds payable from the Sinking Fund or, if necessary, to eliminate any deficiencies in credits to or minimum balance in the Reserve Account of the Sinking Fund. Moneys in the Improvement Fund may also be transferred to the Operation and Maintenance Fund to meet unforeseen contingencies in the operation, repair and maintenance of the sewage works. The City may make payments in lieu of property taxes from the Improvement Fund to the City but only if the amounts required to be held in the Operation and Maintenance Fund and the Sinking Fund are so held after considering any such contemplated payments in lieu of property taxes. Notwithstanding anything herein to the contrary, revenues of the sewage works may only be used for purposes related to the sewage works subject only to permitted transfers to the general fund of the City representing payments in lieu of taxes as herein provided.

Section 17. Maintenance of Accounts; Investments. The Sinking Fund shall be deposited in and maintained as a separate account or accounts from all other accounts of the City. The Operation and Maintenance Fund and the Improvement Fund may be maintained in a single account, or accounts, but such account, or accounts, shall likewise be maintained separate and apart from all other accounts of the City and apart from the Sinking Fund account or accounts. All moneys deposited in the accounts shall be deposited, held and secured as public funds in accordance with the public depository laws of the State of Indiana; provided that moneys therein may be invested in obligations in accordance with the applicable laws, including particularly IC 5-13 and IC 4-4-11 (as applicable), and the acts amendatory thereof and supplemental thereto, and in the event of such investment the income therefrom shall become a part of the funds invested and shall be used only as provided in this ordinance.

Section 18. Maintenance of Books and Records. The City shall keep proper books of records and accounts, separate from all of its other records and accounts, in which complete and correct entries shall be made showing all revenues collected from said works and all disbursements made on account of the works, also all transactions relating to said works. There shall be furnished, upon written request, to any owner of the Bonds, the most recent audit report of the sewage works prepared by the State Board of Accounts. Copies of all such statements and reports shall be kept on file in the office of the Controller. Any owner of the Bonds then outstanding shall have the right at all reasonable times to inspect the works and all records, accounts, statements, audits, reports and data of the City relating to the sewage works. Such inspections may be made by representatives duly authorized by written instrument.

Section 19. Rate Covenant. The City covenants and agrees that it will establish and maintain just and equitable rates or charges for the use of and the service rendered by the sewage works, to be paid by the owner of each and every lot, parcel of real estate or building that is connected with and uses the sewage works by or through any part of the sewage system of the

City, or that in any way uses or is served by the sewage works, at a level adequate to produce and maintain sufficient revenue to provide for the proper operation, repair and maintenance of the sewage works, to comply with and satisfy all covenants contained in this ordinance and the Financial Assistance Agreements with respect to its Outstanding Parity Bonds held by the Authority, and to pay all obligations of the sewage works and of the City with respect to the sewage works. Such rates and charges shall, if necessary, be changed and readjusted from time to time so that the revenues therefrom shall always be sufficient to meet the expenses of operation, repair and maintenance of the sewage works, and the requirements of the Sinking Fund. The rates and charges so established shall apply to any and all use of such works by and service rendered to the City, and all departments thereof, and shall be paid by the City, or the various departments thereof, as the charges accrue.

Section 20. Defeasance of Bonds. If, when any of the Bonds issued hereunder shall have become due and payable in accordance with their terms or shall have been duly called for redemption or irrevocable instructions to call the Bonds or any portion thereof for redemption shall have been given, and the whole amount of the principal and the interest and the premium, if any, so due and payable upon all of the Bonds or any portion thereof and coupons then outstanding shall be paid; or (i) sufficient moneys, or (ii) direct obligations of (including obligations issued or held in book entry form on the books of) the Department of the Treasury of the United States of America, the principal of and the interest on which when due will provide sufficient moneys, shall be held in trust for such purpose, and provision shall also be made for paying all fees and expenses for the redemption, then and in that case the Bonds issued hereunder or any designated portion thereof shall no longer be deemed outstanding or entitled to the pledge of the Net Revenues of the City's sewage works.

Section 21. Additional Bond Provisions. The City reserves the right to authorize and issue additional BANs at any time ranking on a parity with the BANs. The City reserves the right to authorize and issue additional Parity Bonds, payable out of the Net Revenues of its sewage works, ranking on a parity with the Bonds, for the purpose of financing the cost of future additions, extensions and improvements to the sewage works, or to refund obligations, subject to the following conditions:

(a) All required payments into the Sinking Fund shall have been made in accordance with the provisions of this ordinance, and the interest on and principal of all bonds payable from the Net Revenues of the sewage works shall have been paid to date in accordance with their terms. The Reserve Requirement shall be satisfied for the additional Parity Bonds either at the time of delivery of the additional Parity Bonds or over a five (5) year or shorter period, in a manner which is commensurate with the requirements established in Section 15(b) of this ordinance.

(b) The Net Revenues of the sewage works in the fiscal year immediately preceding the issuance of any such Parity Bonds shall be not less than one hundred twenty-five percent (125%) of the maximum annual interest and principal requirements of the then outstanding bonds and the additional Parity Bonds proposed to be issued; or, prior to the issuance of said Parity Bonds, the sewage rates and charges shall be increased sufficiently so that said increased

rates and charges applied to the previous year's operations would have produced Net Revenues for said period equal to not less than one hundred twenty-five percent (125%) of the maximum annual interest and principal requirements of the then outstanding bonds and the additional Parity Bonds proposed to be issued. For purposes of this subsection, the records of the sewage works shall be analyzed and all showings prepared by a certified public accountant employed by the City for that purpose.

(c) The interest on the additional Parity Bonds shall be payable semiannually on the first days of January and July and the principal on, or mandatory sinking fund redemption dates for, the additional Parity Bonds shall be payable annually on July 1.

Section 22. Further Covenants. For the purpose of further safeguarding the interests of the holders of the BANs and Bonds, it is specifically provided as follows:

(a) All contracts let or otherwise entered into by the City in connection with the construction of said Project shall be done so in accordance with the laws of the State of Indiana, and all contractors shall be required to furnish bonds (e.g., payment bonds, performance bonds) in an such amount or amounts as are required by the laws of the State of Indiana for such contracts, to insure the completion of said contracts in accordance with their terms, and such contractors shall also be required to carry such employer's liability and public liability insurance as are required under the laws of the State of Indiana in the case of public contracts, and shall be governed in all respects by the laws of the State of Indiana relating to public contracts.

(b) Said Project shall be constructed under the supervision and subject to the approval of such competent engineers as shall be designated by the City. All estimates for work done or material furnished shall first be checked by the engineers and approved by the City.

(c) The City shall at all times maintain its sewage works in good condition and operate the same in an efficient manner and at a reasonable cost.

(d) So long as any of the BANs or Bonds herein authorized are outstanding, the City shall acquire and maintain insurance coverage, including fidelity bonds, to protect the sewage works and its operations. So long as any Outstanding Parity Bonds are held by the Authority, such insurance shall be acceptable to the Authority. All insurance shall be placed with responsible insurance companies qualified to do business under the laws of the State of Indiana. Insurance proceeds and condemnation awards shall be used to replace or repair the sewage works, unless the Authority consents to a different use of such proceeds or awards if any Outstanding Parity Bonds are held by the Authority.

(e) So long as any of the BANs or Bonds are outstanding, the City shall not mortgage, pledge or otherwise encumber such works or any part thereof, nor shall it sell, lease or otherwise dispose of any portion thereof except machinery, equipment or property which may become worn out, obsolete or no longer suitable for use in the sewage works. So long as any Outstanding Parity Bonds are held by the Authority, the City shall obtain the consent of the Authority prior to the disposal of any portion of the sewage works as described herein.

(f) So long as any Outstanding Parity Bonds are held by the Authority, the City shall not borrow any money, enter into any contract or agreement or incur any other liabilities in connection with the sewage works, other than for normal operating expenditures, without the prior written consent of the Authority if such undertaking would involve, commit or use the revenues of the sewage works.

(g) Except as hereinbefore provided in Section 21 hereof, so long as any of the Bonds herein authorized are outstanding, no additional bonds or other obligations pledging any portion of the revenues of said sewage works shall be authorized, executed, or issued by the City except such as shall be made subordinate and junior in all respects to the Bonds herein authorized, unless all of the Bonds herein authorized are redeemed, retired or defeased pursuant to Section 20 hereof coincidentally with the delivery of such additional bonds or other obligations.

(h) The City shall take all actions or proceedings necessary and proper, to the extent permitted by law, to require connection of all property where liquid and solid waste, sewage, night soil or industrial waste is produced with available sanitary sewers. The City shall, insofar as possible, and to the extent permitted by law, cause all such sanitary sewers to be connected with said sewage works.

(i) The provisions of this ordinance shall constitute a contract by and between the City and the owners of the Bonds and BANs herein authorized, and after the issuance of said Bonds or BANs, this ordinance shall not be repealed or amended in any respect which will adversely affect the rights of the owners of said Bonds or BANs nor shall the Common Council adopt any law, ordinance or resolution which in any way adversely affects the rights of such owners so long as any of said Bonds, BANs or the interest thereon remain unpaid. Except for the changes set forth in Section 25(a)-(g), this ordinance may be amended, however, without the consent of BAN or Bond owners, if the Common Council determines, in its sole discretion, that such amendment would not adversely affect the owners of the BANs or Bonds.

(j) The provisions of this ordinance shall be construed to create a trust in the proceeds of the sale of the Bonds and BANs herein authorized for the uses and purposes herein set forth, and the owners of the Bonds and BANs shall retain a lien on such proceeds until the same are applied in accordance with the provisions of this ordinance and of said governing Act. The provisions of this ordinance shall also be construed to create a trust in the portion of the Net Revenues herein directed to be set apart and paid into the Sinking Fund for the uses and purposes of said fund as in this ordinance set forth. The owners of said Bonds shall have all of the rights, remedies and privileges set forth in the provisions of the governing Act hereinbefore referred to, including the right to have a receiver appointed to administer said sewage works, in the event the City shall fail or refuse to fix and collect sufficient rates and charges, or shall fail or refuse to operate and maintain said system and to apply the revenues derived from the operation thereof, or if there be a default in the payment of the principal of or interest on any of the Bonds herein authorized or in the event of default in respect to any of the provisions of this ordinance or the governing Act.

Section 23. Investment of Funds. The Controller is hereby authorized to invest moneys pursuant to IC 5-1-14-3 and the provisions of this ordinance (subject to applicable requirements of federal law to insure such yield is the then current market rate) to the extent necessary or advisable to preserve the exclusion from gross income of interest on the Bonds and BANs under federal law. The Controller shall keep full and accurate records of investment earnings and income from moneys held in the funds and accounts continued or referenced herein. In order to comply with the provisions of the ordinance, the Controller is hereby authorized and directed to employ consultants or attorneys from time to time to advise the City as to requirements of federal law to preserve the tax exclusion. The Controller may pay any such fees as operating expenses of the sewage works.

Section 24. Tax Covenants. In order to preserve the exclusion of interest on the Bonds and BANs from gross income for federal income tax purposes under Section 103 of the Internal Revenue Code of 1986, as existing on the date of issuance of the Bonds or BANs, as the case may be (the "Code") and as an inducement to purchasers of the Bonds and BANs, the City represents, covenants and agrees that:

(a) The sewage works will be available for use by members of the general public. Use by a member of the general public means use by natural persons not engaged in a trade or business. No person or entity other than the City or another state or local governmental unit will use more than 10% of the proceeds of the Bonds or BANs or property financed by the Bond or BAN proceeds other than as a member of the general public. No person or entity other than the City or another state or local governmental unit will own property financed by Bond or BAN proceeds or will have any actual or beneficial use of such property pursuant to a lease, a management or incentive payment contract, arrangements such as take-or-pay or output contracts or any other type of arrangement that conveys other special legal entitlements and differentiates that person's or entity's use of such property from use by the general public, unless such uses in the aggregate relate to no more than 10% of the proceeds of the Bonds or BANs, as the case may be. If the City enters into a management contract for the sewage works, the terms of the contract will comply with Internal Revenue Service Revenue Procedure 2017-13, as it may be amended, supplemented or superseded for time to time, so that the contract will not give rise to private business use under the Code and the Regulations, unless such use in aggregate relates to no more than 10% of the proceeds of the Bonds or BANs, as the case may be.

(b) No more than 10% of the principal of or interest on the Bonds or BANs is (under the terms of the Bonds or BANs, this ordinance or any underlying arrangement), directly or indirectly, secured by an interest in property used or to be used for any private business use or payments in respect of any private business use or payments in respect of such property or to be derived from payments (whether or not to the City) in respect of such property or borrowed money used or to be used for a private business use.

(c) No more than 5% of the Bond or BAN proceeds will be loaned to any person or entity other than another state or local governmental unit. No more than 5% of the Bond or BAN

proceeds will be transferred, directly or indirectly, or deemed transferred to a nongovernmental person in any manner that would in substance constitute a loan of the Bond or BAN proceeds.

(d) The City reasonably expects, as of the date hereof, that the Bonds and BANs will not meet either the private business use test described in paragraphs (a) and (b) above or the private loan test described in paragraph (c) above during the entire term of the Bonds or BANs, as the case may be.

(e) No more than 5% of the proceeds of the Bonds or BANs will be attributable to private business use as described in (a) and private security or payments described in (b) attributable to unrelated or disproportionate private business use. For this purpose, the private business use test is applied by taking into account only use that is not related to any government use of proceeds of the issue (Unrelated Use) and use that is related but disproportionate to any governmental use of those proceeds (Disproportionate Use).

(f) The City will not take any action nor fail to take any action with respect to the Bonds or BANs that would result in the loss of the exclusion from gross income for federal tax purposes on the Bonds or BANs pursuant to Section 103 of the Code, nor will the City act in any other manner which would adversely affect such exclusion. The City covenants and agrees not to enter into any contracts or arrangements which would cause the Bonds or BANs to be treated as private activity bonds under Section 141 of the Code.

(g) It shall not be an event of default under this ordinance if the interest on any Bond or BAN is not excludable from gross income for federal tax purposes or otherwise pursuant to any provision of the Code which is not currently in effect and in existence on the date of issuance of the Bonds or BANs, as the case may be.

(h) The City represents that, if necessary, it will rebate any arbitrage profits to the United States of America in accordance with the Code.

(i) These covenants are based solely on current law in effect and in existence on the date of delivery of such Bonds or BANs, as the case may be.

Section 25. Amendments with Consent of Bondholders. Subject to the terms and provisions contained in this Section and Section 22(i), and not otherwise, the owners of not less than sixty-six and two-thirds percent (66 2/3%) in aggregate principal amount of the Bonds issued pursuant to this ordinance and then outstanding shall have the right, from time to time, anything contained in this ordinance to the contrary notwithstanding, to consent to and approve the adoption by the City of such ordinance or ordinances supplemental hereto as shall be deemed necessary or desirable by the City for the purpose of modifying, altering, amending, adding to or rescinding in any particular any of the terms or provisions contained in this ordinance, or in any supplemental ordinance; provided, however, that nothing herein contained shall permit or be construed as permitting:

(a) An extension of the maturity of the principal of or interest on any Bond issued pursuant to this ordinance; or

(b) A reduction in the principal amount of any Bond or the redemption premium or the rate of interest thereon; or

(c) The creation of a lien upon or a pledge of the revenues of the sewage works ranking prior to the pledge thereof created by this ordinance; or

(d) A preference or priority of any Bond or Bonds issued pursuant to this ordinance over any other Bond or Bonds issued pursuant to the provisions of this ordinance; or

(e) A reduction in the aggregate principal amount of the Bonds required for consent to such supplemental ordinance; or

(f) A reduction in the Reserve Requirement; or

(g) The extension of mandatory sinking fund redemption dates, if any.

If the owners of not less than sixty-six and two-thirds percent (66 2/3%) in aggregate principal amount of the Bonds outstanding at the time of adoption of such supplemental ordinance shall have consented to and approved the adoption thereof by written instrument to be maintained on file in the office of the Clerk, no owner of any Bond issued pursuant to this ordinance shall have any right to object to the adoption of such supplemental ordinance or to object to any of the terms and provisions contained therein or the operation thereof, or in any manner to question the propriety of the adoption thereof, or to enjoin or restrain the City or its officers from adopting the same, or from taking any action pursuant to the provisions thereof. Upon the adoption of any supplemental ordinance pursuant to the provisions of this section, this ordinance shall be, and shall be deemed, modified and amended in accordance therewith, and the respective rights, duties and obligations under this ordinance of the City and all owners of Bonds issued pursuant to the provisions of this ordinance then outstanding, shall thereafter be determined exercised and enforced in accordance with this ordinance, subject in all respects to such modifications and amendments. Notwithstanding anything contained in the foregoing provisions of this ordinance, the rights and obligations of the City and of the owners of the Bonds authorized by this ordinance, and the terms and provisions of the Bonds and this ordinance, or any supplemental ordinance, may be modified or altered in any respect with the consent of the City and the consent of the owners of all the Bonds issued pursuant to this ordinance then outstanding.

Section 26. Issuance of BANs. The City, having satisfied all the statutory requirements for the issuance of its Bonds, may elect to issue its BAN or BANs to a financial institution, the Indiana Bond Bank, the Authority or to any other purchaser, pursuant to a Bond Anticipation Note Purchase Agreement (the "Bond Anticipation Note Agreement") to be entered into between the City and the purchaser of the BAN or BANs. The Common Council hereby authorizes the issuance and execution of the BAN or BANs in lieu of initially issuing Bonds to provide interim

financing for the Project until permanent financing becomes available. It shall not be necessary for the City to repeat the procedures for the issuance of its Bonds, as the procedures followed before the issuance of the BAN or BANs are for all purposes sufficient to authorize the issuance of the Bonds and the use of the proceeds to repay the BAN or BANs. The Mayor and the Controller are hereby authorized and directed to execute a Bond Anticipation Note Agreement (and any amendments made from time to time) in such form or substance as they shall approve acting upon the advice of counsel. The Mayor and the Controller may also take such other actions or deliver such other certificates as are necessary or desirable in connection with the issuance of the BANs or the Bonds and the other documents needed for the financing as they deem necessary or desirable in connection therewith.

Section 27. Sewer Rates. The estimates of the rates and charges of the sewage works are set forth in the West Lafayette City Code, including but not limited to Sections 12-1 and 40-233 through 40-253, and such code sections are incorporated herein by reference.

Section 28. Continuing Disclosure. If necessary in order for the purchaser of the Bonds or BANs to comply with the Rule, the Mayor and Controller are hereby authorized to execute and deliver, in the name and on behalf of the City, an agreement by the City to comply with the requirements of a continuing disclosure undertaking by the City pursuant to subsection (b)(5) of the Rule, and any amendments thereto from time to time (the "Continuing Disclosure Agreement"). The City hereby covenants and agrees that it will comply with and carry out all of the provisions of the Continuing Disclosure Agreement.

Section 29. Tax Exemption. Notwithstanding any other provisions of this ordinance, the covenants and authorizations contained in this ordinance (the "Tax Sections") which are designed to preserve the exclusion of interest on the BANs and Bonds from gross income under federal law (the "Tax Exemption") need not be complied with if the City receives an opinion of nationally recognized bond counsel that any Tax Section is unnecessary to preserve the Tax Exemption. At the time of delivery of the BANs and Bonds, the Mayor and Controller will execute post-issuance compliance procedures with respect to the BANs and Bonds relating to continued compliance of the City with respect to the Tax Sections to preserve the Tax Exemption.

Section 30. Conflicting Ordinances. All ordinances and parts of ordinances in conflict herewith, except the ordinances authorizing the Outstanding Parity Bonds, are hereby repealed; provided, however, that this ordinance shall not be construed as adversely affecting the rights of the owners of the Outstanding Parity Bonds.

Section 31. Effective Date. This ordinance shall be in full force and effect from and after its passage and execution by the Mayor.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF _____ IN FAVOR AND _____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024, AT THE HOUR OF _____.

_____
Sana G. Clerk, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024, AT THE HOUR OF _____.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

## EXHIBIT A

*Description of Project*

The project includes a new concrete storage basin at the Wet Weather Treatment Facility to provide storage and treatment of approximately 2.5 million gallons of combined sewage that would otherwise overflow to the Wabash River. Treated flow will be disinfected and discharged while flow stored in the basin will be pumped back to the Water Resource Recovery Facility for full treatment. A new diversion structure, pump building, and chemical storage building associated with the new storage basin will also be constructed. The project is a necessary part and final phase of the City's approved Combined Sewer Overflow (CSO) Long-Term Control Plan (LTCP) to significantly reduce untreated wet-weather sewer overflows at CSO Outfall No. 007 located at the Water Resource Recovery Facility. A new Administration and Laboratory Building will be located near the facility entrance which will include additional office and storage space, an updated laboratory, and new industrial pretreatment program facilities to meet the growing needs of the wastewater utility staff. The project includes all items described above as well as all necessary appurtenances in connection therewith.

4790686v4

**ORDINANCE NO. _____**

AN ORDINANCE CONCERNING THE CONSTRUCTION OF ADDITIONS AND IMPROVEMENTS TO THE SEWAGE WORKS OF THE CITY OF WEST LAFAYETTE, INDIANA, THE ISSUANCE OF REVENUE BONDS TO PROVIDE THE COST THEREOF, THE COLLECTION, SEGREGATION AND DISTRIBUTION OF THE REVENUES OF SAID SEWAGE WORKS, THE SAFEGUARDING OF THE INTERESTS OF THE OWNERS OF SAID REVENUE BONDS, OTHER MATTERS CONNECTED THEREWITH, INCLUDING THE ISSUANCE OF NOTES IN ANTICIPATION OF BONDS, AND REPEALING ORDINANCES INCONSISTENT HEREWITH

WHEREAS, the City of West Lafayette, Indiana (the "City") has heretofore established, constructed and financed its sewage works, and now owns and operates said sewage works pursuant to Indiana Code 36-9-23, as in effect on the issue date of the bonds authorized herein, and other applicable laws (the "Act")(all references hereinafter to the Indiana Code are designated as "IC" followed by the applicable code section or sections); and

WHEREAS, the Common Council of the City (the "Common Council") finds that certain improvements and extensions to said works are necessary; that plans, specifications and estimates have been prepared and filed by Wessler Engineering, the engineers employed by the City for the construction of said improvements and extensions (as more fully set forth in summary fashion in Exhibit A hereto and made a part hereof) (the "Project"), which plans and specifications have been submitted to all governmental authorities having jurisdiction, particularly the Indiana Department of Environmental Management, and will be approved by the aforesaid governmental authorities and are incorporated herein by reference and open for inspection at the office of the Clerk of the City as required by law; and

WHEREAS, the City will enter into one or more contracts for the construction of the Project in accordance with Indiana law, which contract or contracts will be subject to the City's determination to construct the Project and obtaining funds to pay for the Project; and

WHEREAS, based upon the information provided to the City by the engineers for the Project, the estimated costs of the Project, including capitalized interest, if necessary, engineering, municipal advisory and legal fees, is in the estimated amount not to exceed ~~Thirty-Three~~Thirty-Seven Million Five Hundred Thousand Dollars ($~~33,000,000~~37,500,000); and

WHEREAS, the Common Council finds that it is necessary to authorize the financing of the entire costs of the Project by the issuance of sewage works revenue bonds, in one or more series, in an aggregate principal amount not to exceed ~~Thirty-Three~~Thirty-Seven Million Five Hundred Thousand Dollars ($~~33,000,000~~37,500,000) and, if necessary, bond anticipation notes (the "BANs"); and

WHEREAS, the Common Council finds that there are outstanding bonds of the sewage works payable out of the Net Revenues (as hereinafter defined) thereof designated as (i) the "Sewage Works Revenue Bonds of 2012", dated October 31, 2012 (the "2012 Bonds"), now outstanding in the aggregate principal amount of Two Million Three Hundred Forty-Five Thousand Dollars ($2,345,000) and maturing annually on July 1 over a period ending July 1, 2033, (ii) the "Sewage Works Revenue Bonds, Series 2014", dated April 22, 2014 (the "2014 Bonds"), now outstanding in the aggregate principal amount of One Million Five Hundred Seventy Thousand Dollars ($1,570,000) and maturing annually on July 1 over a period ending July 1, 2029, (iii) the "Sewage Works Refunding Revenue Bonds, Series 2014", dated November 5, 2014 (the "2014 Refunding Bonds"), now outstanding in the aggregate principal amount of Three Million Eight Hundred Thirty-Five Thousand Dollars ($3,835,000) and maturing annually on July 1 over a period ending July 1, 2026, (iv) the "Sewage Works Revenue Bonds, Series 2014 B", dated December 15, 2014 (the "2014 B Bonds"), now outstanding in the aggregate principal amount of One Million Four Hundred Sixty-Five Thousand Dollars ($1,465,000) and maturing annually on July 1 over a period ending July 1, 2034, (v) the "Sewage Works Revenue Bonds, Series 2016", dated January 29, 2016 (the "2016 Bonds"), now outstanding in the aggregate principal amount of Fifteen Million Three Hundred Twenty-Five Thousand Dollars ($15,325,000) and maturing annually on July 1 over a period ending July 1, 2040, (vi) the "Sewage Works Refunding Revenue Bonds, Series 2017", dated June 7, 2017 (the "2017 Bonds"), now outstanding in the aggregate principal amount of Two Million Nine Hundred Ninety Thousand Dollars ($2,990,000) and maturing annually on July 1 over a period ending July 1, 2028, and (vii) the "Sewage Works Revenue Bonds, Series 2022", dated April 7, 2022 (the "2022 Bonds"), now outstanding in the aggregate principal amount of Seven Million Six Hundred Thirty Thousand Dollars ($7,630,000) and maturing annually on July 1 over a period ending July 1, 2042, which 2012 Bonds, 2014 Bonds, 2014 Refunding Bonds, 2014 B Bonds, 2016 Bonds, 2017 Bonds and 2022 Bonds (collectively, the "Outstanding Parity Bonds") constitute a first charge on the Net Revenues of the sewage works; and

WHEREAS, the ordinances authorizing the issuance of the Outstanding Parity Bonds permit the issuance of additional bonds ranking on a parity with the Outstanding Parity Bonds provided certain conditions can be met, and the City finds that the finances of the sewage works of the City will enable the City to meet the conditions for the issuance of additional parity bonds and that, accordingly, the revenue bonds authorized herein shall rank on a parity with the Outstanding Parity Bonds; and

WHEREAS, the bonds to be issued pursuant to this ordinance will constitute a first charge against the Net Revenues of the sewage works, on a parity with the payment of the Outstanding Parity Bonds, and are to be issued subject to the provisions of the laws of the Act and the terms and restrictions of this ordinance; and

WHEREAS, the City desires to authorize the issuance of BANs hereunder, if necessary, payable from the proceeds of sewage works revenue bonds issued hereunder and, with respect to interest only, proceeds of the BANs allocable to capitalized interest and/or Net Revenues of the

sewage works, junior and subordinate to the Outstanding Parity Bonds, the bonds herein authorized and any additional bonds issued pursuant to Section 21 hereof, and to authorize the refunding of said BANs, if issued; and

WHEREAS, on October 2, 2023, the Common Council adopted its Resolution No. 20-2023 (the "Reimbursement Resolution") authorizing the reimbursement of expenditures related to the Project from proceeds of the bonds herein authorized in accordance with Section 1.150-2 of the Treasury Regulations on Income Tax (the "Reimbursement Regulations"); and

WHEREAS, the Common Council has been advised by the City's municipal advisor that it may be economically efficient to acquire a municipal bond insurance policy for the bonds hereby authorized; and

WHEREAS, the Common Council now finds that all conditions precedent to the adoption of an ordinance authorizing the issuance of said revenue bonds and BANs have been complied with in accordance with the provisions of the Act; now, therefore,

BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, THAT:

Section 1. Authorization of Project. The City proceed with the construction of the Project pursuant to the plans and specifications therefore as prepared and filed by Wessler Engineering, the consulting engineers employed by the City for the Project, two copies of which plans and specifications are on file in the office of the Clerk of the City (the "Clerk") and open for public inspection pursuant to IC 36-1-5-4. The estimated cost for the construction of said Project, based upon the information provided to the City by its engineers for the Project, will not exceed ~~Thirty-Three~~Thirty-Seven Million Five Hundred Thousand Dollars ($~~33,000,000~~37,500,000), plus investment earnings on the BAN and bond proceeds, without further authorization of the Common Council. The terms "sewage works," "sewage works system," "works," "system," and words of like import where used in this ordinance shall be construed to mean and include the Treatment Works, as defined in the Financial Assistance Agreements between the City and the Indiana Finance Authority (the "Authority") in connection with the Outstanding Parity Bonds which are held by the Authority, and also includes the existing sewage works system, including items defined at IC 36-9-1-8, and all real estate and equipment used in connection therewith and appurtenances thereto, and all extensions, additions and improvements thereto and replacements thereof now or at any time hereafter constructed or acquired. The Project shall be constructed in accordance with the plans and specifications heretofore mentioned, which Project and plans and specifications are hereby approved. The Project shall be constructed and the BANs and bonds herein authorized shall be issued pursuant to and in accordance with the Act.

Section 2. Issuance of BANs. The City shall issue, if necessary, its BANs in one or more series for the purpose of procuring interim financing to apply on the costs of the Project, capitalized interest, if necessary, and to pay cost of issuance. The City may issue its BANs in an aggregate principal amount not to exceed ~~Thirty-Three~~Thirty-Seven Million Five Hundred Thousand Dollars ($~~33,000,000~~37,500,000) to be designated "Sewage Works Bond Anticipation

Notes, Series 202_ _", to be completed with the year in which issued and appropriate series designation. The BANs shall be sold at not less than 99.0% of their par value, numbered consecutively from 1 upward and shall be in denominations of Five Thousand Dollars ($5,000) and integral multiples thereof or One Hundred Thousand Dollars ($100,000) and integral multiples of Five Thousand Dollars ($5,000) in excess thereof, as designated in the purchase agreement for said BANs. The BANs shall be dated as of the date of delivery thereof and shall bear interest at a rate not to exceed 6.0% per annum (the exact rate or rates to be determined through negotiations with the purchaser of the BANs) payable either upon maturity or redemption. Interest on the BANs may, as determined by the Controller of the City (the "Controller"), with the advice of the City's municipal advisor, also be payable semiannually on January 1 and July 1 of each year, commencing on either the first January 1 or the first July 1 following delivery of the BANs.

The BANs will mature no later than five (5) years after their date of delivery. The BANs are subject to renewal or extension at an interest rate or rates not to exceed 6.0% per annum (the exact rate or rates to be negotiated with the purchaser of the BANs). The term of the BANs and all renewal BANs may not exceed five (5) years from the date of delivery of the initial BANs. The BANs shall be registered in the name of the purchasers thereof. Interest on the BANs shall be calculated according to a 360-day calendar year containing twelve 30-day months.

The BANs shall be issued pursuant to IC 5-1.5-8-6.1 if sold to the Indiana Bond Bank or pursuant to IC 5-1-14-5 if sold to a financial institution or any other purchaser. The City shall pledge to the payment of the principal of and interest on the BANs the proceeds from the issuance of revenue bonds pursuant to and in the manner prescribed by the Act.

Interest on the BANs may, as determined by the Controller with the advice of the City's municipal advisor, also be payable from capitalized interest and/or Net Revenues of the sewage works. Any pledge of Net Revenues of the sewage works to the payment of interest on the BANs shall be junior and subordinate to the payment of the Outstanding Parity Bonds, any bonds issued pursuant to this ordinance and any additional parity bonds issued in the future pursuant to Section 21 of this ordinance (the "Parity Bonds"). The BANs shall rank on a parity with respect to the pledge of Net Revenues of the sewage works in the event more than one (1) series of BANs is outstanding and secured, with respect to the payment of interest thereon, by the Net Revenues of the sewage works.

Section 3. Issuance of Bonds. The City shall issue its sewage works revenue bonds in one or more series in the aggregate principal amount not to exceed ~~Thirty-Three~~Thirty-Seven Million Five Hundred Thousand Dollars ($~~33,000,000~~37,500,000) to be designated "Sewage Works Revenue Bonds, Series 202_ _", to be completed with the year in which issued and appropriate series designation (the "Bonds"), for the purpose of procuring funds to apply on the costs of the Project, refunding the BANs, if issued, capitalized interest, if necessary, and costs of issuance of the Bonds including, if necessary, a premium for municipal bond insurance. If the Bonds are sold in more than one series, any sale and issuance of Bonds which follows the

issuance of the first series of Bonds hereunder shall be subject to the requirements established by Section 21 of this ordinance.

The Bonds shall be issued and sold at a price not less than 99.0% of the par value thereof. The Bonds shall be issued in fully registered form in denominations of (i) Five Thousand Dollars ($5,000) or integral multiples thereof or (ii) One Hundred Thousand Dollars ($100,000) and any integral multiple of Five Thousand Dollars ($5,000) in excess thereof, as determined by the Controller with the advice of the City's municipal advisor. The Bonds shall be numbered consecutively from 1 up and shall be originally dated as of their date of delivery. The Bonds shall bear interest at a rate or rates not exceeding 6.0% per annum (the exact rate or rates to be determined by bidding or through negotiation). The interest on the Bonds shall be payable semiannually on January 1 and July 1 in each year, commencing on either the first January 1 or the first July 1 following the date of delivery of the Bonds, as determined by the Controller, with the advice of the City's municipal advisor. The principal of the Bonds shall be payable in lawful money of the United States of America at the principal office of the Paying Agent (as hereinafter defined). The Bonds shall mature annually on July 1 of each year, or be subject to mandatory sinking fund redemption on July 1, over a period ending no later than twenty-five (25) years after the date of delivery of the Bonds. The Bonds shall mature in such amounts which as determined by the Controller prior to the sale of the Bonds, with the advice of the City's municipal advisor, will (i) produce as level annual debt service as practicable taking into account the denominations of the Bonds, (ii) produce as level annual debt service as practicable taking into account the denominations of the Bonds and the annual debt service on the Outstanding Parity Bonds or (iii) comport with the long term debt financing plan for the sewage works, as determined by the Controller, with the advice of the City's municipal advisor.

All or a portion of the Bonds may be issued as one or more term bonds, upon election of the purchaser. Such term bonds shall have a stated maturity or maturities consistent with the maturity schedule determined in accordance with the preceding paragraph, on the dates as determined by the purchaser, but in no event later than the last serial maturity date of the Bonds as determined in the preceding paragraph. The term bonds shall be subject to mandatory sinking fund redemption and final payment(s) at maturity at 100% of the principal amount thereof, plus accrued interest to the redemption date, on principal payment dates which are hereafter determined in accordance with the preceding paragraph.

The Bonds will be payable solely out of and constitute a first charge against the Net Revenues (herein defined as gross revenues of the sewage works remaining after the payment of the reasonable expenses of operation, repair and maintenance excluding transfers for payment in lieu of property taxes) of the sewage works of the City, including the works authorized herein and all additions and improvements thereto and replacements thereof subsequently constructed or acquired, on a parity with the payment of the Outstanding Parity Bonds. Interest on the Bonds shall be calculated according to a 360-day calendar year containing twelve 30-day months.

Section 4. Registrar and Paying Agent. The Controller is hereby authorized to select and appoint a qualified financial institution to serve as Registrar and Paying Agent for the Bonds and

the BANs, which Registrar is hereby charged with the responsibility of authenticating the Bonds (the "Registrar" or "Paying Agent"). The Controller is hereby authorized to enter into such agreements or understandings with such institution as will enable the institution to perform the services required of a Registrar and Paying Agent. The Controller is further authorized to pay such fees as the institution may charge for the services it provides as Registrar and Paying Agent, and such fees may be paid from the Sewage Works Sinking Fund established to pay the principal of and interest on the Bonds as fiscal agency charges. As to the BANs and as to the Bonds, if sold to a purchaser that does not object to such designation, the Controller may serve as Registrar and Paying Agent and is, in such case, hereby charged with the duties of a Registrar and Paying Agent.

The principal of the Bonds shall be payable at the principal office of the Paying Agent and all payments of interest on the Bonds shall be paid by check mailed one business day prior to the interest payment date to the registered owners thereof, as of the fifteenth day of the month preceding each payment (the "Record Date"), at the addresses as they appear on the registration books kept by the Registrar or at such other address as is provided to the Paying Agent in writing by such registered owner on or before such Record Date. If payment of principal or interest is made to a depository, payment shall be made by wire transfer on the payment date in same-day funds. If the payment date occurs on a date when financial institutions are not open for business, the wire transfer shall be made on the next succeeding business day. The Paying Agent shall be instructed to wire transfer payments by 1:00 p.m. (New York City time) so such payments are received at the depository by 2:30 p.m. (New York City time).

All payments on the BANs and Bonds shall be made in any coin or currency of the United States of America, which on the date of such payment, shall be legal tender for the payment of public and private debts.

Each Bond shall be transferable or exchangeable only upon the books of the City kept for that purpose at the principal office of the Registrar, by the registered owner thereof in person, or by its attorney duly authorized in writing, upon surrender of such Bond together with a written instrument of transfer or exchange satisfactory to the Registrar duly executed by the registered owner or its attorney duly authorized in writing, and thereupon a new fully registered Bond or Bonds in the same aggregate principal amount and of the same maturity shall be executed and delivered in the name of the transferee or transferees or the registered owner, as the case may be, in exchange therefor. The costs of such transfer or exchange shall be borne by the City. The City and the Registrar and Paying Agent for the Bonds may treat and consider the person in whose name such Bonds are registered as the absolute owner thereof for all purposes including for the purpose of receiving payment of, or on account of, the principal thereof and interest due thereon.

Interest on Bonds which are authenticated on or before the Record Date which precedes the first interest payment date shall be paid from their original date. Interest on Bonds authenticated subsequent to the Record Date which precedes the first interest payment date thereon shall be paid from the interest payment date to which interest has been paid as of the date

on which such Bonds are authenticated, unless a Bond is authenticated between the Record Date and the interest payment date in which case the interest shall be paid from such interest payment date.

Section 5. Redemption of BANs. The BANs are prepayable by the City, in whole or in part, on any date, upon twenty (20) days' notice to the owner of the BANs, without any premium; provided, the Controller, with the advice of the City's municipal advisor, may negotiate call protection on the BANs for a term not exceeding two (2) years and in such case such call protection shall be reflected in the purchase agreement for the BANs.

Section 6. Redemption of Bonds. The Bonds may be redeemable at the option of the City upon such dates, premiums if any but not to exceed one percent (1%) of par, and terms as determined by the Controller, with the advice of the City's municipal advisor, prior to the sale of the Bonds; provided, however, that if the Bonds are subject to optional redemption such redemption provisions shall provide that the Bonds are redeemable on thirty (30) days' notice, in whole or in part, in the order of maturity as determined by the City, and by lot within a maturity.

If any Bond is issued as a term bond, the Paying Agent shall credit against the mandatory sinking fund requirement for the Bonds maturing as term bonds, and corresponding mandatory redemption obligation, in the order determined by the City, any Bonds maturing as term bonds which have previously been redeemed (otherwise than as a result of a previous mandatory redemption requirement) or delivered to the Registrar for cancellation or purchased for cancellation by the Paying Agent and not theretofore applied as a credit against any redemption obligation. Each Bond maturing as a term bond so delivered or canceled shall be credited by the Paying Agent at 100% of the principal amount thereof against the mandatory sinking fund obligation on such mandatory sinking fund date, and any excess of such amount shall be credited on future redemption obligations, and the principal amount of the Bonds to be redeemed by operation of the mandatory sinking fund requirement shall be accordingly reduced; provided, however, the Paying Agent shall credit only such Bonds maturing as term bonds to the extent received on or before forty-five (45) days preceding the applicable mandatory redemption date.

Each $5,000 principal amount shall be considered a separate Bond for purposes of optional and mandatory redemption. If less than an entire maturity is called for redemption, the Bonds to be called for redemption shall be selected by lot by the Registrar. If some Bonds are to be redeemed by optional redemption and mandatory sinking fund redemption on the same date, the Registrar shall select by lot the Bonds for optional redemption before selecting the Bonds by lot for the mandatory sinking fund redemption.

In either case, notice of redemption shall be given not less than thirty (30) days prior to the date fixed for redemption unless such redemption notice is waived by the owner of the Bond or Bonds redeemed. Such notice shall be mailed to the address of the registered owner as shown on the registration record of the City as of the date which is forty-five (45) days prior to such redemption date. The notice shall specify the date and place of redemption and sufficient identification of the Bonds called for redemption. The place of redemption may be determined by the City. Interest on the Bonds so called for redemption shall cease on the redemption date

fixed in such notice if sufficient funds are available at the place of redemption to pay the redemption price on the date so named.

Section 7. Book-Entry Provisions. The City may, upon the advice of its municipal advisor, have the Bonds held by a central depository system pursuant to an agreement between the City and The Depository Trust Company, New York, New York (the "DTC") and have transfers of the Bonds effected by book-entry on the books of the central depository system. In such case, the Bonds shall be issued in the name of Cede & Co., as nominee for DTC, as registered owner of the Bonds, and held in the custody of DTC and the terms and conditions of this Section 7 shall apply.

If the Bonds are held by DTC, a single certificate will be issued and delivered to DTC for each maturity of the Bonds. The actual purchasers of the Bonds ("Beneficial Owners") will not receive physical delivery of the Bond certificates except as provided herein. Beneficial Owners are expected to receive a written confirmation of their purchase providing details of each Bond acquired. For so long as DTC shall continue to serve as securities depository for the Bonds as provided herein, all transfers of beneficial ownership interests will be made by book-entry only, and no investor or other party purchasing, selling or otherwise transferring beneficial ownership of the Bonds is to receive, hold, or deliver any Bond certificate.

For every transfer and exchange of the Bonds, the Beneficial Owner may be charged a sum sufficient to cover such Beneficial Owner's allocable share of any tax, fee, or other governmental charge that may be imposed in relation thereto. Bond certificates are required to be delivered to and registered in the name of the Beneficial Owner, under the following circumstances:

(i) DTC determines to discontinue providing its service with respect to the Bonds (such a determination may be made at any time by giving thirty (30) days' notice to the City and the Registrar and discharging its responsibilities with respect thereto under applicable law), or

(ii) the City determines that continuation of the system of book-entry transfers through DTC (or a successor securities depository) is not in the best interests of the Beneficial Owners.

The City and the Registrar will recognize DTC or its nominee as the holder of the Bonds for all purposes, including notices and voting. The City and the Registrar covenant and agree, so long as DTC shall continue to serve as securities depository for the Bonds, to meet the requirements of DTC with respect to required notices and other provisions of a Letter of Representations between the City and DTC. If necessary to comply with the terms and provisions of the Letter of Representations, a supplemental ordinance shall be adopted to amend this ordinance as necessary.

The Registrar is authorized to rely conclusively upon a certificate furnished by DTC and corresponding certificates from DTC participants and indirect participants as to the identity of,

and the respective principal amount of Bonds beneficially owned by, the Beneficial Owner or Beneficial Owners.

The City may, upon the advice of its municipal advisor, have the BANs held in the custody of DTC. In such case, the aforementioned terms and conditions of this Section 7 shall apply to the BANs.

Section 8. Execution of Bonds and BANs; Pledge of Net Revenues to Bonds. The BANs and Bonds shall be signed in the name of the City by the manual or facsimile signature of the Mayor of the City (the "Mayor"), countersigned by the manual or facsimile signature of the Controller, and attested by the manual or facsimile signature of the Clerk, who shall affix the seal of said City to each of said Bonds and BANs manually or shall have the seal imprinted or impressed thereon by facsimile. These officials, by the signing of a Signature and No Litigation Certificate, shall adopt as and for their own proper signatures their facsimile signatures appearing on said Bonds and BANs. In case any officer whose signature or facsimile signature appears on the Bonds or BANs shall cease to be such officer before the delivery of the Bonds or BANs, the signature of such officer shall nevertheless be valid and sufficient for all purposes the same as if such officer had remained in office until such delivery. The Bonds shall also be authenticated by the manual signature of an authorized representative of the Registrar and no Bond shall be valid or become obligatory for any purpose until the certificate of authentication thereon has been so executed.

The Bonds, and any bonds ranking on a parity therewith, as to both principal and interest, shall be payable from and secured by an irrevocable pledge of and shall constitute a first charge upon the Net Revenues of the sewage works of the City, on a parity with the payment of the Outstanding Parity Bonds. The City shall not be obligated to pay said Bonds or the interest thereon except from the Net Revenues of said works, and said Bonds shall not constitute an indebtedness of the City within the meaning of the provisions and limitations of the constitution of the State of Indiana. Said Bonds and BANs shall have all of the qualities of negotiable instruments under the laws of the State of Indiana subject to the provisions for registration herein.

Section 9. Form of Bonds. The form and tenor of the Bonds shall be substantially as follows, all blanks to be filled in properly and all necessary additions and deletions to be made prior to delivery thereof:

*Form of Bond*

[Unless this Bond is presented by an authorized representative of The Depository Trust Company to the Registrar or its agent for registration or transfer, exchange or payment, and any bond issued is registered in the name of Cede & Co. or such other name as requested by an authorized representative of The Depository Trust Company and any payment is made to Cede & Co., ANY TRANSFER, PLEDGE OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY

PERSON IS WRONGFUL since the registered owner hereof, Cede & Co., has an interest herein.]

No. _____

UNITED STATES OF AMERICA

STATE OF INDIANA COUNTY OF TIPPECANOE

CITY OF WEST LAFAYETTE
SEWAGE WORKS REVENUE BOND, SERIES 202_ _

[Maturity Date] [Interest Rate] [Original Date] [Authentication Date] [CUSIP]

Registered Owner:

Principal Sum:

The City of West Lafayette, Indiana (the "City"), in Tippecanoe County, State of Indiana, for value received, hereby promises to pay to the Registered Owner (named above) or registered assigns, solely out of the special revenue fund hereinafter referred to, the Principal Sum set forth above on the Maturity Date set forth above (unless this Bond be subject to and shall have been duly called for redemption and payment as provided for herein), and to pay interest hereon until the Principal Sum shall be fully paid at the rate per annum specified above from the interest payment date to which interest has been paid next preceding the Authentication Date of this Bond unless this Bond is authenticated after the fifteenth day of the month preceding an interest payment date and on or before such interest payment date in which case it shall bear interest from such interest payment date, or unless this Bond is authenticated on or before _____ 15, 202_, in which case it shall bear interest from the Original Date, which interest is payable semiannually on the first days of January and July of each year, beginning on _____ 1, 202_. Interest shall be calculated according to a 360-day calendar year containing twelve 30-day months.

The principal of this Bond is payable at the principal office of _____ (the "Registrar" or "Paying Agent"), in the _____of _____, Indiana. All payments of interest on this Bond shall be paid by check mailed one business day prior to the interest payment date to the registered owner hereof, as of the fifteenth day of the month preceding such payment, at the address as it appears on the registration books kept by the Registrar or at such other address as is provided to the Paying Agent in writing by the registered owner. If payment of principal or interest is made to a depository, payment shall be made by wire transfer on the payment date in same-day funds. If the payment date occurs on a date when financial institutions are not open for business, the wire transfer shall be made on the next succeeding business day. The Paying Agent shall wire transfer payments by 1:00 p.m. (New York City time) so such payments are received at the depository by 2:30 p.m. (New York City time). All payments on

the Bond shall be made in any coin or currency of the United States of America, which on the dates of such payment, shall be legal tender for the payment of public and private debts.

This Bond shall not constitute an indebtedness of the City of West Lafayette, Indiana, within the meaning of the provisions and limitations of the constitution of the State of Indiana, and the City shall not be obligated to pay this Bond or the interest hereon except from the special fund provided from the Net Revenues.

This Bond is one of an authorized issue of Bonds of the City of West Lafayette, Indiana, of like tenor and effect, except as to numbering, interest rate, and dates of maturity, in the total amount of _____ Dollars ($_____) for this series (the "Bonds"), numbered from 1 up, issued for the purpose of providing funds to be applied on the cost of the construction of additions and improvements to the City's sewage works, [to refund interim notes issued in anticipation of the Bonds,][capitalized interest] and to pay costs of issuance of the Bonds[, including a premium for [municipal bond insurance], as authorized by an Ordinance adopted by the Common Council of the City of West Lafayette, Indiana, on the ___ day of _____, 2024, entitled "AN ORDINANCE CONCERNING THE CONSTRUCTION OF ADDITIONS AND IMPROVEMENTS TO THE SEWAGE WORKS OF THE CITY OF WEST LAFAYETTE, INDIANA, THE ISSUANCE OF REVENUE BONDS TO PROVIDE THE COST THEREOF, THE COLLECTION, SEGREGATION AND DISTRIBUTION OF THE REVENUES OF SAID SEWAGE WORKS, THE SAFEGUARDING OF THE INTERESTS OF THE OWNERS OF SAID REVENUE BONDS, OTHER MATTERS CONNECTED THEREWITH, INCLUDING THE ISSUANCE OF NOTES IN ANTICIPATION OF BONDS, AND REPEALING ORDINANCES INCONSISTENT HEREWITH" (the "Ordinance"), and in strict compliance with the provisions of Indiana Code 36-9-23, as amended (the "Act"), as in effect on the issue date of the Bonds.

[The Bonds shall be initially issued in a book entry system by The Depository Trust Company ("DTC"). The provisions of this Bond and of the Ordinance are subject in all respect to the provisions of the Letter of Representations between the City and DTC, or any substitute agreement affecting such book entry system under DTC.]

Pursuant to the provisions of said Act and said Ordinance, the principal and interest of this Bond and all other Bonds of said issue, and any bonds hereafter issued on a parity therewith, are payable solely from the Sewage Works Sinking Fund (continued by the Ordinance) to be provided from the Net Revenues (defined as the gross revenues remaining after the payment of the reasonable expenses of operation, repair and maintenance excluding transfers for payment in lieu of property taxes) of the sewage works of the City, including the works authorized under the Ordinance to be acquired and constructed and all additions and improvements thereto and replacements thereof subsequently constructed or acquired. The payment of this Bond ranks on a parity with the payment of the Outstanding Parity Bonds (as defined in the Ordinance). The City reserves the right to issue additional bonds on a parity with this Bond and the issue of which it is a part, as provided in the Ordinance.

The City of West Lafayette, Indiana irrevocably pledges the entire Net Revenues of said sewage works to the prompt payment of the principal of and interest on the Bonds authorized by said Ordinance, of which this is one, and any bonds ranking on a parity therewith, including the Outstanding Parity Bonds, to the extent necessary for that purpose, and covenants that it will cause to be fixed, maintained and collected such rates and charges for service rendered by said works as are sufficient in each year for the payment of the proper and reasonable expenses of operation, repair and maintenance of said works and for the payment of the sums required to be paid into said Sinking Fund under the provisions of the Act and the Ordinance. If the City or the proper officers of the City shall fail or refuse to so fix, maintain and collect such rates or charges, or if there be a default in the payment of the interest on or principal of this Bond, the owner of this Bond shall have all of the rights and remedies provided for in the Act, including the right to have a receiver appointed to administer the works and to charge and collect rates sufficient to provide for the payment of this Bond and the interest hereon.

The City of West Lafayette, Indiana further covenants that it will set aside and pay into its Sewage Works Sinking Fund a sufficient amount of the Net Revenues of said works to meet (a) the interest on all bonds which by their terms are payable from the revenues of the sewage works, as such interest shall fall due, (b) the necessary fiscal agency charges for paying the bonds and interest, (c) the principal of all bonds which by their terms are payable from the revenues of the sewage works, as such principal shall fall due, and (d) an additional amount to [create and] maintain the reserve required by the Ordinance. Such required payments shall constitute a first charge upon all the Net Revenues of said works, on a parity with the payment of the Outstanding Parity Bonds.

The Bonds of this issue maturing on July 1, 20__, and thereafter, are redeemable at the option of the City on _____1, 20__, or any date thereafter, on thirty (30) days' notice, in whole or in part, in the order of maturity as determined by the City and by lot within a maturity, at face value [together with the following premiums:

_% if redeemed on _____ 1, 20__ or thereafter
on or before _____, 20__;
_% if redeemed on _____1, 20__ or thereafter
on or before _____, 20__;
0% if redeemed on _____1, 20__, or thereafter
prior to maturity;]

plus in each case accrued interest to the date fixed for redemption.

[The Bonds maturing on July 1, _____ are subject to mandatory sinking fund redemption prior to maturity, at a redemption price equal to the principal amount thereof plus accrued interest, on July 1 in the years and in the amounts set forth below:

Year Amount

*Final Maturity]

Each Five Thousand Dollar ($5,000) principal amount shall be considered a separate bond for purposes of optional [and mandatory] redemption. If less than an entire maturity is called for redemption, the Bonds to be called for redemption shall be selected by lot by the Registrar. [If some Bonds are to be redeemed by optional redemption and mandatory sinking fund redemption on the same date, the Registrar shall select by lot the Bonds for optional redemption before selecting the Bonds by lot for the mandatory sinking fund redemption.]

Notice of redemption shall be mailed to the address of the registered owner as shown on the registration record of the City, as of the date which is forty-five (45) days prior to such redemption date, not less than thirty (30) days prior to the date fixed for redemption. The notice shall specify the date and place of redemption and sufficient identification of the Bonds called for redemption. The place of redemption may be determined by the City. Interest on the Bonds so called for redemption shall cease on the redemption date fixed in such notice, if sufficient funds are available at the place of redemption to pay the redemption price on the date so named.

If this Bond shall not be presented for payment or redemption on the date fixed therefor, the City may deposit in trust with its depository bank, an amount sufficient to pay such Bond or the redemption price, as the case may be, and thereafter the registered owner shall look only to the funds so deposited in trust with said bank for payment and the City shall have no further obligation or liability in respect thereto.

This Bond is transferable or exchangeable only upon the books of the City kept for that purpose at the office of the Registrar, by the registered owner hereof in person, or by its attorney duly authorized in writing, upon surrender of this Bond together with a written instrument of transfer or exchange satisfactory to the Registrar duly executed by the registered owner or its attorney duly authorized in writing, and thereupon a new fully registered Bond or Bonds in the same aggregate principal amount and of the same maturity, shall be executed and delivered in the name of the transferee or transferees or to the registered owner, as the case may be, in exchange therefor. The City, the Registrar and any paying agent for this Bond may treat and consider the person in whose name this Bond is registered as the absolute owner hereof for all purposes including for the purpose of receiving payment of, or on account of, the principal hereof and interest due hereon.

This Bond is subject to defeasance prior to redemption or payment as provided in the Ordinance referred to herein. THE OWNER OF THIS BOND, BY THE ACCEPTANCE HEREOF, HEREBY AGREES TO ALL THE TERMS AND PROVISIONS CONTAINED IN THE ORDINANCE. The Ordinance may be amended without the consent of the owners of the Bonds as provided in the Ordinance.

The Bonds maturing in any one year are issuable only in fully registered form in the denomination of _____ Dollars ($_____) [or][and] any [$5,000] integral multiple [in

excess] thereof not exceeding the aggregate principal amount of the Bonds maturing in such year.

It is hereby certified and recited that all acts, conditions and things required to be done precedent to and in the preparation and complete execution, issuance and delivery of this Bond have been done and performed in regular and due form as provided by law.

This Bond shall not be valid or become obligatory for any purpose until the certificate of authentication hereon shall have been executed by an authorized representative of the Registrar.

IN WITNESS WHEREOF, the City of West Lafayette, in Tippecanoe County, Indiana, has caused this Bond to be executed in its corporate name by the manual or facsimile signature of its Mayor, countersigned by the manual or facsimile signature of the Controller of the City, its corporate seal to be hereunto affixed, imprinted or impressed by any means and attested manually or by facsimile by its Clerk.

CITY OF WEST LAFAYETTE, INDIANA

By: _____
Mayor

[SEAL]

Countersigned:

By: _____
Controller

Attest:

_____
Clerk

REGISTRAR'S CERTIFICATE OF AUTHENTICATION

It is hereby certified that this Bond is one of the Bonds described in the Ordinance.

_____,
as Registrar

By:_____

Authorized Representative

[MUNICIPAL BOND INSURANCE LEGEND]

ASSIGNMENT

FOR VALUE RECEIVED the undersigned hereby sells, assigns and transfers unto _____, the within Bond and all rights thereunder, and hereby irrevocably constitutes and appoints _____, attorney, to transfer the within Bond in the books kept for the registration thereof with full power of substitution in the premises.

Dated:_____

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| NOTICE: Signature(s) must be guaranteed by an eligible guarantor institution participating in a Securities Transfer Association recognized signature guarantee program. | NOTICE: The signature to this assignment must correspond with the name as it appears on the face of the within Bond in every particular, without alteration or enlargement or any change whatsoever. |

*End of Bond Form*

Section 10. Preparation and Sale of BANs and Bonds; Official Statement; Investment Letter; Rating; Municipal Bond Insurance. The Controller is hereby authorized and directed to have said BANs and Bonds prepared. The Mayor, the Controller and the Clerk of the City are hereby authorized and directed to execute said BANs and Bonds in the form and manner herein provided. The Controller is hereby authorized and directed to deliver said BANs and Bonds to the respective purchasers thereof after sale made in accordance with the provisions of this ordinance, provided that at the time of said delivery the Controller shall collect the full amount which the respective purchasers have agreed to pay therefor, which amount shall not be less than 99.0% of the par value of said BANs and not less than 99.0% of the par value of said Bonds, as the case may be. The City may receive payment for the Bonds and BANs in installments. The Bonds herein authorized, as and to the extent paid for and delivered to the purchaser, shall be the binding special revenue obligations of the City, payable out of the Net Revenues of the City's sewage works to be set aside into the Sewage Works Sinking Fund as herein provided. The proceeds derived from the sale of the Bonds shall be and are hereby set aside for application on the cost of the Project hereinbefore referred to, the refunding of the BANs, if issued, capitalized interest, if necessary, and the expenses necessarily incurred in connection with the BANs and Bonds. The proper officers of the City are hereby directed to draw all proper and necessary

warrants, and to do whatever acts and things which may be necessary to carry out the provisions of this ordinance.

The preparation and distribution of an official statement (preliminary and final) on behalf of the City for each series of the Bonds and BANs is hereby authorized. The Mayor and Controller are hereby authorized and directed to execute any such preliminary official statement on behalf of the City in a form consistent with this ordinance and are further authorized to designate any such preliminary official statement as "nearly final" for purposes of Rule 15c2-12 of the Securities and Exchange Commission (the "Rule"). If the Bonds or BANs will be sold to the Indiana Bond Bank, the Mayor and Controller are hereby authorized to provide information and materials to the Indiana Bond Bank relating to the City, its sewage works and the Bonds or BANs, as the case may be (the "City Material"), for inclusion in any official statement relating to any financing of the Indiana Bond Bank the proceeds of which will be used to acquire the Bonds or BANs. The Mayor and Controller are further authorized to deem any such City Material as "nearly final" for purposes of the Rule.

Alternatively, in lieu of preparing and distributing an official statement, the City may obtain a sophisticated investment letter from the purchaser of the Bonds or BANs at the time of delivery of the Bonds or BANs which satisfies applicable state and federal securities laws.

The Controller, with the advice of the City's municipal advisor, is hereby authorized to obtain one or more ratings for the Bonds if such rating or ratings will facilitate the sale of the Bonds.

In the event the municipal advisor to the City certifies to the City that it would be economically advantageous for the City to obtain bond insurance for the Bonds, the City hereby authorizes the purchase of such bond insurance. In such case, the Mayor and the Controller are hereby authorized to execute and deliver all agreements with the provider of the bond insurance to the extent necessary to comply with the terms of such bond insurance and the commitment to issue such bond insurance. The acquisition of bond insurance is hereby deemed economically advantageous if the difference between the present value of (i) the total debt service on the Bonds if issued without the bond insurance and (ii) the total debt service on the Bonds if issued with the bond insurance, is greater than the cost of the premium for the bond insurance. The cost of obtaining bond insurance shall be considered as a part of the cost of issuance of the Bonds and may be paid out of the proceeds of the Bonds or out of other funds of the sewage works.

Section 11. Sale of Bonds. As determined by the Controller, with the advice of the City's municipal advisor, the Bonds may be sold by either a competitive sale or a negotiated sale.

If the Bonds are sold at a competitive sale, the Controller shall cause to be published either (i) a notice of such sale in the *Journal and Courier*, or any other newspaper published in Tippecanoe County, Indiana, with general circulation in the City, in such manner as advised by Bond Counsel (as hereinafter defined), or (ii) a notice of intent to sell in the *Journal and Courier* and a newspaper published in Indianapolis, Indiana, all in accordance with IC 5-1-11 and IC 5-3-1. A notice of sale may also be published one time in a newspaper published in Indianapolis,

Indiana, and a notice or summary notice may also be published in *The Bond Buyer* in New York, New York. The notice shall state the character and amount of the Bonds, the maximum rate of interest thereon, the terms and conditions upon which bids will be received and the sale made, and such other information as the Controller and the attorneys employed by the City, including Bond Counsel, shall deem advisable and any summary notice may contain any information deemed so advisable. The notice may provide, among other things, that the successful bidder will be required to assist the City in establishing the initial issue price of the Bonds, that each bid shall be accompanied by a certified or cashier's check in an amount equal to one percent (1%) of the principal amount of the Bonds described in the notice and that in the event the successful bidder shall fail or refuse to accept delivery of the Bonds and pay for the same as soon as the Bonds are ready for delivery, or at the time fixed in the notice of sale, then said check and the proceeds thereof shall be the property of the City and shall be considered as its liquidated damages on account of such default; that bidders for said Bonds will be required to name the rate or rates of interest which the Bonds are to bear, not exceeding the maximum rate hereinbefore fixed, and that such interest rate or rates shall be in multiples of one-eighth (1/8), one-twentieth (1/20) or one-hundredth (1/100) of one percent (1%). Bids may be received electronically through PARITY or such other electronic bidding service acceptable to the Controller, with the advice of the City's municipal advisor. No conditional bid or bid for less than ninety-nine percent (99%) of the par value of the Bonds will be considered. The opinion of Bose McKinney & Evans LLP, nationally recognized bond counsel of Indianapolis, Indiana ("Bond Counsel"), approving the legality of said Bonds, will be furnished to the purchaser at the expense of the City.

In the case of a competitive sale of the Bonds, the Bonds shall be awarded by the Controller to the best bidder who has submitted its bid in accordance with the terms of this ordinance and the notice of sale. The best bidder will be the one who offers the lowest net interest cost to the City, to be determined by computing the total interest on all of the Bonds to their maturities, adding thereto the discount bid, if any, and deducting the premium bid, if any. The right to reject any and all bids shall be reserved. If an acceptable bid is not received on the date of sale, the sale may be continued from day to day thereafter without further advertisement for a period of thirty (30) days, during which time no bid which provides a higher net interest cost to the City than the best bid received at the time of the advertised sale will be considered.

As an alternative to public sale, the Controller may negotiate the sale of said Bonds to a purchaser selected by the Controller, with the advice of the City's municipal advisor. In such case, the Mayor and the Controller are hereby authorized to execute a Bond Purchase Agreement with the purchaser with terms conforming to this ordinance and sell such Bonds upon such terms as are acceptable to the Mayor and the Controller consistent with the terms of this ordinance.

Section 12. Use of Proceeds. The accrued interest received at the time of the delivery of the Bonds, if any, shall be deposited in the Sewage Works Sinking Fund. If there is any premium on the Bonds, such premium shall be deposited by the Controller, with the advice of the City's municipal advisor, in either the hereinafter described Construction Account or in the Sewage Works Sinking Fund. The remaining proceeds from the sale of the Bonds, to the extent

not used to refund BANs or fund a reserve for the Bonds, and BAN proceeds shall be deposited in a bank or banks which are legally designated depositories for the funds of the City, in a special account or accounts to be designated as the "City of West Lafayette, Sewage Works Construction Account" (the "Construction Account"). All funds deposited to the credit of said Sewage Works Sinking Fund or Construction Account shall be deposited, held, secured or invested in accordance with the laws of the State of Indiana relating to the depositing, holding, securing or investing of public funds, including particularly IC 5-13, and the acts amendatory thereof and supplemental thereto. The funds in the Construction Account shall be expended only for the purpose of paying the cost of the Project, refunding the BANs, if issued, capitalized interest on the BANs or Bonds, if necessary, or as otherwise required by the Act or for the expenses of issuance of the Bonds or BANs. The cost of obtaining the legal services of Bose McKinney & Evans LLP as Bond Counsel shall be considered as a part of the cost of the Project on account of which the BANs and Bonds are issued.

Any balance or balances remaining unexpended in such special account or accounts after completion of the Project, which are not required to meet unpaid obligations incurred in connection with such Project, shall either (1) be paid into the Sewage Works Sinking Fund and used solely for the purposes thereof or (2) be used for the same purpose or type of project for which the Bonds were originally issued, all in accordance with IC 5-1-13, as amended and supplemented.

The City hereby ratifies and confirms its Reimbursement Resolution declaring its "official intent", as such term is used in the Reimbursement Regulations, to reimburse the City's advances to the Project, such advances from the City's General Fund or Improvement Fund (as hereinafter defined), from proceeds of the BANs or the Bonds herein authorized by this ordinance. The City reasonably expects to make such advances for the costs of the Project.

In the event the City receives a certificate from the Controller of the City in accordance with IC 5-1-13, as amended and supplemented, declaring that there are surplus proceeds from any of the Outstanding Parity Bonds, such surplus proceeds, if any, are hereby authorized to be applied to the costs of the Project and shall in such case be deposited to the Construction Account for such purpose.

Section 13. Revenue Fund. There is hereby continued the "Revenue Fund" (the "Revenue Fund"). All income and revenues derived from the operation of the sewage works and from the collection of sewer rates and charges, including all revenues from storm water and garbage/waste collection charges, shall be deposited in the Revenue Fund. Out of these revenues, the proper and reasonable expenses of operation, repair and maintenance of the works shall be paid, the principal and interest of all bonds and fiscal agency charges of registrars and paying agents shall be paid, the hereinafter described Reserve Account shall be funded, and the costs of replacements, extensions, additions and improvements shall be paid.

Section 14. Operation and Maintenance Fund. The "Operation and Maintenance Fund" (the "Operation and Maintenance Fund") is hereby continued. On the last day of each calendar

month, revenues of the sewage works shall be transferred from the Revenue Fund to the Operation and Maintenance Fund so that the balance maintained in this fund shall be sufficient to pay the expenses of operation, repair and maintenance of the sewage works for the then next succeeding two (2) calendar months. The moneys credited to this fund shall be used for the payment of the reasonable and proper operation, repair and maintenance expenses of the sewage works on a day-to-day basis, but none of the moneys in the Operation and Maintenance Fund shall be used for payment in lieu of property taxes, depreciation, replacements, improvements, extensions or additions. Any moneys in said fund may be transferred to the Sewage Works Sinking Fund if necessary to prevent a default in the payment of principal of or interest on the outstanding bonds of the sewage works.

Section 15. Sewage Works Sinking Fund. There is hereby continued a sinking fund for the payment of the principal of and interest on revenue bonds which by their terms are payable from the Net Revenues of the sewage works, and the payment of any fiscal agency charges in connection with the payment of bonds, which fund is designated the "Sewage Works Sinking Fund" (the "Sinking Fund"). There shall be set aside and deposited in the Sinking Fund, as available, and as provided below, a sufficient amount of the Net Revenues of the sewage works to meet the requirements of the Bond and Interest Account and the Reserve Account hereby continued in the Sinking Fund. Such payments shall continue until the balances in the Bond and Interest Account and the Reserve Account equal the principal of and interest on all of the then outstanding bonds of the sewage works to their final maturity.

(a) Bond and Interest Account. There is hereby continued, within said Sinking Fund, the "Bond and Interest Account". After making the credit to the Operation and Maintenance Fund, there shall be credited on the last day of each calendar month from the Revenue Fund to the Bond and Interest Account an amount of the Net Revenues equal to (i) at least one-sixth (1/6) of the interest on all then outstanding bonds payable on the then next succeeding interest payment date and (ii) at least one-twelfth (1/12) of the principal of all then outstanding bonds payable on the then next succeeding principal payment date, until the amount of interest and principal payable on the then next succeeding interest and principal payment dates shall have been so credited. There shall similarly be credited to the account any amount necessary to pay the bank fiscal agency charges for paying interest on outstanding bonds as the same become payable. The City shall, from the sums deposited in the Sinking Fund and credited to the Bond and Interest Account, remit promptly to the registered owner or to the bank fiscal agency sufficient moneys to pay the interest and principal on the due dates thereof together with the amount of bank fiscal agency charges.

(b) Reserve Account. There is hereby continued, within the Sinking Fund, the Reserve Account (the "Reserve Account"). On the date of delivery of the Bonds, the City may deposit funds on hand, Bond proceeds, or a combination thereof into the Reserve Account. The balance to be maintained in the Reserve Account shall equal but not exceed the least of (i) the maximum annual debt service on the Outstanding Parity Bonds, the Bonds and any Parity Bonds, (ii) 125% of average annual debt service on the Outstanding Parity Bonds, the Bonds and any Parity Bonds or (iii) 10% of the proceeds of the Outstanding Parity Bonds, the Bonds and any

Parity Bonds (the "Reserve Requirement"); provided, however, that so long as any of the Outstanding Parity Bonds are held by the Authority, the Reserve Requirement shall be as described in (i) above. If the initial deposit into the Reserve Account does not cause the balance therein to equal the Reserve Requirement or if no deposit is made, an amount of Net Revenues shall be credited to the Reserve Account on the last day of each calendar month until the balance therein equals the Reserve Requirement. The monthly deposits shall be equal in amount and sufficient to accumulate the Reserve Requirement within five (5) years of the date of delivery of the Bonds.

The Reserve Account shall constitute the margin for safety and a protection against default in the payment of principal of and interest on the Outstanding Parity Bonds, the Bonds and any Parity Bonds, and the moneys in the Reserve Account shall be used to pay current principal and interest on the Outstanding Parity Bonds, the Bonds and any Parity Bonds, to the extent that moneys in the Bond and Interest Account are insufficient for that purpose. Any deficiency in the balance maintained in the Reserve Account shall be made up from the next available Net Revenues remaining after credits into the Bond and Interest Account. Any moneys in the Reserve Account in excess of the Reserve Requirement shall either be transferred to the Sewage Works Improvement Fund or be used for the purchase of outstanding bonds or installments of principal of fully registered bonds.

Section 16. Improvement Fund. After meeting the requirements of the Operation and Maintenance Fund and the Sinking Fund, any excess revenues may be transferred or credited to the Sewage Works Improvement Fund (the "Improvement Fund"), hereby continued, and said fund shall be used for improvements, replacement, additions and extensions of the sewage works, and for payment in lieu of property taxes. Moneys in the Improvement Fund shall be transferred to the Sinking Fund if necessary to prevent a default in the payment of principal or interest on any outstanding bonds payable from the Sinking Fund or, if necessary, to eliminate any deficiencies in credits to or minimum balance in the Reserve Account of the Sinking Fund. Moneys in the Improvement Fund may also be transferred to the Operation and Maintenance Fund to meet unforeseen contingencies in the operation, repair and maintenance of the sewage works. The City may make payments in lieu of property taxes from the Improvement Fund to the City but only if the amounts required to be held in the Operation and Maintenance Fund and the Sinking Fund are so held after considering any such contemplated payments in lieu of property taxes. Notwithstanding anything herein to the contrary, revenues of the sewage works may only be used for purposes related to the sewage works subject only to permitted transfers to the general fund of the City representing payments in lieu of taxes as herein provided.

Section 17. Maintenance of Accounts; Investments. The Sinking Fund shall be deposited in and maintained as a separate account or accounts from all other accounts of the City. The Operation and Maintenance Fund and the Improvement Fund may be maintained in a single account, or accounts, but such account, or accounts, shall likewise be maintained separate and apart from all other accounts of the City and apart from the Sinking Fund account or accounts. All moneys deposited in the accounts shall be deposited, held and secured as public funds in accordance with the public depository laws of the State of Indiana; provided that moneys therein

may be invested in obligations in accordance with the applicable laws, including particularly IC 5-13 and IC 4-4-11 (as applicable), and the acts amendatory thereof and supplemental thereto, and in the event of such investment the income therefrom shall become a part of the funds invested and shall be used only as provided in this ordinance.

Section 18. Maintenance of Books and Records. The City shall keep proper books of records and accounts, separate from all of its other records and accounts, in which complete and correct entries shall be made showing all revenues collected from said works and all disbursements made on account of the works, also all transactions relating to said works. There shall be furnished, upon written request, to any owner of the Bonds, the most recent audit report of the sewage works prepared by the State Board of Accounts. Copies of all such statements and reports shall be kept on file in the office of the Controller. Any owner of the Bonds then outstanding shall have the right at all reasonable times to inspect the works and all records, accounts, statements, audits, reports and data of the City relating to the sewage works. Such inspections may be made by representatives duly authorized by written instrument.

Section 19. Rate Covenant. The City covenants and agrees that it will establish and maintain just and equitable rates or charges for the use of and the service rendered by the sewage works, to be paid by the owner of each and every lot, parcel of real estate or building that is connected with and uses the sewage works by or through any part of the sewage system of the City, or that in any way uses or is served by the sewage works, at a level adequate to produce and maintain sufficient revenue to provide for the proper operation, repair and maintenance of the sewage works, to comply with and satisfy all covenants contained in this ordinance and the Financial Assistance Agreements with respect to its Outstanding Parity Bonds held by the Authority, and to pay all obligations of the sewage works and of the City with respect to the sewage works. Such rates and charges shall, if necessary, be changed and readjusted from time to time so that the revenues therefrom shall always be sufficient to meet the expenses of operation, repair and maintenance of the sewage works, and the requirements of the Sinking Fund. The rates and charges so established shall apply to any and all use of such works by and service rendered to the City, and all departments thereof, and shall be paid by the City, or the various departments thereof, as the charges accrue.

Section 20. Defeasance of Bonds. If, when any of the Bonds issued hereunder shall have become due and payable in accordance with their terms or shall have been duly called for redemption or irrevocable instructions to call the Bonds or any portion thereof for redemption shall have been given, and the whole amount of the principal and the interest and the premium, if any, so due and payable upon all of the Bonds or any portion thereof and coupons then outstanding shall be paid; or (i) sufficient moneys, or (ii) direct obligations of (including obligations issued or held in book entry form on the books of) the Department of the Treasury of the United States of America, the principal of and the interest on which when due will provide sufficient moneys, shall be held in trust for such purpose, and provision shall also be made for paying all fees and expenses for the redemption, then and in that case the Bonds issued hereunder or any designated portion thereof shall no longer be deemed outstanding or entitled to the pledge of the Net Revenues of the City's sewage works.

Section 21. Additional Bond Provisions. The City reserves the right to authorize and issue additional BANs at any time ranking on a parity with the BANs. The City reserves the right to authorize and issue additional Parity Bonds, payable out of the Net Revenues of its sewage works, ranking on a parity with the Bonds, for the purpose of financing the cost of future additions, extensions and improvements to the sewage works, or to refund obligations, subject to the following conditions:

(a) All required payments into the Sinking Fund shall have been made in accordance with the provisions of this ordinance, and the interest on and principal of all bonds payable from the Net Revenues of the sewage works shall have been paid to date in accordance with their terms. The Reserve Requirement shall be satisfied for the additional Parity Bonds either at the time of delivery of the additional Parity Bonds or over a five (5) year or shorter period, in a manner which is commensurate with the requirements established in Section 15(b) of this ordinance.

(b) The Net Revenues of the sewage works in the fiscal year immediately preceding the issuance of any such Parity Bonds shall be not less than one hundred twenty-five percent (125%) of the maximum annual interest and principal requirements of the then outstanding bonds and the additional Parity Bonds proposed to be issued; or, prior to the issuance of said Parity Bonds, the sewage rates and charges shall be increased sufficiently so that said increased rates and charges applied to the previous year's operations would have produced Net Revenues for said period equal to not less than one hundred twenty-five percent (125%) of the maximum annual interest and principal requirements of the then outstanding bonds and the additional Parity Bonds proposed to be issued. For purposes of this subsection, the records of the sewage works shall be analyzed and all showings prepared by a certified public accountant employed by the City for that purpose.

(c) The interest on the additional Parity Bonds shall be payable semiannually on the first days of January and July and the principal on, or mandatory sinking fund redemption dates for, the additional Parity Bonds shall be payable annually on July 1.

Section 22. Further Covenants. For the purpose of further safeguarding the interests of the holders of the BANs and Bonds, it is specifically provided as follows:

(a) All contracts let or otherwise entered into by the City in connection with the construction of said Project shall be done so in accordance with the laws of the State of Indiana, and all contractors shall be required to furnish bonds (e.g., payment bonds, performance bonds) in an such amount or amounts as are required by the laws of the State of Indiana for such contracts, to insure the completion of said contracts in accordance with their terms, and such contractors shall also be required to carry such employer's liability and public liability insurance as are required under the laws of the State of Indiana in the case of public contracts, and shall be governed in all respects by the laws of the State of Indiana relating to public contracts.

(b) Said Project shall be constructed under the supervision and subject to the approval of such competent engineers as shall be designated by the City. All estimates for work done or material furnished shall first be checked by the engineers and approved by the City.

(c) The City shall at all times maintain its sewage works in good condition and operate the same in an efficient manner and at a reasonable cost.

(d) So long as any of the BANs or Bonds herein authorized are outstanding, the City shall acquire and maintain insurance coverage, including fidelity bonds, to protect the sewage works and its operations. So long as any Outstanding Parity Bonds are held by the Authority, such insurance shall be acceptable to the Authority. All insurance shall be placed with responsible insurance companies qualified to do business under the laws of the State of Indiana. Insurance proceeds and condemnation awards shall be used to replace or repair the sewage works, unless the Authority consents to a different use of such proceeds or awards if any Outstanding Parity Bonds are held by the Authority.

(e) So long as any of the BANs or Bonds are outstanding, the City shall not mortgage, pledge or otherwise encumber such works or any part thereof, nor shall it sell, lease or otherwise dispose of any portion thereof except machinery, equipment or property which may become worn out, obsolete or no longer suitable for use in the sewage works. So long as any Outstanding Parity Bonds are held by the Authority, the City shall obtain the consent of the Authority prior to the disposal of any portion of the sewage works as described herein.

(f) So long as any Outstanding Parity Bonds are held by the Authority, the City shall not borrow any money, enter into any contract or agreement or incur any other liabilities in connection with the sewage works, other than for normal operating expenditures, without the prior written consent of the Authority if such undertaking would involve, commit or use the revenues of the sewage works.

(g) Except as hereinbefore provided in Section 21 hereof, so long as any of the Bonds herein authorized are outstanding, no additional bonds or other obligations pledging any portion of the revenues of said sewage works shall be authorized, executed, or issued by the City except such as shall be made subordinate and junior in all respects to the Bonds herein authorized, unless all of the Bonds herein authorized are redeemed, retired or defeased pursuant to Section 20 hereof coincidentally with the delivery of such additional bonds or other obligations.

(h) The City shall take all actions or proceedings necessary and proper, to the extent permitted by law, to require connection of all property where liquid and solid waste, sewage, night soil or industrial waste is produced with available sanitary sewers. The City shall, insofar as possible, and to the extent permitted by law, cause all such sanitary sewers to be connected with said sewage works.

(i) The provisions of this ordinance shall constitute a contract by and between the City and the owners of the Bonds and BANs herein authorized, and after the issuance of said Bonds or BANs, this ordinance shall not be repealed or amended in any respect which will adversely affect the rights of the owners of said Bonds or BANs nor shall the Common Council adopt any law, ordinance or resolution which in any way adversely affects the rights of such owners so long as any of said Bonds, BANs or the interest thereon remain unpaid. Except for the changes set forth in Section 25(a)-(g), this ordinance may be amended, however, without the consent of BAN or Bond owners, if the Common Council determines, in its sole discretion, that such amendment would not adversely affect the owners of the BANs or Bonds.

(j) The provisions of this ordinance shall be construed to create a trust in the proceeds of the sale of the Bonds and BANs herein authorized for the uses and purposes herein set forth, and the owners of the Bonds and BANs shall retain a lien on such proceeds until the same are applied in accordance with the provisions of this ordinance and of said governing Act. The provisions of this ordinance shall also be construed to create a trust in the portion of the Net Revenues herein directed to be set apart and paid into the Sinking Fund for the uses and purposes of said fund as in this ordinance set forth. The owners of said Bonds shall have all of the rights, remedies and privileges set forth in the provisions of the governing Act hereinbefore referred to, including the right to have a receiver appointed to administer said sewage works, in the event the City shall fail or refuse to fix and collect sufficient rates and charges, or shall fail or refuse to operate and maintain said system and to apply the revenues derived from the operation thereof, or if there be a default in the payment of the principal of or interest on any of the Bonds herein authorized or in the event of default in respect to any of the provisions of this ordinance or the governing Act.

Section 23. Investment of Funds. The Controller is hereby authorized to invest moneys pursuant to IC 5-1-14-3 and the provisions of this ordinance (subject to applicable requirements of federal law to insure such yield is the then current market rate) to the extent necessary or advisable to preserve the exclusion from gross income of interest on the Bonds and BANs under federal law. The Controller shall keep full and accurate records of investment earnings and income from moneys held in the funds and accounts continued or referenced herein. In order to comply with the provisions of the ordinance, the Controller is hereby authorized and directed to employ consultants or attorneys from time to time to advise the City as to requirements of federal law to preserve the tax exclusion. The Controller may pay any such fees as operating expenses of the sewage works.

Section 24. Tax Covenants. In order to preserve the exclusion of interest on the Bonds and BANs from gross income for federal income tax purposes under Section 103 of the Internal Revenue Code of 1986, as existing on the date of issuance of the Bonds or BANs, as the case may be (the "Code") and as an inducement to purchasers of the Bonds and BANs, the City represents, covenants and agrees that:

(a) The sewage works will be available for use by members of the general public. Use by a member of the general public means use by natural persons not engaged in a trade or business. No person or entity other than the City or another state or local governmental unit will use more than 10% of the proceeds of the Bonds or BANs or property financed by the Bond or BAN proceeds other than as a member of the general public. No person or entity other than the City or another state or local governmental unit will own property financed by Bond or BAN proceeds or will have any actual or beneficial use of such property pursuant to a lease, a management or incentive payment contract, arrangements such as take-or-pay or output contracts or any other type of arrangement that conveys other special legal entitlements and differentiates that person's or entity's use of such property from use by the general public, unless such uses in the aggregate relate to no more than 10% of the proceeds of the Bonds or BANs, as the case may be. If the City enters into a management contract for the sewage works, the terms of the contract will comply with Internal Revenue Service Revenue Procedure 2017-13, as it may be amended, supplemented or superseded for time to time, so that the contract will not give rise to private business use under the Code and the Regulations, unless such use in aggregate relates to no more than 10% of the proceeds of the Bonds or BANs, as the case may be.

(b) No more than 10% of the principal of or interest on the Bonds or BANs is (under the terms of the Bonds or BANs, this ordinance or any underlying arrangement), directly or indirectly, secured by an interest in property used or to be used for any private business use or payments in respect of any private business use or payments in respect of such property or to be derived from payments (whether or not to the City) in respect of such property or borrowed money used or to be used for a private business use.

(c) No more than 5% of the Bond or BAN proceeds will be loaned to any person or entity other than another state or local governmental unit. No more than 5% of the Bond or BAN proceeds will be transferred, directly or indirectly, or deemed transferred to a nongovernmental person in any manner that would in substance constitute a loan of the Bond or BAN proceeds.

(d) The City reasonably expects, as of the date hereof, that the Bonds and BANs will not meet either the private business use test described in paragraphs (a) and (b) above or the private loan test described in paragraph (c) above during the entire term of the Bonds or BANs, as the case may be.

(e) No more than 5% of the proceeds of the Bonds or BANs will be attributable to private business use as described in (a) and private security or payments described in (b) attributable to unrelated or disproportionate private business use. For this purpose, the private business use test is applied by taking into account only use that is not related to any government use of proceeds of the issue (Unrelated Use) and use that is related but disproportionate to any governmental use of those proceeds (Disproportionate Use).

(f) The City will not take any action nor fail to take any action with respect to the Bonds or BANs that would result in the loss of the exclusion from gross income for federal tax purposes on the Bonds or BANs pursuant to Section 103 of the Code, nor will the City act in any

other manner which would adversely affect such exclusion. The City covenants and agrees not to enter into any contracts or arrangements which would cause the Bonds or BANs to be treated as private activity bonds under Section 141 of the Code.

(g) It shall not be an event of default under this ordinance if the interest on any Bond or BAN is not excludable from gross income for federal tax purposes or otherwise pursuant to any provision of the Code which is not currently in effect and in existence on the date of issuance of the Bonds or BANs, as the case may be.

(h) The City represents that, if necessary, it will rebate any arbitrage profits to the United States of America in accordance with the Code.

(i) These covenants are based solely on current law in effect and in existence on the date of delivery of such Bonds or BANs, as the case may be.

Section 25. Amendments with Consent of Bondholders. Subject to the terms and provisions contained in this Section and Section 22(i), and not otherwise, the owners of not less than sixty-six and two-thirds percent (66 2/3%) in aggregate principal amount of the Bonds issued pursuant to this ordinance and then outstanding shall have the right, from time to time, anything contained in this ordinance to the contrary notwithstanding, to consent to and approve the adoption by the City of such ordinance or ordinances supplemental hereto as shall be deemed necessary or desirable by the City for the purpose of modifying, altering, amending, adding to or rescinding in any particular any of the terms or provisions contained in this ordinance, or in any supplemental ordinance; provided, however, that nothing herein contained shall permit or be construed as permitting:

(a) An extension of the maturity of the principal of or interest on any Bond issued pursuant to this ordinance; or

(b) A reduction in the principal amount of any Bond or the redemption premium or the rate of interest thereon; or

(c) The creation of a lien upon or a pledge of the revenues of the sewage works ranking prior to the pledge thereof created by this ordinance; or

(d) A preference or priority of any Bond or Bonds issued pursuant to this ordinance over any other Bond or Bonds issued pursuant to the provisions of this ordinance; or

(e) A reduction in the aggregate principal amount of the Bonds required for consent to such supplemental ordinance; or

(f) A reduction in the Reserve Requirement; or

(g) The extension of mandatory sinking fund redemption dates, if any.

If the owners of not less than sixty-six and two-thirds percent (66 2/3%) in aggregate principal amount of the Bonds outstanding at the time of adoption of such supplemental ordinance shall have consented to and approved the adoption thereof by written instrument to be maintained on file in the office of the Clerk, no owner of any Bond issued pursuant to this ordinance shall have any right to object to the adoption of such supplemental ordinance or to object to any of the terms and provisions contained therein or the operation thereof, or in any manner to question the propriety of the adoption thereof, or to enjoin or restrain the City or its officers from adopting the same, or from taking any action pursuant to the provisions thereof. Upon the adoption of any supplemental ordinance pursuant to the provisions of this section, this ordinance shall be, and shall be deemed, modified and amended in accordance therewith, and the respective rights, duties and obligations under this ordinance of the City and all owners of Bonds issued pursuant to the provisions of this ordinance then outstanding, shall thereafter be determined exercised and enforced in accordance with this ordinance, subject in all respects to such modifications and amendments. Notwithstanding anything contained in the foregoing provisions of this ordinance, the rights and obligations of the City and of the owners of the Bonds authorized by this ordinance, and the terms and provisions of the Bonds and this ordinance, or any supplemental ordinance, may be modified or altered in any respect with the consent of the City and the consent of the owners of all the Bonds issued pursuant to this ordinance then outstanding.

Section 26. Issuance of BANs. The City, having satisfied all the statutory requirements for the issuance of its Bonds, may elect to issue its BAN or BANs to a financial institution, the Indiana Bond Bank, the Authority or to any other purchaser, pursuant to a Bond Anticipation Note Purchase Agreement (the "Bond Anticipation Note Agreement") to be entered into between the City and the purchaser of the BAN or BANs. The Common Council hereby authorizes the issuance and execution of the BAN or BANs in lieu of initially issuing Bonds to provide interim financing for the Project until permanent financing becomes available. It shall not be necessary for the City to repeat the procedures for the issuance of its Bonds, as the procedures followed before the issuance of the BAN or BANs are for all purposes sufficient to authorize the issuance of the Bonds and the use of the proceeds to repay the BAN or BANs. The Mayor and the Controller are hereby authorized and directed to execute a Bond Anticipation Note Agreement (and any amendments made from time to time) in such form or substance as they shall approve acting upon the advice of counsel. The Mayor and the Controller may also take such other actions or deliver such other certificates as are necessary or desirable in connection with the issuance of the BANs or the Bonds and the other documents needed for the financing as they deem necessary or desirable in connection therewith.

Section 27. Sewer Rates. The estimates of the rates and charges of the sewage works are set forth in the West Lafayette City Code, including but not limited to Sections 12-1 and 40-233 through 40-253, and such code sections are incorporated herein by reference.

Section 28. Continuing Disclosure. If necessary in order for the purchaser of the Bonds or BANs to comply with the Rule, the Mayor and Controller are hereby authorized to execute and deliver, in the name and on behalf of the City, an agreement by the City to comply with the requirements of a continuing disclosure undertaking by the City pursuant to subsection (b)(5) of the Rule, and any amendments thereto from time to time (the "Continuing Disclosure Agreement"). The City hereby covenants and agrees that it will comply with and carry out all of the provisions of the Continuing Disclosure Agreement.

Section 29. Tax Exemption. Notwithstanding any other provisions of this ordinance, the covenants and authorizations contained in this ordinance (the "Tax Sections") which are designed to preserve the exclusion of interest on the BANs and Bonds from gross income under federal law (the "Tax Exemption") need not be complied with if the City receives an opinion of nationally recognized bond counsel that any Tax Section is unnecessary to preserve the Tax Exemption. At the time of delivery of the BANs and Bonds, the Mayor and Controller will execute post-issuance compliance procedures with respect to the BANs and Bonds relating to continued compliance of the City with respect to the Tax Sections to preserve the Tax Exemption.

Section 30. Conflicting Ordinances. All ordinances and parts of ordinances in conflict herewith, except the ordinances authorizing the Outstanding Parity Bonds, are hereby repealed; provided, however, that this ordinance shall not be construed as adversely affecting the rights of the owners of the Outstanding Parity Bonds.

Section 31. Effective Date. This ordinance shall be in full force and effect from and after its passage and execution by the Mayor.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF _____ IN FAVOR AND _____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
_____, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024, AT THE HOUR OF _____.

_____
Sana G. Clerk, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024, AT THE HOUR OF _____.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

## EXHIBIT A

*Description of Project*

The project includes a new concrete storage basin at the Wet Weather Treatment Facility to provide storage and treatment of approximately 2.5 million gallons of combined sewage that would otherwise overflow to the Wabash River. Treated flow will be disinfected and discharged while flow stored in the basin will be pumped back to the Water Resource Recovery Facility for full treatment. A new diversion structure, pump building, and chemical storage building associated with the new storage basin will also be constructed. The project is a necessary part and final phase of the City's approved Combined Sewer Overflow (CSO) Long-Term Control Plan (LTCP) to significantly reduce untreated wet-weather sewer overflows at CSO Outfall No. 007 located at the Water Resource Recovery Facility. A new Administration and Laboratory Building will be located near the facility entrance which will include additional office and storage space, an updated laboratory, and new industrial pretreatment program facilities to meet the growing needs of the wastewater utility staff. The project includes all items described above as well as all necessary appurtenances in connection therewith.

~~4790686v2~~4790686v4

| Summary report:<br>Litera Compare for Word 11.7.0.54 Document comparison done on 8/8/2024 4:06:55 PM | |
|---|---|
| **Style name:** Default Style | |
| **Intelligent Table Comparison:** Active | |
| **Original DMS:** iw://work.boselaw.com/DT1/4790686/2 | |
| **Modified DMS:** iw://work.boselaw.com/DT1/4790686/4 | |
| **Changes:** | |
| Add | 22 |
| ~~Delete~~ | 11 |
| ~~Move From~~ | 0 |
| Move To | 0 |
| Table Insert | 0 |
| ~~Table Delete~~ | 0 |
| Table moves to | 0 |
| ~~Table moves from~~ | 0 |
| Embedded Graphics (Visio, ChemDraw, Images etc.) | 0 |
| Embedded Excel | 0 |
| Format changes | 0 |
| **Total Changes:** | 33 |

Sponsored by Councilor David Sanders

# ORDINANCE NO. 28-2024

AN ORDINANCE PERMITTING AND REGULATING THE USE OF PARKING METERS AND PARKING SPACES WHERE PARKING METERS ARE PRESENT IN THE CITY OF WEST LAFAYETTE, INDIANA

WHEREAS, the City of West Lafayette, Indiana (the "City") is empowered under Ind. Code § 36-9-12-2 to: (1) Regulate the parking or standing of vehicles upon or off any public way in the City; and (2) Provide for the collection of license fees from a person parking or standing a vehicle upon or off any public way in the City;

WHEREAS, the City is further permitted by I.C. § 36-9-12-2 to use parking meters to accomplish the aforementioned powers;

WHEREAS, in order to utilize parking meters, the City is required by I.C. § 36-9-12-2 to adopt an ordinance to that end;

WHEREAS, the use of parking meters in certain parts of the City would serve the public health, safety, and welfare of the residents of the City by making parking more available in certain high-traffic areas and would benefit the City;

WHEREAS, the City is further authorized under Home Rule to regulate the parking of temporary dumpsters in parking spaces where parking meters are present; and

WHEREAS, to this end the City wishes to adopt an Ordinance for the purpose of permitting and regulating the use of parking meters in the City, for regulating vehicles parked in spaces where parking meters are present, and for regulating temporary dumpsters or portable storage containers in spaces where parking meters are present.

NOW, THEREFORE, BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE that:

1. A new chapter is to be added to the West Lafayette City Code to be designated as Chapter _____, Article_____, Division____. The Clerk of the City may make or cause to be made formal, non-substantive changes to this ordinance insofar as necessary to incorporate this ordinance into the existing City Code, such as arranging the material into appropriate organizational units and assigning or reassigning appropriate numbers to chapters, articles, divisions, subdivisions, and sections.

2. The following Chapter_____, Article _____, Division ____, Section _____ *et al* are added in their entireties to the West Lafayette City Code, effective upon adoption of this ordinance:

**Chapter ____, Article _____, Division____. PARKING METERS**

**_____ Definitions.**

(a) "Parking meter" shall mean any mechanical device or digital parking enforcement technology used for the regulation of parking including, but not limited to, a mechanical device or kiosk placed or erected on any parking area of the City where parking fees are required to be paid to park and that accepts payments onsite; a parking management service accessed through a smartphone application, website browser, or pay-by-phone to make payment of parking fees when required to pay to park in specified areas of the City; and license plate recognition (LPR) technology that identifies license plates of vehicles entering and exiting parking areas of the City where parking fees are required to be paid to park.

(b) "Parking space" shall mean any space that is designated, generally, for the parking of a single vehicle by lines painted or marked on the curb or surface of the street or parking facility or, in the event spaces are not marked, a space intended for parking that shall not exceed twenty-two feet in length.

(c) "Parking meter fund" shall refer to the special non-reverting fund established pursuant to I.C. § 36-9-12 *et seq*. via Ordinance No. 29-2024 to receive all monies received by the City which are paid via a parking meter or otherwise received through this Ordinance.

(d) "Vehicle" shall mean any truck, semi-truck, automobile, van, motorcycle, motor-driven cycle, motor scooter, dune buggy, snow mobile, all-terrain vehicle, go-cart, minibike, or trail bike or any other road vehicle powered by an internal combustion engine or other motor for transport and authorized for use on public streets in the City.

(e) "Temporary dumpster" shall mean any metal storage receptacle used to temporarily store debris or solid waste intended as a disposal facility generated from tasks such as construction, renovation, or demolition projects, special events, moving waste, seasonal use, or other purposes not permanent in nature.

(f) "Portable storage container" means any storage receptacle used to pack and store personal belongings and subsequently moved to an off-site storage facility or other place for unloading.

**_____ Metered Parking Spaces.**

Parking spaces, where designated, on the following streets in the City shall be subject to parking meters:

## Time Limit Parking Zone 1

| STREET | FROM | TO |
|---|---|---|
| N. Russell Street | Stadium Avenue | 6th Street |
| N. Russell Street | 6th Street | 5th Street |
| N. Russell Street | 5th Street | 4th Street |
| N. Russell Street | 4th Street | 3rd Street |
| N. Russell Street | 3rd Street | 2nd Street |
| N. Russell Street | 2nd Street | 1st Street |
| N. Russell Street | 1st Street | Mitch Daniels Blvd. |
| Waldron Street | Stadium Avenue | 6th Street |
| Waldron Street | 6th Street | 5th Street |
| Waldron Street | 5th Street | 4th Street |
| Waldron Street | 4th Street | 3rd Street |
| Waldron Street | 3rd Street | 2nd Street |
| Waldron Street | 2nd Street | 1st Street |
| Waldron Street | 1st Street | Mitch Daniels Blvd. |
| 5th Street | Russell Street | Waldron Street |
| 5th Street | Waldron Street | University Street |
| 4th Street | Russell Street | Waldron Street |
| 4th Street | Waldron Street | University Street |
| 1st Street | Russell Street | Waldron Street |
| 1st Street | Waldron Street | University Street |

## Time Limit Parking Zone 2

| | | |
|---|---|---|
| Mitch Daniels Blvd. | McCutcheon Drive | MacArthur Drive |
| Harrison Street | Airport Drive | McCutcheon Drive |
| Harrison Street | McCutcheon Drive | Foundry Drive |
| Harrison Street | Foundry Drive | MacArthur Drive |
| District Blvd. | McCutcheon Drive | Foundry Drive |
| District Blvd. | Foundry Drive | MacArthur Drive |
| McCutcheon Drive | Harrison Street | District Blvd. |
| McCutcheon Drive | District Blvd. | Mitch Daniels Blvd. |
| Foundry Drive | Harrison Street | District Blvd. |
| Foundry Drive | District Blvd. | Mitch Daniels Blvd. |
| MacArthur Drive | Harrison Street | District Blvd. |
| MacArthur Drive | District Blvd. | Mitch Daniels Blvd. |
| Trailway Drive | Airport Road | End |
| Brees Way | Roebuck Drive | Tapawingo Drive |
| State Street | Roebuck Drive | Tapawingo Drive |

**_____ Parking Meter Use and Fees for Vehicles**.

(a) Unless otherwise provided herein, when a vehicle is parked in a parking space with a parking meter at times when parking charges are in effect, the individual operating the vehicle (or someone else on their behalf) shall immediately, upon entering the parking space, deposit payment as appropriate for the time period desired for parking subject to any and all restrictions or limitations imposed as to maximum time imposed by the parking meter and as otherwise imposed herein. The individual parking the vehicle (or someone else on their behalf) in a parking space with a parking meter is required to adhere to any other directions or requirements imposed by the parking meter as to payment, time, identification, or otherwise.

(b) A vehicle parked in a parking space with a parking meter is permitted to occupy said parking space only for the period paid for by the individual operating the vehicle (or someone else on their behalf) provided any and all requirements imposed by this Article or the parking meter as to payment, time, identification, or otherwise are met.

(c) It shall be a violation of this Article for a person to leave a vehicle parked, stopped, or left standing in a parking space with a parking meter when parking charges are in effect without depositing payment as sufficient for the time period the vehicle occupies the parking space and/or for failing to follow any and all restrictions or limitations imposed by this Article or imposed as to payment, time identification, or otherwise by the parking meter.

(d) The maximum hourly charge to park a Vehicle in a parking space with a parking meter when such charges are in effect shall be no less than one dollar ($1.00) per hour and no more than three dollars ($3.00) per hour as determined by the Traffic Division, Engineering Department, and Street Commissioner of the City. The maximum hourly charge to park in a parking space with a parking meter does not include any external fees charged by vendors, credit card companies, or for related convenience fees which may also be charged.

(e) The fee schedule for parking meters as it relates to Vehicles may be reviewed on a quarterly basis by members of the Traffic Division, Engineering Department, and Street Commissioner of the City.

**_____ Parking Meter Times for Vehicles.**

(a) For any parking space with a parking meter, the parking meter shall operate during the following periods as it relates to the parking of vehicles:

Monday through Saturdays, inclusive, between the hours of 7:00 a.m. and 7:00 p.m.

(b) Parking meters shall not operate during the following state and federal holidays as it relates to the parking of vehicles:

1. New Year's Day;
2. Dr. Martin Luther King Day;
3. President's Day;
4. Memorial Day;
5. Juneteenth;
6. Independence Day;
7. Labor Day;
8. Thanksgiving Day; and
9. Christmas Day.

(c) This Article shall not apply to times or places when or where parking is prohibited by any other provision of the City's Code of Ordinances or is temporarily prohibited by orders of the City's Police Department, Fire Department, or Street Commissioner.

(d) The maximum period a vehicle may be continuously parked in a parking spot with a parking meter shall be four (4) hours in Time Limit Parking Zone 1 and ten (10) hours in Time Limit Parking Zone 2.

(e) It shall be a violation of this Article for a person to leave a vehicle continuously parked, stopped, or left standing in a parking space with a parking meter for longer than four (4) consecutive hours in Time Limit Parking Zone 1 and ten (10) consecutive hours in Time Limit Parking Zone 2 regardless of whether the person has deposited additional payment in the parking meter, the parking meter is turned off, or the parking meter is inoperable or malfunctioning.

(f) A violation of this section shall be subject to an admission of violation and payment of the Time-Restricted Parking Violation through the ordinance violations bureau in accordance with section 38-263.

**_____ Parking Meter Use and Fees for Temporary Dumpsters and Portable Storage Containers**

(a) No person shall park, place, or leave unattended any temporary dumpster or portable storage container in a parking space with a parking meter without first

obtaining a permit from the Police Department of the City at least Seventy-Two (72) hours prior to the time when the temporary dumpster is parked in the parking space or parking spaces.

(b) A temporary dumpster or portable storage container may be parked in a parking space or parking spaces with a parking meter or parking meters only upon receipt of a permit from the Police Department of the City with said permit including, at a minimum, the following information:

1. The name and contact information of the applicant;

2. The name and contact information of the owner of the temporary dumpster;

3. Information related to where the temporary dumpster will be located and the length of time the temporary dumpster will be located there;

4. A site plan showing the location and dimensions of the temporary dumpster.

(c) The permit application fee shall be Fifty Dollars ($50.00).

(d) Payment for parking the temporary dumpster in a parking space or parking spaces occupied by a parking meter or parking meters shall not be made through the parking meter or parking meters. The fee to park a temporary dumpster in a parking space or parking spaces with a parking meter or parking meters shall be Five ($5.00) per day per space occupied by the temporary dumpster with said amount paid in advance to the City at the time of application.

(e) A temporary dumpster permit or portable storage container may be granted for no more than a period of seven (7) consecutive days and it shall be a violation of this Ordinance for a temporary dumpster or portable storage container to be parked in a parking space or parking spaces without obtaining the permit described in this Section or beyond the amount of time authorized by the permit described in this Section.

(f) A permit application if placement of the temporary dumpster shall constitute a public nuisance or hazard because of contour, narrow width, traffic, or other conditions peculiar to the street, sidewalk, or right-of-way at or near the proposed location at the time of the proposed placement of temporary dumpster.

(g) Permittee, or the temporary dumpster's or portable storage container's owner, shall provide, procure, and maintain in full force and effect, at their sole cost and expense, General Liability insurance with a combined single limit of $1,000,000.00 and which names the City as an additional insured.

(h) Placement of a temporary dumpster or portable storage container in a parking space or parking spaces with a parking meter or parking meters shall be subject

to the following restrictions a violation of which constitutes a violation of this Ordinance:

1. Placement of the temporary dumpster or portable storage container must be within the area designated and approved in the permit.

2. A temporary dumpster or portable storage container may not exceed the following dimensions: 22 ft long, 8 ft wide and 8 ft in height.

3. If the temporary dumpster has a door, the door must be placed facing traffic.

4. Reflective tape, signs, and cones shall be placed in appropriate locations to warn drivers of the hazard at the direction and at the sole discretion of the City. If needed, items can be placed upon the temporary dumpster.

5. The temporary dumpster must be maintained in good condition and shall not leak, overflow, or be filled such that debris falls into the roadway or blows out of the temporary dumpster.

6. No materials in the temporary dumpster shall omit any noxious or offensive odor or otherwise create a hazard or risk to public health.

(i) In the event the temporary dumpster or portable storage container becomes dangerous, unsafe, or not operated in accordance with this Ordinance or other applicable law, the permit may be revoked and the temporary dumpster ordered removed. If the applicant fails to remove the temporary dumpster as required, the City may remove the temporary dumpster with costs of removal and storage charged to the applicant.

(j) Upon removal of the temporary dumpster or portable storage container, the condition of the parking space or parking spaces occupied by the parking meter and the surrounding street and sidewalks must be in the same condition as before placement of the temporary dumpster and free of any debris. In the event of damage, the applicant shall be liable for any and all costs incurred by the City to repair said damage.

**_____ Defacing or Injuring Parking Meters.**

It shall be a violation of the City Code for any person not authorized by the City to deface, injure, tamper with, open or willfully break, destroy, or impair the usefulness of any parking meter installed or operating under the provisions of this Article.

_____ **Parking Meter Enforcement, Violations, Fines, and Fees**.

(a) This article shall be enforced by the West Lafayette Police Department or its designee.

(b) Any violation of the provisions of this Article shall be subject to an admission of violation and payment of the designated civil penalty through the ordinance violations bureau in accordance with Section 2-288.

_____ **Parking Meter Fund, Purpose, and Expenditures**.

(a) The City shall establish a parking meter fund as authorized by I.C. § 36-9-12 *et seq*.

(b) All monies received by the City of West Lafayette from fees paid for the on-street parking of a vehicle by the use of a parking meter or otherwise through this Ordinance shall:

a. For any license fees collected from parking meters or otherwise through this Ordinance, be deposited with the fiscal officer of the City;

b. Be deposited to the credit of the City in the parking meter fund; and

c. Be disbursed from the parking meter fund only on orders of the Board of Public Works of the City.

(c) All expenditures, appropriations, and disbursements from the parking meter fund shall be made in accordance with and only for the purposes specified under I.C. § 36-9-12 *et seq*. and any other applicable law.

(d) The parking meter fund shall continue in this form until amended or terminated by ordinance. Unless indicated otherwise by ordinance, the proceeds of the parking meter fund at termination shall be deposited into the general fund.

(e) The Board of Public works shall prepare an itemized estimate of the money necessary for the operation of parking meters in the City for the ensuing year at the regular time of making and filing budget estimates for other departments of the City. These estimates shall be made and presented to the City Council in the same manner as other department estimates.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

Sponsored by Mayor Erin R. Easter

**ORDINANCE NO. 29-2024 (Amended)**

AN ORDINANCE ESTABLISHING THE WEST LAFAYETTE PARKING METER FUND

WHEREAS, the City of West Lafayette, Indiana (the "City") has adopted Ordinance No. 28-2024, permitting it to utilize parking meters and related technologies in the City;

WHEREAS, I.C. § 36-9-12 *et seq*. governs the use of parking meters by municipalities, including the City;

WHEREAS, I.C. § 36-9-12 *et seq*. requires that the City establish a special fund wherein license fees collected from parking meters by the City are to be deposited (the "Parking Meter Fund");

WHEREAS, pursuant to and in accordance with I.C. § 36-9-12-4, the City establishes the Parking Meter Fund for the collection of license fees from parking meters utilized by the City;

WHEREAS the use of parking meters and related technologies will serve the public health, safety, and welfare of the residents of the City by making parking more available in certain high-traffic areas and would benefit the City;

WHEREAS establishing the Parking Meter Fund will serve such purposes and will be maintained as special fund to receive all monies collected by the City through its parking meters; and

NOW THEREFORE there is established the Parking Meter Fund which shall be under the direction of the Board of Public Works and Safety of West Lafayette and shall be administered as follows in accordance with applicable law:

1. All license fees collected from parking meters or otherwise by Ordinance No. 28-2024 shall be deposited with the City's Fiscal Officer and shall be deposited to the credit of the City in the Parking Meter Fund.

2. Disbursements from the Parking Meter Fund may be made only on orders of the Board of Public Works and Safety of West Lafayette and only for the following purposes:

    a. To pay the purchase price, rental fees, and costs of installation of the parking meters;

    b. To pay the cost of maintenance, operation, and repair of the parking meters;

    c. To pay incidental costs and expenses in the operation of the parking meters, including the cost of clerks and bookkeeping;

    d. To pay the cost of traffic signal devices used in the City;

e. To pay the cost of repairing and maintaining any of the public ways, curbs, and sidewalks where the parking meters are in use, and all public ways connected with them in the City;

f. To pay the cost of acquiring, by lease or purchase, suitable land for off-street parking facilities to be operated or leased by the City;

g. To pay the principal and interest on bonds issued to acquire parking facilities and devices;

h. To pay the cost of improving and maintaining land for parking purposes and purchasing, installing, and maintaining parking meters on the land;

i. To pay the cost of providing approved school crossing protective facilities, including the costs of purchase, maintenance, operation, and repair, and all other incidental costs; and

j. To pay the cost of maintenance and operation of a municipally owned park where parking meters are located.

3. Funds deposited in the Parking Meter Fund may be expended only upon a specific appropriation made for that purpose by the City Council in the same manner that it appropriates other money.

4. At the end of a calendar year, money remaining in the City's treasury to the credit of the Parking Meter Fund remains in the Parking Meter Fund and does not revert to the general fund of the City, but the Common Council of the City of West Lafayette may, by ordinance, transfer any balance in the Parking Meter Fund to the general fund.

The Parking Meter Fund is established effective upon passage.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

Sponsored by Mayor Erin R. Easter

**ORDINANCE NO. 29-2024**

AN ORDINANCE ESTABLISHING THE WEST LAFAYETTE
PARKING METER FUND

WHEREAS, the City of West Lafayette, Indiana (the "City") has adopted Ordinance No. 28-2024, permitting it to utilize parking meters and related technologies in the City;

WHEREAS, I.C. § 36-9-12 *et seq*. governs the use of parking meters by municipalities, including the City;

WHEREAS, I.C. § 36-9-12 *et seq*. requires that the City establish a special fund wherein license fees collected from parking meters by the City are to be deposited (the "Parking Meter Fund");

WHEREAS, pursuant to and in accordance with I.C. § 36-9-12-4, the City establishes the Parking Meter Fund for the collection of license fees from parking meters utilized by the City;

WHEREAS the use of parking meters and related technologies will serve the public health, safety, and welfare of the residents of the City by making parking more available in certain high-traffic areas and would benefit the City;

WHEREAS establishing the Parking Meter Fund will serve such purposes and will be maintained as special fund to receive all monies collected by the City through its parking meters; and

NOW THEREFORE there is established the Parking Meter Fund which shall be under the direction of the Board of Public Works and Safety of West Lafayette and shall be administered as follows in accordance with applicable law:

1. All license fees collected from parking meters or otherwise by Ordinance No. 28-2024 shall be deposited with the City's Fiscal Officer and shall be deposited to the credit of the City in the Parking Meter Fund.

2. Disbursements from the Parking Meter Fund may be made only on orders of the Board of Public Works and Safety of West Lafayette and only for the following purposes:

    a. To pay the purchase price, rental fees, and costs of installation of the parking meters;

    b. To pay the cost of maintenance, operation, and repair of the parking meters;

    c. To pay incidental costs and expenses in the operation of the parking meters, including the cost of clerks and bookkeeping;

    d. To pay the cost of traffic signal devices used in the City;

e. To pay the cost of repairing and maintaining any of the public ways, curbs, and sidewalks where the parking meters are in use, and all public ways connected with them in the City;

f. To pay the cost of acquiring, by lease or purchase, suitable land for off-street parking facilities to be operated or leased by the City;

g. To pay the principal and interest on bonds issued to acquire parking facilities and devices;

h. To pay the cost of improving and maintaining land for parking purposes and purchasing, installing, and maintaining parking meters on the land;

i. To pay the cost of providing approved school crossing protective facilities, including the costs of purchase, maintenance, operation, and repair, and all other incidental costs; and

j. To pay the cost of maintenance and operation of a municipally owned park where parking meters are located.

3. Funds deposited in the Parking Meter Fund may be expended only upon a specific appropriation made for that purpose by the City Council in the same manner that it appropriates other money.

4. At the end of a calendar year, money remaining in the City's treasury to the credit of the Parking Meter Fund remains in the Parking Meter Fund and does not revert to the general fund of the City, but the Common Council of the City of West Lafayette may, by ordinance, transfer any balance in the Parking Meter Fund to the general fund.

The Parking Meter Fund is established effective September 3, 2024.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

# ORDINANCE NO. 30-2024 (2nd Amended)

## AN ORDINANCE SETTING THE 2025 CITY BUDGET AND SETTING THE 2025 TAX LEVY ON PROPERTY AND TAX RATE

AN ORDINANCE APPROPRIATING MONIES FOR THE PURPOSE OF DEFRAYING THE EXPENSES OF THE CITY OF WEST LAFAYETTE, INDIANA, FOR THE FISCAL YEAR BEGINNING JANUARY 1, 2025, AND ENDING DECEMBER 31, 2025, INCLUDING ALL OUTSTANDING CLAIMS AND OBLIGATIONS, AND FIXING A TIME WHEN THE SAME SHALL TAKE EFFECT, AND SETTING THE TAX LEVIES AND TAX RATES TO MEET THE NECESSARY EXPENSES OF THE 2025 BUDGET OF THE CITY OF WEST LAFAYETTE, INDIANA.

SECTION 1.
BE IT ORDAINED BY THE COMMON COUNCIL OF THE CIVIL CITY OF WEST LAFAYETTE, INDIANA, that: for the expenses of the City government and its institutions for the fiscal year beginning January 1, 2025, and ending December 31, 2025, the following sums of money are hereby appropriated and ordered set apart out of the funds herein named and for the purposes herein specified, subject to the laws governing the same and also subject to the conditions provided in this ordinance. Such sums herein appropriated shall be held otherwise expressly stipulated and provided by law.

SECTION 2.
That for the said fiscal year there is appropriated out of the following funds of the City, the following:

| **Mayor Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 201,059 |
| SUPPLIES | | 7,600 |
| SERVICES AND CHARGES | | 108,700 |
| Total | $ | 317,359 |

| **Clerk Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 218,555 |
| SUPPLIES | | 6,150 |
| SERVICES AND CHARGES | | 161,200 |
| DEBT SERVICE | | 2,200 |
| Total | $ | 388,105 |

| **City Court Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 15,526 |
| Total | $ | 15,526 |

| **Common Council Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 154,038 |
| Total | $ | 154,038 |

| Building Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 169,214 |
| SUPPLIES | | 9,150 |
| SERVICES AND CHARGES | | 19,450 |
| Total | $ | 197,814 |

| Communications Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 339,708 |
| SUPPLIES | | 13,600 |
| SERVICES AND CHARGES | | 67,495 |
| CAPITAL OUTLAY | | 3,200 |
| Total | $ | 424,003 |

| Engineering Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 380,716 |
| SUPPLIES | | 11,400 |
| SERVICES AND CHARGES | | 409,025 |
| Total | $ | 801,141 |

| Facilities Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 24,744 |
| SUPPLIES | | 15,000 |
| SERVICES AND CHARGES | | 649,000 |
| Total | $ | 688,744 |

| Finance Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 428,656 |
| SUPPLIES | | 3,750 |
| SERVICES AND CHARGES | | 379,640 |
| CAPITAL OUTLAY | | 2,000 |
| Total | $ | 814,046 |

| Human Relations Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 487,512 |
| SUPPLIES | | 385 |
| SERVICES AND CHARGES | | 106,617 |
| Total | $ | 594,514 |

| Information Technology Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 339,778 |
| Total | $ | 339,778 |

| Legal Department | | |
|---|---|---|
| SUPPLIES | $ | 155,000 |
| Total | $ | 155,000 |

| Police Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 8,189,651 |
| SUPPLIES | | 322,600 |
| SERVICES AND CHARGES | $ | 419,800 |
| CAPITAL OUTLAY | | 5,000 |
| Total | $ | 8,937,051 |

| Fire Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 6,350,722 |
| SUPPLIES | | 120,500 |
| SERVICES AND CHARGES | | 113,800 |
| Total | $ | 6,585,022 |

| Police Merit Commission | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,189 |
| SERVICES AND CHARGES | | 10,000 |
| Total | $ | 11,189 |

| Fire Merit Commission | | |
|---|---|---|
| PERSONAL SERVICES | $ | 597 |
| SERVICES AND CHARGES | | 10,000 |
| Total | $ | 10,597 |

| Property Tax Cap (Circuit Breaker) | | |
|---|---|---|
| PROPERTY TAX CAPS | $ | 837,180 |
| **Total General Fund** | $ | 21,271,107 |

| Parks & Recreation Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,388,576 |
| SUPPLIES | | 126,750 |
| SERVICES AND CHARGES | | 235,750 |
| CAPITAL OUTLAY | | 22,000 |
| DEBT SERVICE | | 1,250 |
| PROPERTY TAX CAPS | | 107,763 |
| **Total Parks & Recreation Fund** | $ | 1,882,089 |

| Cumulative Firefighting Building & Equipment Fund | | |
|---|---|---|
| CAPITAL OUTLAY | | 88,536 |
| **Total Cumulative Firefighting Building & Equipment Fund** | $ | 88,536 |

| Cumulative Capital Development Fund | | |
|---|---|---|
| SUPPLIES | | 34,100 |
| SERVICES AND CHARGES | | 801,700 |
| CAPITAL OUTLAY | | 366,855 |
| PROPERTY TAX CAPS | | 1,205 |
| **Total Cumulative Capital Development Fund** | $ | 1,203,860 |

| Police Pension Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 53,653 |
| SERVICES AND CHARGES | | 761,130 |
| PROPERTY TAX CAPS | | 1,926 |
| **Total Police Pension Fund** | $ | 816,709 |

| Fire Pension Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 53,653 |
| SERVICES AND CHARGES | | 730,992 |
| PROPERTY TAX CAPS | | 1,926 |
| **Total Fire Pension Fund** | $ | 786,571 |

| Motor Vehicle Highway Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 882,733 |
| SUPPLIES | | 286,150 |
| SERVICES AND CHARGES | | 1,038,100 |
| CAPITAL OUTLAY | | 848,000 |
| **Total Motor Vehicle Highway Fund** | $ | 3,054,983 |

| Fire Fighting Fund | | |
|---|---|---|
| SERVICES AND CHARGES | | 8,000 |
| **Total Fire Fighting Fund** | $ | 8,000 |

| Local Road & Street Fund | | |
|---|---|---|
| SUPPLIES | | 211,000 |
| SERVICES AND CHARGES | | 117,700 |
| CAPITAL OUTLAY | | 90,000 |
| **Total Local Road & Street Fund** | $ | 418,700 |

| Economic Development Income Tax Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,300,203 |
| SUPPLIES | | 35,525 |
| SERVICES AND CHARGES | | 2,018,560 |
| CAPITAL OUTLAY | | 143,500 |
| **Total Economic Development Income Tax Fund** | $ | 3,497,788 |

| Law Enforcement Continuing Education Fund | | |
|---|---|---|
| SERVICES AND CHARGES | | 18,500 |
| **Total Law Enforcement Continuing Education Fund** | $ | 18,500 |

| Rental Housing Inspection Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 372,304 |
| SUPPLIES | | 7,350 |
| SERVICES AND CHARGES | | 18,100 |
| **Total Rental Housing Inspection Fund** | $ | 397,754 |

| Public Safety Local Income Tax | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,079,175 |
| SERVICES AND CHARGES | | 95,464 |
| CAPITAL OUTLAY | | 31,000 |
| **Total Public Safety Local Income Tax** | $ | 1,205,639 |
| Grand Total | $ | 34,650,236 |

SECTION 3.
Appropriations for the 2025 City budget as shown on State Board of Accounts prescribed Budget Form 1 and Form 4-A for each fund and department are included herein.

SECTION 4.
BE IT FURTHER ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, that: the following tax levies and tax rates for the several funds of the City have been determined to be necessary for the purpose of raising revenue to meet the necessary expense of the City of West Lafayette for the fiscal year beginning January 1, 2025, and ending December 31, 2025.

SECTION 5.

LEVY ON PROPERTY

| Fund | Funds To Be Raised | Tax Rate |
|---|---|---|
| General | 12,498,000 | 0.8619 |
| Parks and Recreation | 1,580,000 | 0.1090 |
| Cumulative Firefighting Building & Equipment | 15,000 | 0.0010 |
| Fire Pension | 30,000 | 0.0021 |
| Police Pension | 30,000 | 0.0021 |
| Cumulative Capital Development | 895,000 | 0.0617 |
| TOTAL: | 15,048,000 | $1.0378 |

Estimated Assessed Valuation is $1,450,000,000.

SECTION 6.
The levy and tax rate as shown on the State Board of Accounts prescribed Budget Form 4-B for each fund are included herein.

SECTION 7.
This ordinance shall be in full force and effect from and after its passage and signing by the Mayor.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

# 2025 Budget with 3-Year Annual Trend

| FUND/DEPT | 2022 | 2023 | 2024 | 2nd Reading 2025 Proposed | 2025-2024 $ Change | 2025-2024 % Change | 1st Read - Bud 24 | Delta |
|---|---|---|---|---|---|---|---|---|
| General Fund | | | | | | | | |
| Mayor | 276,162 | 292,456 | 308,743 | 317,359 | $ 8,616 | 2.8% | 360,749 | (43,390) |
| Clerk | 382,094 | 357,066 | 388,553 | 388,105 | (448) | -0.1% | 390,669 | (2,564) |
| Controller | 766,740 | 484,665 | 497,225 | 814,046 | 316,821 | 63.7% | 818,604 | (4,558) |
| City Court | 24,765 | 24,765 | 17,624 | 15,526 | (2,098) | -11.9% | 15,526 | - |
| Council | 92,104 | 120,531 | 149,592 | 154,038 | 4,446 | 3.0% | 154,038 | - |
| Engineering | 309,076 | 459,146 | 591,206 | 801,141 | 209,935 | 35.5% | 814,446 | (13,305) |
| Building | 374,006 | 377,677 | 397,973 | 197,814 | (200,159) | -50.3% | 199,905 | (2,091) |
| Communications | | | | 424,003 | 424,003 | 0.0% | 427575 | (3,572) |
| Facilities | 450,510 | 425,960 | 659,703 | 688,744 | 29,041 | 4.4% | 962,050 | (273,306) |
| Information Technology | 186,880 | 204,081 | 304,529 | 339,778 | 35,249 | 11.6% | 348,108 | (8,330) |
| Police | 8,002,838 | 8,515,992 | 8,972,557 | 8,937,051 | (35,506) | -0.4% | 9,054,480 | (117,429) |
| Fire | 5,729,720 | 6,157,270 | 6,452,089 | 6,585,022 | 132,933 | 2.1% | 6,653,863 | (68,841) |
| Police Merit Commission | 18,597 | 19,689 | 13,689 | 11,189 | (2,500) | -18.3% | 11,189 | - |
| Fire Merit Commission | - | - | - | 10,597 | 10,597 | 0.0% | 10,597 | - |
| Legal | 150,000 | 150,000 | 155,000 | 155,000 | - | 0.0% | 155,000 | - |
| Human Relations | 416,830 | 767,567 | 595,624 | 594,514 | (1,110) | -0.2% | 597,560 | (3,046) |
| | | | | | | | | - |
| General Fund Total | 17,180,322 | 18,356,865 | 19,504,107 | 20,433,927 | 929,820 | 4.8% | 20,974,359 | (540,432) |
| | | | | | | | | - |
| Parks And Recreation | 1,575,227 | 1,648,933 | 1,795,946 | 1,774,326 | $ (21,620) | -1.2% | 1,898,713 | (124,387) |
| Cumulative Fire Building Equipment | - | - | - | 88,536 | 88,536 | 0.0% | 88,536 | - |
| Cumulative Capital Development | 699,950 | 818,650 | 935,700 | 1,202,655 | 266,955 | 28.5% | 1,203,860 | (1,205) |
| Rental Housng Inspection Fund | 294,916 | 297,727 | 312,496 | 397,754 | 85,258 | 27.3% | 402,228 | (4,474) |
| Police Pension | 783,697 | 782,126 | 818,211 | 814,783 | (3,428) | -0.4% | 816,709 | (1,926) |
| Fire Pension | 636,226 | 724,733 | 745,342 | 784,645 | 39,303 | 5.3% | 786,571 | (1,926) |
| Motor Vehicle Highway | 3,196,580 | 2,035,290 | 4,033,892 | 3,054,983 | (978,909) | -24.3% | 3,073,824 | (18,841) |
| Fire Fighting | 31,500 | 8,000 | 8,000 | 8,000 | - | 0.0% | 8,000 | - |
| Local Road And Street | 388,600 | 378,600 | 408,600 | 418,700 | 10,100 | 2.5% | 418,700 | - |
| Economic Development Income Tax | 1,804,684 | 2,856,965 | 3,123,794 | 3,497,788 | 373,994 | 12.0% | 3,904,711 | (406,923) |
| Public Safety Local Income Tax | 1,000,000 | 1,187,426 | 1,099,331 | 1,205,639 | 106,308 | 9.7% | 1,216,855 | (11,216) |
| Law Enforcement Continuing Education | 18,000 | 17,500 | 18,500 | 18,500 | - | 0.0% | 18,500 | - |
| | | | | | | | | - |
| Total All Funds | 27,609,702 | 29,112,815 | 32,803,919 | 33,700,236 | 896,317 | 2.7% | 34,811,566 | (1,111,330) |

Prepared by Controller

# ORDINANCE NO. 30-2024 (Amended)

## AN ORDINANCE SETTING THE 2025 CITY BUDGET AND SETTING THE 2025 TAX LEVY ON PROPERTY AND TAX RATE

AN ORDINANCE APPROPRIATING MONIES FOR THE PURPOSE OF DEFRAYING THE EXPENSES OF THE CITY OF WEST LAFAYETTE, INDIANA, FOR THE FISCAL YEAR BEGINNING JANUARY 1, 2025, AND ENDING DECEMBER 31, 2025, INCLUDING ALL OUTSTANDING CLAIMS AND OBLIGATIONS, AND FIXING A TIME WHEN THE SAME SHALL TAKE EFFECT, AND SETTING THE TAX LEVIES AND TAX RATES TO MEET THE NECESSARY EXPENSES OF THE 2025 BUDGET OF THE CITY OF WEST LAFAYETTE, INDIANA.

SECTION 1.
BE IT ORDAINED BY THE COMMON COUNCIL OF THE CIVIL CITY OF WEST LAFAYETTE, INDIANA, that: for the expenses of the City government and its institutions for the fiscal year beginning January 1, 2025, and ending December 31, 2025, the following sums of money are hereby appropriated and ordered set apart out of the funds herein named and for the purposes herein specified, subject to the laws governing the same and also subject to the conditions provided in this ordinance. Such sums herein appropriated shall be held otherwise expressly stipulated and provided by law.

SECTION 2.
That for the said fiscal year there is appropriated out of the following funds of the City, the following:

| **Mayor Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 203,649 |
| SUPPLIES | | 7,600 |
| SERVICES AND CHARGES | | 149,500 |
| Total | $ | 360,749 |

| **Clerk Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 221,119 |
| SUPPLIES | | 6,150 |
| SERVICES AND CHARGES | | 161,200 |
| DEBT SERVICE | | 2,200 |
| Total | $ | 390,669 |

| **City Court Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 15,526 |
| Total | $ | 15,526 |

| **Common Council Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 154,038 |
| Total | $ | 154,038 |

| Building Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 171,305 |
| SUPPLIES | | 9,150 |
| SERVICES AND CHARGES | | 19,450 |
| Total | $ | 199,905 |

| Communications Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 343,280 |
| SUPPLIES | | 13,600 |
| SERVICES AND CHARGES | | 67,495 |
| CAPITAL OUTLAY | | 3,200 |
| Total | $ | 427,575 |

| Engineering Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 394,021 |
| SUPPLIES | | 11,400 |
| SERVICES AND CHARGES | | 409,025 |
| Total | $ | 814,446 |

| Facilities Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 25,050 |
| SUPPLIES | | 15,000 |
| SERVICES AND CHARGES | | 922,000 |
| Total | $ | 962,050 |

| Finance Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 433,214 |
| SUPPLIES | | 3,750 |
| SERVICES AND CHARGES | | 379,640 |
| CAPITAL OUTLAY | | 2,000 |
| Total | $ | 818,604 |

| Human Relations Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 487,741 |
| SUPPLIES | | 385 |
| SERVICES AND CHARGES | | 109,434 |
| Total | $ | 597,560 |

| Information Technology Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 348,108 |
| Total | $ | 348,108 |

| Legal Department | | |
|---|---|---|
| SERVICES AND CHARGES | $ | 155,000 |
| Total | $ | 155,000 |

| Police Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 8,307,080 |
| SUPPLIES | | 322,600 |
| SERVICES AND CHARGES | $ | 419,800 |
| CAPITAL OUTLAY | | 5,000 |
| Total | $ | 9,054,480 |

| Fire Department | | |
|---|---|---|
| PERSONAL SERVICES | $ | 6,419,563 |
| SUPPLIES | | 120,500 |
| SERVICES AND CHARGES | | 113,800 |
| Total | $ | 6,653,863 |

| Police Merit Commission | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,189 |
| SERVICES AND CHARGES | | 10,000 |
| Total | $ | 11,189 |

| Fire Merit Commission | | |
|---|---|---|
| PERSONAL SERVICES | $ | 597 |
| SERVICES AND CHARGES | | 10,000 |
| Total | $ | 10,597 |

| Property Tax Cap (Circuit Breaker) | | |
|---|---|---|
| PROPERTY TAX CAPS | $ | 837,180 |
| **Total General Fund** | $ | 21,811,539 |

| Parks & Recreation Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,405,200 |
| SUPPLIES | | 126,750 |
| SERVICES AND CHARGES | | 235,750 |
| CAPITAL OUTLAY | | 22,000 |
| DEBT SERVICE | | 1,250 |
| PROPERTY TAX CAPS | | 107,763 |
| **Total Parks & Recreation Fund** | $ | 1,898,713 |

| Cumulative Firefighting Building & Equipment Fund | | |
|---|---|---|
| CAPITAL OUTLAY | | 88,536 |
| **Total Cumulative Firefighting Building & Equipment Fund** | $ | 88,536 |

| Cumulative Capital Development Fund | | |
|---|---|---|
| SUPPLIES | | 34,100 |
| SERVICES AND CHARGES | | 801,700 |
| CAPITAL OUTLAY | | 366,855 |
| PROPERTY TAX CAPS | | 1,205 |
| **Total Cumulative Capital Development Fund** | $ | 1,203,860 |

| Police Pension Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 53,653 |
| SERVICES AND CHARGES | | 761,130 |
| PROPERTY TAX CAPS | | 1,926 |
| **Total Police Pension Fund** | $ | 816,709 |

| Fire Pension Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 53,653 |
| SERVICES AND CHARGES | | 730,992 |
| PROPERTY TAX CAPS | | 1,926 |
| **Total Fire Pension Fund** | $ | 786,571 |

| Motor Vehicle Highway Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 901,574 |
| SUPPLIES | | 286,150 |
| SERVICES AND CHARGES | | 1,038,100 |
| CAPITAL OUTLAY | | 848,000 |
| **Total Motor Vehicle Highway Fund** | $ | 3,073,824 |

| Fire Fighting Fund | | |
|---|---|---|
| SERVICES AND CHARGES | | 8,000 |
| **Total Fire Fighting Fund** | $ | 8,000 |

| Local Road & Street Fund | | |
|---|---|---|
| SUPPLIES | | 211,000 |
| SERVICES AND CHARGES | | 117,700 |
| CAPITAL OUTLAY | | 90,000 |
| **Total Local Road & Street Fund** | $ | 418,700 |

| Economic Development Income Tax Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,307,126 |
| SUPPLIES | | 35,525 |
| SERVICES AND CHARGES | | 2,418,560 |
| CAPITAL OUTLAY | | 143,500 |
| **Total Economic Development Income Tax Fund** | $ | 3,904,711 |

| Law Enforcement Continuing Education Fund | | |
|---|---|---|
| SERVICES AND CHARGES | | 18,500 |
| **Total Law Enforcement Continuing Education Fund** | $ | 18,500 |

| Rental Housing Inspection Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 376,778 |
| SUPPLIES | | 7,350 |
| SERVICES AND CHARGES | | 18,100 |
| **Total Rental Housing Inspection Fund** | $ | 402,228 |

| Public Safety Local Income Tax | |
|---|---|
| PERSONAL SERVICES | $ 1,090,391 |
| SERVICES AND CHARGES | 95,464 |
| CAPITAL OUTLAY | 31,000 |
| **Total Public Safety Local Income Tax** | $ 1,216,855 |
| Grand Total | $ 35,648,746 |

SECTION 3.
Appropriations for the 2025 City budget as shown on State Board of Accounts prescribed Budget Form 1 and Form 4-A for each fund and department are included herein.

SECTION 4.
BE IT FURTHER ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, that: the following tax levies and tax rates for the several funds of the City have been determined to be necessary for the purpose of raising revenue to meet the necessary expense of the City of West Lafayette for the fiscal year beginning January 1, 2025, and ending December 31, 2025.

SECTION 5.

LEVY ON PROPERTY

| Fund | Funds To Be Raised | Tax Rate |
|---|---|---|
| General | 12,498,000 | 0.8619 |
| Parks and Recreation | 1,580,000 | 0.1090 |
| Cumulative Firefighting Building & Equipment | 15,000 | 0.0010 |
| Fire Pension | 30,000 | 0.0021 |
| Police Pension | 30,000 | 0.0021 |
| Cumulative Capital Development | 895,000 | 0.0617 |
| TOTAL: | 15,048,000 | $1.0378 |

Estimated Assessed Valuation is $1,450,000,000.

SECTION 6.
The levy and tax rate as shown on the State Board of Accounts prescribed Budget Form 4-B for each fund are included herein.

SECTION 7.
This ordinance shall be in full force and effect from and after its passage and signing by the Mayor.

# NOTICE TO TAXPAYERS

The **Notice to Taxpayers is available online at** www.budgetnotices.in.gov or by calling (888) 739-9826.

Complete details of budget estimates by fund and/or department may be seen by visiting the office of this unit of government at **222 N Chauncey Ave.**

Notice is hereby given to taxpayers of **WEST LAFAYETTE CIVIL CITY, Tippecanoe County**, Indiana that the proper officers of **West Lafayette Civil City** will conduct a public hearing on the year **2025** budget. Following this meeting, any ten or more taxpayers may object to a budget, tax rate, or tax levy by filing an objection petition with the proper officers of **West Lafayette Civil City** not more than seven days after the hearing. The objection petition must identify the provisions of the budget, tax rate, or tax levy to which taxpayers object. If a petition is filed, **West Lafayette Civil City** shall adopt with the budget a finding concerning the objections in the petition and testimony presented. Following the aforementioned hearing, the proper officers of **West Lafayette Civil City** will meet to adopt the following budget:

| | |
|---|---|
| Public Hearing Date | Tuesday, September 3, 2024 |
| Public Hearing Time | 6:30 PM |
| Public Hearing Location | 222 N Chauncey Ave |

| | |
|---|---|
| Adoption Meeting Date | Monday, October 7, 2024 |
| Adoption Meeting Time | 6:30 PM |
| Adoption Meeting Location | 222 N Chauncey Ave |

| | |
|---|---|
| Estimated Civil Max Levy | $13,843,019 |
| Property Tax Cap Credit Estimate | $950,000 |

| 1<br>Fund Name | 2<br>Budget Estimate | 3<br>Maximum Estimated Funds to be Raised (including appeals and levies exempt from maximum levy limitations) | 4<br>Excessive Levy Appeals | 5<br>Current Tax Levy | 6<br>Levy Percentage Difference (Column 3 / Column 5) |
|---|---|---|---|---|---|
| 0101-GENERAL | $20,974,359 | $11,498,464 | $0 | $11,055,265 | 4.01% |
| 0254-LOCAL INCOME TAX | $1,216,855 | $0 | $0 | $0 | |
| 0341-FIRE PENSION | $784,645 | $26,460 | $0 | $25,440 | 4.01% |
| 0342-POLICE PENSION | $814,783 | $26,460 | $0 | $25,440 | 4.01% |
| 0706-LOCAL ROAD & STREET | $418,700 | $0 | $0 | $0 | |
| 0708-MOTOR VEHICLE HIGHWAY | $3,073,824 | $0 | $0 | $0 | |
| 1191-CUMULATIVE FIRE SPECIAL | $88,536 | $0 | $0 | $15,900 | -100.00% |
| 1301-PARK & RECREATION | $1,790,950 | $1,480,098 | $0 | $1,423,049 | 4.01% |
| 2379-CUMULATIVE CAPITAL IMP (CIG TAX) | $0 | $0 | $0 | $0 | |
| 2391-CUMULATIVE CAPITAL DEVELOPMENT | $1,202,655 | $795,000 | $0 | $795,000 | 0.00% |
| 2411-ECONOMIC DEV INCOME TAX CEDIT | $3,904,711 | $0 | $0 | $0 | |
| 9500-Law Enforcement Continuing Education | $18,500 | $0 | $0 | $0 | |
| 9502-Rental Housing Inspection | $402,228 | $0 | $0 | $0 | |
| 9503-FIRE FIGHTING | $8,000 | $0 | $0 | $0 | |
| 9518-ARPA - American Rescue Plan Act | $0 | $0 | $0 | $0 | |
| Totals | $34,698,746 | $13,826,482 | $0 | $13,340,094 | |

Direct link to West Lafayette Notice:
https://budgetnotices.in.gov/ReportMaster.aspx?uid=1458&yr=2025&mode=ALL

# ORDINANCE NO. 30-2024

## AN ORDINANCE SETTING THE 2025 CITY BUDGET AND SETTING THE 2025 TAX LEVY ON PROPERTY AND TAX RATE

AN ORDINANCE APPROPRIATING MONIES FOR THE PURPOSE OF DEFRAYING THE EXPENSES OF THE CITY OF WEST LAFAYETTE, INDIANA, FOR THE FISCAL YEAR BEGINNING JANUARY 1, 2025, AND ENDING DECEMBER 31, 2025, INCLUDING ALL OUTSTANDING CLAIMS AND OBLIGATIONS, AND FIXING A TIME WHEN THE SAME SHALL TAKE EFFECT, AND SETTING THE TAX LEVIES AND TAX RATES TO MEET THE NECESSARY EXPENSES OF THE 2025 BUDGET OF THE CITY OF WEST LAFAYETTE, INDIANA.

SECTION 1.
BE IT ORDAINED BY THE COMMON COUNCIL OF THE CIVIL CITY OF WEST LAFAYETTE, INDIANA, that: for the expenses of the City government and its institutions for the fiscal year beginning January 1, 2025, and ending December 31, 2025, the following sums of money are hereby appropriated and ordered set apart out of the funds herein named and for the purposes herein specified, subject to the laws governing the same and also subject to the conditions provided in this ordinance. Such sums herein appropriated shall be held otherwise expressly stipulated and provided by law.

SECTION 2.
That for the said fiscal year there is appropriated out of the following funds of the City, the following:

| **Mayor Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 203,649 |
| SUPPLIES | | 7,600 |
| SERVICES AND CHARGES | | 149,500 |
| Total | $ | 360,749 |

| **Clerk Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 221,119 |
| SUPPLIES | | 6,150 |
| SERVICES AND CHARGES | | 161,200 |
| DEBT SERVICE | | 2,200 |
| Total | $ | 390,669 |

| **City Court Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 15,526 |
| Total | $ | 15,526 |

| **Common Council Department** | | |
|---|---|---|
| PERSONAL SERVICES | $ | 154,038 |
| Total | $ | 154,038 |

**Building Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 171,305 |
| SUPPLIES | | 9,150 |
| SERVICES AND CHARGES | | 19,450 |
| Total | $ | 199,905 |

**Communications Department**

| | | |
|---|---|---|
| SUPPLIES | $ | 343,280 |
| SERVICES AND CHARGES | | 13,600 |
| CAPITAL OUTLAY | | 67,495 |
| DEBT SERVICE | | 3,200 |
| Total | $ | 427,575 |

**Engineering Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 394,021 |
| SUPPLIES | | 11,400 |
| SERVICES AND CHARGES | | 409,025 |
| Total | $ | 814,446 |

**Facilities Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 25,050 |
| SUPPLIES | | 15,000 |
| SERVICES AND CHARGES | | 922,000 |
| Total | $ | 962,050 |

**Finance Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 433,214 |
| SUPPLIES | | 3,750 |
| SERVICES AND CHARGES | | 379,640 |
| CAPITAL OUTLAY | | 2,000 |
| Total | $ | 818,604 |

**Human Relations Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 487,741 |
| SUPPLIES | | 385 |
| SERVICES AND CHARGES | | 109,434 |
| Total | $ | 597,560 |

**Information Technology Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 348,108 |
| Total | $ | 348,108 |

**Legal Department**

| | | |
|---|---|---|
| SUPPLIES | $ | 155,000 |
| Total | $ | 155,000 |

**Police Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 8,307,080 |
| SUPPLIES | | 322,600 |
| SERVICES AND CHARGES | $ | 419,800 |
| CAPITAL OUTLAY | | 5,000 |
| Total | $ | 9,054,480 |

**Fire Department**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 6,419,563 |
| SUPPLIES | | 120,500 |
| SERVICES AND CHARGES | | 113,800 |
| Total | $ | 6,653,863 |

**Police Merit Commission**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,189 |
| SERVICES AND CHARGES | | 10,000 |
| Total | $ | 11,189 |

**Fire Merit Commission**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 597 |
| SERVICES AND CHARGES | | 10,000 |
| Total | $ | 10,597 |

**Property Tax Cap (Circuit Breaker)**

| | | |
|---|---|---|
| PROPERTY TAX CAPS | $ | 837,180 |
| **Total General Fund** | $ | 21,811,539 |

**Parks & Recreation Fund**

| | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,405,200 |
| SUPPLIES | | 126,750 |
| SERVICES AND CHARGES | | 235,750 |
| CAPITAL OUTLAY | | 22,000 |
| DEBT SERVICE | | 1,250 |
| PROPERTY TAX CAPS | | 107,763 |
| **Total Parks & Recreation Fund** | $ | 1,898,713 |

**Cumulative Firefighting Building & Equipment Fund**

| | | |
|---|---|---|
| CAPITAL OUTLAY | | 88,536 |
| **Total Cumulative Firefighting Building & Equipment Fund** | $ | 88,536 |

**Cumulative Capital Development Fund**

| | | |
|---|---|---|
| SUPPLIES | | 34,100 |
| SERVICES AND CHARGES | | 801,700 |
| CAPITAL OUTLAY | | 366,855 |
| PROPERTY TAX CAPS | | 1,205 |
| **Total Cumulative Capital Development Fund** | $ | 1,203,860 |

| Police Pension Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 53,653 |
| SERVICES AND CHARGES | | 761,130 |
| PROPERTY TAX CAPS | | 1,926 |
| **Total Police Pension Fund** | $ | 816,709 |

| Fire Pension Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 53,653 |
| SERVICES AND CHARGES | | 730,992 |
| PROPERTY TAX CAPS | | 1,926 |
| **Total Fire Pension Fund** | $ | 786,571 |

| Motor Vehicle Highway Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 901,574 |
| SUPPLIES | | 286,150 |
| SERVICES AND CHARGES | | 1,038,100 |
| CAPITAL OUTLAY | | 848,000 |
| **Total Motor Vehicle Highway Fund** | $ | 3,073,824 |

| Fire Fighting Fund | | |
|---|---|---|
| SERVICES AND CHARGES | | 8,000 |
| **Total Fire Fighting Fund** | $ | 8,000 |

| Local Road & Street Fund | | |
|---|---|---|
| SUPPLIES | | 211,000 |
| SERVICES AND CHARGES | | 117,700 |
| CAPITAL OUTLAY | | 90,000 |
| **Total Local Road & Street Fund** | $ | 418,700 |

| Economic Development Income Tax Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,307,126 |
| SUPPLIES | | 35,525 |
| SERVICES AND CHARGES | | 2,418,560 |
| CAPITAL OUTLAY | | 143,500 |
| **Total Economic Development Income Tax Fund** | $ | 3,904,711 |

| Law Enforcement Continuing Education Fund | | |
|---|---|---|
| SERVICES AND CHARGES | | 18,500 |
| **Total Law Enforcement Continuing Education Fund** | $ | 18,500 |

| Rental Housing Inspection Fund | | |
|---|---|---|
| PERSONAL SERVICES | $ | 376,778 |
| SUPPLIES | | 7,350 |
| SERVICES AND CHARGES | | 18,100 |
| **Total Rental Housing Inspection Fund** | $ | 402,228 |

| Public Safety Local Income Tax | | |
|---|---|---|
| PERSONAL SERVICES | $ | 1,090,391 |
| SERVICES AND CHARGES | | 95,464 |
| CAPITAL OUTLAY | | 31,000 |
| **Total Public Safety Local Income Tax** | $ | 1,216,855 |
| Grand Total | $ | 35,648,746 |

SECTION 3.
Appropriations for the 2025 City budget as shown on State Board of Accounts prescribed Budget Form 1 and Form 4-A for each fund and department are included herein.

SECTION 4.
BE IT FURTHER ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, that: the following tax levies and tax rates for the several funds of the City have been determined to be necessary for the purpose of raising revenue to meet the necessary expense of the City of West Lafayette for the fiscal year beginning January 1, 2025, and ending December 31, 2025.

SECTION 5.

LEVY ON PROPERTY

| Fund | Funds To Be Raised | Tax Rate |
|---|---|---|
| General | 12,498,000 | 0.8619 |
| Parks and Recreation | 1,580,000 | 0.1090 |
| Cumulative Firefighting Building & Equipment | 15,000 | 0.0010 |
| Fire Pension | 30,000 | 0.0021 |
| Police Pension | 30,000 | 0.0021 |
| Cumulative Capital Development | 895,000 | 0.0617 |
| TOTAL: | 5,048,000 | $1.0378 |

Estimated Assessed Valuation is $1,450,000,000.

SECTION 6.
The levy and tax rate as shown on the State Board of Accounts prescribed Budget Form 4-B for each fund are included herein.

SECTION 7.
This ordinance shall be in full force and effect from and after its passage and signing by the Mayor.

Sponsored by Councilors Stacey Burr
and Kathy Parker

# Ordinance No. 31-2024 (Amended)

## AN ORDINANCE TO ESTABLISH THE DESIGNATION AND USE OF UNRESTRICTED OPIOID SETTLEMENT FUNDS

WHEREAS, the City of West Lafayette, Indiana ("the City") has received funds as part of a nationwide Opioid Settlement Agreement; and

WHEREAS, the Opioid Settlement Agreement provides compensation to municipalities across the United States to mitigate the harms caused by opioid addiction and the opioid crisis; and

WHEREAS, the City acknowledges the severe impact that opioid addiction has had on individuals, families, and the community as a whole, and recognizes the importance of utilizing these funds to address and mitigate these impacts; and

WHEREAS, the City is committed to ensuring that all funds contained in the Opioid-Restricted Fund (#2257) and Opioid-Unrestricted Fund (#2256), as established by the West Lafayette Common Council in Resolution No. 27-22, now and in the future, are used exclusively for the purposes intended by the settlement.

NOW, THEREFORE, BE IT ORDAINED by the City Council of West Lafayette, Indiana:

**Section 1: Purpose**

The purpose of this ordinance is to ensure that all future Opioid-Restricted Fund (#2257) and Opioid-Unrestricted Fund (#2256) received by the City of West Lafayette from the Opioid Settlement Agreement are designated and utilized exclusively for mitigating the harms associated with opioid addiction within the community.

**Section 2: Permissible Uses of Opioid Settlement Funds**

Opioid settlement funds shall be used for the following purposes:

1. **Prevention Programs:** Initiatives aimed at preventing opioid addiction, including public education campaigns, community outreach programs, and school-based prevention initiatives, and other similar programs.
2. **Treatment Programs:** Funding for treatment services for individuals suffering from opioid addiction, including inpatient and outpatient treatment programs, counseling services, and support groups, and other similar programs.
3. **Recovery Support Services:** Programs that support individuals in recovery from opioid addiction, including housing assistance, job training, and peer support services, and other similar services.
4. **Harm Reduction Programs:** Initiatives aimed at reducing the harm caused by opioid addiction, including to needle exchange programs, distribution of naloxone, and safe disposal of prescription medications, and other similar programs.

5. **Law Enforcement and Public Safety:** Support for law enforcement and public safety initiatives related to opioid addiction, including training for first responders, funding for social workers who provide mental health and social support services to address the complexities of opioid addiction, mental health services, and social support, and other similar programs.
6. **Research and Data Collection:** Funding for research and data collection efforts to better understand the opioid crisis and measure the effectiveness of programs funded by the Opioid Settlement Agreement.

**Section 3: Administration, Oversight, and Transparency**

1. The City shall appoint an Opioid Mitigation Fund Advisory Committee consisting of representatives from public health, law enforcement, community organizations, and other relevant stakeholders.
2. The Advisory Committee shall be responsible for reviewing and recommending funding proposals to the City Council.
3. The Advisory Committee shall submit an annual report to the City Council detailing the use of funds and the outcomes of funded programs.
4. All expenditures from the Opioid-Restricted Fund (#2257) and Opioid-Unrestricted Fund (#2256) Funds shall be publicly reported and subject to audit, as per state law.
5. The City shall provide regular updates to the community on the impact of programs funded by the Opioid Settlement Agreement.

**Section 4: Effective Date**

This ordinance shall be in full force and effect from and after its passage and approval by the City Council and Mayor of West Lafayette.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

Sponsored By: Mayor John R. Dennis

**RESOLUTION NO. 04-22**

**RESOLUTION TO OPT BACK IN TO OPIOIDS SETTLEMENT PURSUANT TO INDIANA CODE 4-6-15-2**

**WHEREAS**, The City of West Lafayette has been actively engaged in pursuing damages caused by the manufacture, sale, and distribution of opioids through outside counsel in multidistrict litigation; and

**WHEREAS**, recent legislation amending Indiana Code 4-6-15 has been adopted by the Indiana legislature and signed into law by the Governor; and

**WHEREAS**, The City of West Lafayette, Indiana, after due consideration of said legislation, has determined that it is in the best interest of its citizens to opt back in to the opioids' settlements under Indiana Code 4-6-15-2.

**NOW, THEREFORE, BE IT RESOLVED** by The City of West Lafayette, Indiana that The City of West Lafayette, Indiana, having considered whether to elect to opt back in to the opioids settlements under Indiana Code 4-6-15-2, hereby resolves that The City of West Lafayette now exercises its election to opt back in to the opioid settlements, and orders its duly authorized agent to submit a certified copy of this Resolution to the Indiana Attorney General by July 15, 2022.

**BE IT FURTHER RESOLVED** that the West Lafayette Corporation Counsel or designee is authorized to execute for and on behalf of the City the following documents which are attached hereto:

1. Distributors Settlement Participation Form;
2. Janssen Settlement Participation Form;
3. Amendment to Agreement for Professional Services etc.;
4. Notice of Election to Opt Back In to Opioids Settlement; and

**BE IT FURTHER RESOLVED** that the West Lafayette City Clerk is hereby authorized to execute for and on behalf of the City the following document which is attached hereto:

5. Certification.

INTRODUCED ON FIRST READING ON THE 7 DAY OF March, 2022.

MOTION TO ADOPT MADE BY COUNCILOR DeBoer, AND SECONDED BY COUNCILOR Kang.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE 7 DAY OF March, 2022, HAVING BEEN PASSED BY A VOTE OF 7 IN FAVOR AND Ø OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Blanco | ✓ | | | |
| Brown | ✓ | | | |
| Bunder | ✓ | | | |
| DeBoer | ✓ | | | |
| Kang | ✓ | | | |
| Leverenz | | | ✓ | |
| Parker | ✓ | | | |
| Sanders | ✓ | | | |
| Thomas | | | ✓ | |

Peter Bunder, Presiding Officer

Attest:

Sana G. Booker, Clerk

CITY OF WEST LAFAYETTE SEAL Clerk INDIANA

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE 8 DAY OF March, 2022.

Sana G. Booker, Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE 8 DAY OF March, 2022.

John R. Dennis, Mayor

Attest:

Sana G. Booker, Clerk

CITY OF WEST LAFAYETTE SEAL Clerk INDIANA

APPROVED AS TO LEGAL FORM:

Eric H. Burns, Corporation Counsel

# Settlement Participation Form

| | | |
|---|---|---|
| Governmental Entity: City of West Lafayette | | State: IN |
| Authorized Signatory: | Eric H. Burns, Corporation Counsel | |
| Address 1: | 8 N. 3rd St., Ste 401 | |
| Address 2: | P.O. Box 499 | |
| City, State, Zip: | Lafayette, IN 47902 | |
| Phone: | (765) 742-1988 | |
| Email: | eburns@witheredlaw.com | |

The governmental entity identified above ("Governmental Entity"), in order to obtain and in consideration for the benefits provided to the Governmental Entity pursuant to the Settlement Agreement dated July 21, 2021 ("Distributor Settlement"), and acting through the undersigned authorized official, hereby elects to participate in the Distributor Settlement, release all Released Claims against all Released Entities, and agrees as follows.

1. The Governmental Entity is aware of and has reviewed the Distributor Settlement, understands that all terms in this Election and Release have the meanings defined therein, and agrees that by this Election, the Governmental Entity elects to participate in the Distributor Settlement and become a Participating Subdivision as provided therein.

2. The Governmental Entity shall, within 14 days of the Reference Date and prior to the filing of the Consent Judgment, dismiss with prejudice any Released Claims that it has filed.

3. The Governmental Entity agrees to the terms of the Distributor Settlement pertaining to Subdivisions as defined therein.

4. By agreeing to the terms of the Distributor Settlement and becoming a Releasor, the Governmental Entity is entitled to the benefits provided therein, including, if applicable, monetary payments beginning after the Effective Date.

5. The Governmental Entity agrees to use any monies it receives through the Distributor Settlement solely for the purposes provided therein.

6. The Governmental Entity submits to the jurisdiction of the court in the Governmental Entity's state where the Consent Judgment is filed for purposes limited to that court's role as provided in, and for resolving disputes to the extent provided in, the Distributor Settlement.

7. The Governmental Entity has the right to enforce the Distributor Settlement as provided therein.

8. The Governmental Entity, as a Participating Subdivision, hereby becomes a Releasor for all purposes in the Distributor Settlement, including but not limited to all provisions of Part XI, and along with all departments, agencies, divisions, boards, commissions, districts, instrumentalities of any kind and attorneys, and any person in their official capacity elected or appointed to serve any of the foregoing and any agency, person, or other entity claiming by or through any of the foregoing, and any other entity identified in the definition of Releasor, provides for a release to the fullest extent of its authority. As a Releasor, the Governmental Entity hereby absolutely, unconditionally, and irrevocably covenants not to bring, file, or claim, or to cause, assist or permit to be brought, filed, or claimed, or to otherwise seek to establish liability for any Released Claims against any Released Entity in any forum whatsoever. The releases provided for in the Distributor Settlement are intended by the Parties to be broad and shall be interpreted so as to give the Released Entities the broadest possible bar against any liability relating in any way to Released Claims and extend to the full extent of the power of the Governmental Entity to release claims. The Distributor Settlement shall be a complete bar to any Released Claim.

9. The Governmental Entity hereby takes on all rights and obligations of a Participating Subdivision as set forth in the Distributor Settlement.

10. In connection with the releases provided for in the Distributor Settlement, each Governmental Entity expressly waives, releases, and forever discharges any and all provisions, rights, and benefits conferred by any law of any state or territory of the United States or other jurisdiction, or principle of common law, which is similar, comparable, or equivalent to § 1542 of the California Civil Code, which reads:

> **General Release; extent.** A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release that, if known by him or her, would have materially affected his or her settlement with the debtor or released party.

A Releasor may hereafter discover facts other than or different from those which it knows, believes, or assumes to be true with respect to the Released Claims, but each Governmental Entity hereby expressly waives and fully, finally, and forever settles, releases and discharges, upon the Effective Date, any and all Released Claims that may exist as of such date but which Releasors do not know or suspect to exist, whether through ignorance, oversight, error, negligence or through no fault whatsoever, and which, if known, would materially affect the Governmental Entities' decision to participate in the Distributor Settlement.

11. Nothing herein is intended to modify in any way the terms of the Distributor Settlement, to which Governmental Entity hereby agrees. To the extent this Election and Release is interpreted differently from the Distributor Settlement in any respect, the Distributor Settlement controls.

I swear under penalty of perjury that I have all necessary power and authorization to execute this Election and Release on behalf of the Governmental Entity.

Signature: _____

Name: Eric H. Burns

Title: Corporation Counsel

Date: 3/7/22

# Settlement Participation Form

| | | |
|---|---|---|
| Governmental Entity: City of West Lafayette | | State: IN |
| Authorized Signatory: | Eric H. Burns, Corporation Counsel | |
| Address 1: | 8 N. 3rd St., Ste. 401 | |
| Address 2: | P.O. Box 499 | |
| City, State, Zip: | Lafayette, IN 47902 | |
| Phone: | (765) 742-1988 | |
| Email: | eburns@witheredlaw.com | |

The governmental entity identified above ("Governmental Entity"), in order to obtain and in consideration for the benefits provided to the Governmental Entity pursuant to the Settlement Agreement dated July 21, 2021 ("Janssen Settlement"), and acting through the undersigned authorized official, hereby elects to participate in the Janssen Settlement, release all Released Claims against all Released Entities, and agrees as follows.

1. The Governmental Entity is aware of and has reviewed the Janssen Settlement, understands that all terms in this Election and Release have the meanings defined therein, and agrees that by this Election, the Governmental Entity elects to participate in the Janssen Settlement and become a Participating Subdivision as provided therein.

2. The Governmental Entity shall, within 14 days of the Reference Date and prior to the filing of the Consent Judgment, dismiss with prejudice any Released Claims that it has filed.

3. The Governmental Entity agrees to the terms of the Janssen Settlement pertaining to Subdivisions as defined therein.

4. By agreeing to the terms of the Janssen Settlement and becoming a Releasor, the Governmental Entity is entitled to the benefits provided therein, including, if applicable, monetary payments beginning after the Effective Date.

5. The Governmental Entity agrees to use any monies it receives through the Janssen Settlement solely for the purposes provided therein.

6. The Governmental Entity submits to the jurisdiction of the court in the Governmental Entity's state where the Consent Judgment is filed for purposes limited to that court's role as provided in, and for resolving disputes to the extent provided in, the Janssen Settlement.

7. The Governmental Entity has the right to enforce the Janssen Settlement as provided therein.

8. The Governmental Entity, as a Participating Subdivision, hereby becomes a Releasor for all purposes in the Janssen Settlement, including but not limited to all provisions of Section IV (Release), and along with all departments, agencies, divisions, boards, commissions, districts, instrumentalities of any kind and attorneys, and any person in their official capacity elected or appointed to serve any of the foregoing and any agency, person, or other entity claiming by or through any of the foregoing, and any other entity identified in the definition of Releasor, provides for a release to the fullest extent of its authority. As a Releasor, the Governmental Entity hereby absolutely, unconditionally, and irrevocably covenants not to bring, file, or claim, or to cause, assist or permit to be brought, filed, or claimed, or to otherwise seek to establish liability for any Released Claims against any Released Entity in any forum whatsoever. The releases provided for in the Janssen Settlement are intended by the Parties to be broad and shall be interpreted so as to give the Released Entities the broadest possible bar against any liability relating in any way to Released Claims and extend to the full extent of the power of the Governmental Entity to release claims. The Janssen Settlement shall be a complete bar to any Released Claim.

9. In connection with the releases provided for in the Janssen Settlement, each Governmental Entity expressly waives, releases, and forever discharges any and all provisions, rights, and benefits conferred by any law of any state or territory of the United States or other jurisdiction, or principle of common law, which is similar, comparable, or equivalent to § 1542 of the California Civil Code, which reads:

> **General Release; extent.** A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release that, if known by him or her, would have materially affected his or her settlement with the debtor or released party.

A Releasor may hereafter discover facts other than or different from those which it knows, believes, or assumes to be true with respect to the Released Claims, but each Governmental Entity hereby expressly waives and fully, finally, and forever settles, releases and discharges, upon the Effective Date, any and all Released Claims that may exist as of such date but which Releasors do not know or suspect to exist, whether through ignorance, oversight, error, negligence or through no fault whatsoever, and which, if known, would materially affect the Governmental Entities' decision to participate in the Janssen Settlement.

10. Nothing herein is intended to modify in any way the terms of the Janssen Settlement, to which Governmental Entity hereby agrees. To the extent this Election and Release is interpreted differently from the Janssen Settlement in any respect, the Janssen Settlement controls.

I swear under penalty of perjury that I have all necessary power and authorization to execute this Election and Release on behalf of the Governmental Entity.

Signature: _____

Name: Eric H. Burns

Title: Corporation Counsel

Date: 3/7/22

**City of West Lafayette, Indiana ("Political Subdivision")**

**Amendment to Agreement for Professional Services Relating to Opioids Settlements with McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation and the Johnson & Johnson Defendants**

Whereas, the Political Subdivision entered into an Agreement for Professional Services with Counsel to pursue litigation against various entities, including McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation and the Johnson & Johnson Defendants, to recover damages caused by the manufacture, sale, and distribution of opioids, and,

Whereas, the Political Subdivision has entered into an Agreement for Professional Services that provides for payment of attorneys' contingency fees in the amount of 33 1/3% of the Political Subdivision's gross recovery from the Opioids' Litigation, and,

Whereas, the presiding Judge over the opioids Multi-District Litigation No. 2804 titled *In Re: National Prescription Opiate Litigation,* the Honorable Dan Aaron Polster, entered an Order allowing enforcement of such contingent fee contracts directly from political subdivisions up to a maximum of 15% ("Order"), and encourages the establishment of a "Back Stop" fund by agreement or legislation, which is designed to incentivize Counsel to waive their right to enforce their contingent fee contracts and apply to the Contingent Fee Fund established under the Current Opioids Settlements and to receive payment from a "Back Stop" Fund and,

Whereas, the State of Indiana created a "Back Stop" Fund in Indiana Code 4-6-15, and,

Whereas, the opioids settlements with McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation and the Johnson & Johnson Defendants (the "Current Opioids Settlements") permit Counsel also to seek payment of attorneys' fees separately from a Contingent Fee Fund established by those settlements, and,

Whereas, Counsel is waiving their right to enforce their attorneys' fees under the Agreement for Professional Services as to the Current Opioids Settlements and will instead accept payment of a Reduced Attorneys' Fee in connection with the Current Opioids Settlements in the amount of 8.7% of the Political Subdivision's total gross recovery under these settlements to be withheld by the Budget Agency as provided by Indiana Code 4-6-15-5 and paid per the same schedule as the attorney fee payments from the Contingent Fee Fund established under the Current Opioids Settlements and will seek additional payments as provided under the Current Opioids Settlements, and,

Whereas, the Political Subdivision desires to pay the Reduced Attorneys' Fee in connection with the Current Opioids Settlements, to be withheld from its recovery by the Budget Agency as provided by Indiana Code 4-6-15-5, and paid to Counsel by the Budget Agency on the same schedule as the attorney fee payments from the Contingent Fee Fund established under the Current Opioids Settlements, and,

Whereas, it is estimated that the total fee paid to Counsel will represent a substantial discount from the amount owed under the Agreement for Professional Services.

Now therefore, the Political Subdivision and undersigned Counsel, pursuant to Indiana Code 4-6-15, enter into this Agreement to provide for Counsel to receive payment of the Reduced Attorney Fee as set forth in this Agreement as follows:

## A. Definitions

As used in this Agreement:

1. "Agreement for Professional Services" means the contingency fee contract entered into by the Political Subdivision and its Counsel for Counsel's representation of the Political Subdivision in Opioid litigation.

2. "Budget Agency" means the budget agency referred to under Indiana Code 4-6-15-5.

3. "Contingent Fee Fund" means the contingency fee fund established in the Current Opioids Settlements.

4. "Counsel" means the private legal counsel on the Agreement for Professional Services.

5. "Current Opioids Settlements" means the Distributor Settlement Agreement with McKesson Corporation, Cardinal Health, Inc., and AmerisourceBergen Corporation, and the Janssen Settlement Agreement with the Johnson & Johnson Defendants.

6. "Johnson & Johnson Defendants" means Johnson & Johnson, Janssen Pharmaceuticals, Inc., OrthoMcNeil-Janssen Pharmaceuticals, Inc., and Janssen Pharmaceutica, Inc.

7. "Opioid(s) Litigation" has the meaning set forth in Indiana Code 4-6-15.

8. "Opioid(s)" has the meaning set forth in Indiana Code 4-6-15.

9. "Political Subdivision" means that County, City, or Town identified at the beginning of this Agreement.

10. "Reduced Attorneys' Fee" means the amount of 8.7% of the Political Subdivision's total gross share of the Current Opioids Settlements to be received under Indiana Code 4-6-15-4(a)(2) and Indiana Code 4-6-15-4(a)(4).

**B. Scope**

1. This Agreement applies only to the Current Opioids Settlements with McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation and the Johnson & Johnson Defendants. Any amendments to this Agreement shall be submitted to the Budget Agency to withhold and make payments to Counsel as provided by Indiana Code 4-6-15-5.

**C. Payment of Attorneys' Fees to Counsel.**

1. The foregoing recitals are hereby incorporated into this Agreement.

2. Prior to distributing the Political Subdivision's share of any recovery under the Current Opioids Settlements, the Budget Agency shall withhold the Reduced Attorneys' Fee to be paid to Counsel as provided by Indiana Code 4-6-15-5. The Budget Agency shall compute the amount of the total Reduced Attorneys' Fee for each of the Current Opioids Settlements by multiplying the total gross amount to which the Political Subdivision is entitled under Indiana Code 4-6-15-4(a)(2) and Indiana Code 4-6-15-4(a)(4) for that settlement by 8.7%.

3. For the Current Opioids Settlement with McKesson Corporation, Cardinal Health, Inc., and AmerisourceBergen Corporation, the total gross amount to which the Political Subdivision is entitled under Indiana Code 4-6-15-4(a)(2) and Indiana Code 4-6-15-4(a)(4) is **$537,206.22**. The Budget Agency shall pay Counsel the Reduced Attorney Fee in the amount of and on the schedule as follows:

| Payment No. | Total Fee to Be Paid |
|---|---|
| 1 | $4,920.11 |
| 2 | $5,458.63 |
| 3 | $9,794.53 |
| 4 | $6,640.91 |
| 5 | $6,640.91 |
| 6 | $6,640.91 |
| 7 | $6,640.94 |
| Total | $46,736.94 |

4. For the Current Opioids Settlement with the Johnson & Johnson Defendants, the total gross amount to which the Political Subdivision is entitled under Indiana Code 4-6-15-4(a)(2) and Indiana Code 4-6-15-4(a)(4) is **$125,974.34**. The Budget Agency shall pay Counsel the Reduced Attorney Fee in the amounts and on the schedule as follows:

| Payment No. | Total Fee Paid to be Paid |
|---|---|
| 1 | $1,153.76 |
| 2 | $1,280.04 |
| 3 | $2,296.81 |
| 4 | $1,557.29 |
| 5 | $1,557.29 |
| 6 | $1,557.29 |
| 7 | $1,557.29 |
| Total | $10,959.77 |

5. Political Subdivision shall have no further obligation to pay attorneys' fees as to the Current Opioids Settlements.

6. If the amounts paid under a Current Opioids Settlement vary from those set forth in paragraphs C.3 and C.4, the fee and payment schedules shall be updated accordingly to provide accurate payment of the 8.7% Reduced Attorneys Fee.

7. The name, address, telephone number, and email address of the Counsel designated to receive payments of the Reduced Attorneys' Fee from the Budget Agency is:

**Cohen & Malad, LLP**
**c/o Irwin B. Levin**
One Indiana Square, Suite 1400
Indianapolis, IN 46204
317.636.6481 (office)
ilevin@cohenandmalad.com

8. All other terms of the Agreement for Professional Services remain in effect.

[This space intentionally left blank.]

Dated this 8 day of March, 2022.

Political Subdivision: City of West Lafayette

By: _____
Eric H. Burns, Corporation Counsel

COHEN & MALAD, LLP

By: _____
Name and Title

**Notice of Election to Opt Back In to Opioids Settlement Under Indiana Code 4-6-15-2**

The City of West Lafayette hereby submits notice to the Indiana Attorney General that it elects to opt back in to opioids settlement pursuant Indiana Code 4-6-15-2(d). The City of West Lafayette hereby submits the following information pursuant to Indiana Code 4-6-15-2(d):

(1) The name of the political subdivision electing to opt back in is The City of West Lafayette:

(1) The contact information for an individual at this political subdivision who can provide information regarding the decision to opt back in is Corporation Counsel, Eric H. Burns. Because this political subdivision is represented by counsel in this matter, the political subdivision requests that all communications relating to this decision to opt out be directed to its counsel as follows:

**Irwin B. Levin**
**Cohen & Malad, LLP**
One Indiana Square, Suite 1400
Indianapolis, IN 46204
317.636.6481 (office)
ilevin@cohenandmalad.com

(2) A certified copy of the resolution adopted by this political subdivision evidencing its election to opt back in of the opioids settlement pursuant to Indiana Code 4-6-15-2(d) is attached hereto.

(3) A copy of the agreement executed between the political subdivision and its private legal counsel that includes a term setting the amount of attorney's fees owed to the private legal counsel is attached hereto.

Dated this 8 day of March, 2022.

The City of West Lafayette

By: _____
Eric H. Burns, Corporation Counsel

## CERTIFICATION

I, Sana G. Booker, West Lafayette City Clerk, do hereby certify that I have compared the attached copy of the Resolution No. 04-22 : Resolution to Opt Back In to Opioids Settlement Under Indiana Code 4-6-15-2 with the original which remains of record in my office, and that said copy is a true and complete copy of the original.

In testimony whereof, I have hereunto subscribed my name and affixed the seal of The City of West Lafayette, Indiana, this 8 day of March, 2022.

By: Sana G. Booker
Sana G. Booker, Clerk

Prepared by the Controller

# RESOLUTION NO. 27-22

## A RESOLUTION TO ESTABLISH THE OPIOID-UNRESTRICTED FUND AND THE OPIOID-RESTRICTED FUND

Whereas, the City of West Lafayette is scheduled to receive approximately $600,000 Opioids Litigation as set forth in Indiana Code 4-6-15, and

Whereas, Indiana Code 4-6-15 has placed spending restrictions on a portion of those funds, and

Whereas, the City of West Lafayette desires to monitor and track receipts & expenses pertaining to the Opioid Settlement, and

Whereas, the Common Council may establish whatever funds it deems necessary to operate the City of West Lafayette.

NOW THEREFORE, BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, THAT:

SECTION 1. The City of West Lafayette establishes Opioid-Unrestricted Fund (#2256) & Opioid-Restricted Fund (#2257), per guidance from the Indiana State Board of Accounts, to track and monitor receipts & expenses that are entrusted to the City.

SECTION 2. This ordinance shall be in full force and effect after its passage and signing by the Mayor.

INTRODUCED ON FIRST AND ONLY READING ON THE 7 DAY OF November, 2022.

MOTION TO ADOPT MADE BY COUNCILOR DeBoer, AND SECONDED BY COUNCILOR Thomas.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE 7 DAY OF November, 2022, HAVING BEEN PASSED BY A VOTE OF 9 IN FAVOR AND Ø OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Blanco | ✓ | | | |
| Brown | ✓ | | | |
| Bunder | ✓ | | | |
| DeBoer | ✓ | | | |
| Hardesty | ✓ | | | |
| Leverenz | ✓ | | | |
| Parker | ✓ | | | |
| Sanders | ✓ | | | |
| Thomas | ✓ | | | |

Peter Bunder, Presiding Officer

Attest:

Sana G. Booker, Clerk

CITY OF WEST LAFAYETTE SEAL Clerk INDIANA

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE 8 DAY OF November, 2022.

Sana G. Booker, Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE 8 DAY OF November, 2022.

John R. Dennis, Mayor

Attest:

Sana G. Booker, Clerk

CITY OF WEST LAFAYETTE SEAL Clerk INDIANA

Sponsored by Councilors Stacey Burr
and Kathy Parker

# Ordinance No. 31-2024

**AN ORDINANCE TO ESTABLISH THE DESIGNATION AND USE OF UNRESTRICTED OPIOID SETTLEMENT FUNDS**

WHEREAS, the City of West Lafayette, Indiana ("the City") has received funds as part of a nationwide Opioid Settlement Agreement; and

WHEREAS, the Opioid Settlement Agreement provides compensation to municipalities across the United States to mitigate the harms caused by opioid addiction and the opioid crisis; and

WHEREAS, the City acknowledges the severe impact that opioid addiction has had on individuals, families, and the community as a whole, and recognizes the importance of utilizing these funds to address and mitigate these impacts; and

WHEREAS, the City is committed to ensuring that all funds received from the Opioid Settlement Agreement, now and in the future, are used exclusively for the purposes intended by the settlement.

NOW, THEREFORE, BE IT ORDAINED by the City Council of West Lafayette, Indiana:

## Section 1: Purpose

The purpose of this ordinance is to ensure that all future restricted and unrestricted funds received by the City of West Lafayette from the Opioid Settlement Agreement are designated and utilized exclusively for mitigating the harms associated with opioid addiction within the community.

## Section 2: Permissible Uses of Opioid Settlement Funds

Funds from the Opioid Mitigation Fund shall be used for the following purposes:

1. **Prevention Programs:** Initiatives aimed at preventing opioid addiction, including but not limited to public education campaigns, community outreach programs, and school-based prevention initiatives.
2. **Treatment Programs:** Funding for treatment services for individuals suffering from opioid addiction, including but not limited to inpatient and outpatient treatment programs, counseling services, and support groups.
3. **Recovery Support Services:** Programs that support individuals in recovery from opioid addiction, including but not limited to housing assistance, job training, and peer support services.
4. **Harm Reduction Programs:** Initiatives aimed at reducing the harm caused by opioid addiction, including but not limited to needle exchange programs, distribution of naloxone, and safe disposal of prescription medications.
5. **Law Enforcement and Public Safety:** Support for law enforcement and public safety initiatives related to opioid addiction, including but not limited to training for first responders, funding for drug courts, funding for social workers who provide mental health and social support services to address the complexities of opioid addiction, mental health services, and social support.
6. **Research and Data Collection:** Funding for research and data collection efforts to better understand the opioid crisis and measure the effectiveness of programs funded by the Opioid Settlement Agreement.

## Section 3: Administration, Oversight, and Transparency

1. The City shall appoint an Opioid Mitigation Fund Advisory Committee consisting of representatives from public health, law enforcement, community organizations, and other relevant stakeholders.
2. The Advisory Committee shall be responsible for reviewing and recommending funding proposals to the City Council.
3. The City Council shall have final approval authority over the allocation of funds from the Opioid Mitigation Fund.
4. The Advisory Committee shall submit an annual report to the City Council detailing the use of funds and the outcomes of funded programs.
5. All expenditures from the Opioid Mitigation Fund shall be publicly reported and subject to audit.
6. The City shall provide regular updates to the community on the impact of programs funded by the Opioid Settlement Agreement.

## Section 4: Effective Date

This ordinance shall be in full force and effect from and after its passage and approval by the City Council and Mayor of West Lafayette.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

# Ordinance No 32-2024

Presented by the Controller

**AN ORDINANCE TO SET THE 2025 SALARY SCHEDULE FOR ELECTED OFFICIALS, APPOINTED OFFICERS, EMPLOYEES, MEMBERS OF THE POLICE DEPARTMENT, MEMBERS OF THE FIRE DEPARTMENT, WELLNESS CENTER, AND WASTEWATER TREATMENT UTILITY OF THE CITY OF WEST LAFAYETTE, INDIANA**

WHEREAS, the Mayor of the City of West Lafayette, Indiana, hereby fixes the salary schedule for elected officials, appointed officers, employees, members of the Police Department, members of the Fire Department, Wellness Center, and Wastewater Treatment Utility of the City of West Lafayette, Indiana, for the year 2025, and requests that such salary ranges for each position be approved by the Common Council, as required by Indiana Code 36-4-7-3 and 36-8-3-3. All amounts shown are subject to the availability funds.

Be It Ordained by the Common Council of the City of West Lafayette, Indiana, that:

SECTION 1.

For the year 2025, the salary schedule for the elected officials, appointed officers, employees, members of the Police Department, members of the Fire Department, Wellness Center, and Wastewater Treatment Utility of the City of West Lafayette, Indiana, be fixed as follows:

| ELECTED OFFICIALS | | | | |
|---|---|---|---|---|
| Position | FLSA | Biweekly ($) General Fund | Biweekly ($) WWTU | Monthly ($) General Fund |
| Mayor | Exempt | 2,944.06 | 1,962.70 | |
| Clerk | Exempt | **1,730.77** ~~1,672.88~~ | **1,153.85** ~~1,115.26~~ | |
| City Judge | Exempt | 554.62 | | |
| Councilor | Exempt | | | 1,311.45 |
| Council President | | | | 40.00 |
| Council APC Representative | | | | 40.00 |

| BUILDING | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Building Commissioner | 40 | Exempt | 3,400.83 | 3,813.18 |
| Deputy Building Commissioner | 37.5 | Non-Exempt | 2,517.52 | 3,164.76 |
| Inspector | 37.5 | Non-Exempt | 2,091.10 | 2,673.39 |
| Administrative Assistant | 37.5 | Non-Exempt | 1,642.32 | 2,189.23 |
| Rental Housing Assistant | 37.5 | Non-Exempt | 1,358.96 | 1,799.39 |

| CLERK | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| 1st Deputy Clerk | 37.5 | Non-Exempt | 2,108.51 | 2,319.23 |
| Deputy Clerk | 37.5 | Non-Exempt | 1,699.77 | 1,961.26 |

| COMMUNICATION | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Director of Communications | 40 | Exempt | 3,400.83 | 3,813.18 |
| **Communications Manager** | **37.5** | **Non-Exempt** | **2,442.31** | **2,938.95** |
| **Creative Service Manager** | **37.5** | **Non-Exempt** | **2,442.31** | **2,938.95** |

| DEVELOPMENT/EDIT | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Director of Development | 40 | Exempt | 3,400.83 | 3,813.18 |
| Development Project Manager | 37.5 | Non-Exempt | 2,178.86 | 2,575.03 |
| Community Development Manager | 37.5 | Non-Exempt | 2,136.15 | 2,499.76 |
| Facilities Manager | 37.5 | Non-Exempt | 2,497.28 | 2,938.30 |
| Custodian | 37.5 | Non-Exempt | 1,158.75 | 1,467.75 |

| ENGINEERING | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| City Engineer | 40 | Exempt | 4,159.62 | 4,555.77 |
| Assistant City Engineer | 37.5 | Exempt | 3,075.15 | 3,731.18 |
| Construction Manager | 37.5 | Non-Exempt | 2,665.13 | 3,280.16 |
| Stormwater Specialist | 37.5 | Non-Exempt | 2,435.52 | 3,243.88 |
| Project Manager/GIS | 37.5 | Non-Exempt | 2,152.60 | 2,952.14 |
| Business Manager | 37.5 | Non-Exempt | 2,272.51 | 2,727.03 |

| FINANCE | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Controller | 40 | Exempt | 3,794.33 | 4,201.36 |
| Deputy Controller | 37.5 | Exempt | 2,884.49 | 3,315.01 |
| Treasury Specialist | 37.5 | Non-Exempt | 2,045.50 | 2,863.07 |
| Payroll Specialist | 37.5 | Non-Exempt | 1,636.40 | 2,431.06 |
| Accounts Payable Specialist | 37.5 | Non-Exempt | 1,636.40 | 2,431.06 |
| Accounts Receivable Specialist | 37.5 | Non-Exempt | 1,636.40 | 2,431.06 |

| FIRE - CIVILIANS | | | | | |
|---|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Lead Inspector/Investigator | 40 | Non-Exempt | 700.00 | 2,480.48 | 3,006.00 |
| Administrative Assistant | 37.5 | Non-Exempt | 0.00 | 1,642.32 | 2,189.23 |

| FIRE - SWORN FIREFIGHTERS | | | | | |
|---|---|---|---|---|---|
| Rank | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Maximum | Position |
| Chief | 40 | Exempt | 1,500.00 | 4,059.20 | Chief |
| Deputy Chief | 40 | Exempt | 1,500.00 | 3,696.96 | Deputy Chief |
| Battalion Chief | b | Non-Exempt | 1,500.00 | 3,412.52 | Battalion Chief |
| | b | Non-Exempt | 1,500.00 | 3,283.34 | Captain |
| Captain | 40 | Non-Exempt | 1,500.00 | 3,283.34 | Fire Inspections, Captain of |
| Lieutenant | b | Non-Exempt | 1,500.00 | 3,146.36 | Lieutenant |
| | | | 1,500.00 | 2,852.17 | Firefighter, First Class |
| Firefighter | b | Non-Exempt | 0.00 | 2,703.19 | Firefighter, Entry Level |
| | | | | 150.00 | Technology Support |
| | | | | 150.00 | Training Coordinator |
| | | | | 100.00 | Health & Safety Officer |
| *Additional Duties* | b | Non-Exempt | 0.00 | 100.00 | EMS Coordinator |

b – Based upon a 27-day tour of duty.

SEE ADDITIONAL STATEMENTS

| HUMAN RESOURCES | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Human Resources Director | 40 | Exempt | 3,400.83 | 3,813.18 |
| Human Resources Manager | 37.5 | Non-Exempt | 2,441.25 | 3,027.12 |
| **Human Resources Generalist** | **37.5** | **Non-Exempt** | **2,361.64** | **2,634.62** |
| ~~Human Resources Coordinator~~ | ~~37.5~~ | ~~Non-Exempt~~ | ~~1,782.37~~ | ~~2,361.64~~ |

| INFORMATION TECHNOLOGY | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Director of Technology | 40 | Exempt | 3,400.83 | 3,813.18 |
| IT Project Manager | 37.5 | Non-Exempt | 1,980.77 | 2,559.55 |
| Systems Administrator | 37.5 | Non-Exempt | 2,317.06 | 2,896.33 |
| ERP Administrator | 37.5 | Non-Exempt | 2,317.06 | 2,896.33 |
| IT Specialist | 37.5 | Non-Exempt | 1,648.00 | 2,163.00 |
| IT Support Technician | 37.5 | Non-Exempt | 1,390.50 | 1,648.00 |

| MAYOR | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Executive Assistant | 37.5 | Exempt | 2,108.51 | 2,558.42 |
| **Housing Director** | **40** | **Exempt** | **3,400.83** | **3,813.18** |

| PARKS AND RECREATION | | | | | |
|---|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Superintendent | 40 | Exempt | 0.00 | 3,400.83 | 3,813.18 |
| Assistant Superintendent | 37.5 | Exempt | 0.00 | 2,920.62 | 3,186.84 |
| Parks Director | 40 | Exempt | 700.00 | **2,190.40** ~~2,148.68~~ | **2,699.57** ~~2,648.15~~ |
| Parks Naturalist | 40 | Non-Exempt | 700.00 | 1,853.80 | 2,136.15 |
| Recreation Coordinator | 40 | Exempt | 0.00 | 1,853.80 | 2,136.15 |
| Marketing & Communication Manager | 40 | Exempt | 0.00 | 2,148.68 | 2,648.15 |
| Grant Administrator | 37.5 | Non-Exempt | 0.00 | 2,132.10 | 2,665.13 |
| **Program Manager** | **40** | **Non-Exempt** | **0.00** | **1,642.32** | **2,189.23** |
| Administrative Assistant | 37.5 | Non-Exempt | 0.00 | 1,642.32 | 2,189.23 |
| Receptionist/Building Administrator | 37.5 | Non-Exempt | 0.00 | 1,318.06 | 1,590.76 |
| Greenspace Administrator | 40 | Non-Exempt | 700.00 | 2,121.80 | 2,376.92 |
| Horticulture Technician | 40 | Non-Exempt | 700.00 | 1,722.09 | 2,021.33 |
| Forestry Technician | 40 | Non-Exempt | 700.00 | 1,722.09 | 2,060.00 |
| Maintenance Foreman | 40 | Non-Exempt | 700.00 | 1,970.17 | 2,278.36 |
| Maintenance Technician I | 40 | Non-Exempt | 700.00 | 1,932.06 | 2,242.69 |
| Maintenance Technician II | 40 | Non-Exempt | 700.00 | 1,802.78 | 1,893.43 |

| POLICE - CIVILIANS | | | | | |
|---|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Social Service & Crisis Response Specialist | 37.5 | Non-Exempt | 0.00 | 2,272.50 | 3,090.61 |
| Administrative Assistant | 37.5 | Non-Exempt | 0.00 | 1,642.32 | 2,189.23 |
| Systems Manager | 37.5 | Non-Exempt | 0.00 | 1,869.91 | 2,189.23 |
| Data Processor | 37.5 | Non-Exempt | 0.00 | 1,663.42 | 1,845.84 |
| Communications Center Supervisor | 40 | Non-Exempt | 0.00 | 2,455.84 | 2,658.58 |
| Assistant Communications Center Supervisor | 40 | Non-Exempt | 0.00 | 2,031.52 | 2,212.32 |
| Patrol Dispatcher | 40 | Non-Exempt | 0.00 | 1,977.06 | 2,157.87 |
| Probationary Patrol Dispatcher | 40 | Non-Exempt | 0.00 | 1,812.26 | 0.00 |
| Neighborhood Resource Supervisor | 37.5 | Exempt | 700.00 | 2,455.84 | 2,658.58 |
| Neighborhood Resource Officer | 37.5 | Non-Exempt | 700.00 | 1,943.01 | 2,437.56 |
| Property & Evidence Manager/Programs Director | 37.5 | Non-Exempt | 0.00 | 1,943.01 | 2,437.56 |
| Fleet/Maintenance Technician | 37.5 | Non-Exempt | 700.00 | 1,943.01 | 2,437.56 |
| School Crossing Guard | Paid $38.00 Per Assignment | | | | |

SEE ADDITIONAL STATEMENTS

| POLICE - SWORN OFFICERS | | | | | |
|---|---|---|---|---|---|
| Rank | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Maximum | Position |
| Chief | 40 | Exempt | 1,500.00 | 4,059.20 | Chief |
| Deputy Chief | 40 | Exempt | 1,500.00 | 3,696.96 | Commander of Traffic & Operations |
| Captain | 40 | Non-Exempt | 1,500.00 | 3,412.52 | Patrol, Captain of<br>Investigations, Captain of<br>Special Services, Captain of |
| Lieutenant | a | Non-Exempt | 1,500.00 | 3,283.34 | Patrol, Lieutenant of<br>Investigations, Lieutenant of<br>Special Services, Lieutenant of |
| Sergeant | a | Non-Exempt | 1,500.00 | 3,146.36 | Patrol, Sergeant of<br>Investigations, Sergeant of<br>Special Services, Sergeant of<br>Traffic, Sergeant of |
| Detective | a | Non-Exempt | 1,500.00 | 2,986.43 | Detective |
| Officer | a | Non-Exempt | 1,500.00<br>0.00 | 2,852.17<br>2,703.19 | Police Officer, First Class<br>Police Officer, Probationary |

a – Based on a 28-day tour of duty.

SEE ADDITIONAL STATEMENTS

| STREET, SANITATION, & RECYCLING | | | | | |
|---|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Street Commissioner | 40 | Exempt | 0.00 | 3,400.83 | 3,813.18 |
| Collection System Foreman | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,878.34 |
| Equipment Operator Foreman | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,878.34 |
| Sanitation Foreman | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,878.34 |
| Stormwater Foreman | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,878.34 |
| Traffic Technician Foreman | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,878.34 |
| Fleet Manager | 40 | Non-Exempt | 0.00 | 1,904.18 | 2,904.99 |
| Assistant Foreman | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,725.80 |
| Mechanic/Equipment Operator | 40 | Non-Exempt | 0.00 | 1,904.18 | 2,476.39 |
| Traffic Maintenance/Equipment Operator | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,476.37 |
| Equipment Operator/Laborer | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,476.37 |
| Driver/Collector | 40 | Non-Exempt | 700.00 | 1,904.18 | 2,476.37 |
| **Business Operations Manager** | **40** | **Non-Exempt** | **0.00** | **2,206.32** | **2,647.60** |
| Administrative Assistant | 40 | Non-Exempt | 0.00 | 1,642.32 | 2,189.23 |

SEE ADDITIONAL STATEMENTS

| WASTEWATER TREATMENT UTILITY | | | | |
|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Utility Director | 40 | Exempt | 3,400.83 | 3,813.18 |
| Maintenance Supervisor | 40 | Exempt | 2,490.92 | 3,264.28 |
| Operations Supervisor | 40 | Exempt | 2,490.92 | 3,264.28 |
| Laboratory Manager | 40 | Exempt | 2,401.73 | 3,001.15 |
| Collections Systems/GIS Supervisor | 40 | Exempt | 2,490.92 | 3,213.54 |
| Information Services/Instrumentation Technician | 40 | Non-Exempt | 2,113.42 | 2,744.79 |
| Climate Resiliency & Sustainability Officer | 40 | Non-Exempt | 1,804.09 | 2,255.11 |
| Operator | 40 | Non-Exempt | 1,745.93 | 2,402.36 |
| Maintenance/Operator | 40 | Non-Exempt | 1,745.93 | 2,402.36 |
| Laboratory Technician | 40 | Non-Exempt | 1,745.93 | 2,332.77 |
| Administrative Assistant | 40 | Non-Exempt | 1,642.32 | 2,189.23 |

SEE ADDITIONAL STATEMENTS

| WELLNESS CENTER | | | | | |
|---|---|---|---|---|---|
| Position | # Hours/ Workweek | FLSA | Annual ($) Clothing Allowance | Biweekly ($) Minimum | Biweekly ($) Maximum |
| Wellness Center Director | 40 | Exempt | 0.00 | 2,688.85 | 2,920.62 |
| Wellness Coordinator | 40 | Exempt | 0.00 | 1,853.80 | 2,136.15 |
| Aquatics Coordinator | 40 | Exempt | 0.00 | 1,853.80 | 2,136.15 |
| Assistant Aquatics Coordinator | 40 | Non-Exempt | 0.00 | 1,559.56 | 2,005.15 |
| Recreation Coordinator | 40 | Exempt | 0.00 | 1,853.80 | 2,136.15 |
| Youth Development Coordinator | 40 | Exempt | 0.00 | 1,853.80 | 2,136.15 |
| Assistant Youth Development Coordinator | 40 | Non-Exempt | 0.00 | 1,559.56 | 2,005.15 |
| Membership & Events Coordinator | 40 | Exempt | 0.00 | 1,853.80 | 2,136.15 |
| Hub Services Associate | 40 | Non-Exempt | 0.00 | 1,343.22 | 1,790.96 |
| Maintenance Technician I | 40 | Non-Exempt | 700.00 | 1,932.06 | 2,242.69 |
| Custodian | 40 | Non-Exempt | 0.00 | 1,236.00 | 1,565.60 |

PENSION FUNDS

The Police Pension Secretary and the Fire Pension Secretary are each paid $300.00 monthly.

ADDITIONAL STATEMENTS RELATED TO THE:

Fire Department:

1. The hourly rate for all non-exempt firefighters shall be calculated by dividing the annual salary by 13.5 (tours) and by 204 (hours) per the Fair Labor Standards Act guidelines.
2. Firefighters who work on Thanksgiving Day and/or December 25th will be compensated at the rate of two and one half times for hours worked.
3. Non-exempt firefighters will be compensated, at their current overtime rate, for the following required hours; emergency call-backs, an emergency incident requiring him/her to remain past the regular duty schedule, staffing a station to meet the minimum prescribed manpower levels, training that qualifies for reimbursement and/or IN Department of Homeland Security District 4 deployments. Voluntary training is excluded.
4. The Firefighter Retirement Entitlements Policy outlines a retiring firefighters' final benefits. (WLFD Sec 2.20)
5. Pending degree verification, an annual college degree incentive will be paid once a year to qualified firefighters for a maximum of one degree earned by November 1 of each year. Payment will be determined by the City Controller in the amounts of $500.00 for associate degree, $1,000.00 for bachelor's degree, and $1,500.00 for master's degree.

Police Department:

1. The hourly rate for all non-exempt police officers will be calculated by dividing the annual salary by 13 (tours) and by 160 (hours) per the Fair Labor Standards Act guidelines.
2. An officer or a patrol dispatcher assigned to a shift of 6:00 p.m. to 6:00 a.m. will receive an additional $0.50 per hour in shift differential compensation. Probationary officers and patrol dispatchers are not eligible for shift differentials.
3. Police officers and patrol dispatchers who work on Thanksgiving Day and/or December 25th will be compensated at the rate of two and one half times for hours worked.
4. Officers assigned as Technicians will receive $2,429.96 additional annual compensation.
5. The Specialty Field Compensation Policy outlines sworn personnel of the police department, will receive $250.00 annual compensation per specialty field per officer. The sworn personnel must have been specialty field certified for the entire calendar year or the amount will be pro-rated for mid-year members. The amounts will be paid in December of each year. Sworn personnel are eligible if the specialty aligns with the officers' job duties and are eligible if certified members of the following specialty fields, teams or units: Special Response Team, Hostage Negotiation Team, Field Training Unit, Crash Reconstruction Unit, ILEA Generalist Instructor, ILEA Psycho-motor Skills Instructor, RAD Instructor, STOPS Instructor, Drug Recognition Expert, Polygraph Operator, Narcotics Unit Members, Field Training Coordinator, Less Lethal Instructor, ICAT/De-Escalation Instructor, Active Shooter Instructor, Drone Pilot, Mobile Field Force Instructor, Firearms Coordinator, Shift Level Technician, High Tech Crime Unit (HTCU), or is foreign language speaking. (WLPD Policy 1012)
6. The Specialty Field Compensation Policy outlines civilian personnel of the police department, will receive $250.00 annual compensation per specialty field per employee. The civilian personnel must have been specialty field certified for the entire calendar year or the amount will be pro-rated for mid-year members. The amounts will be paid in December of each year. Civilian personnel are eligible if the specialty aligns with the employees' job duties and are a certified member of the following specialty fields, teams, or units: Emergency Medical Dispatch (EMD) Trainer, Dispatch Training Officer, Hostage Negotiation Team, RAD Instructor, or is foreign language speaking.
7. A certified Field Training Officer (FTO) who facilitates the field training of a new officer will receive $250.00 for each completed four-week training session. (WLPD Policy 1012.1)
8. A certified Dispatch Training Officer (DTO) who facilitates the field training of a new dispatcher will receive $250.00 for each completed training session.
9. The Police Officer Lateral Entry Program outlines the sign on bonus for lateral transfers. Qualified officers will be entitled to a $5,000.00 sign on bonus; $2,500.00 upon FTO completion and $2,500.00 upon completion of their one-year anniversary. (WLPD Police 1027.2)
10. The IDACS Coordinator Compensation Policy outlines the personnel assigned as IDACS Coordinator or IDACS Assistant Coordinator will receive a $300.00 annual compensation. (WLPD Policy 1024.1)

Police Department (continued):

11. The Police Officer Retirement Entitlements Policy outlines a retiring police officers' final benefits. (WLPD Policy 208)
12. Pending degree verification, an annual college degree incentive will be paid once a year to qualified police officers for a maximum of one degree earned by November 1 of each year. Payment will be determined by the City Controller in the amounts of $500.00 for associate degree, $1,000.00 for bachelor's degree, and $1,500.00 for master's degree.

Street, Sanitation and Recycling Department:

1. Employee pay will be increased based on the below Step-Increase Program schedule. The Step-Increase Program is for qualified Driver/Collector and Equipment Operator/Laborer positions.

| Initiation | Step 1 | Step 2 | Step 3 | |
|---|---|---|---|---|
| | 1 Year | 3 Year | 5 Year | |
| New Hire | (5% Increase) | (6% Increase) | (6% Increase) | Maximum |
| $1,904.18 | $1,999.39 | $2,119.35 | $2,246.51 | $2,476.37 |

Wastewater Treatment Utility Department:

1. Employees assigned to work any hours on the 2nd shift will receive an additional $0.25 per hour compensation. Employees assigned to work any hours on the 3rd shift will receive an additional $0.50 per hour compensation.
2. Employee pay will be increased for each Sacramento course passed and each level of IDEM Certification achieved according to the following schedules. The Board of Works will approve all pay increases upon presentation of Certification. For Sacramento courses, pay increases will be retroactive to the beginning of the nearest pay period of the month specified on the Certification of Completion for each Sacramento course. For IDEM Certifications, pay increases will be retroactive to the beginning of the nearest pay period to the date of the IDEM examination. An employee will be paid for the total of all courses and/or certification levels achieved. Any incentive pay, certification and/or home study courses may be are in addition to the salary and pay schedule listed above.

   Schedule of Sacramento Course Pay
   $250.00 each course, up to four (4) courses
   Schedule of IDEM Certification Pay
   Class I, Class II, Class III, Class IV - $1,000.00 per class passed
   Class A, Class B, Class C, Class D - $125.00 per class passed
3. Employees receive a 30-minute paid lunch period. This 30-minute paid lunch period will be considered hours worked the computation of overtime pay or earning compensatory time.

SECTION 2.

The hourly rate for all exempt and non-exempt full-time civilian employees will be calculated by dividing the biweekly salary by the number of hours of two regularly scheduled workweeks for such employee.

SECTION 3.

The part-time personnel salary range will be a minimum of $10.00/hour to a maximum of $41.00/hour, subject to the approval of the Board of Public Works and Safety.

SECTION 4.

In addition to holiday pay, all employees working on Thanksgiving Day or December 25th will be compensated at the rate of two times for hours hours worked either by pay or compensatory time. In addition to holiday pay, employees working on all other designated City holidays will be compensated at the rate one and one-half times for hours worked either by pay or compensatory time. Departmental policy will specify whether non-exempt employees will receive pay or compensatory time for hours worked on a designated City holiday. Exempt employees will receive compensatory time only for hours worked on a designated City holiday. Employees will be compensated for the holiday based on when the employee's workday begins. For example: An employee working from 10 pm December 24th to 8 am December 25th would not receive holiday compensation for the December 25th Holiday; however, an employee working 10 pm December 25th to 8 am December 26th would be compensated 10 hours for working the December 25th Holiday. This section does not apply to department heads, sworn police officers, police patrol dispatchers, sworn firefighters, wellness center, and wastewater maintenance staff.

SECTION 5.

Clothing allowances will be paid two times a year (to be decided by the City Controller) to designated employees.

SECTION 6.

Sworn Police Officers and Sworn Firefighters will be compensated for longevity based on years of service as of June 30th. Longevity will be paid once a year (the date to be decided by the City Controller) per the schedule below.

| Years of Service | Annual ($) Compensation |
|---|---|
| 1-4 | 0.00 |
| 5 | 250.00 |
| 6 | 500.00 |
| 7 | 750.00 |
| 8 | 1,000.00 |
| 9 | 1,250.00 |
| 10 | 1,500.00 |
| 11 | 1,750.00 |
| 12 | 2,000.00 |
| 13 | 2,250.00 |
| 14 | 2,500.00 |
| 15 | 2,750.00 |
| 16 | 3,000.00 |
| 17 | 3.250.00 |
| 18 | 3,500.00 |
| 19 | 3,750.00 |
| 20+ | **7,000.00** ~~5,500.00~~ |

SECTION 7.

The West Lafayette Parks and Recreation Department and AmeriCorps have established an Agreement regarding the participation of members who will serve in the West Lafayette Parks and Recreation and AmeriCorps Program ("Program"). AmeriCorps is a federal agency who works with communities and supports a variety of partnerships and governmental collaborations to address local challenges through service. Program members will serve our community for a specified number of minimum hours and will receive a living allowance. The living allowance is paid by the City of West Lafayette and reimbursed by AmeriCorps. The employment status of AmeriCorps members may not be considered to be an employee of the Program in which the participant is enrolled.

SECTION 8.

Benefits will be paid as described in the Civilian Personnel Manual, WLPD Department Manual, and the WLFD Standard Operating Guidelines.

SECTION 9.

The payroll week will be the calendar week beginning Saturday and ending Friday. The payroll period will consist of two (2) consecutive weeks. The pay date will be the Friday after the end of the payroll period.

SECTION 10.

This ordinance will be effective for, and including, the payment date beginning January 1, 2025, and will continue through the payment date ending December 31, 2025.

SECTION 11.

This ordinance will be in full force and effect from and after its passage and signing by the Mayor.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

**ORDINANCE NO. 33-2024**

**TO AMEND CERTAIN PORTIONS OF THE UNIFIED ZONING ORDINANCE OF TIPPECANOE COUNTY, INDIANA, DESIGNATING THE TIME WHEN THE SAME SHALL TAKE EFFECT.**

**BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, THAT ORDINANCE NO. 32-97 IS HEREBY AMENDED AS FOLLOWS:**

This ordinance shall be in full force and effect from and after its passage.

**Section 1:** Change **UZO Section 1-2 Definitions,** by changing the definition of Agricultural Rental Hall to read as follows (changes to the definition are underlined):

**AGRICULTURAL RENTAL HALL.** An establishment (either with or without an outdoor component) where private parties, weddings, and/or receptions limited to attendance by invitation or reservation from ticket sales are held. Additionally, hosting public events, open to the public without the requirement of an invitation or reservation from ticket sales, at which entertainment is provided as the main attraction, may also be part of such business. Requiring a cover charge or admission fee at the door, would still constitute a public event. Unless located in a zone that also permits eating and drinking places as a primary use, an ***agricultural rental hall***: 1. May only serve food prepared by an off-premises caterer and may not include any uses listed in SIC 5812 or 5813 and 2. May only host such public events up to four times per calendar year.

**Section 2:** Change **UZO Section 1-2 Definitions**, by adding the following two definitions:

**PET STORE.** A retail establishment selling pet services and/or supplies. A pet store shall not sell, deliver, offer for sale, barter, auction, give away, or otherwise transfer or dispose of cats or dogs; however, pet stores may collaborate with animal care facilities or animal rescue organizations to offer space for such entities to showcase adoptable dogs and cats.

**PET BROKERAGE.** A business or a distributor which buys, sells, or offers to sell cats and/or dogs at wholesale or retail rates to the public, or which sells or gives cats and/or dogs to retail establishments for resale.

**Section 3:** Change **UZO Section 3-2-8 Permitted Use Table, Retail Trade**, by adding the entries under SIC 5999 Misc. Retail Stores, not elsewhere classified, as follows:

“Pet store” permitted in NB, NBU, GB, CB, and CBW
“Pet brokerage” permitted by SE in I2

**Section 4:** Change **UZO Section 3-2-10, Permitted Use Table, Services** as follows:

Allow SIC 7999 Amusement and recreation services, not elsewhere classified (indoor) by special exception in A (Agricultural) and AW (Agricultural Wooded) in addition to where it is currently allowed.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

APC

Planning for Tippecanoe County, Lafayette, West Lafayette
Battle Ground, Clarks Hill, and Dayton

Ryan P. O'Gara, AICP, Executive Director

Area Plan Commission of Tippecanoe County, Indiana

September 19, 2024
Ref. No.: 2024-233

West Lafayette City Council
222 N Chauncey Avenue
West Lafayette, IN 47906

## CERTIFICATION

**RE: UZO AMENDMENT #113**
An omnibus amendment that would address three different topics: the definition of agricultural rental halls; pet stores/pet brokerages; and indoor and outdoor amusement and recreational services.

Dear West Lafayette City Council:

As Secretary to the Area Plan Commission of Tippecanoe County, I do herby certify that at a public hearing held on September 18, 2024, the Area Plan Commission of Tippecanoe County voted 15 Yes – 0 No on the motion to approve the enclosed amendment to the Unified Zoning Ordinance. Therefore, the Area Plan Commission of Tippecanoe County recommends to the West Lafayette City Council that the proposed zoning ordinance be approved.

Sincerely,

Ryan O'Gara
Executive Director

RO/kl

Enclosures: Staff Report and Ordinance

20 North 3rd Street, Lafayette, IN 47901-1209 Phone (765) 423-9242 Fax (765) 423-9154
apc@tippecanoe.in.gov • www.tippecanoe.in.gov/apc

# UZO Amendment 113 Omnibus
# THREE MINOR UZO CHANGES

**Staff Report**
**September 12, 2024**

This omnibus amendment covers three different areas in the Unified Zoning Ordinance as follows:

1. The definition of Agricultural Rental Hall:
Ag rental halls have been a separate category in the UZO since Amendment 76 in 2013. What was originally meant to be purely a venue for weddings and receptions with up to four other "public" events allowed per year has changed. Are flea markets, holiday craft bazaars, charity fundraisers and bluegrass concerts public events or private? What exactly constitutes a "public event?" Ever since its adoption, there has been confusion over this clause in the definition, specifically "hosting public events, open to the public without the requirement of an invitation or reservation, at which entertainment is provided as the main attraction, may also be part of such business." It later states that ag rental halls, "May only host such public events up to four times per calendar year."

The proposed amendment would change the definition to clarify what constitutes a private event versus a public event, while keeping the remainder of the definition untouched. Private events are limited to attendance by invitation or reservation from ticket sales; public events do not require an invitation or reservation from ticket sales. Furthermore, such events where a nominal fee is charged at the door, without invitation or reservation, would still be considered a public event.

A small clarification was added at September Ordinance Committee, and the wording of the amendment reflects this addition.

2. Pet Brokerages:
At the request of the County Commissioners, staff was tasked with differentiating between two types of businesses involving the sale of dogs and cats. Currently both a pet store and a "pet brokerage" would fall under SIC 5999 Misc. retail stores, not elsewhere classified. This category is a catchall for any type of shop that is not already listed in the Permitted Use Table of the ordinance and is allowed by right in NB, NBU, GB, CB and CBW zones.

Staff proposes adding the following two definitions to UZO Chapter 1-10 Definitions:

**PET STORE.** A retail establishment selling pet services and/or supplies. A pet store shall not sell, deliver, offer for sale, barter, auction, give away, or otherwise transfer or dispose of cats or dogs; however, pet stores may collaborate with animal care facilities or animal rescue organizations to offer space for such entities to showcase adoptable dogs and cats.

**PET BROKERAGE.** A business or distributor which buys, sells, or offers to sell cats and/or dogs at wholesale or retail rates to the public, or which sells or gives cats and/or dogs to retail establishments for resale.

These two types of businesses would also be included as two new entries in the Permitted Use Table. Pet stores would be permitted by right in NB, NBU, GB, CB and CBW (no change from where they are currently allowed), but pet brokerages would only be permitted by special exception in the I2 zoning district.

Because there are so few existing I2 zoned properties that are unimproved, a future pet brokerage business would most likely have to go through a rezone request, giving our jurisdictions the chance to vote on it. The ABZA would also have to approve a special exception for this use before it could open for business. This was discussed and approved at the August Administrative Officer's meeting and at the September Ordinance Committee meeting.

3. SIC 7999 Indoor and Outdoor businesses:
The category called SIC 7999 amusement and recreation services, not elsewhere classified, has been a catchall category in the Permitted Use Table of the UZO. Over the years it has included wedding barns (in the years before the UZO had the permitted use, "Agricultural Rental Hall"), both indoor and outdoor soccer fields, corn mazes, rock climbing walls and rodeos.

The UZO splits SIC 7999 into two categories: indoor and outdoor. Recently, APC staff met with someone interested in starting a small agri-business in an existing barn on property zoned AA, select agricultural. The use fit perfectly in the SIC 7999 indoor category, but staff learned while an outdoor land use was allowed by special exception in A and AW zones, the indoor category is not. The property owner would have to rezone to a commercial zone or an industrial zone...which would have created a spot zone neither of which staff could support in this rural area.

The simple solution to staff, was to amend the UZO so that both indoor and outdoor SIC 7999 land uses, in addition to the zones where they are currently allowed, are also both allowed by special exception in the A and AW zones. The AA, select agricultural zone, is meant for where the prime farmland is located, and staff feels the zone generally should continue to be protected from miscellaneous land uses. But the A and AW zones, which currently allows outdoor amusement and recreational businesses by special exception, should have space for indoor amusements (by special exception) as well. This change was discussed and approved at the September Ordinance Committee meeting.

The ordinance amendment for all three of these changes is attached.

**STAFF RECOMMENDATION:**
Approval

Sponsored by Mayor Erin R. Easter

# ORDINANCE NO. 34-2024

## AN ORDINANCE AMENDING CHAPTER 40, WASTEWATER TREATMENT SYSTEM, OF THE WEST LAFAYETTE CITY CODE

WHEREAS, recent changes to State and Federal wastewater regulations make it important to update the City of West Lafayette's Sewer Use Ordinance (SUO), and

WHEREAS, potential changes in the composition and make up of wastewater flows to the Wastewater Treatment Utility (WWTU) make it advisable to update the SUO, and

WHEREAS, the changes outlined below will serve to improve the efficiency and effectiveness of the WWTU operations and, accordingly, be a benefit to the citizens of the West Lafayette community and the environment in general.

NOW, THEREFORE, BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE that the attached amendments are made to sections of the West Lafayette City Code (substantive changes are shown with deletions indicated by ~~strikethrough~~ and additions indicated by underline)

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

# CHAPTER 40 UTILITIES
# ARTICLE I. IN GENERAL

**Secs. 40-1—40-18. Reserved.**

# ARTICLE II. WASTEWATER TREATMENT SYSTEM

## *DIVISION 1. GENERAL~~LY~~*

### Sec. 40-19. Definitions.

Unless otherwise defined herein, terms shall be as adopted in the latest edition of the Glossary of Water and Wastewater Control Engineering, published by the American Public Health Association, American Society of Civil Engineers, American Water Works Association, and Water Environment Federation.

*Act* or *the Act* means the ~~federal~~ Federal Water Pollution Control Act, also known as the Clean Water ~~Act~~Act, as amended, 33 USC 1251 et seq.

*Approval authority* means the Indiana~~state~~ D~~d~~epartment of E~~e~~nvironmental M~~m~~anagement (IDEM)~~coordinator of the state department of environmental management municipal pretreatment program~~.

*Authorized representative of significant industrial user.* An authorized representative of a significant industrial user may be:

(a) ~~(1)~~ A principal executive officer of at least the level of vice ~~-~~president, if the significant industrial user is a corporation;

(b) ~~(2)~~ A general partner or proprietor if the significant industrial user is a partnership or proprietorship, respectively;

(c) ~~(3)~~ A duly authorized representative responsible for the overall operation of the facilities from which the indirect discharge originates.

*Beneficial uses of receiving water.* These include~~,~~ but are not limited to, domestic, municipal, agricultural, and industrial use, power generation, recreation, aesthetic enjoyment, navigation, and the preservation and enhancement of fish, wildlife, and other aquatic resources or reserves, and other uses, both tangible or intangible as specified by state or federal law.

*Best Management Practices* or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 2.1 A and B [40 CFR 403.5(a)(1) and (b)]. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

*Biochemical oxygen demand (or BOD) of sewage, sewage effluent, polluted waters, or industrial wastes* means the quantity of dissolved oxygen in milligrams per liter required during stabilization of the decomposable organic matter by aerobic biochemical action under standard laboratory procedures for five days at 20 degrees Celsius. The laboratory determinations of BOD shall ~~be made in accordance with~~follow the procedures ~~set forth~~outlined in Standard Methods for $BOD_{~~-~~5}$ with nitrification inhibition.

*Board* means the B~~b~~oard of ~~public~~ Public ~~works~~ Works and ~~safety~~ Safety of the city. It is the governing body of the city's ~~sewage system~~WRRF~~, of the city,~~ ~~which system~~which is a publicly owned treatment works.

*Boiler blowdown* means removing water from a boiler to eliminate or reduce impurities, solids, and chemicals that can affect the boiler's performance and cause scale, corrosion, and carryover.

*Building drain* means that part of the lowest horizontal piping of a drainage system ~~which~~ that receives from solid waste and/or other drainage pipes inside the walls of the building and conveys it to the building sewer.

*Building sewer* means the extension from the building drain to the public sewer or other place of disposal and shall include that portion of the drain within the public right-of-way (also called the house connection).

*Categorical Industrial User* is an Industrial User subject to a categorical pretreatment standard or categorical standard.

*Categorical Standards, National Categorical Pretreatment Standards,* or *Pretreatment Standards* means any regulation containing pollutant discharge limits promulgated by the EPA ~~in accordance with~~per ~~section~~ Sections 307(b) and (c) of the Act (33 USC 1317(b)) that~~which~~ apply~~ies~~ to a specific category of industrial users in 40 CFR Subpart I, Subchapter N, Parts 405-471 and ~~.~~ state pretreatment standards as established in 327 IAC 5-18.

*Chemical oxygen demand (or COD) of sewage, sewage effluent, polluted waters, or industrial wastes* means a measure of the oxygen equivalent of that portion of ~~the organic~~organic matter in a sample that is susceptible to oxidation by a strong chemical oxidant. The laboratory determination shall be made ~~in accordance with~~following the procedures ~~set forth~~outlined in Standard Methods.

*City* means the City of West Lafayette, Indiana, by and through the ~~board~~Board of ~~public works~~Public Works and S~~s~~afety.

*Collector sewer* means a public sewer that discharges into a branch or other sewer and has no other public sewer tributary to it.

*Combined sewer* means a sewer ~~which~~ that carries stormwater or surface runoff in addition to ~~domestic~~ sanitary sewage.

*Compatible pollutants* ~~means~~mean wastewater having or containing:

(1) Measurable biochemical oxygen demand;

(2) Suspended solids;

(3) pH;

(4) E. Coli bacteria; or

(5) Additional pollutants identified or defined in the city's National Pollutant Discharge Elimination System (NPDES) permit or by ~~the state department of environmental management~~IDEM or the ~~board~~Board.

It is further clarified that conventional pollutants, as identified by the US EPA ~~pursuant~~ according to ~~section~~Section 304(a)(4) of the Act in a form ~~which~~ that causes interference with the ~~POTW~~ WRRF operations, shall be non-compatible.

*Constituents and characteristics (of wastewater)* means the chemical, physical, ~~bacteriological~~bacteriological, and radiological properties; including volume, flow rate, and ~~such~~ other properties ~~which~~ that serve to define, ~~classify~~classify, or measure the contents, quality, ~~quantity~~quantity, and strength of wastewater.

*Conventional pollutants* are those pollutants that are usually found in domestic, commercial, or industrial wastes, including suspended solids, biochemical oxygen demand, pathogens, and oil and grease.

*Control authority* means the ~~Wastewater Treatment~~ Utility Director or a person authorized by the Utility Director or the ~~board~~ Board of ~~public~~ Public ~~works~~ Works and ~~safety~~Safety.

*Daily Maximum* is the arithmetic average of all effluent samples for a pollutant collected during a calendar day.

*Daily Maximum Limit* is the maximum allowable discharge limit of a pollutant during a calendar day. Where Daily Maximum Limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where Daily Maximum Limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

*Debt service charge* means a charge levied on users of the wastewater conveyance and treatment system to fund debt service on outstanding bonds and current capital costs.

*Direct discharge* means the discharge of a pollutant~~treated or untreated wastewater directly to the waters of the State of Indiana~~.

*Domestic Wastewater* means wastewater of the type commonly introduced into a POTW by residential users.

*Effluent* means the water, together with any wastes that may be present, flowing out of a drain, sewer, receptacle, or outlet.

*Environmental Protection Agency* or *EPA* means the U.S. Environmental Protection Agency, or, where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of the agency.

*Existing Source* means any categorical source of discharge that existed before the creation of the categorical standard.

*Fats (wastes)* means triglyceride esters of fatty acids. Erroneously used as a synonym for grease.

*Foundation drains* ~~means~~ are any network of pipes, pumps, or drainage mechanisms located at, near, or under a footing, foundation, or floor slab of any building or structure that intentionally or unintentionally conveys groundwater away from a building or structure.

*Garbage* means the animal and vegetable waste resulting from the handling, preparation, cooking, and serving of foods. It is composed largely of putrescible organic matter and its natural moisture.

*Grab sample* means a sample ~~which~~ that is taken from a waste stream on a one-time basis with no regard to the flow in the waste stream and ~~without consideration of time~~over a period not to exceed 15 minutes.

*Grease and oil*, in wastewater, means a group of substances including fats, waxes, free fatty acids, calcium and magnesium soaps, mineral oils, and certain other fatty materials. Water-insoluble organic compounds of plant and animal origins, or industrial wastes, ~~that~~which can be removed by natural flotation skimming.

*Holding tank waste* means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic ~~tanks~~tanks, and vacuum ~~-~~pump tank trucks.

*Incompatible pollutants* ~~means~~mean any pollutant ~~which are~~that is ~~not compatible pollutants.~~ not compatible with the operation of a POTW so that the pollutant passes through the POTW, interferes with it, or is otherwise incompatible with it. Incompatible pollutants may also be toxic wastes not removed by the POTW treatment system.

*Indirect discharger* means a nondomestic discharger introducing pollutants into a POTW, regardless of whether the discharger is within the governmental jurisdiction of the city~~the discharge or the introduction of other than normal domestic pollutants from any source regulated under § 307(b) or (c) of the Act (33 USC 1317(b), (c)) into the POTW (including holding any waste discharged into the system)~~.

*Industrial User* means an indirect discharger.

*Industrial wastes* ~~means~~mean any solid, ~~liquid~~liquid, or gaseous substance or form of energy discharged, permitted to flow into, or enter the ~~collection system~~sanitary sewer or ground from an industrial, manufacturing, commercial, or business process, or from the development, recovery, or processing of any natural resource carried on by any person and shall further mean any waste from an industrial user, but not including sanitary sewage or stormwater.

*Infiltration* means groundwater entering the collection system through service connections, cracked pipes, defective joints, defective ~~pipes~~pipes, and manhole walls.

*Inflow* means surface runoff that may enter the collection system from sources such as a cellar, yard area, foundation drains, drains from springs and swampy areas, manhole areas, cross connections between storm and sanitary sewers, catch basins, cooling towers, stormwater, surface runoff, and street waters or drainage.

*Inspector* ~~means~~ is a person authorized and assigned by the ~~board~~Board or the ~~WWT u~~Utility ~~d~~Director to perform inspection and monitoring duties ~~assigned by the board or WWT utility director~~.

*Instantaneous Limit* means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

*Interference* means a discharge that, alone or in conjunction with a discharge or discharges from other sources inhibits or disrupts~~ion~~ the:

a) treatment processes or~~,~~ operations; sludge processes; or selected sludge use or disposal methods; of a POTW.

b) the inhibition or disruption under a) must:

1) cause a violation of a requirement of the city's NPDES permit, including an increase in the magnitude or duration of a violation; or

2) prevent the use of the POTW's sewage sludge or its sludge disposal method selected in compliance with the following statutory provisions, regulations, or permits issued thereunder or more stringent federal, state, or local regulations:

(A) Section 405 of the Clean Water Act (33 USC 1345).

(B) the Solid Waste Disposal Act (42 USC 6901), including Title II, more commonly referred to as the Resource Conservation and Recovery Act; and the rules contained in a state sludge management plan prepared under Subtitle D of the SWDA (42 USC 6941).

(C)~~,~~ the Clean Air Act (42 USC 7401).

(D) ~~,~~the Toxic Substance Control Act -(15 USC 2601)

*Local Limit* means the specific discharge limits developed and enforced by the City upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 CFR 403.5(a)(1) and (b).

*May* means that the act referred to is both permissible and approved.

*Monthly Average* means the sum of all “daily discharges” measured during a calendar month divided by the number of “daily discharges” measured during that month.

*Monthly Average Limit* is the highest allowable average of “daily discharges” over a calendar month, calculated as the sum of all “daily discharges” measured during a calendar month divided by the number of “daily discharges” measured during that month.

*Medical Waste* means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

*NPDES permit* means National Pollutant Discharge Elimination System permit now or hereafter held by the city and setting forth conditions for the discharge of any pollutants or combinations of pollutants.

*New source* means any source, the construction of which is commenced after the publication of proposed and/or regulations prescribing a ~~section~~Section 307(c) (33 USC 1317(c)) Categorical Pretreatment Standard which will ~~be applicable~~apply to such source~~,~~ if such standard is thereafter promulgated within 120 days of the proposal in the Federal Register. Where the standard is promulgated later than 120 days after a proposal, the term "new source" means any source, the construction of which is commenced after the date of promulgation of the standard. Where no standard applies, the term "new source" means any source discharging into the ~~sewage system~~sanitary sewer, after the effective date of the ordinance from which this article is derived.

*Non-contact cooling water* means Water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product. ~~the water discharged from any use as air conditioning, cooling or refrigeration, or to which the only pollutant added is heat.~~

*Normal domestic sewage* means sanitary wastewater discharged by residential users.

*Nuisance* means any substance ~~which~~ that is injurious to health or offensive to the senses or an obstruction to the free use of property ~~so as to~~to interfere with the comfort or enjoyment of life or property.

*Operation and Maintenance (O&M)* means all expenses related directly to ~~the~~ operating and maintaining, including replacement, ~~of~~ the sewage works as identified in the "Uniform System of Accounts for Wastewater Utilities" or as prescribed by the state ~~board~~Board of ~~accounts~~ Accounts under the general headings, plant operation and maintenance, sewer operation and maintenance, customer accounts, administrative and general, insurance and taxes.

*Pass-Through* means a discharge proceeding through a POTW into waters of the state in quantities or concentrations that, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the City's NPDES permit, including an increase in the magnitude or duration of a violation.

*pH* means the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in units.

*Person* means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, Federal, State, and local governmental entity, or any other legal entity, or their legal representatives, agents, or assigns. The masculine gender shall include the feminine; the singular shall include the plural where indicated by the context.

*Pollutant* means any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical waste, chemical waste, solid wastes, toxic wastes, hazardous substances, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, and other industrial, municipal, ~~and~~ agricultural waste discharged into water, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

*Pollution* means specific impairment of water quality by agricultural, domestic, or industrial wastes (including thermal and radioactive wastes), to a degree that has any change in the natural state of water, which interferes with its beneficial reuse or causes its failure to meet water quality requirements.

*Pretreatment* or *treatment* means ~~the reduction of~~reducing the amount of pollutants, ~~the elimination of~~eliminating pollutants, or ~~the alteration of~~altering the nature of pollutant properties in wastewater to a less harmful state, other than by dilution, ~~prior to~~before or ~~in lieu~~instead of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical, or biological processes or through ~~, or~~ process changes or other means, except by dilution as prohibited by 40 CFR 403.6(d).

*Pretreatment requirements* ~~means~~mean any substantive or procedural requirement related to pretreatment, other than a National Pretreatment Standard imposed on an industrial user, including applicable local limits.

*Pretreatment standards* include requirements under the state pretreatment standards established in 327 IAC 5-18 and mean prohibited discharge standards, categorical pretreatment standards, and local limits.

~~*POTW treatment plant* means that portion of the POTW designed to provide treatment to wastewater.~~

*Publicly owned treatment works (POTW)* means a treatment works, owned by the city, including devices and systems used to store, treat, recycle, and reclaim sanitary sewage or industrial waste with compatible pollutants. POTW includes sewers, pipes, and other conveyances only if they convey wastewater to a POTW treatment plant. For this article, the POTW shall also include any sewers that convey wastewaters to the POTW from persons outside the (city) who are, by contract or agreement with the (city), users of the (city's) POTW~~treatment works as defined by section 212 of the Act (33 USC 1292) which is owned in this instance by the city. This definition includes any sewers that convey wastewater to the POTW treatment plant, but does not include pipes, sewers or other conveyances not connected to a facility providing treatment. For the purpose of this article, the POTW shall also include any sewers that convey wastewaters to the POTW from persons outside the (city) who are, by contract or agreement with the (city), users of the (city's) POTW~~. The City of West Lafayette's POTW is called the Water Resource Recovery Facility (WRRF) and will be referred to as such for ~~the purposes~~this article. POTW also means the municipality having jurisdiction over the indirect discharges to and the discharge from such treatment works, which is the City of West Lafayette's Wastewater Treatment Utility (WWTU) for this article.

*Public sewer* means any combined, sanitary, collector, storm sewer, or lift station located within the public right-of-way or a dedicated easement ~~which is~~ controlled by a governmental agency or public utility.

*Receiving stream* means the Wabash River and its tributaries within the city.

*Sanitary sewage* means sewage, such as, and having the characteristics of, normal domestic sewage from dwellings (including apartment houses and hotels), office buildings, ~~factories~~factories, or institutions, free from stormwater and surface water, and industrial waste.

*Sanitary sewer* means a sewer, or a network of sewers and appurtenances, used for collecting, transporting, and pumping ~~intended to carry only~~ sanitary or sanitary and industrial wastewater~~s~~ from residences, commercial buildings, industrial plants, and institutions.

*Septic tank waste* means any sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

*Sewage* means household and commercial wastewater that contains human waste and gray water; distinguished from industrial waste.

~~*Sewage system (collection system)* means the network of publicly owned sewers and appurtenances used for collection, transporting and pumping wastewater to the wastewater treatment plant itself.~~

*Sewer* means a pipe or conduit laid for carrying sewage or other liquids and solids suspended or entrained therein.

*Shall* means the act referred to is mandatory.

*Shredded garbage* means garbage ~~that is~~ shredded to ~~such~~ a degree that all particles will be carried freely in suspension under the conditions normally prevailing in the ~~sewage system~~sanitary sewer, with no particles being greater than one-half inch in dimension.

*Significant industrial user* means the following:

(a) Industrial users subject to categorical pretreatment standards.

(b) An industrial user that:

(1) discharges an average of 25,000 gallons per day or more of process wastewater (excluding sanitary, noncontact cooling water, and boiler blowdown wastewater) to the WRRF;

(2) contributes a process waste stream that makes up five percent (5%) or more of the average dry weather hydraulic or organic capacity of the WRRF treatment plant; or

(3) is designated as a significant industrial user by the Utility Director on the basis that the industrial user has a reasonable potential to: (A) adversely affect the WRRF's operation; (B) violate a pretreatment standard; or (C) violate a requirement of 327 IAC 5-19-3.

~~(a)~~ The Utility Director may, on its own initiative or in response to a petition received from an industrial user or per 327 IAC 5-19-3(6), determine that an industrial user is not a significant industrial user if it does not meet (b)(3) above.~~any commercial or industrial user of the city's wastewater disposal system who:~~

~~(b) (1) Has a discharge flow of 10,000 gallons or more per average work day;~~

~~(c) (2) Is subject to Federal Categorical Pretreatment Regulations;~~

~~(d) (3) Has wastewater with a BOD, or TSS greater than 250 mg/l;~~

~~(e) (4) Has in its wastes toxic pollutants as defined pursuant to section 307 of the Act, or of state statutes and rules; or~~

~~(f)~~(c) ~~(5) Is found by the city or the U.S. Environmental Protection Agency (EPA) to have significant impact, either singly or in combination with other contributing industries, on the wastewater treatment system, the quality of biosolids, the system's effluent quality, or air emissions generated by the system.~~

*Significant Noncompliance (SNC)* means a non-domestic waste discharger's effluent discharge is in significant noncompliance if its violations meet one or more of the following criteria:

(a) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all the measurements taken for the same pollutant parameter during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits, as defined by 40 CFR 403.3(1);

(b) Technical Review Criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of all the measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the pretreatment standard or requirement, including instantaneous limits, as defined by 40 CFR 403.3(1) multiplied by the applicable TRC (TRC=1.4 for BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH);

(c) Any other violation of a pretreatment standard or requirement as defined by 40 CFR 403.3(1) (daily maximum, longer-term average, instantaneous limit, or narrative standard) that the WWTU determines has caused, alone or in combination with other discharges, interference or pass-through (including endangering the health of WRRF personnel or the public);

(d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or the environment or has resulted in the WRRF's exercise of its emergency authority under Section 40 CFR 403.8 (f)(1)(F)(i) to halt or prevent such a discharge;

(e) Failure to meet, within 90 days after the scheduled date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;

(f) Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(g) Failure to accurately report non-compliance; and

(h) Any other violation or group of violations, including best management practices, which WWTU determines will adversely affect the operation and implementation of the local pretreatment program.

*Slug Load* or *Slug* means any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge at a flow rate or concentration that has a reasonable potential to cause interference or pass through or in any other way violate this article or an NPDES Permit.

*State* means the State of Indiana.

*Standard industrial classification* ~~means~~ is a classification ~~pursuant to~~according to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1972.

*Standard Methods* means an assembly of analytical techniques and descriptions commonly accepted in water and wastewater treatment (Standard Methods for the Examination of Water and Wastewater) published jointly by the American Public Health Association, American Water Works Association, and the Water Environment Federation, being the most current addition approved by the EPA.

*Storm sewer* ~~means~~ is a sewer intended to carry only stormwater~~s~~, surface runoff, street wash water~~s~~, drainage, or unpolluted cooling water.

*Stormwater* means any flow occurring, during, or following, any form of natural precipitation~~ and resulting therefrom~~.

*Surcharge* means an extra monetary charge imposed on flows into the wastewater collection system when $BOD_{~5}$ or TSS concentrations, or concentrations along other parameters which shall be determined from time to time by the ~~board~~Board, that exceed those commonly found in normal domestic sewage (~~250 mg/l $BOD_{~5}$ or TSS~~Section 40-196).

*Suspended solids* ~~means~~are solids ~~which~~ that either float on the surface of or are in suspension in water, ~~sewage~~sewage, or other liquid or which are removable by laboratory filtration. Their concentration shall be expressed in milligrams per liter. Quantitative determinations shall be made ~~in accordance~~following the ~~with~~ procedures ~~set forth~~outlined in Standard Methods.

*Total Suspended Solids (TSS)* means the total measurement of suspended solids as defined above.

*Toxic pollutant* means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the Administrator of the Environmental Protection Agency under the provision of CWA 307(a), other Acts, or toxic by characteristic. The ~~board~~Board reserves the right to add additional parameters demonstrated to produce toxic effects which may or may not be on the ~~aforementioned list~~list.

*User* means a person who introduces or discharges any substance whatsoever, into the collection system, including both the owner and occupant of real estate from which any substance whatsoever is introduced or discharged into the collection system.

*User charge* means a charge levied on users of a treatment works for the user~~'~~'s proportionate share of the cost of operation and maintenance (including) replacement of such works.

*User classes* ~~means~~ mean each recipient of municipal wastewater treatment services shall be either in the industrial class or the non-industrial class. The industrial class shall include any discharger of trade or process waste or any user ~~which~~ that discharges wastewater to the treatment works ~~which~~ that contain~~s~~ toxic pollutants or poisonous solids, liquids, or gases in sufficient quantity either singly or by interaction with other waste, to contaminate the biosolids of the treatment works, or to interfere with any sewage treatment process, or which constitutes a hazard to humans or animals, creates a public nuisance, or creates any hazard in or has an adverse effect on the water receiving any discharge from the treatment works. The non-industrial class shall include all domestic and governmental users and those commercial and institutional users whose wastes do not meet the criteria for industrial users as stated above or as determined by the ~~board~~Board.

*Utility* ~~*director*~~ *Director* means the person subject to the control of the ~~board~~Board in all matters of the ~~wastewater treatment plant~~WRRF and conveyance system.

*Waste* means sanitary sewage and ~~any and all~~all other waste substances, liquid, solid, gaseous, or radioactive, associated with human habitation, or of human or animal origin, or from any producing, processing, manufacturing, or industrial operation of whatever nature, including such waste placed within containers of whatever nature ~~prior to~~before, and for purposes of disposal.

*Wastewater* means the water carried from residences, business buildings, institutions, and industrial establishments, singular or in any combination, together with such groundwater~~s~~, surface water~~s~~, and stormwater~~s~~ as may be present.

~~*Wastewater treatment plant* means any arrangement of devices and structures used by the city for treatment and disposing of sewage, biosolids, and other sewage constituents and products.~~

*Water Resource Recovery Facility (WRRF)* is the designated name for the POTW and has the same meaning.

*Waters of the state* or *Waters of the state of Indiana* means, as outlined in IC 13-11-2-265, the accumulation of water, surface and underground, natural and artificial, public and private; or a part of the accumulation of water; that is wholly or partially within, flow through, or border upon Indiana.~~means~~means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the state or any portion thereof.

(Prior Code, § 30.01.1)

## Sec. 40-20. Abbreviations.

The following abbreviations shall have the designated meanings:

| | |
|---|---|
| ASTM | American Society o~~O~~f Testing ~~And~~ and Materials |

| | |
|---|---|
| BOD | Biochemical Oxygen Demand |
| CFR | Code ~~Of~~ of ~~federal~~ Federal R~~r~~egulations |
| CIU | Categorical Industrial User |
| COD | Chemical Oxygen Demand |
| CWA | Clean Water Act |
| EPA | Environmental Protection Agency |
| IAC | Indiana Administrative Code |
| IC | Indiana Code |
| IDEM | Indiana Department of Environmental Management |
| IWP | Industrial Wastewater Pretreatment |
| L~~l~~ | Liter |
| mg | Milligrams |
| mg/L~~l~~ | Milligrams ~~Per~~ per Liter |
| NPDES | National Pollution Discharge Elimination System |
| O&M | Operation ~~And~~ and M~~m~~aintenance |
| POTW | Publicly Owned Treatment Works |
| ppm | Parts Per Million |
| RCRA | Resource Conservation And Recovery Act |
| SIC | Standard Industrial Classification |
| SIU | Significant Industrial User |
| ~~SWDA~~ | ~~Solid Waste Disposal Act, 42 USC 6901 Et Seq.~~ |
| USC | United States Codes |
| TSS | Total Suspended Solids |
| WRRF | Water Resource Recovery Facility |
| ~~WWT~~ | ~~Wastewater Treatment~~ |
| WWTU | Wastewater Treatment Utility |

(Prior Code, § 30.01.2)

## Sec. 40-21. Laws and regulations of the ~~board~~Board of ~~public~~ Public ~~works~~ Works and ~~safety~~Safety.

The rates and charges established by this article shall be collected by the city. The ~~board~~Board ~~of public works and safety~~ may adopt and enforce such reasonable regulations not in conflict herewith as it may deem necessary for the safe, economical, and efficient management of the city's ~~collection system~~sanitary sewer and ~~treatment plant~~WRRF and for the construction and use of the building (or house connection) sewers and connections to the sanitary sewer~~collection system~~, which regulations may include limitations of, or prohibition of, the introduction of, or infiltration by stormwater, surface water, and groundwater into the sanitary sewer~~collection system~~; a schedule of initial connection charges to recover capital costs of new sewers installed for the particular new customer, and a capital cost recovery schedule for customers outside the city to include capital investment in existing or contribution in aid of construction for future treatment capacity; and for the regulation, collection, rebating and refunding of such rates and charges.

(Prior Code, § 30.01.3)

## Sec. 40-22. Legal Authority

The Board and the WWTU have the legal authority to:

(a) Develop and enforce specific limits on prohibited substances;

(b) Enter the premises of any industrial user to conduct inspections, surveillance, record review, and/or monitoring, as necessary to determine compliance with the sewer use ordinance and, if applicable, any effective industrial wastewater pretreatment permit or approval;

(c) Accept or deny any new or increased discharges from any indirect discharger;

(d) Immediately halt or prevent any discharge of pollutants to the sanitary sewer which reasonably appears to present an imminent endangerment to the health or welfare of the public, the environment, and/or which threatens to interfere with the operation of the WRRF;

(e) Require compliance with all applicable pretreatment standards and requirements by indirect dischargers;

(f) Impose fees, if necessary to offset the cost incurred by the permittee for administering the pretreatment program requirements established in this article; and

(g) Impose fines per Division 6 of this article.

## Sec. 40-23. Right of entry

Representatives of the WWTU, IDEM, and the EPA, upon reasonable notice to any person who is an owner, tenant, or occupant of any real estate, are empowered to enter, upon presentation of proper credentials, all premises for inspection, observation, measuring, sampling, and testing of water, sewage, and industrial waste.

## Sec. 40-24. Administration

Except as otherwise provided herein, the Board shall administer, implement, and enforce the provisions of this article. The Board may delegate any powers granted to or duties imposed upon the Utility Director or to other WWTU personnel.

~~**Sec. 40-22. Damaging, defacing sewage works property.**~~

~~**A person shall not maliciously, willfully, or recklessly break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance, or equipment which is a part of the city's sewage system, or knowingly tampering with, connecting to, or other disturbances of the sewage system without a proper permit.**~~

~~**(Prior Code, § 30.01.4; altered in 2019 recodification)**~~

~~**Sec. 40-23. Tampering with effluent monitoring station.**~~

~~**It shall be a violation of this article for any person to tamper with or modify any pump, valving appurtenance, flow control section, meter or sampling equipment so as to have the effect of rendering inaccurate any meter or other monitoring equipment.**~~

### ~~(Prior Code, § 30.01.5)~~Sec. 40-~~28~~25. Annual review.

The ~~board~~Board shall file with the ~~mayor~~ Mayor and Common Council of the city ~~of~~ during the first calendar quarter of each year beginning in the year 1993 an annual report for the previous calendar year showing the financial condition of the ~~POTW~~WRRF and the following information, as well as other information the ~~board~~Board may deem useful or appropriate:

(a) ~~(1)~~ The amount of volumetric charges collected;

(b) ~~(2) Th~~thee amount of surcharges collected;

(c) ~~(3) T~~the activities of the ~~board~~Board and ~~POTW~~WRRF, ~~with respect to~~concerning industrial surveillance and pretreatment;

(d) ~~(4) P~~plant and treatment facilities;

(e) ~~(5) T~~technical and other personnel; and

(f) ~~(6) C~~combined sewer overflows.

Such report shall contain, where appropriate, recommendations to the council for amendments to this chapter regarding rates, surcharges, industrial surveillance, limitations on pollutants and concentrations thereof, and all other matters either within the scope of this chapter or ~~pertaining to~~about the collection and treatment of sewage.

### Sec. 40-26. Discharger's request for interpretation.

To ensure a fuller understanding of and compliance with the goals and objectives of this article, it shall be the privilege of any interested party to request, in writing, an interpretation or ruling by the Board or Utility Director on any matter covered by this municipal article.

(Prior Code, § 30.02.13)

### Sec. 40-2~~7~~9. Severability.

If any provision, paragraph, word, or article of this chapter is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, sections, and chapters shall not be affected and shall continue in full force and effect.

(Prior Code, § 30.11.01)

### Secs. 40-~~30~~28—40-39~~46~~. Reserved.

## *DIVISION 42. CONNECTIONS*

### Sec. 40-~~112~~40. Unauthorized and/or forbidden connection to or use of the public sewer.

No unauthorized person shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance ~~thereof~~ without first obtaining a written permit from the city Engineering Department.

(Prior Code, § 30.06.1)

### Sec. 40-41. Damaging and defacing sewage works property.

A person shall not maliciously, willfully, or recklessly break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance, or equipment that is a part of the WWTU's sanitary sewer and WRRF, or knowingly tamper with, connecting to, or other disturbances of the sanitary sewer without a proper permit.

(Prior Code, § 30.01.4; altered in 2019 recodification)

### Sec. 40-~~113~~42. Permits.

There shall be two classes of sewer tap permits:

(a) ~~(1)~~ For residential and commercial service; and

(b) ~~(2)~~ For service to establishments producing industrial waste.

In either case, the owner or its agent shall make an application on a form furnished by the ~~city's engineering~~Building D~~d~~epartment. The permit applications shall be supplemented by any plans, specifications, or other information considered pertinent in the judg~~e~~ment of the ~~engineering department~~Utility Director. A permit and inspection fee for a residential or commercial building sewer permit and ~~for~~ an industrial permit shall be paid ~~, by check,~~ to the ~~city wastewater treatment utility~~city, at the time the application is filed.

(Prior Code, § 30.06.2; altered in 2019 recodification)

### Sec. 40-~~114~~43. Costs; indemnification of the city.

All costs and expenses incident to the installation and connection of the building sewer (house connection) shall be borne by the owner. The owner, or the person installing the building sewer for the owner, shall indemnify the city and WWTU from any loss or damage that may directly or indirectly be occasioned by the installation.

(Prior Code, § 30.06.3)

## Sec. 40-~~115~~44. Privies, septic tanks, cesspools, etc.

A person shall not construct or maintain a privy, septic tank, cesspool, dry well, or other facility intended or used for the disposal of wastewater.

(Prior Code, § 30.06.4)

## Sec. 40-~~116~~45. When connection to the ~~sewage system~~sanitary sewer is required.

The owner of, or any person constructing, a new house or other building for occupancy, employment, recreation, industrial or commercial activity within the city and abutting on any street, alley or easement in which there is now located, or may in the future be located, a public sanitary or combined sewer, or along or across which there is access to such a sewer, must connect, at their expense, within 90 days after date of official notice, to such sewer in accord with applicable ordinances and regulations, and shall not discharge sewage elsewhere than into the ~~sewage system~~sanitary sewer.

(Prior Code, § 30.06.5)

## Sec. 40-~~117~~46. Connection is required when public sewer becomes available.

~~At such time as~~When a public sewer becomes available to a property served by a private sewage disposal system, a direct connection shall be made, within three years, to the public sewer, at the owner's expense.

(Prior Code, § 30.06.6)

## Sec. 40-~~118~~47. Construction of building (or house connection) sewers.

The size, shape, alignment, materials of construction of a building (or house connection) sewer and the methods to be used in excavating, placing the pipe, jointing, testing, and back-filling the trench shall conform to the requirements of the building and plumbing codes and other applicable rules and regulations of the city.

(a) *Pipe specifications.* The building sewer (house connection) shall be cast iron soil pipe, ASTM specification or equal, polyvinylchloride (PVC) gravity sewer pipe, ATSM specification (D3034-~~'~~73 and minimum 600 pounds per lineal foot crushing strength) or equal. Joints shall be tight and waterproof. PVC gravity sewer pipe may be required by the inspector where the building sewer is exposed to damage by tree roots. If installed in filled or unstable ground, the building sewer shall be of cast iron soil pipe.

(b) *Size and slope requirements.* The size and slope of the building sewer (house connection) shall be subject to the approval of the engineering department, but in no event shall the diameter be less than six inches. The slope of such a six-inch pipe shall not be less than one-eighth inch per foot.

(c) *Separate sewer requirements.* A separate and independent building (or house connection) sewer shall be provided for every building (or house), except where one building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear of the building (or house) through an adjoining alley, court, yard, or driveway. In such cases, the building (or house connection) sewer from the front building (or house) may be extended to the rear building (or house), and the whole is considered as one building (or house connection) sewer.

(d) *Use of old building (or house connection) sewer for a new building (or house).* Old building (or house connection) sewers may not be used in connection with new buildings (or houses), except with the approval of the city ~~engineer's office~~Engineering Department. All new building sewers shall be plastic (PVC) pipe or equal material and all material and construction shall be approved by a representative of the city engineer.

(e) *Elevation and location of building (or house connection) sewer.* Whenever reasonably possible, the building (or house connection) sewer shall be brought to the building (or house) at an elevation below the basement floor. No building sewer shall be laid parallel to or within three feet of any bearing wall, which might thereby be weakened. The depth shall be sufficient to afford protection from frost. The building sewer shall be laid at a uniform grade and in straight alignment ~~insofar as~~as far as possible. Changes in direction shall be made only with properly curved pipes and fittings. In all buildings (or houses) in which any building (or house) drain is too

low to permit gravity flow to the appropriate public sewer, wastewater carried by such building (or house) drain shall be lifted by appropriate means and discharged to the building (or house connection) sewer. No water-operated sewage ejectors shall be used.

(f) *Excavations.* All excavations required for the installation of a building sewer (house connection) shall be open trench work unless otherwise approved by the Engineering Department. Pipe laying and backfill shall be performed ~~in accordance with~~per ASTM specifications; except that no backfill shall be placed until the work has been inspected by the Engineering Department~~city's engineering department~~. All excavations for building sewer (house connection) shall be adequately guarded with barricades and lights ~~so as to~~to protect the public from hazards. Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the ~~city~~WWTU or Engineering Department.

(g) *Connection of building sewer (house connection) into the public sewer.* The connection of the building sewer ~~in~~to the public sewer shall be made at the "Y" branch. If such a branch is available, the owner shall, at the owner's expense, furnish and install in the public sewer a "Y" at the location specified by the ~~engineering department~~ WWTU into which the building sewer (house connection) shall be connected. The invert of the building sewer (house connection) shall be at the same or ~~at~~ a higher elevation than the invert of the public sewer. A smooth neat joint shall be made, and the connection made secure and ~~water tight~~watertight.

(h) *Prohibition against clear water discharges.* It shall be unlawful to connect to or discharge from a building sewer to a public or other building sewer when such building sewer has any of the following sources of clear water connected to it:

(1) Foundation/footing drains;

(2) Sump pumps with foundation drains connected;

(3) Roof drains;

(4) Heat pump discharge;

(5) Noncontact c~~C~~ooling water; or

(6) Any other source of clear water.

The ~~board~~Board reserves the right to require present users to disconnect, at the user's expense, existing sources of such inflow where such disconnection is technically feasible.

(i) *Existing foundation drains, roof drains, defective building sewers, and sump pumps.* In the event the ~~city and/or WWTU~~ Utility Director determines that a violation of this section exists, the ~~WWTU~~ Utility Director shall notify the violator per Division 6~~, by certified mail,~~ that such violation exists. The notice shall describe the nature of the violation and the corrective action that must be taken. Such corrective action shall be taken within 30 days of receipt of such notice~~,~~ unless extended by the ~~board~~Board ~~of public works and safety~~ and/or the ~~WWTU~~Utility Director.

(j) *Inspection, supervision of connection.* The applicant for the building (or house connection) sewer permit shall notify the ~~city engineer~~WWTU ~~or his designee~~ when a building (or house connection) sewer is ready for inspection and connection to the sewer system. If the applicant has installed footing drains, the discharge point will be inspected before connection of the building sewer (house connection) is connected to the public sewer. The connection shall be made under the observation of the representative of the ~~city engineer~~WWTU using materials and techniques conforming to the requirements of the ~~board~~Board. The applicant shall give notice before the burial or covering of the building (or house connection) sewer and shall not cover or bury the sewer until the inspection is completed and the connection approved. The sewer connections shall be made before a permanent water service connection is made.

(Prior Code, § 30.06.7)

## Sec. 40-~~119~~48. Right to prohibit new connections.

The ~~city~~ WWTU shall have the right to prohibit new connections when the capacity of the ~~sewage system~~sanitary sewer is deemed insufficient by the ~~board~~Utility Director to accommodate the expected flow~~,~~ and/or ~~BOD and/or suspended solids~~pollutant loading from the prospective sewer user.

(Prior Code, § 30.06.8)

### Sec. 40-~~120~~49. Extension outside city limits.

No person shall directly or indirectly make any connection with or opening into any public sewer or appurtenance owned or operated by the ~~city~~WWTU~~'s POTW for the purpose of serving~~to serve an area outside the corporate boundaries of the city, except:

(a) Connection or service is under the terms of a valid agreement or contract with the ~~city~~ WWTU and in force at the time this article becomes effective.

(b) Service to Purdue University.

(c) Service to the area served by the facilities formerly a part of the city's regional sewer district.

(d) Service to any area that is expected to become a part of the corporate limits of the city but is not currently contiguous or cannot be immediately annexed under state law, provided that the ~~board~~Board ~~of works~~ finds that:

(1) Such service would be in the best interests of the ~~wastewater treatment utility~~WWTU;

(2) The development to be served would conform to city standards and be consistent with city planning; and

(3) That such area should become a part of the corporate limits of the city in the future.

(e) Service has been provided before the effective date of the ordinance from which this article is derived.

(Prior Code, § 30.06.9; Ord. No. 13-00, § 1)

### Secs. 40-5~~0~~4—40-6~~7~~9. Reserved.

## *DIVISION ~~5~~3. ~~GENERAL DISCHARGE RESTRICTIONS~~ WASTEWATER ADMISSIBILITY*

### Sec. 40-70. Right to reject waste.

The WWTU shall have the right to reject waste and prohibit the introduction of rejected waste into the sanitary sewer or the WWTU may require pretreatment of the waste when the strength or character of the waste is such that it could cause damage to or interfere with the operation of the WRRF.

(Prior Code, § 30.02.11)

### Sec. 40-71. General discharge prohibitions~~Discharge of untreated sewage and waste~~.

~~(a)~~ It shall be unlawful for a user to discharge any sanitary sewage, industrial waste, household waste, or other polluted waters/wastes into the ~~POTW~~WRRF, ~~sewage system~~sanitary sewer, or any natural outlet within the city or in any area under the jurisdiction of the city without an NPDES permit or approval from the city and/or WWTU per the provisions of this article.

(a) (Prior Code, § 30.02.8)

~~(b)~~

~~(c) Sec. 40-47. Wastewater dischargers.~~

~~(d) It shall be unlawful to discharge without an NPDES permit to any natural outlet, including groundwater, within the city. It shall also be unlawful to direct discharge without notification to the city in any area within the corporate limits of the city. It shall also be unlawful to discharge to the POTW any wastewater except as authorized by the utility director in accordance with the provisions of this article.~~

~~(e) (Prior Code, § 30.03.1)~~

~~Sec. 40-174. Limitations on point of discharge.~~

~~No person shall discharge any substance directly into a manhole or other opening in the sewage system~~sanitary sewer other than through the approved building (house connection) sewer, except ~~in accordance with~~per the terms of this article or by express permission of the ~~board~~WWTU.

(b) (Prior Code, § 30.08.4)

~~(f) Right to reject waste.~~

~~(g) The city shall have the right to reject waste and prohibit the introduction of rejected waste into the sewage system or the city may require pretreatment of the waste when the strength or character of the waste is such that it could cause damage to or interfere with the operation of the sewage system.~~

~~(h) (Prior Code, § 30.02.11)~~

~~(i) Sec. 40-139. General discharge prohibitions.~~

~~(j) No user shall discharge or cause to be discharged any stormwater, surface water, groundwater, roof runoff or subsurface drainage into any sanitary sewer. Stormwater and all other unpolluted drainage may be discharged through existing structures to such sewers as are designated as storm sewers. No additional flow shall be introduced.~~

~~(k) Non-contact cooling waters or unpolluted process waters may be discharged to a storm sewer, on approval of applicant, as provided in section 40-48.~~

(c) No user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which causes, threatens to cause, or can cause, either alone or in conjunction with other discharges, impact the~~by~~ performance of the ~~POTW~~WRRF. These general prohibitions apply to all such users of ~~a~~ the ~~POTW~~WRRF ~~whether or not~~whether the user is subject to National Categorical Pretreatment Standards or any other national, state, or local pretreatment standards or requirements.

## Sec. 40-72. Specific discharge prohibitions.

A user may not contribute the following substances to ~~any~~ the sanitary sewer and ~~POTW~~WRRF:

(a) A pollutant from any source of nondomestic wastewater that could pass through or cause interference with the operation or performance of the sewage works and WRRF.

(b) A pollutant that could create a fire or explosion hazard in the sanitary sewer, including waste streams with a closed cup flashpoint of less than 140 degrees Fahrenheit (60 degrees Celsius) using the test methods in 40 CFR 261.21.

(c) A pollutant with a pH less than 5.0 or greater than 10.0, or any other wastewater having any corrosive property capable of causing damage or hazard to structures, equipment, and/or personnel of the WWTU.

(d) Solid or viscous pollutants in an amount that could obstruct the flow in a sewer or other interference with the operation of the WRRF such as, but not limited to grease, garbage with particles greater than one-half inch in any dimension, animal viscera or tissues, manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, wipes, spent grains, spent hops, waste paper, paper dishes and cups, milk containers, wood, plastics, gasoline, tar, asphalt residues, residues from refining, or processing of fuel or lubricating oil, mud, or glass grinding or polishing wastes.

~~(l)~~(a) ~~Any liquids, solids or gases which, by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fire or explosion or be injurious in any other way to the POTW or to the operation of the POTW. Prohibited materials include, but are not limited to: gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates,~~

~~bromates, carbides, hydrides, sulfides and any other substances which the city, the state or the EPA has notified the user is a fire hazard or hazard to the system.~~

~~(m) (2) Solid or viscous substances which may cause obstruction to the flow in a sewer or other interference with the operation of the wastewater treatment facilities such as, but not limited to: grease, garbage with particles greater than one-half inch in any dimension, animal viscera or tissues, manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastics, gas, tar, asphalt residues, residues from refining, or processing of fuel or lubricating oil, mud, or glass grinding or polishing wastes.~~

~~(n) (3) Any wastewater having a pH less than 5.0 or greater than 10.0, or any other wastewater having any corrosive property capable of causing damage or hazard to structures, equipment, and/or personnel of the POTW.~~

(e) ~~(4)~~ Any pollutants, including oxygen-demanding pollutants (BOD, etc.) released at a flow rate and/or pollutant concentration that a user knows or has reason to know will cause interference.

(f) Heat in an amount that could inhibit biological activity in the WRRF and result in interference or damage to the WRRF, but in no case wastewater with a temperature at the introduction into the WRRF which exceeds 104 degrees Fahrenheit (40 degrees Celsius).

(g) Petroleum, oil, nonbiodegradable cutting oil, or products of mineral oil origin in an amount that could cause interference or pass through.

(h) A pollutant that could result in the presence of toxic gases, vapors, or fumes within the sewers or WRRF in a quantity that may cause acute worker health and safety problems.

~~(o) Any wastewater containing toxic pollutants in sufficient quantity, either singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving waters of the POTW, or to exceed the limitation set forth in the applicable pretreatment standard. A toxic pollutant shall include, but not be limited to any pollutant identified pursuant to Section 307(a) of the Act.~~

(i) ~~(5)~~ Any liquids, solids, or gases which, ~~by reason~~because of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fire or explosion or be injurious in any other way to the ~~POTW~~WRRF or ~~to~~ the operation of the ~~POTW~~WRRF. Prohibited materials include, but are not limited to~~:~~ gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, sulfides, and any other substances which the ~~city~~WWTU, ~~the state~~IDEM, or the EPA has notified the user is a fire hazard or hazard to the system.

(j) A trucked or hauled pollutant, except with the permission of the WRRF and when introduced to the POTW at ta discharge point designated by the WRRF.

~~(p)~~(k) Any noxious or malodorous liquids, gases, or solids which either singly or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

~~(q)~~(l) ~~(6)~~ Any substance which may cause the ~~POTW~~WRRF~~'~~'s effluent or any other product of the ~~POTW~~WRRF such as residuals, biosolids, or scums to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case, shall a substance discharged to the ~~POTW~~WRRF cause the ~~POTW~~WRRF to be in non-compliance with biosolids use or disposal criteria, guidelines, or regulations developed under Section 405 of the Act; any criteria, guidelines, or regulations affecting biosolids use or disposal developed ~~pursuant to~~per the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substance Control Act, or state criteria applicable to the biosolids management being used.

~~(r)~~(m) ~~(7)~~ Any substance ~~which~~ that ~~will cause~~causes the ~~POTW~~WRRF to violate its NPDES Permit or the receiving stream~~'~~'s water quality standards.

~~(s)~~(n) ~~(8)~~ Any wastewater with objectionable color not removed in the treatment ~~-~~process, such as, but not limited ~~to:~~to dye waste and vegetable tanning solutions.

~~(t) (9) Any wastewater having a temperature which will inhibit biological activity in the POTW treatment plant resulting in interference, but in no case wastewater with a temperature at the introduction into the POTW which exceeds 40 degrees C (104 degrees F).~~

~~(u) (10) Any pollutants, including oxygen demanding pollutants (BOD, etc.) released at a flow rate and/or pollutant concentration which a user knows or has reason to know will cause interference to the POTW.~~

~~(v)~~(o) ~~(11)~~ Any wastewater containing any radioactive ~~wastes~~waste.

~~(w)~~(p) ~~(12)~~ Any wastewater ~~which~~ ~~causing~~causes a hazard to human life or creates a public nuisance~~,~~ or is deleterious to the ~~POTW~~WRRF. When the U~~u~~tility ~~director~~Director determines that a user is contributing to the ~~POTW~~WRRF, any of the above~~-~~ ~~described~~enumerated substances in such amounts as to interfere with the operation of the ~~POTW~~WRRF, the ~~utility~~ Utility ~~director~~Director shall advise the user of the impact of the contribution on the ~~POTW~~WRRF; and develop effluent limitation for such user to correct the interference with the ~~POTW~~WRRF.

(Prior Code, § 30.02.1)

**~~Sec. 40-140. Federal categorical pretreatment standards to govern.~~**

**~~Upon the promulgation of the federal categorical pretreatment standards for a particular industrial sub-category, the federal standard, if more stringent than limitations imposed under this article for sources in that category, shall immediately supersede the limitations imposed under this article. The utility director shall notify all affected users of the applicable reporting requirements under 40 CFR 403.12.~~**

**~~(Prior Code, § 30.02.2)~~**

**~~Sec. 40-141. Modification of federal categorical pretreatment standards.~~**

**~~Where the city's wastewater treatment system achieves consistent removal of pollutants limited by federal categorical pretreatment standards, the city may apply to the approval authority for modification of specific limits in the federal pretreatment standards. The term "consistent removal" means reduction in the amount of a pollutant or alteration of the nature of the pollutant by the wastewater treatment system to a less toxic or harmless state in the effluent which is achieved by the system 95 percent of the samples taken according to the procedures set forth in section 403.7(c)(2) of (Title 40 of the Code of Federal Regulations, Part 403) - "General Pretreatment Regulations for Existing and New Sources of Pollution" promulgated pursuant to the Act. The city may then modify pollutant discharge limits in the federal categorical pretreatment standards if the requirements contained in 40 CFR 403.7, are fulfilled and prior approval from the approval authority is obtained.~~**

**~~(Prior Code, § 30.02.3)~~**

### Sec. 40-~~142~~73. ~~Specific pollutant~~Local limits.

No person shall discharge wastewater containing ~~in excess of~~more than:

| Limit | Pollutant |
|---|---|
| 0.1 mg/l | Arsenic |
| 1.0 mg/l | Cadmium |
| 6.0 mg/l | ~~Total~~ Chromium~~-~~, Total |
| 2.5 mg/l | Copper |
| 1.0 mg/l | Cyanide, Total |
| 0.6 mg/l | Lead |
| 0.02 mg/l | Mercury |
| 1.0 mg/l | Molybdenum |
| 2.0 mg/l | Nickel |
| 4.39 mg/l | Selenium |
| 1.0 mg/l | Silver |
| ~~6.0 mg/l~~ | ~~Total Chromium~~ |
| 4.2 mg/l | Zinc |
| 1.0 mg/l | Phenolic Compounds |
| 8.0 mg/l | Phosphorus |

~~which cannot be removed by the city's wastewater treatment processes.~~

(Prior Code, § 30.02.4; altered in 2019 recodification)

### Sec. 40-~~145~~74. Excessive discharge.

No user shall ever increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or in any other pollutant-specific limitation developed by the ~~city~~ WWTU or ~~state~~IDEM.

(Prior Code, § 30.02.7)

~~**Sec. 40-146. Discharge of untreated sewage and waste.**~~

~~**It shall be unlawful to discharge any sanitary sewage, industrial waste, household waste or other polluted waters/wastes into the POTW, sewage system or any natural outlet within the city or in any area under jurisdiction of the city.**~~

~~**(Prior Code, § 30.02.8)**~~

### Sec. 40-~~147~~75. P~~Admissibility; p~~rohibition of unpolluted waters.

(a) No person shall discharge or cause to be discharged any stormwater, surface water, groundwater, roof runoff, subsurface drainage, noncontact cooling water, or unpolluted industrial process water to any sanitary sewer.

(b) Unpolluted water, including, but not limited to the public water supply, noncontact cooling water, process water, or blowdown from cooling towers or evaporative coolers shall not be discharged through direct or indirect connection to the sanitary sewer or for purposes of diluting wastewater.

~~(x)~~(c) Stormwater and all other unpolluted drainage shall be discharged to ~~such~~ sewers ~~as~~ that are specifically designated as storm sewers or to a natural outlet approved by the ~~approval authority~~Utility Director and/or under an NPDES Permit from IDEM.

(d) No user shall contribute non-contact cooling waters or unpolluted process waters to the sanitary sewer. Non-contact cooling waters or unpolluted process waters may be discharged to a storm sewer after an NPDES Permit is approved by IDEM and provided to the Utility Director.

~~(y) Industrial cooling water or unpolluted process waters may be discharged upon approval by the approval authority and/or the utility director to a storm sewer or natural outlet.~~

~~(z) No person shall discharge or cause to be discharged any stormwater, surface water, groundwater, roof runoff, subsurface drainage, cooling water or unpolluted industrial process water to any sanitary sewer.~~

~~(aa) Unpolluted water, including, but not limited to: city water, cooling water, process water or blowdown from cooling towers or evaporative coolers shall not be discharged through direct or indirect connection to the collection system or for purposes of diluting wastewater.~~

~~(bb)~~(e) Limitations on the amount of unpolluted water that is discharged shall be part of an Industrial Wastewater Pretreatment (IWP) Permit from IDEM or an ~~significant industrial user's permit.~~Industrial Discharge Approval from the WWTU.

(Prior Code, § 30.02.9)

## Sec. 40-76~~175~~. Licensed commercial or industrial waste hauling.

A person who is a licensed commercial or industrial waste hauler may discharge compatible pollutants and those incompatible pollutants within the limits of admissibility set out in ~~d~~Division ~~5~~3 of this article to the ~~wastewater treatment plant~~WRRF at a time and place and in such amounts as permitted by the ~~board~~Utility Director. The ~~board~~Utility Director shall not be required to accept any such discharge if it elects in given cases not to do so. Wastewater so received must be preceded with a copy of any IDEM permits and a manifest of constituents and concentrations for each truck-load.

(Prior Code, § 30.08.5; Ord. No. 31-09)

## Sec. 40-~~143~~77. Federal and State requirements.

If Federal or State requirements are more stringent than the ~~and~~ limitations imposed under this article, the most stringent limits shall supersede the limitations in this article. ~~on discharges shall apply in any case where they are more stringent than federal requirements and limitations or those in this article.~~

(Prior Code, § 30.02.5)

## Sec. 40-~~144~~78. City~~'~~'s right of revision.

The ~~city~~ WWTU reserves the right to change rates and fees~~,~~ and establish, by ordinance, more stringent limitations, or requirements on discharges to the ~~wastewater disposal system~~sanitary sewer if deemed necessary to comply with the objectives of this article.

(Prior Code, § 30.02.6)

~~**Such interceptors shall be provided at all restaurants, and at all industrial and commercial enterprises necessary to contain grease, flammable wastes or sand and other harmful inert materials. All interceptors shall be approved by the city and shall be readily and easily accessible for cleaning and inspection. Interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight and equipped with easily removable covers which when bolted in place shall be gas tight and watertight. When installed, all interceptors shall be maintained by the owner, at the owner's expense, in continuously efficient operation at all times.**~~

~~**Sec. 40-149. Right to reject waste.**~~

~~**The city shall have the right to reject waste and prohibit the introduction of rejected waste into the sewage system or the city may require pretreatment of the waste when the**~~

~~strength or character of the waste is such that it could cause damage to or interfere with the operation of the sewage system.~~

~~(Prior Code, § 30.02.11)~~

~~Sec. 40-151. Discharger's request for interpretation.~~

~~In an effort to ensure fuller understanding of and compliance with the goals and objectives of this article, it shall be the privilege of any interested party to request, in writing, an interpretation or ruling by the utility director on any matter covered by this municipal article.~~

~~(Prior Code, § 30.02.13)~~

**Secs. 40-~~85~~79—40-~~111~~89. Reserved.**

## *DIVISION ~~2~~4. INDUSTRIAL WASTE DISCHARGE~~ADMINISTRATION~~*

### Sec. 40-~~48~~90. Applicable users.

This section applies to industrial users that discharge pollutants from non-domestic wastewater sources to the WRRF. Industrial users include:

(a) A categorical industrial user (CIU) or significant industrial user (SIU) requiring an IWP Permit from IDEM;

(b) A user deemed by the Utility Director that has the potential to discharge specifically prohibited discharges described in Section 40-72; or

(c) A user that has the potential to discharge a pollutant above the local limitations in Section 40-73.

### Sec. 40-91. Pretreatment requirements.

(a) Industrial users shall separate non-domestic, industrial waste~~water~~ from domestic wastewater to provide a single point of discharge of all non-domestic, industrial process waste~~water~~ to determine compliance with the requirements of this ~~ordinance~~article.

(b) Industrial users shall provide wastewater treatment as necessary to comply with this article and shall achieve compliance with all pretreatment standards and requirements, IWP Permit requirements (if applicable), local limits, and the prohibitions set out in this article within the time limitations specified by EPA, IDEM, or the WWTU, whichever is more stringent.

(c) Any equipment required to pretreat wastewater to a level acceptable to the WWTU shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the WWTU with the Industrial Discharge Approval application for review and shall be acceptable to the WWTU before the construction of the facility.

(d) Whenever deemed necessary, the Utility Director, or designee, may require industrial users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, and such other conditions as may be necessary to protect the sanitary sewer and determine the industrial user's compliance with the requirements of this article.

(e) When requested by the Utility Director, or designee, an industrial user shall submit information on the nature and characteristics of its wastewater within 30 days of the request. The Utility Director, or designee, is authorized to prepare a form for this purpose and may periodically require users to update this information.

(f) The Utility Director, or designee, may require an industrial user discharging into the sanitary sewer to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An Industrial Discharge Approval may be issued solely for flow equalization. Detailed plans describing such facilities and operating procedures shall be provided with the Industrial Discharge Approval application.

(g) An industrial user shall provide, ~~*Location of monitoring facilities.*~~ at the user's own expense, the WWTU an independent access and facilities for observation, measurement, and sampling of the building sewer and/or internal drainage systems. The ~~city~~WWTU shall have full, 24-hour access to the ~~SIU's~~ monitoring facility or facilities to conduct tests on the quality and quantity of effluent.

(1) The monitoring facility should normally be situated on the industrial user's premises, but the WWTU may, when such a location would be impractical for purposes of providing for independent and unscheduled monitoring activities or cause undue hardship on the industrial user, allow the facility to be constructed in the public street, right-of-way, parkway, or sidewalk area and located so that it will not be obstructed by landscaping or parked vehicles.

(2) There shall be ample room in or near such sampling manhole or facility to allow accurate sampling preparation of samples for analysis.

~~(4)~~ The facility, sampling, and measurement equipment shall be maintained in a safe and proper operating condition at the expense of the industrial user. Whether constructed on public or private property, the sampling and monitoring facilities shall be provided per the WWTU's requirements and all applicable local construction standards and specifications, and such sampling and monitoring facilities shall be constructed and maintained in such a manner to enable WWTU personnel to perform independent and unscheduled monitoring activities.

(3) (Prior Code, § 30.03.4)

(4) Any violation of the requirements for the construction of control manholes or monitoring facilities and installation and operation of monitoring equipment shall be punishable by a fine in an amount established by the WWTU~~city~~ for each daily violation.

~~(b)~~ Industrial user shall provide a reliable measurement of t~~Sec. 40-50. Monitoring facilities.~~

~~(c)~~(h) ~~(a) *Methods for measurement of industrial waste flows.* Any significant industrial user (SIU) who, on the effective date of these regulations, is discharging industrial waste to the POTW shall provide the city independent access means and facilities for the purpose of observation, measurement and sampling of such industrial waste. If such access means and facilities are not otherwise available, the SIU shall construct and maintain a control manhole at the SIU's expense. The city shall have full access at all times to the SIU's monitoring facility or facilities to conduct tests on quality and quantity of effluent.~~ The volume or quantity of industrial waste discharged ~~by any SIU~~ into the sanitary sewer. The measurement shall be comprised of industrial waste only and exclude all domestic wastewater sources. The WWTU may review the calibration procedure at the flow monitoring station and shall have the right to be present during calibration. ~~may be measured by one or more of the following methods:~~

~~(1) (1) If the volume of water used by any SIU in its industrial or process operations is greater than 85 percent of the volume obtained from the city water works system, then the volume of water purchased from such system shall be considered to be the volume of waste discharged;~~

~~(2) (2) If the volume of water used for industrial purposes is less than 85 percent of the volume of water obtained from the city water works system, then the quantity of industrial wastes generated by an SIU shall be determined as follows:~~

~~a. By a meter or meters on the water supply line or lines to the SIU's industrial and/or process operations; or~~

~~b. By a meter or meters on the waste line or lines from the SIU's industrial and/or process operations.~~

~~The city shall review the calibration procedure at the flow monitoring station and shall have the right to be present during calibration.~~

~~(b) *Meters.* If any SIU now discharging or proposing to discharge industrial waste to the POTW does not obtain its entire water supply requirements from the city water works system, the SIU shall install and maintain a meter or meters from its industrial and/or process operations or shall install such additional meters on the private~~

~~water supply as required to permit a determination of the total amount of discharge to the sewers from all sources under procedures comparable to subsection (a)(2) of this section.~~

(Prior Code, § 30.03.4)

(i) Grease, oil, and sand interceptors shall be provided at all restaurants, industries, and commercial enterprises as necessary to contain grease, flammable wastes, sand, and other harmful inert materials. All interceptors shall be approved by the WWTU and shall be readily and easily accessible for cleaning and inspection. Interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight, and equipped with easily removable covers which when bolted in place shall be gas-tight and watertight. When installed, the owner shall maintain all interceptors, at the owner's expense, and in continuously efficient operation at all times. Shop drawings for all interceptors shall be submitted to the WWTU for approval before being put in service. (Prior Code, § 30.02.10)

(j) Industrial users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter. (Prior Code, § 30.03.6)

(k) Protection against a~~A~~ccidental discharges.

(1) Each user shall ~~provide~~ protect~~ion~~ from accidental discharge of prohibited materials or other substances regulated by this article and 40 CFR 117. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the owner or user~~'~~'s own cost and expense.

(2) Detailed plans showing facilities and operating procedures to provide this protection for reportable quantities of hazardous materials as defined in 40 CFR 117 shall be submitted to the ~~city~~ Utility Director, or designee, as part of the Industrial Discharge Approval application. The plans ~~for review, and~~ shall be approved by the ~~city~~ Utility Director, or designee, before the construction of the facility, whenever applicable.

(3) ~~All existing users shall complete such a plan by June 1, 1993.~~ Said plan shall be revised and updated whenever plant operation changes the validity of the plan, but, in any case, not less than every ~~three~~ five years.

(4) Failure to comply with this requirement shall result in legal remedies as defined in ~~section 40-26~~Division 6 of this article.

~~(3)~~(5) No user who commences contribution to the ~~POTW~~WRRF after the effective date of the ordinance from which this article is derived shall be permitted to introduce pollutants into the system until accidental discharge procedures have been approved by the WWTU~~city~~. Review and approval of such plans and operating procedures shall not relieve the user from the responsibility to modify the user~~'~~'s facility as necessary to meet the requirements of this article.

(Prior Code, § 30.02.12)

## ~~Sec. 40-52. Pretreatment.~~

~~Significant industrial users shall provide necessary wastewater treatment as required to comply with this article and shall achieve compliance with all Federal Categorical Pretreatment Standards within the time limitations as specified by the Federal Pretreatment Regulations. Any facilities required to pretreat wastewater to a level acceptable to the city shall be provided, operated and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the city for review and shall be acceptable to the city before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent meeting Federal Categorical Pretreatment Standards and acceptable to the city under the provisions of this article. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be acceptable to the city prior to the user's initiation of the changes. The city shall annually publish in the newspaper of general circulation having the largest circulation within the city a list of users which were not in compliance with any pretreatment requirements~~

~~or standards at least once during the 12 previous months. The notification shall also summarize any enforcement actions taken against the user during the same 12 months. All records relating to compliance with pretreatment standards shall be made available to officials of the city, the EPA or the approval authority.~~

~~(Prior Code, § 30.03.6)~~

## Sec. 40-92. Industrial ~~Wastewater d~~Discharge ~~permits~~Approval.

(a) Application.

(1) ~~(a) General.~~ All ~~significant industrial users~~ CIUs or SIUs proposing to connect to or ~~to~~ contribute to the ~~POTW~~WRRF shall obtain an IWP Permit from IDEM ~~a wastewater discharge permit~~ before connecting to or contributing to the ~~POTW~~WRRF. Each industrial user who applies to IDEM for an IWP Permit shall file a copy of such application and all supporting documents with the Utility Director, or designee, on the same day as IDEM. Industrial users applying for an IWP Permit are still subject to all the requirements of this article.

~~(1)~~(2) All other industrial users shall apply for Industrial Discharge Approval from the WWTU before connecting or contributing to the WRRF. ~~All existing significant industrial users connected to or contributing to the POTW shall obtain a wastewater discharge permit within 90 days after the effective date of the ordinance from which this article is derived.~~ A~~l~~ll~~ny~~ ~~new~~ industrial users shall obtain Industrial Discharge Approval ~~industries meeting the significant industrial criteria shall obtain said permit~~ 180 days before~~prior to~~ discharging to the ~~city POTW~~WRRF. ~~All significant industrial users shall submit all notices and self-monitoring reports to the utility director on monthly basis or other frequency as established in their permit.~~

(3) ~~(b)~~ Industrial users shall submit the Industrial Discharge Approval application form, accompanying fees, building plans, schematics, and any additional information requested by the Utility Director or Board to obtain an Industrial Discharge Approval~~Permit application users required to obtain a wastewater discharge permit. shall complete and file with the board of public works and safety (board), an application in the form prescribed by the board, and accompanied by a fee as follows:~~ Fees are established by Section 40-197. The application form identifies information to be submitted to the WWTU for approval.

(b) Review process.

(1) The review process for an IWP Permit from IDEM will follow IDEM procedures.

(2) The Utility Director, or designee, will evaluate the data furnished from the Industrial Discharge Approval application by the industrial user and may require additional information. Within 60 days of receipt of a complete application, the Utility Director, or designee, will determine whether to issue an Industrial Discharge Approval.

(3) Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be acceptable to the WWTU before the user initiates the changes.

~~(1)~~(4) The review of such plans and operating procedures shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the WWTU under the provisions of this article. The Utility Director may deny any application.

~~(d) (c) Permit fee. Initial significant industrial user permit.~~

~~(c) (1) The permit fee for industries connected to sewage system after the effective date of the ordinance from which this article is derived shall be in an amount established by the city.~~

~~(f) (2) In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:~~

~~(g) Name, address, and location (if different from the plant address);~~

~~(h) b. Standard industrial classification (SIC) number according to the Standard Industrial Classification Manual, Bureau of the Budget, 1972, as amended;~~

(i) Wastewater constituents and characteristics, including, but not limited to, those mentioned in section 2-521 as determined by an EPA approved analytical laboratory; sampling and analysis shall be performed in accordance with procedures established in the latest EPA approved edition of Standard Methods or contained in 40 CFR 136, as amended, for items not covered in Standard Methods;

(j) Time and duration of contribution;

(k) Average daily and estimated 30-minute peak wastewater flow rates, including daily, monthly, and seasonal variation, if any;

(l) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, sewer connections, and appurtenances by the size, location and elevation;

(m) g. Description of activities, facilities and plant processes on the premises, including all materials which are or could be discharged;

(n) Basis of design of the pretreatment facility including, where applicable: Design calculations for sizing of tanks, pumps, piping and other treatment appurtenances;

(o) 1. Design loading.

(p) (i) Average;

(q) (ii) Peak;

(r) (iii) Future;

(s) 2. Rationale for process selection;

(t) 3. Design calculations for sizing of tanks, pumps, piping and other treatment appurtenances;

(u) Where known, the nature and concentration of any pollutants in the discharge which are limited by any city, state, or Federal Categorical Pretreatment Standards and a statement regarding whether or not the pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required for the user to meet applicable pretreatment standards;

(v) If additional pretreatment and/or O&M will be required to meet the pretreatment standards; the shortest schedule to provide such additional pretreatment will be utilized by the user. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standards. The following conditions shall apply to this schedule:

(w) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for the major components, commencing construction, completing construction, etc.);

(x) No increment referred to in subsection 3 of this section shall exceed nine months;

(y) No later than 14 days (calendar) following each date in the schedule and the final date for compliance, the user shall submit a progress report to the utility director including, as a minimum, whether or not it complied with the increment of progress to be met on such date and if not, the date on which it expects to comply with this increment of progress, the reason for delay and the steps being taken by the user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the utility director.

(z) (d) Hours of operation of plant and proposed or actual hours of operation of pretreatment system.

(aa) (e) Each product produced by type, amount, process and rate of production.

(bb) (f) Type and amount of raw materials processed (average and maximum per day).

~~(cc) (g) Any other information as may be deemed by the city to be necessary to evaluate the permit application. Any significant industrial user (SIU) who discharges wastewater in excess of 25,000 gallons per day and does not produce a manufactured product and has a discharge which consists of domestic wastewater will only be required to provide information from the items indicated above as determined by the city. The board or its designee will evaluate the data furnished by the user and may require additional information. After evaluation and acceptance of the data furnished, the board may issue a wastewater discharge permit subject to the terms and conditions provided herein.~~

~~(dd) (h) Permit modifications within nine months of the promulgation of a National Categorical Pretreatment Standard, the wastewater discharge permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a Federal Categorical Pretreatment Standard, has not previously submitted an application for a wastewater discharge permit, as required by this section, the user shall apply for a wastewater discharge permit within 180 days after the promulgation of the Applicable Federal Categorical Pretreatment Standard. In addition, the user with an existing wastewater discharge permit shall submit the information required by section 40-48 to the utility director within 180 days after the promulgation of an applicable Federal Categorical Pretreatment Standard.~~

~~(ee)~~(c) ~~*(i) Permit conditions*~~*Approval*~~terms and~~ . Industrial Discharge Approval~~Wastewater discharge permits~~ shall be ~~expressly~~ subject to all provisions of this ~~article~~ article and all other applicable regulations, user charges, and fees established by the ~~city~~WWTU. ~~A permit~~An Industrial Discharge Approval may contain the following:

(1) Requirements as specified in this article;

~~(1) The unit charge or schedule of user charges and fees for the wastewater to be discharged to a public sewer;~~

(2) Limits on the average and maximum wastewater constituents and characteristics;

(3) Limits on average and maximum rate and time of discharge or requirements for flow regulations and equalization;

(4) Requirements for installation and maintenance of inspection and ~~sampling~~ monitoring facilities;

(5) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types and standards for tests, and reporting schedule;

(6) Compliance schedules;

(7) Requirements for submission of technical reports or discharge reports (~~see section 40-49~~Sections 40-110 and 40-111);

(8) Requirements for maintaining and retaining ~~plant~~ records relating to wastewater discharge as specified by the WWTU~~city~~, and affording WWTU ~~city~~ access thereto;

(9) Requirements for notification of the WWTU~~city~~ of any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the wastewater treatment system;

(10) Requirements for notification of slug discharges as per ~~section~~Section 40-~~149~~112;

(11) Other conditions as deemed appropriate by the ~~city~~ WWTU to ensure compliance with this article.

(12) ~~(j) Permit Permits~~ Approvals shall be issued for a specified ~~time period~~period, not to exceed five years. ~~A permit~~ Approvals may be issued for ~~a period~~ less than one year or may be stated to expire on a specific date.

(d) *Modifications*. The WWTU may modify a wastewater discharge approval for good cause, including, but not limited to, the following reasons:

(1) To incorporate any new or revised Federal, State, or local pretreatment standards or requirements;

(2) To address significant alterations or additions to the industrial user's operation, processes, or wastewater volume or character since the time of the approval;

(3) A change in the WRRF that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(4) Information indicating that the approved discharge poses a threat to the sanitary sewer, WRRF, personnel, or the receiving waters;

(5) Violation of any terms or conditions of the approval;

(6) Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge application or any required reporting; or

(7) To correct typographical or other errors in the approval.

~~(ff)~~(e) *Renewal.* The industrial user shall apply for ~~the permit reissuance~~renewal a minimum of 180 days ~~prior to~~before the expiration of the user~~'~~'s existing permit or approval. The terms and conditions of the approval may be subject to modification by the ~~city~~ WWTU during the term of the approval as limitations or requirements, as identified in D~~d~~ivision 3~~5~~ of this article, are modified or other just cause exists. The industrial user shall be informed of any proposed changes in their present approval at least 30 days ~~prior to~~before the effective date of the change. Any changes or new conditions in the approval shall include a reasonable ~~time~~ schedule for compliance.

~~(gg)~~(f) ~~*(k) T*~~*Permit ~~t~~ransfers*. ~~Wastewater~~ Industrial D~~d~~ischarge ~~a~~Approvals are issued to a specific industrial user for a specific operation. An Industrial Discharge Approval ~~wastewater discharge approval~~ shall not be reassigned, ~~or~~ transferred, or sold to a new owner, new user, different premises, or a new or changed operation without the approval of the ~~city~~Utility Director, or designee. A transfer may be requested in writing to the Utility Director at least 60 days before a new owner or user generates industrial waste. Any succeeding owner or user shall also comply with the terms and conditions of the existing approval and confirm operations are not changing. Permits may be obtained from the Utility Director.

~~(hh)~~(g) ~~*(l)*~~ *Records retention*. All information, records, books, etc., required ~~pursuant to~~under this ~~section~~article, whether prepared by or on behalf of the discharger, shall be retained and preserved by such discharger for a minimum period of ~~three~~ five years from the ~~time~~ date of their creation. This period shall be automatically extended for the duration of any litigation concerning the user or City, or where the user has been specifically notified of a longer retention period by the Utility Director, IDEM, or the EPA.

(h) Revocation of discharge approval.

(1) The WWTU may revoke an Industrial Discharge Approval for good cause, including, but not limited to, any of the following:

a. Violation of any condition of the approval, this article, or other State or Federal law;

b. Failure to meet the terms and conditions of the approval;

c. Misrepresentation or failure to disclose all relevant facts in the application;

d. Failure to factually report wastewater characteristics; or

e. Refusal of reasonable access to the industrial user's premises for review of records, inspection, or monitoring.

(2) Except in cases of willfulness or those in which the public health interest or safety requires otherwise, the revocation, withdrawal, or suspension of the Industrial Discharge Approval is lawful only if, before the institution of proceedings thereof, the industrial user has been given notice by the WWTU, in writing, of the facts or conduct which may warrant the action; and provided an opportunity to demonstrate or achieve compliance with all lawful requirements.

(Prior Code, § 30.03.2; altered in 2019 recodification)

## Sec. 40-93. Confidential information.

Per 40 CFR 403.14, any information submitted to the WWTU under these regulations may be claimed as confidential by the submitter. Any such claim must be asserted at the time of submission in the manner prescribed on the application form or instructions, or, in the case of other submissions, by stamping the words "confidential business information" on each page containing such information. If no claim is made at the time of submission, the WWTU may make the information available to the public without further notice. If a claim is asserted, the information will be treated per the procedures in 40 CFR Part 2 (Public Information). Information and data provided to the WWTU according to this article, which is effluent data shall be available to the public without restriction. All other information which is submitted to IDEM or the WWTU shall be available to the public at least to the extent provided by 40 CFR 2.302.

(Prior Code, § 30.03.7)

## Secs. 40-~~121~~94—40-~~138~~109. Reserved.

# *DIVISION 5. PRETREATMENT PROGRAM*

## Sec. 40-110. Industrial user self-monitoring and reporting.

(a) All industrial users with an IDEM IWP Permit shall monitor as described in the IWP Permit and provide a copy of such monitoring report to the Utility Director, or designee, on the same day as IDEM. Industrial users may add the WWTU to the distribution list in IDEM's electronic submittal program or provide a hard copy to the WWTU at 500 S. River Road, West Lafayette, IN 47906.

(b) All other industrial users required to complete routine monitoring as described in their Industrial Discharge Approval shall provide the monitoring results in a format provided by the WWTU by the 28th of the following month. The monitoring report shall be provided to the WWTU via electronic mail with an original signed (wet-ink signature) hard copy mailed or delivered to the WWTU at 500 S. River Road, West Lafayette, IN 47906.

(c) All analyses shall be performed under the procedures outlined in Standard Methods for the Analysis of Water and Wastewater and Industrial Waste or, absent such standard methods, by analytical techniques approved by the ~~United States Environmental Protection Agency~~EPA.

## Sec. 40-~~93~~111. Additional industrial user r~~R~~eporting ~~requirements for permittee~~.

(a) ~~(a)~~ Industrial users with an IDEM IWP Permit will follow the reporting provisions described in their permit and submit copies to the Utility Director, or designee. The Utility Director, or designee, may require an industrial user to provide additional reports to the WWTU.

(b) The WWTU may require routine reporting requirements for other industrial users in their Wastewater Discharge Approval.

(c) *Baseline reports.* Within 180 days after the effective date of a categorical pretreatment standard, existing industrial users subject to such categorical pretreatment standards and currently discharging to the WRRF will follow the reporting requirements in 40 CFR 403.12(b)(1)—(7) and 327 IAC 5-16-5.

(d) *Compliance schedule reports.* If additional pretreatment and/or operations and maintenance are required to meet the pretreatment standards, the industrial user will provide a compliance schedule. This schedule is necessary whenever an industrial user is not meeting categorical pretreatment standards at the time of promulgation of that standard. The schedule contains increments of progress that correspond to specific dates for their completion. These represent major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical pretreatment standard. All industrial users subject to these conditions must submit a compliance schedule per 40 CFR 403.12 (c) and 327 IAC 5-16-5.

~~(ii)~~(e) *Compliance schedule reports (for non-categorical industries)*. Any non-categorical ~~non-categorical industry~~industrial user ~~which~~ that is not in compliance with the ~~city's ordinance limitations~~local limits (Section 40.73) at the time of Industrial Discharge Approval shall ~~must~~ develop a compliance schedule ~~during which time the industry must~~to meet the ~~city's~~ WWTU's standards. The schedule sh~~ould~~all contain increments of progress ~~which~~ that correspond to specific dates for their completion. All non-categorical industrial ~~significant industrial users (SIU)~~users subject to these conditions must submit a progress report to the ~~city~~ WWTU no later than 14 calendar days following each date in the compliance schedule. This report must include whether ~~it~~ the user complied with the increment of progress to be met on that date, the reason for delay if the date was not met, and the steps being taken to return to compliance. In no event can more than nine months elapse between progress reports.

~~(jj)~~ ~~(b) *Self-monitoring reports.* This requirement calls for the submission of all notices and self-monitoring reports from SIUs that are necessary to assess and ensure compliance by SIUs with applicable pretreatment standards and requirements. These reports will normally be required on a monthly basis.~~

~~(kk)~~ ~~*Compliance schedule reports (categorical industries).* This schedule is necessary whenever an industrial user is not meeting categorical pretreatment standards at the time of promulgation of that standard. The schedule contains increments of progress which correspond to specific dates for their completion. These represent major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical pretreatment standard. All industrial users subject to these conditions must submit a progress report to the control authority no later than 14 calendar days following each date in the compliance schedule including the final date for compliance. This report must include, at a minimum, whether or not it complied with the increment of progress to be met on the date and, if not, the date on which it expects to comply, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event can more than nine months elapse between such progress reports.~~ ~~*Baseline reports.* Within 180 days after the effective date of a categorical pretreatment standard, existing industrial users subject to such categorical pretreatment standards and currently discharging to the POTW will be required to submit to the control authority a report containing the information listed in 40 CFR 403.12(b)(1)—(7). Upon promulgation of a categorical pretreatment standard, the control authority will provide the appropriate 40 CFR 403.12(b) form for distribution to the industrial users who are affected by the promulgated standard. The industrial users are then required to submit the completed report to the control authority.~~

~~(d) *Compliance schedule reports (categorical industries).* This schedule is necessary whenever an industrial user is not meeting categorical pretreatment standards at the time of promulgation of that standard. The schedule contains increments of progress which correspond to specific dates for their completion. These represent major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical pretreatment standard. All industrial users subject to these conditions must submit a progress report to the control authority no later than 14 calendar days following each date in the compliance schedule including the final date for compliance. This report must include, at a minimum, whether or not it complied with the increment of progress to be met on the date and, if not, the date on which it expects to comply, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event can more than nine months elapse between such progress reports.~~

(Prior Code, § 30.03.3)

## Sec. 40-~~94~~11**1**2. Required notifications**.**

All industrial users shall notify the WWTU in the following situations.

(a) Notification of Potential Problems, Accidental Discharges, and Noncompliance

## ~~Sec. 40-15095. Accidental discharges.~~

(1) ~~In~~In case of an accidental discharge, it is the responsibility of the user to immediately (within one hour) telephone and notify the ~~utility director~~WWTU at 765-775-5145 of the incident. The notification shall include:

a. Name of the company;

b. ~~the L~~location of discharge;

c. ~~, t~~Type of waste discharged;

d. C~~, c~~oncentration and volume of waste discharged;

e. C~~, and c~~orrective actions taken to minimize the impact of the discharge to the WRRF, and~~.~~

f. Date and time of the occurrence.

(2) The industrial user shall notify the WWTU, within two (2) hours of the discharger obtaining knowledge, if it is unable to comply with any requirement of this article and/or any pretreatment standard because of a breakdown of its treatment equipment, accidents caused by human error, or upsets. The notification should include the information required in paragraph (1) above.

(3) Within five (5) calendar days following an accidental discharge or incident of noncompliance, the industrial user shall submit to the Utility Director, or designee, a detailed w~~W~~ritten report~~notice~~ signed by the user describing: ~~within five days (calendar) following an accidental discharge; the user shall submit to the utility director a detailed written report under oath and signed by the user describing~~

a. The~~the~~ cause of the accidental discharge or noncompliance;

b. The period of the accidental discharge or noncompliance, including exact dates and times or if not corrected, the anticipated time the noncompliance is expected to continue; and

c. Steps being~~and the measures to be~~ taken and/or planned to reduce, eliminate, or prevent the recurrence of a~~by the user to prevent~~ similar incident in the future~~ occurrences~~.

(4) Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred ~~as a result of~~because of damage to the ~~POTW~~WRRF, fish kills, or any other damage to person or property; nor shall such notification relieve the user of any fines, civil penalties, or other liability which may be imposed by this article or other applicable law.

~~(12) Within ten days (working) following such accidental discharge, the user shall appear before the board and provide a full explanation of the discharge and of steps being taken to prevent its recurrence.~~

~~(ll) *Notice to employees.* A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees who may cause or suffer such a dangerous discharge to occur are advised of the emergency notification procedure.~~

(b) ~~Wastewater Department765-775-5145 andindustrial userWastewater Departmentarticleindustrial userWastewater Department industrial articlen industrial user Wastewater Department~~Notification of Changed Conditions

(1) All industrial users shall notify the ~~Wastewater Department~~WWTU of any planned substantial changes to the industrial user's operations or system that might alter the nature, quality, or volume of its wastewater at least 30 days before the change.

(2) The ~~Wastewater Department~~WWTU may require the industrial user to submit such information as may be deemed necessary to evaluate the changed condition, including an Industrial Discharge Application as described in~~40-92 (a)~~ this article.

(3) The ~~Wastewater Department~~WWTU may issue an ~~approval~~Industrial Discharge Approval as described in ~~40-92 (c)~~ this article or modify an existing approval ~~40-92 (d)article~~in response to changed conditions or anticipated changed conditions.

(4) For this requirement, substantial changes include, but are not limited to, flow increases and decreases of 20% or greater, the expansion, reduction, or addition of wastewater-generating processes, and discharging any previously unreported pollutants.

(c) Change in Ownership or Business

(1) Industrial users with an IWP Permit will follow the permit provisions described in their permit and submit copies to the Utility Director, or designee.

(2) Users with a change in ownership will be recognized as a new industrial facility and shall comply with all requirements of this article.

(3) Discharge approval for an SIU shall not be reassigned, transferred, or sold to a new owner, new user, different premises, or a new or changed operation without prior notification to and approval by the Utility Director, or designee.

(4) If a change in a business occurs, the property owner and/or user shall inform the Utility Director, or designee of the change within 30 days and inform the Utility Director, or designee of the new type of business that is currently operating at said location.

(d) Notification of the Discharge of Hazardous Waste

(1) Any industrial user who commences the discharge of hazardous waste into the sanitary sewer shall notify the Utility Director~~Wastewater Department~~, the EPA Regional Waste Management Division Director, and State hazardous waste authorities, within 10 days in writing, of any discharge into the WRRF of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. The industrial user shall follow all notifications and requirements specified in 40 CFR 403.12 (p). If changes occur to the hazardous waste discharge, the industrial user shall notify the ~~Wastewater Department~~WWTU within 10 days.

~~(13)~~(2) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this article, a permit issued thereunder, or any applicable Federal or State law.

(Prior Code, § 30.02.12)

## Sec. 40-113. Tampering with effluent monitoring station.

It shall be a violation of this article for any person to tamper with or modify any pump, valving appurtenance, flow control section, meter, or sampling equipment to have the effect of rendering inaccurate any meter or other monitoring equipment.

(Prior Code, § 30.01.5)

## Sec. 40-~~51~~114. WWTU ~~I~~surveillance~~nspection and sampling~~.

(a) Industrial user inspection.

(1) The ~~city~~ WWTU shall inspect the facilities of any industrial user to ascertain whether the purpose and requirements of this article are being met ~~and all requirements are being met~~. Inspections shall occur at least annually.

(2) Owners or occupants of premises where wastewater is created or discharged shall allow the ~~city~~ WWTU or its representative, bearing proper credentials and identification, ready access at all times of operation to all parts of the premises for ~~the purposes of~~ inspection, sampling, records examination, or copying, and ~~or in~~ the performance of any of ~~their~~ duties.

~~(14)~~(3) ~~The city, approval authority and EPA shall have the right to set up on the user's property such devices as are necessary to conduct sampling inspections, compliance monitoring and/or metering operations.~~ Where a user has security measures in force ~~which~~ that would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with security guards so that, upon presentation of suitable identification, personnel from the ~~city~~WWTU, ~~approval authority~~IDEM, and EPA will be permitted to enter, without delay, ~~for the purpose of performing~~to perform their specific responsibilities.

(Prior Code, § 30.03.5)

(b) Industrial user monitoring.

(1) The WWTU shall monitor each industrial user at least twice per year separate from an industrial user's self-monitoring, if applicable, to determine compliance with this article and an IWP Permit.

~~(15) To establish a feasible surveillance schedule, the following self-monitoring and city surveillance estimated frequencies are established:~~

~~(16) City monitoring.~~

~~(17) Minimum of one scheduled monitoring event per year to include site inspection, records review and sampling (minimum one 24-hour composite).~~

~~(18) Minimum of one unscheduled monitoring event per year to include site inspection, records review and sampling (minimum one 24-hour composite).~~

~~(19) Demand monitoring to consist of site inspection, records review and seven consecutive days of 24-hour composite sampling to be performed, when warranted in the opinion of the board, in response to a known or suspected violation discovered in a self-monitoring report, routine sampling trip, by public complaint or any discharge of prohibited material.~~

~~(20) Self-monitoring.~~

~~(21) As required for Federal Categorical Pretreatment Standard Compliance monitoring.~~

~~(22) As established in significant industrial user wastewater discharge permit, but, in any case, not less than the total minimums set forth in subsection (3) of this section, unless expressly approved by the board.~~

~~(23) Minimum monitoring frequency guidelines for case by case permit requirement.~~

~~(24) Industrial Flow~~

| ~~(Average gallons per day)~~ | ~~Monitoring frequency~~ |
|---|---|
| ~~0—10,000~~ | ~~Once every six months~~ |
| ~~10,001—25,000~~ | ~~Once every three months~~ |
| ~~25,001—50,000~~ | ~~Once every two months~~ |
| ~~50,001—100,000~~ | ~~Once per month~~ |
| ~~Greater than 100,000~~ | ~~Once every two weeks~~ |

~~(25)~~

~~(26)~~(2) These monitoring frequencies may be a combination of ~~POTW~~ scheduled and unscheduled monitoring ~~and industrial self-monitoring~~. The ~~city~~ WWTU may require more frequent monitoring based on the potential degree of impact on the ~~POTW~~WRRF, variability in types or amounts of pollutants discharged, or concentration or loading of conventional pollutants.

(3) The WWTU, IDEM, and EPA shall have the right to set up on the user's property such devices as are necessary to conduct compliance monitoring and/or metering operations.

~~(27) Six-month review of monitoring frequency.~~

~~(28) After six months of actual monitoring experience, each significant industrial user shall submit a report assessing the adequacy of their monitoring schedule. If the data exhibit a high degree of statistical variance, the city may require an increased frequency of self-monitoring to determine the cause. If the data are uniform, exhibit a low degree of statistical variance with the city's monitoring, and justification is accepted by the board, the self-monitoring requirement may be relaxed.~~

~~(29) (Prior Code, § 30.08.1)~~

~~(30) (c)~~ The WWTU ~~city~~ may monitor and analyze the wastewater stream of any ~~SIU~~ industrial user ~~on a daily basis~~daily when just cause exists. If, at any time, the rate of wastewater discharge or concentration or quantity of a ~~constituent~~ pollutant ~~of characteristic~~ exceeds the maximum limits established in the IWP Permit or this article~~permit~~, the ~~utility director~~Utility Director shall notify the industrial user. The industrial user shall investigate and submit the applicable notifications under 40-122 to the WWTU ~~be notified as required under section 40-48(i)(9), (10)~~.

~~(31)~~(4) (Prior Code, § 30.08.3; altered in 2019 recodification)

~~(32)~~(5) The WWTU ~~city~~ may provide metering and/or monitoring equipment during a surveillance period for control manholes or other access means supplemental to those provided by the user.

(c) Accidental Discharge/Slug Control Plans. The Utility Director, or designee, shall evaluate an industrial user and determine the need for an accidental discharge/slug control plan. The Utility Director, or designee, may require any such user to develop, submit for approval, and implement such a plan. An accidental discharge/slug control plan shall address, at a minimum, the following:

(1) Description of discharge practices, including non-routine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the WWTU of any accidental or slug discharge, as required by Section 40-112 of this article; and

(4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include but are not limited to, inspection and maintenance of storage areas; handling and transfer of materials; loading and unloading operations; control of plant site runoff; worker training; building of containment structures or equipment; measures for containing toxic organic pollutants, including solvents; and/or measures and equipment for emergency response.

## Sec. 40-~~172~~15. Pretreatment program fees~~Surveillance survey charge~~.

~~The charge for each surveillance survey shall be based on the cost of sample collection, analysis and reporting as well as site inspection and records evaluation costs.~~ The ~~board~~Board is hereby empowered to review on an annual basis the actual costs versus charges for surveillance and to adjust charges accordingly to achieve cost reimbursement. The WWTU has adopted reasonable fees as described in Division 8 for reimbursement of costs of setting up and operating the pretreatment program that include:

(a) Fees for wastewater discharge approvals including the cost of review of such approvals;

(b) Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing a user's discharge, and reviewing monitoring reports submitted by users;

(c) Fees for reviewing and responding to accidental discharge procedures and construction;

(d) Fees for filing appeals; and

(e) Other fees and expenses as the WWTU may deem necessary to conduct the requirements contained herein. These fees and expenses relate solely to the matters covered by this article and are separate from all other fees, fines, and penalties chargeable by the WWTU or city.

(Prior Code, § 30.08.2)

## Sec. 40-52. Pretreatment.

Significant industrial users shall provide necessary wastewater treatment as required to comply with this article and shall achieve compliance with all Federal Categorical Pretreatment Standards within the time limitations as specified by the Federal Pretreatment Regulations. Any facilities required to pretreat wastewater to a level acceptable to the city shall be provided, operated and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the city for review and shall be acceptable to the city before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent meeting Federal Categorical Pretreatment Standards and acceptable to the city under the provisions of this article. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be acceptable to the city prior to the user's initiation of the changes. The city shall annually publish in the newspaper of general circulation having the largest circulation within the city a list of users which were not in compliance with any pretreatment requirements or standards at least once during the 12 previous months. The notification shall also summarize any enforcement actions taken against the user during the same 12 months. All records relating to compliance with pretreatment standards shall be made available to officials of the city, the EPA or the approval authority.

(Prior Code, § 30.03.6)

## Sec. 40-53. Confidential information.

Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be made available to the public or other governmental agencies without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets or confidential information. When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or confidential information shall not be made available for inspection by the public but shall be made available upon written request to governmental agencies for uses relating to this article, the National Pollution Discharge Elimination System (NPDES) permit, state disposal system permit and/or the pretreatment program; provided, however, that such portion of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater quantities, constituents and characteristics will not be recognized as confidential information. Notwithstanding anything in the section immediately above, information accepted by the city as confidential shall not be transmitted to any governmental agency or to the general public by the city without the user's written permission, and, when so transmitted, it shall be done so under the protective provisions of 320 IAC 6 for submission made to the state department of environmental management, and the exclusionary provisions of the "Freedom of Information Act" (FOIA), 5 USC 522(b)(4) for submission made to any federal agency.

***(Prior Code, § 30.03.7)***

## Secs. 40-121—40-138. Reserved.

## Secs. 40-152—40-170. Reserved.

# *DIVISION 6. WASTEWATER MONITORING*

## Sec. 40-171. Surveillance of significant industrial users.

To establish a feasible surveillance schedule, the following self-monitoring and city surveillance estimated frequencies are established:

(a) City monitoring.

(1) Minimum of one scheduled monitoring event per year to include site inspection, records review and sampling (minimum one 24-hour composite).

~~(2) Minimum of one unscheduled monitoring event per year to include site inspection, records review and sampling (minimum one 24-hour composite).~~

~~(3) Demand monitoring to consist of site inspection, records review and seven consecutive days of 24-hour composite sampling to be performed, when warranted in the opinion of the board, in response to a known or suspected violation discovered in a self-monitoring report, routine sampling trip, by public complaint or any discharge of prohibited material.~~

~~(b) Self-monitoring.~~

~~(1) As required for Federal Categorical Pretreatment Standard Compliance monitoring.~~

~~(2) As established in significant industrial user wastewater discharge permit, but, in any case, not less than the total minimums set forth in subsection (3) of this section, unless expressly approved by the board.~~

~~(c) Minimum monitoring frequency guidelines for case by case permit requirement.~~

~~Industrial Flow~~

| ~~(Average gallons per day)~~ | ~~Monitoring frequency~~ |
|---|---|
| ~~0—10,000~~ | ~~Once every six months~~ |
| ~~10,001—25,000~~ | ~~Once every three months~~ |
| ~~25,001—50,000~~ | ~~Once every two months~~ |
| ~~50,001—100,000~~ | ~~Once per month~~ |
| ~~Greater than 100,000~~ | ~~Once every two weeks~~ |

## Sec. 40-116. Publication of Users in Significant Noncompliance

The WWTU shall annually publish in the newspaper of general circulation having the largest circulation within the city a list of users who were not in compliance with pretreatment requirements or standards at least once during the 12 previous months. The notification shall also summarize any enforcement actions taken against the user during the same 12 months. All records relating to compliance with pretreatment standards shall be made available to officials of the WWTU, IDEM, and EPA.

(Prior Code, § 30.03.6)

~~These monitoring frequencies may be a combination of POTW scheduled and unscheduled monitoring and industrial self-monitoring. The city may require more frequent monitoring based on potential degree of impact on the POTW, variability in types or amounts of pollutants discharged or concentration or loading of conventional pollutants.~~

~~Six-month review of monitoring frequency.~~

~~After six months of actual monitoring experience, each significant industrial user shall submit a report assessing the adequacy of their monitoring schedule. If the data exhibit a high degree of statistical variance, the city may require an increased frequency of self-monitoring to determine the cause. If the data are uniform, exhibit a low degree of statistical variance with the city's monitoring, and justification is accepted by the board, the self-monitoring requirement may be relaxed.~~

~~(Prior Code, § 30.08.1)~~

~~Sec. 40-172. Surveillance survey charge.~~

~~The charge for each surveillance survey shall be based on the cost of sample collection, analysis and reporting as well as site inspection and records evaluation costs. The board is hereby empowered to review on an annual basis the actual costs versus charges for surveillance and to adjust charges accordingly to achieve cost reimbursement.~~

(Prior Code, § 30.08.2)

Sec. 40-173. Monitoring of significant industrial users.

(a) A significant industrial user (SIU) shall install, at its own expense, monitoring facilities as required in section 40-50, unless said SIU can demonstrate to the board that compliance with this requirement would cause undue hardship. In such cases, the board shall provide for alternate monitoring procedures in the SIU's wastewater discharge permit. The city shall have the right of full access to said monitoring station, at all times, to conduct tests on quantity and quality of effluent.

(b) The city may provide metering and/or monitoring equipment during a surveillance period for control manholes or other access means supplemental to those provided by the user. Required monitoring equipment may, if the board determines it to be necessary, after public notice and a hearing, include a device for continuously automatically measuring and recording flow and a device for automatically taking discrete hourly and composite samples of wastewater during each 24-hour period. In the event of continuing violation of discharge limits in the permit of a SIU, the city may also, in addition, after public notice and hearing, require monitoring equipment which shall include a real time analytical device, suitable for the nature of the wastewater being monitored, to provide instantaneous indications of a potential discharge incident which may cause maximum limitations of the SIU's wastewater discharge permit to be exceeded. Existing SIUs shall construct control manholes or other access facilities and install required monitoring equipment at all points of discharge of process wastewater and have the equipment in operation by December 1, 1993, or the compliance date for the subject pretreatment standard, whichever is earlier. New SIUs shall construct control manholes and install, and have ready for operation, monitoring equipment before beginning the discharge of wastewater. The city shall review the calibration procedure at the flow monitoring station and shall have the right to be present during calibration. Any violation of the requirements for the construction of control manholes and installation and operation of monitoring equipment shall be punishable by a fine in an amount established by the city for each daily violation. Each daily violation shall constitute a separate and distinct offense. Each SIU shall measure and record the following data on a schedule established in their permit: Total daily wastewater discharge (gallons per day), concentration of each waste constituent or characteristic specified in the permit (mg/l), total daily discharge of each waste constituent or characteristic specified in the permit (lb/day). All analyses shall be performed under the procedures outlined in Standard Methods for the Analysis of Water and Wastewater and Industrial Waste or, absent such standard methods, by analytical techniques approved by the United States Environmental Protection Agency.

(c) The city may monitor and analyze the wastewater stream of any SIU on a daily basis when just cause exists. If, at any time, the rate of wastewater discharge or concentration or quantity of a constituent of characteristic exceeds the maximum limits established in the permit, the utility director shall be notified as required under section 40-48(i)(9), (10).

(Prior Code, § 30.08.3; altered in 2019 recodification)

Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be made available to the public or other governmental agencies without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets or confidential information. When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or confidential information shall not be made available for inspection by the public but shall be made available upon written request to governmental agencies for uses relating to this article, the National Pollution Discharge Elimination System (NPDES) permit, state disposal system permit and/or the pretreatment program; provided, however, that such portion of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater quantities, constituents and characteristics will not be recognized as confidential information. Notwithstanding anything in the section immediately above, information accepted by the city as confidential shall not be transmitted to any governmental agency or to the general public by the city without the user's written permission, and, when so transmitted, it shall be done so under the protective provisions of 320 IAC 6 for submission

made to the state department of environmental management, and the exclusionary provisions of the "Freedom of Information Act" (FOIA), 5 USC 522(b)(4) for submission made to any federal agency.

**Sec. 40-174. Limitations on point of discharge.**

**No person shall discharge any substance directly into a manhole or other opening in the sewage system other than through the approved building (house connection) sewer, except in accordance with the terms of this article or by express permission of the board.**

**(Prior Code, § 30.08.4)**

**Sec. 40-175. Licensed commercial or industrial waste hauling.**

A person who is a licensed commercial or industrial waste hauler may discharge compatible pollutants and those incompatible pollutants within the limits of admissibility set out in division 5 of this article to the wastewater treatment plant at a time and place and in such amounts as permitted by the board. The board shall not be required to accept any such discharge if it elects in given cases not to do so. Wastewater so received must be preceded with a manifest of constituents and concentrations for each truck load.

(Prior Code, § 30.08.5; Ord. No. 31-09)

### Sec. 40-17617. Special agreements.

Special agreements and arrangements between the city WWTU and any person may be established when, in the opinion of the boardBoard of public works and safety and/or the Utility Directorutility director, unusual or extraordinary circumstances compel special terms and conditions. The boardBoard and/or the Utility Director of public works and safety and/or the utility director shall consider the total cost of application technology in relation to the pollutant reduction benefits to be achieved from such application, the quality of pollutants that will be included in the discharge, the impact of those pollutants on the wastewater treatment plantWRRF, collection systemsanitary sewer, receiving stream, and such factors as the boardBoard of public works and safety and/or the utility directorUtility Director deems deem appropriate. There cannot be special agreements and arrangements where federal categorical pretreatment standards and requirements apply. No statement contained in this article shall be construed as preventing any special agreement or arrangement between the city WWTU and any user whereby waste of unusual strength or character may be accepted by the WWTUcity for treatment, subject to payment therefor by the user.

(Prior Code, § 30.08.6)

### Sec. 40-17718. Liability for maintenance of pretreatment and other equipment.

Where pretreatment or flow equalization facilities are provided for any waters or wastes, they shall be maintained continuously in satisfactory and effective operation by the user at the user's expense and shall at all timesshall always be open to inspection and testing by the WWTUcity.

(Prior Code, § 30.08.7)

### Secs. 40-17819—40-20729. Reserved.

## *DIVISION 63. ENFORCEMENT*

**Sec. 40-25. Liability of violators for damage and loss to the city.**

Any person violating any of the provisions of this article shall become liable to the city for any expense, loss or damage occasioned the city by reason of such violation.

(Prior Code, § 30.01.7)

## Sec. 40-~~84~~130. Liability of violators for damage and loss to the city~~Legal action~~.

If any person discharges sewage, industrial wastes, or other wastes into the ~~city's~~ sanitary sewer~~wastewater disposal system~~ contrary to the provisions of this article, federal or state pretreatment requirements, or any other order of the ~~city~~WWTU, such person shall be liable for any ~~and all~~ damages, losses, and expenses sustained by the ~~POTW~~ WWTU as a result of such discharge or violation and the Corporation Counsel may commence an action for appropriate legal and/or equitable relief in the appropriate court of this county.

(Prior Code, § 30.04.5)

## Sec. 40-~~27~~131. Falsifying information.

Any person who knowingly makes any false statements, representation, or certification in any permit, application, record, report, plan, or other document filed or required to be maintained according~~pursuant~~ to this ~~chapter~~article, permit, or approval~~or wastewater discharge permit~~, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article~~chapter~~, shall, upon conviction, be punished by a fine in an amount established by the ~~city~~ WWTU for each violation.

(Prior Code, § 30.05.2; altered in 2019 recodification)

## Sec. 40-132. Public nuisances.

A violation of any provision of this article, permit or approval, order issued hereunder, or any other pretreatment standard or requirement is declared a public nuisance and shall be corrected or abated as directed by the Utility Director, or designee. Any person(s) creating a public nuisance shall be subject to the provisions of the city code governing such nuisances, including reimbursing the city and/or the WWTU for any costs incurred in removing, abating, or remedying said nuisance.

## ~~Sec. 40-24. Notice to violators.~~

~~Any person found to be violating any provision of this article, except where stated otherwise, shall be served by the city with written notice stating the nature of the violation and providing a reasonable time limit for the satisfactory correction thereof. The offender shall, within the period of time stated in such notice, permanently cease all violations.~~

~~(Prior Code, § 30.01.6)~~

## Sec. 40-~~82~~133. Informal n~~N~~otification of violation.

When the WWTU finds that a user has violated any provision of this article, the Utility Director, or designee, may serve upon that user an informal Notice of Violation via email, phone call, or other method. Within 10 days of receipt of this notice, the user shall submit to the Utility Director, or designee, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, including specific required actions. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the informal Notice of Violation.

## Sec. 40-134. Written notification of violation.

Whenever the ~~city~~ WWTU finds that a~~ny~~ user has violated or continues to violate any provision of ~~is violating~~ this article, ~~wastewater discharge permit, or any prohibition, limitation or requirements contained herein,~~ the ~~city~~ Utility Director, or designee, may serve upon such a person a written ~~notice~~ Notice of Violation stating the nature of the violation~~.~~ and providing a reasonable time limit for the satisfactory correction thereof. The user shall, within the time stated in such notice, permanently cease all violations. Within 10 days of receipt of this notice, the user shall submit to the Utility Director, or designee, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, including specific required actions. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the written Notice of Violation. Nothing in this section shall limit the authority of the Utility Director, or designee, to take any action, including emergency actions or any other

enforcement action, without first issuing a Notice of Violation.~~Within 30 days of the date of the notice, a plan for the satisfactory correction thereof shall be submitted to the city by the user.~~

~~(Prior Code, § 30.01.6)~~

(Prior Code, § 30.04.3)

## Sec. 40-135. Administrative Orders

(a) Consent Orders.

The WWTU may enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such documents will include specific actions to be taken by the user to correct the noncompliance within a period specified by the document. Such documents shall be judicially enforceable.

(b) Compliance Orders.

When the WWTU finds that a user has violated, or continues to violate, any provision of this article, the WWTU may issue an order to the user responsible for the discharge directing that the user come into compliance within a specified time. If the user does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged into the sewer. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the user.

~~(mm)~~(c) Show cause hearing.

(1) The ~~city~~ WWTU may order any user who violates this ordinance ~~causes or allows an unauthorized discharge to enter the POTW~~ to show cause before the ~~board~~Board why the proposed enforcement action should not be taken. A notice shall be served on the user specifying the time and place of a hearing to be held by the ~~board~~Board regarding the violation, the reasons why the action is to be taken, the proposed enforcement action, and directing the user to show cause before the ~~board~~Board why the proposed enforcement action should not be taken. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten working days before the hearing. Service may be made on any agent or officer of a corporation.

(2) The ~~board~~Board may itself conduct the hearing and take the evidence, or may designate a representative to:

a. Issue in the name of the ~~board~~Board notices of hearings requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in such hearings;

b. Take the evidence;

c. Transmit a report of the evidence and hearing, including transcripts and other evidence, together with recommendations to the ~~board~~Board for action thereon.

(3) At any hearing held ~~pursuant~~ according to this article, testimony taken must be under oath, recorded, and transcribed. The transcript, so recorded, will be made available to any member of the public or any party to the hearing upon payment of the usual charges thereof.

(4) After the ~~board~~Board has reviewed the evidence, it may issue an order to the user responsible for the discharge directing that, following a specified ~~time period~~period, the sewer service be disconnected unless adequate treatment facilities, devices, or other related appurtenances shall have been installed on existing treatment facilities, devices or other related appurtenances and are properly operated. Further orders and directives as ~~are~~ necessary and appropriate may be issued.

(Prior Code, § 30.04.4)

(d) Cease and Desist Orders.

When the WWTU finds that a user has violated, or continues to violate, any provision of this article, or that the user's past violations are likely to reoccur, the WWTU may issue an order to the user directing it to cease all such violations and directing the user to:

(1) Immediately comply with all requirements; and

(2) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease-and-desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.

## Sec. 40-136. Administrative Fines

(a) When the WWTU finds that a user has violated, or continues to violate, any provision of this article, the WWTU may impose a fine of not more than $2,500 per day, per violation for a first violation, nor more than $7,500 per day, per violation for subsequent violations, per IC 36-1-3-8 (a) (10) (B), or as hereafter re-codified.

(b) Unpaid charges, fines, and penalties shall, after 60 calendar days, be assessed an additional penalty of 10% of the unpaid balance, and interest shall accrue thereafter at a rate of 1% per month. A lien against the user's property will be sought for unpaid charges, fines, and penalties.

(c) Users desiring to dispute such fines must file a written request for the Utility Director to reconsider the fine along with full payment of the fine amount within 30 days of being notified of the fine. Where a request has merit, the Utility Director may convene a hearing on the matter. In the event the user's appeal is successful, the payment, together with any interest accruing thereto, shall be returned to the user. The costs of preparing administrative enforcement actions, such as notices and orders, may be added to the fine.

(d) Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the user.

## Sec 40-137. Cost Recovery

The WWTU may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the WWTU and/or city.

## Sec. 40-1387. Administrative appeals.

(a) Any user affected by any decisions, action, or determination, including cease and desist orders, made by the WWTU, interpreting or implementing the provisions of this article, any permit or approval issued herein, or any regulation of the Board adopted pursuant hereto, may file with the Board a written request for review and reconsideration within ten days of a decision, action, or determination, setting forth in detail the facts supporting the user's request for reconsideration.

(b) The appeal shall, if possible, be heard by the Board within 30 days of the date of filing. The Utility Director's decision, action, or determination shall remain in effect during the period of reconsideration unless the Board otherwise determines on request of the user.

## Sec. 40-~~80~~1398. ~~Harmful contributions~~Emergency suspension.

(a) The ~~city~~ WWTU may suspend the wastewater treatment service and/or an ~~wastewater discharge permit~~Industrial Discharge Approval after informal notice when such suspension is necessary, in the opinion of the ~~city~~WWTU, ~~in order to~~to stop an actual or threatened discharge ~~which~~ that presents or may present an imminent or substantial endangerment to the health or welfare of persons, to the environment, causes interference to the ~~POTW~~WRRF, or causes the WRRF~~city~~ to violate any condition of its ~~NPDES permit~~NPDES

Permit. Any person notified of a suspension of the wastewater treatment service ~~wastewater discharge permit~~ shall immediately stop or eliminate the contribution.

(b) In the event of a failure of the person to comply voluntarily with the suspension order, the ~~city~~ WWTU shall take such steps as deemed necessary, including immediate severance of the sewer connection (termination of discharge), to prevent or minimize damage to the ~~POTW~~WRRF system or endangerment to any individual~~s~~.

(c) The ~~city~~ WWTU shall reinstate the Industrial Discharge Approval ~~wastewater discharge permit~~ and/or wastewater treatment service upon proof of the elimination of the non-complying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any future occurrence shall be submitted to the ~~city~~Utility Director, or designee, within 15 calendar days of the date of occurrence.

(Prior Code, § 30.04.1)

## Sec. 40-~~81~~1140~~39~~. Termination of discharge.

Any user who violates the following conditions of this chapter, or applicable state and federal regulations, is subject to having the user's permit or discharge approval revoked ~~in accordance with~~per the procedures set forth herein:

(a) Failure of a user to factually report the wastewater constituents and characteristics of the user's discharge;

(b) Failure of the user to report significant changes in operations, or wastewater constituents and characteristics;

(c) Refusal of reasonable access to the user's premises or the purpose of inspection or monitoring;

(d) Violation of conditions of the permit or approval; or~~.~~

(e) Failure to comply with a ~~cease and desist~~cease-and-desist order or other administrative orders.

(Prior Code, § 30.04.2)

## Sec. 40-1410. Judicial enforcement actions.

(a) Injunctive relief.

When the WWTU finds that a user has violated, or continues to violate, any provision of this article, IWP Permit, or an Industrial Discharge Approval, the WWTU may petition the appropriate Court through the Corporation Counsel for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the permit or approval, order, or other pretreatment requirement or standard imposed by this article on activities of the user. The WWTU may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

~~(f)~~ Civil penalties.

~~(g) Any user who is found to have violated an order of the board or who willfully or negligently failed to comply with any provision of this chapter, and the orders, rules, regulations and permits issued hereunder, shall be fined in an amount established by the city for each offense. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. In addition to the penalties provided herein, the city may recover reasonable attorney's fees, court costs, court reporters' fees and other expenses of litigation by appropriate suit at law against the persons found to have violated this chapter or the orders, rules, regulations and permits issued hereunder.~~

(b) ~~(Prior Code, § 30.05.1; altered in 2019 recodification)~~

(1) A user who has violated, or continues to violate, any provision of this article, IWP Permit, approval, or pretreatment requirements or standards, shall be liable to the WWTU for a civil fine of not less than $2,500.00 for a first violation, and not less than $7,500.00 for a second or subsequent violation. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

(2) In determining the amount of civil liability, the Court shall consider all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

(3) Filing a suit for civil fines shall not be a bar against, or a prerequisite for, taking any other action against a user.

(c) Criminal prosecution.

(1) A user who willfully or negligently violates any provision of this article, an IWP Permit, Industrial Discharge Approval, or order issued hereunder, or any other pretreatment standard or requirement may be punished by a fine and/or criminal prosecution as applicable.

(2) A user who willfully or negligently introduces any substance into the sanitary sewer that causes personal injury or property damage may be punished by a fine and/or criminal prosecution as applicable.

(3) A user who knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, per this article, permit or approval, or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article may be punished by a fine and/or criminal prosecution as applicable.

### Sec. 40-1421. Remedies nonexclusive.

The remedies provided for in this article are not exclusive. The WWTU may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be per the WWTU's Enforcement Response Plan. However, the WWTU may take other action against any user when the circumstances warrant. Further, the WWTU is empowered to take more than one enforcement action against any noncompliant user.

### Secs. 40-1714328—40-120759. Reserved.

## *DIVISION 7. PRIVATE WELLS*

### Sec. 40-208160. Registration of wells.

Every owner or occupant of real estate within the corporate limits of the city, or real estate from which there is a building (or house connection) sewer or other means or path of direct or indirect flow into the ~~sewage system~~sanitary sewer, shall, on a form provided by the ~~board~~Board, report the existence of such well to the clerk. The information furnished on such form by the owner or occupant shall include, among other items, the name of the owner and occupant of such real estate, the location on said real estate of such well, the size of the well pipe, the size (voltage, amperage, and horsepower) of the well pump motor and the purpose for which the well water is used by the owner, occupant or others.

(Prior Code, § 30.07.1)

### Sec. 40-209161. Metering well water.

The ~~board~~Board shall determine by any reasonable means, including, but not limited to, the use of water meters and timing devices, the flow of such well ~~in order to~~to determine the amount of sewage entering the ~~sewage system~~sanitary sewer. The owner or occupant of such real estate shall pay for such metering device, which shall be of a type approved by the ~~board~~Board, and which shall remain the property of the owner but shall be under the exclusive control of the ~~board~~Board and shall not, under any circumstances, be tampered with by the owner, occupant, or any other person. It shall further be a violation of this article for any person to tamper with or modify any pump on any such well ~~so as to~~to render inaccurate the meter on such well. In the case of wells for ~~households~~ household use only, the ~~board~~Board may, ~~in lieu of~~instead of metering or timing the use of the well, provide for the use of reasonable estimates regarding water volume.

(Prior Code, § 30.07.2)

### Sec. 40-~~210~~162. Inspection of wells.

The ~~board~~Board may direct the ~~utility director~~Utility Director, ~~inspector~~inspector, or any other employee to enter upon private property ~~for the purpose of inspecting, to determine~~to inspect, determine the existence of private wells, ~~to oversee~~oversee or ~~to direct~~directing the installation of metering or timing devices, and ~~to read~~reading such meters and devices.

(Prior Code, § 30.07.3)

### Sec. 40-~~211~~163. Exception.

The requirement that wells be registered shall not apply to single-family dwellings or ~~to~~ apartment buildings with four or fewer apartments on one parcel~~,~~ unless the parcel is connected to the ~~sewage system~~sanitary sewer.

(Prior Code, § 30.07.4)

### Sec. 40-~~212~~164. Well digging.

A person shall not dig or drive a well within the city limits without first ~~making~~ applying to the city engineering department, whose application shall be on a form approved by the ~~board~~Board and shall show all pertinent data regarding size and flow. The application shall be signed by both the installer of the well (the contractor or other person doing the work) and the owner or agent (other than the installer). The failure to file such an application shall be a violation of this article.

(Prior Code, § 30.07.5)

### Secs. 40-~~213~~165—40-179~~232~~. Reserved.

## *DIVISION 8. SERVICE CHARGES AND SERVICE FEES*

### Sec. 40-~~233~~180. Persons subject to fees and sewer charges.

For the use and service rendered by the sewage works, sewer charges shall be collected from the person who owns ~~each and every~~each parcel of real estate that is connected to the WWTU~~city~~'s ~~sewage system~~sanitary sewer or otherwise discharges wastewater~~;~~, sanitary sewage, industrial waste, water, or other liquid, either directly or indirectly into the ~~sewage system~~sanitary sewer of the WWTU~~city~~, which sewer rates and charges shall be payable as provided in this article.

(Prior Code, § 30.09.1)

### Sec. 40-~~234~~181. Effective date; extension to additional property.

The sewer charges fixed by this article shall become effective at the time the user first discharges to the ~~sewage system~~sanitary sewer. These sewer charges shall be extended to and cover any additional premises thereafter served, without the necessity of any hearing or notice.

(Prior Code, § 30.09.2)

### Sec. 40-~~235~~182. Rate basis.

The sewer flow rates and charges shall be based on the quantity of water used on or in the property or premises subject to such rates and charges, as measured by the water meter there in use, except as otherwise provided in this article. Sewage service rates shall be based upon the amount of water used, effective for all service rendered on and after the effective date of the ordinance from which this article is derived.

## Sec. 40-~~236~~183. Rates; general determination and review.

(a) Six dollars and seventy-four cents per one thousand gallons for service rendered up to and including December 31, 2022. For service rendered after December 31, 2022 and up to and including December 31, 2023, six dollars and ninety-four cents per one thousand gallons. For service rendered after December 31, 2023 and up to and including December 31, 2024, seven dollars and eight cents per one thousand gallons. For service rendered after December 31, 2024 and up to and including December 31, 2025, seven dollars and twenty-two cents per one thousand gallons. For service rendered after December 31, 2025, seven dollars thirty-six cents per one thousand gallons.

(b) The water usage schedule on which the amount of rates and charges shall be determined for Purdue University is as follows:

(1) A billing charge of five dollars and seventeen cents per month plus a usage charge of six dollars and forty-two cents per one thousand gallons for service rendered up to and including December 31, 2022.

(2) For service rendered after December 31, 2022 and up to and including December 31, 2023, a billing charge of five dollars and thirty-three cents per month plus a usage charge of six dollars and sixty-one cents per one thousand gallons.

(3) For service rendered after December 31, 2023 and up to and including December 31, 2024, a billing charge of five dollars and forty-four cents per month plus a usage charge of six dollars and seventy-four cents per one thousand gallons.

(4) For service rendered after December 31, 2024 and up to and including December 31, 2025, a billing charge of five dollars and fifty-five cents per month plus a usage charge of six dollars and eighty-seven cents per one thousand gallons.

(5) For service rendered after December 31, 2025, a billing charge of five dollars and sixty-six cents per month plus a usage charge of seven dollars and one cent per one thousand gallons.

(c) The minimum charge for any service where the user is a metered water consumer shall be determined as provided in Section 40-~~239~~186, and shall be based on the size of the service connection, but no such charge shall be less than the charge for the minimum gallonage for such meter size.

(d) On an annual basis commencing January 1, 2017, the common council will review the ~~wastewater utility~~WWTU revenues, expenses, and rates and take any necessary action to maintain rates as required by applicable bond ordinances as recommended by the utility's financial advisor.

(e) Rates for summer months. To provide for water used during the summer months which does not pass through the ~~sewage system~~sanitary sewer, for one-family dwelling users only, sewage service bills for ~~the months of~~ June, July and August shall be rendered at the then current rate, but on the quantity ~~actually~~ used if the quantity used is less than or equal to the average consumption for ~~the months of~~ January, February and March. If the quantity used in June, July and August is greater than the average consumption for ~~the months of~~ January, February and March, the billing rendered shall be based on the average flow for ~~the months of~~ January, February and March for water used on the property or premises subject to such rates and charges; provided, however, that if no prior sewage service bill was rendered for such property or premises during the said calendar year, then in that event, the city may determine in such manner and by such method as it may deem practicable the percentage of metered water entering the ~~sewage system~~sanitary sewer. Such percentages, when so determined, shall constitute the basis for sewage services for ~~the months of~~ June, July and August; provided further, that one-family dwelling users desiring to pay sewage service charges for June, July and August in the manner provided in this article other than ~~pursuant to~~under the methods set out in this section, may notify the B~~b~~oard requesting such election at least 30 days ~~prior to~~before the time of mailing by the ~~city~~ WWTU of the billing to such user for ~~the months of~~ June, July, and August of any calendar year.

(Prior Code, § 30.09.3; Ord. No. 39-15; altered in 2019 recodification; Ord. No. 03-22, § 1, 2-7-22)

## Sec. 40-~~237~~184. CSO surcharge.

In addition to all other charges for the use and service rendered by the ~~sewage works~~WWTU, there shall be charged to each property owner that is connected to the WWTU~~city~~'s ~~sewage works system~~sanitary sewer or otherwise discharges wastewater, sanitary sewage, industrial waste, water, or other liquid, either directly or indirectly into the ~~sewage works system~~sanitary sewer of the city, a monthly combined sewer overflow ("CSO") surcharge to cover costs of addressing combined sewer overflow improvements to the ~~sewage works~~sanitary sewer. The CSO surcharge shall be charged ~~on a monthly basis~~monthly per equivalent dwelling unit ("EDU"), ~~at $4.91 per month per EDU, until June 30, 2016, and at $9.82 per month per EDU commencing July 1, 2016 and thereafter,~~ based upon the size of the water meter as follows:

| Meter Size | EDUs | Monthly CSO Surcharge Effective up to 12/31/2022 | Monthly CSO Surcharge Effective 01/01/2023 to 12/31/2023 | Monthly CSO Surcharge Effective 01/01/2024 to 12/31/2024 | Monthly CSO Surcharge Effective 01/01/2025 to 12/31/2025 | Monthly CSO Surcharge Effective 01/01/2026 and thereafter |
|---|---|---|---|---|---|---|
| 5/8 inch or 3/4 inch | 1.0 | $ 10.80 | $ 11.12 | $ 11.34 | $ 11.57 | $ 11.80 |
| 1 inch | 2.5 | 27.00 | 27.80 | 28.35 | 28.93 | 29.50 |
| 1 1/4 inch | 4.0 | 43.20 | 44.48 | 45.36 | 46.28 | 47.20 |
| 1 1/2 inch | 5.8 | 62.64 | 64.50 | 65.77 | 67.11 | 68.44 |
| 2 inch | 10.0 | 108.00 | 111.20 | 113.40 | 115.70 | 118.00 |
| 3 inch | 23.0 | 248.40 | 255.76 | 260.82 | 266.11 | 271.40 |
| 4 inch | 40.0 | 432.00 | 444.80 | 453.60 | 462.80 | 472.00 |
| 6 inch | 91.0 | 982.80 | 1,011.92 | 1,031.94 | 1,052.87 | 1,073.80 |
| 8 inch | 161.8 | 1,747.44 | 1,799.22 | 1,834.81 | 1,872.03 | 1,909.24 |
| 10 inch | 252.8 | 2,730.24 | 2,811.14 | 2,866.75 | 2,924.90 | 2,983.04 |
| 12 inch | 364.0 | 3,931.20 | 4,047.68 | 4,127.76 | 4,211.48 | 4,295.20 |

~~With respect to~~Concerning multi-family residential apartments only, each individual apartment unit shall constitute 0.66 EDUs.

(Prior Code, § 30.09.3; Ord. No. 39-15; altered in 2019 recodification; Ord. No. 03-22, § 2, 2-7-22)

## Sec. 40-~~238~~185. Procedure when water is obtained partially or wholly from sources other than the public water supplier.

In the event a user obtains water partially or wholly from sources other than the public water supplier, the total water used must be measured or determined as provided in ~~section~~Section 40-161~~,~~ or does not meter the same or, in the alternative, uses other water in addition to the regular waterworks utility, the following rates shall apply:

(a) For a single-family residence dwelling, the sewer flow charge shall be a flat rate based on 8,000 gallons/month unless a meter is installed on the well at the request of either the user or the city.

(b) For any property other than a single-family dwelling, it may be charged a flat rate as determined by the ~~board~~Board.

(c) For any property connected to the WWTU's ~~sewage system~~sanitary sewer, the WWTU may require the user to install a water meter and meter the amount of water used and submit a monthly reading for the billing.

(Prior Code, § 30.09.4; Ord. No. 14-11, app. A, item 12)

## Sec. 40-~~239~~186. Minimum billing.

The minimum monthly charge shall be based upon the monthly minimum gallonage multiplied by the applicable rate for the size of the water meter as follows:

| Meter Size | Monthly Minimum Gallons |
|---|---|
| ⅝ inch | 3,000 |
| ¾ inch | 4,000 |
| 1 inch | 7,000 |
| 1¼ inch | 12,000 |

| Meter Size | Monthly Minimum Gallons |
|---|---|
| 1½ inch | 15,000 |
| 2 inch | 24,000 |
| 3 inch | 45,000 |
| 4 inch | 75,000 |
| 6 inch | 150,000 |
| 8 inch | 240,000 |
| 10 inch | 345,000 |
| 12 inch | 645,000 |

~~In the event~~If two or more dwelling units, such as trailers, apartments, or housekeeping rooms discharging wastewater, sanitary sewage, water, or other liquids into the WWTU's ~~sewage system~~sanitary sewer, either directly or indirectly, are users of water, and the quantity of water is measured by a single water meter, then, in such case, billing shall be for a single service.

(Prior Code, § 30.09.5)

## Sec. 40-~~240~~187. Rates for the city.

For the services rendered to the city, the city shall be subject to the same rates and charges provided in this article, or to rates and charges established in harmony therewith.

(Prior Code, § 30.09.6)

## Sec. 40-~~241~~188. Portion of water not entering the ~~sewage system~~sanitary sewer.

~~In the case of~~If a user utilizing more than 1,000 gallons of water per average workday, ~~who~~ can substantiate to the ~~city~~ WWTU that a portion of said water does not and cannot enter the ~~sewage system~~sanitary sewer, the ~~board~~Board shall either determine the portion of measured water to be used in determining the appropriate sewer charges, or approve the manner and technique of flow measurement provided by the user for determining wastewater discharge to the ~~sewage system~~sanitary sewer. Facilities utilized to accomplish this shall be installed and maintained in a serviceable condition by the user at the user's expense~~,~~ but shall be under the exclusive control of the ~~city~~WWTU.

(Prior Code, § 30.09.7)

## Sec. 40-~~242~~189. General billing procedure.

(a) *Monthly billing.* Sewer billings and invoices shall be rendered and collected approximately monthly. Such rates and charges shall be prepared and billed by the WWTU~~city~~, and shall be collected in the manner provided by IC ch. 36-9-23 and ordinances of the city. Fees collected shall be considered revenues of the wastewater treatment utility.Sewer billings and invoices shall be rendered and collected approximately monthly. Such rates and charges shall be prepared and billed by the ~~city~~WWTU~~,~~ and shall be collected in the manner provided by IC ~~ch.~~Ch. 36-9-23 and ordinances of the city and/or ~~city~~WWTU. Fees collected shall be considered revenues of the WWTU~~wastewater treatment utility~~.

(b) *SIUs.* SIUs with a flow ~~in excess of~~greater than ~~10~~25,000 gallons per average workday shall have billing determined ~~on the basis of~~based on wastewater discharged as monitored per ~~d~~Division ~~6~~ 5 of this article, with the following exception: At its option, the ~~city~~ WWTU may accept monitoring data and information from such an SIU to substantiate billing determination on a more frequent basis than as established in D~~d~~ivision ~~6~~ 5 of this article. Such allowances, however, do not exempt the SIU from the surveillance survey fee set by the ~~city~~ WWTU to offset the costs of monitoring performed by the WWTU~~city~~. In the event there is a difference in analytical results that is not explainable by normal variation in the testing procedure, the user may, within 30 days (calendar) of billing, appeal to the ~~board~~Board.

(c) *Appeals.* A customer of the ~~wastewater treatment utility~~WWTU may appeal any billing dispute to the ~~board~~Board. Such appeal shall be filed in writing on forms prescribed by the ~~board~~Board, together with

supporting evidence. The ~~board~~Board shall not consider an appeal unless filed within 30 days after the customer discovers or should have discovered the basis for claiming an error in billing. The ~~board~~Board shall render a decision in writing within 30 days of submission of the appeal.

(Prior Code, § 30.09.8)

### Sec. 40-~~243~~190. Tenants may be billed; ~~right~~the right of owners to examine records.

The sewer charges may be billed to the tenants occupying the premises served, unless otherwise instructed in writing by the person who owns the premises. Such billings shall in no way relieve the owner of liability in the event payment is not made as herein required. The owners of the premises served, which are occupied by tenants, shall have the right to examine the collection records of the ~~city~~ WWTU ~~for the purpose of determining~~to determine whether such sewer charges have been paid by such tenants; provided that such examination shall be made at the office at which the records are kept and during the hours that such office is open for business.

(Prior Code, § 30.09.9)

### Sec. 40-~~244~~191. Fire protection.

Where a metered water supply is used for fire protection as well as for other uses, the ~~city~~ WWTU may, ~~in~~ at its discretion by and through the ~~board~~Board ~~of public works and safety~~, ~~make adjustments~~adjust ~~in~~ the minimum charge and ~~in~~ the use charge as may be equitable.

(Prior Code, § 30.09.10)

### Sec. 40-~~245~~192. Liability of city for charges.

For the service rendered to any department or agency of the city, except the ~~sewer department~~WWTU, the city shall be subject to the sewer charges provided herein.

(Prior Code, § 30.09.11)

### Sec. 40-~~246~~193. Tap fees.

~~In the event that~~If a sewer connection or any connection is made, after the effective date of the ordinance from which this article is derived, from any lot, parcel of real estate, or building or improvement of any kind, that connects with or uses the ~~sewage system~~sanitary sewer and/or ~~POTW~~WRRF of the city, or that in any way directly or indirectly uses or is served by such sewage works, an initial or additional connection charge or surcharge, otherwise provided by written contract as provided by law, with the ~~board~~Board ~~of public works and safety~~, shall be levied against said lot or parcel of real estate ~~in accordance with~~per charges or surcharges established by the City, hereinafter referred to as "tap fees."

(a) Tap fees shall be paid for all new connections and ~~for~~ existing connections when an increase in the number of dwelling units or allowable occupancy occurs because of an improvement for ~~a~~ residential usage or when a change in the type of use occurs for a business, commercial or industrial usage and a building permit is required.

(b) Tap fees shall be paid ~~, by check,~~ to the ~~wastewater treatment~~WWTU billing office. The Utility Director has approved the acceptance of the tap fee having verified that there is adequate capacity within the collection system whether privately or publicly owned, and the WWTU's sewer system has adequate capacity for acceptance of the tap fee. ~~for the city, and t~~The ~~city engineer~~Building Department shall not issue a building sewer permit or an improvement location permit until presented with a receipt fr~~o~~m the ~~wastewater treatment~~WWTU billing office indicating that the tap fee has been paid. ~~and that the city engineer has approved acceptance of the tap fee having verified that there is adequate capacity within the collection system whether privately or publicly owned, and the city's sewer system has adequate capacity for acceptance of the tap fee.~~ Funds from the collection of the tap fees shall be placed into the operating account of the ~~wastewater treatment utility~~WWTU.

(c) The surcharge shall constitute a lien against such lot, parcel of real estate, or building until paid and shall be collected in the manner provided by IC 36-9-23-1 et seq., or under any state ~~statue~~ statute repealed by IC 19-2-

5-30 and the ordinances of the ~~city~~WWTU. The connection charges set out in this section shall be over and above any or all ~~cost~~ costs or charges for making the connection from the lot, parcel of real estate, or building to the sewer and any assessments collected by the WWTU~~city~~ from reimbursement agreements.

(d) All building sewer permits for the connection to the WWTU~~city~~'s sewer system that are outside the city's corporation limits shall include a waiver agreeing not to oppose any future annexation by the city.

(Prior Code, § 30.09.12; altered in 2019 recodification)

## Sec. 40-~~247~~1914. Surcharge based on flow and concentration of wastewater.

All wastewater discharged shall meet the admissibility standards in D~~d~~ivision 3~~5~~ of this article, by pretreatment, if necessary, as determined by the ~~board~~Utility Director, or designee. Wastewater from any user beyond the limits of admissibility ~~set forth in~~outlined in this article may be accepted and surcharged ~~in accordance with~~per the ~~schedule~~ rates in ~~section~~Section 40-196~~6~~.

(Prior Code, § 30.09.13)

## Sec. 40-~~248~~1915. Determination of rate of surcharge.

Surcharges shall be based on actual quantities discharged for treatment as determined from measured concentrations and flow. Surcharge rates for wastewater characteristics not provided herein may be set at the reasonable discretion of the ~~board~~Utility Director, ~~taking into account~~considering ~~all of~~all the ~~sewer department's~~WWTU's significant costs factors, relating to treatment, handling, and disposal.

(Prior Code, § 30.09.14)

## Sec. 40-~~249~~1916. Rates of surcharge.

The rates of surcharge, in addition to volumetric charges, for the following constituents shall be as follows:

(a) For biochemical oxygen demand (BOD) ~~in excess of~~more than 250 milligrams per liter: $0.07 per pound;

(b) For suspended solids ~~in excess of~~more than 250 milligrams per liter: $0.10 per pound; and

(c) For ammonia ~~in excess of~~more than 30 milligrams per liter: $0.29 per pound.

(Prior Code, § 30.09.14)

## Sec. 40-~~250~~1917. Pretreatment~~Sewer~~ charges.

~~(a) Basic sewer charges. For the use and the service rendered by said sewage works, volumetric sewer charges shall be paid and shall be in the amount determined as follows:~~

| ~~Parameter~~ | ~~Cost/Sample~~ |
|---|---|
| ~~$BOD_5$~~ | ~~$20.00~~ |
| ~~TSS and VSS~~ | ~~$1.50~~ |
| ~~pH~~ | ~~$30.00~~ |
| ~~Metals~~ | ~~$30.00~~ |
| ~~Cyanide, Total~~ | ~~$30.00~~ |
| ~~Volatile Organics~~ | ~~$175.00~~ |
| ~~Oil and Grease~~ | ~~$20.00~~ |
| ~~Ammonia Nitrogen~~ | ~~$30.00~~ |
| ~~Kjeldahl Nitrogen~~ | ~~$30.00~~ |

~~(a)~~

~~(b)~~(a) Pretreatment program charges.

(1) ~~Permit~~ Industrial Discharge Approval fee: $600.00 (anticipated every ~~four~~ five years).

(2) Investigative inspections/accidental discharges: $50 per incident.~~Annual permit review: $75.00 (once per year).~~

(3) Costs for laboratory analysis to be reimbursed by the user.

~~(3)~~(4) ~~Program administration charge: $0.050 per 1000 gallons (subject to annual review) for SIUs only.~~ Surcharges as described in Sec. 40-196.

~~(4)~~(5) Monitoring setup/teardown fee: $75.00 per event (anticipated two per year).

~~(5)~~(6) Site inspection fee: $~~35~~50.00 per visit (anticipated ~~two~~ once per year).

~~(6)~~(7) Additional parameters: The ~~board~~Utility Director reserves the right to require additional parameters at a unit charge to be based on the ~~city's~~ WWTU's cost of providing the service.

~~(c)~~(b) The ~~board~~Board is empowered to determine rates, charges, and fees for septic ~~tank~~tanks, industrial wastes, and other disposable wastewater and wastes delivered to the WRRF~~wastewater treatment plant~~, as provided in ~~section~~Section 40-76,~~175~~ and to collect such ~~charges and fees~~charges.

~~(d)~~(c) The ~~board~~Board is empowered to determine and to collect such charges as it may reasonably provide for under special agreements and arrangements entered into by the ~~board~~Board, on behalf of the ~~city~~WWTU, under ~~section 40-176~~this chapter.

(Prior Code, § 30.09.15)

## Sec. 40-~~251~~1998. Delinquent accounts.

Charges for sewage service levied ~~pursuant to~~under this ~~article~~ chapter shall be due and payable on or before the due dates shown on the bills. Any service charge not paid by the due date (approximately 15 calendar days ~~(calendar)~~ after the bill is rendered) shall be considered delinquent. The delinquent charge shall be ten percent of the billed amount and shall be added to the next statement rendered unless by then paid. Delinquent sewage charges together with delinquent penalties, cost of collection, legal fees, and other expenses of collection may be collected by any lawful remedy, including, where applicable, the placing of and foreclosure of liens on real estate as provided by state law.

(Prior Code, § 30.09.16)

## Sec. 40-~~252~~1999. Annual review of rates.

On an annual basis, within a reasonable ~~period of time~~period following the normal accounting period, the ~~board~~Board shall cause a study to be made ~~for the purpose of reviewing~~to review the sufficiency, fairness, equity, and proportionality of the rates and charges for wastewater treatment services. Upon completion of the study, the ~~board~~Board shall recommend new rates and charges to the common council.

(Prior Code, § 30.09.17)

## Sec. 40-~~253~~200. Reduced charges for certain residents.

(a) There shall be a 50 percent reduction in monthly sewer charge for a resident of a residential property who is entitled to low-income relief under ~~section~~Section 10-253.

(b) The controller shall have the authority to suspend the operation of this provision if the controller determines, with the advice of the WWTU's financial advisor, ~~that~~which continued operation of this provision would materially adversely affect the ability of the WWTU to meet the statutory revenue requirements of the WRRF. In such case, the controller shall cease approving any new requests for reduced charges and may cause residents who have received reduced charges to begin paying the full schedule of monthly sewer charges.

(Prior Code, § 30.09.18; altered in 2019 recodification)

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# CHAPTER 40 UTILITIES
# ARTICLE I. IN GENERAL

**Secs. 40-1—40-18. Reserved.**

# ARTICLE II. WASTEWATER TREATMENT SYSTEM

## *DIVISION 1. GENERAL*

### Sec. 40-19. Definitions.

Unless otherwise defined herein, terms shall be as adopted in the latest edition of the Glossary of Water and Wastewater Control Engineering, published by the American Public Health Association, American Society of Civil Engineers, American Water Works Association, and Water Environment Federation.

*Act* or *the Act* means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 USC 1251 et seq.

*Approval authority* means the Indiana Department of Environmental Management (IDEM).

*Authorized representative of significant industrial user.* An authorized representative of a significant industrial user may be:

(a) A principal executive officer of at least the level of vice president, if the significant industrial user is a corporation;

(b) A general partner or proprietor if the significant industrial user is a partnership or proprietorship, respectively;

(c) A duly authorized representative responsible for the overall operation of the facilities from which the indirect discharge originates.

*Beneficial uses of receiving water.* These include but are not limited to, domestic, municipal, agricultural, and industrial use, power generation, recreation, aesthetic enjoyment, navigation, and the preservation and enhancement of fish, wildlife, and other aquatic resources or reserves, and other uses, both tangible or intangible as specified by state or federal law.

*Best Management Practices* or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 2.1 A and B [40 CFR 403.5(a)(1) and (b)]. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

*Biochemical oxygen demand (or BOD) of sewage, sewage effluent, polluted waters, or industrial wastes* means the quantity of dissolved oxygen in milligrams per liter required during stabilization of the decomposable organic matter by aerobic biochemical action under standard laboratory procedures for five days at 20 degrees Celsius. The laboratory determinations of BOD shall follow the procedures outlined in Standard Methods for $BOD_5$ with nitrification inhibition.

*Board* means the Board of Public Works and Safety of the city. It is the governing body of the city's WRRF, which is a publicly owned treatment works.

*Boiler blowdown* means removing water from a boiler to eliminate or reduce impurities, solids, and chemicals that can affect the boiler's performance and cause scale, corrosion, and carryover.

*Building drain* means that part of the lowest horizontal piping of a drainage system that receives from solid waste and/or other drainage pipes inside the walls of the building and conveys it to the building sewer.

*Building sewer* means the extension from the building drain to the public sewer or other place of disposal and shall include that portion of the drain within the public right-of-way (also called the house connection).

*Categorical Industrial User* is an Industrial User subject to a categorical pretreatment standard or categorical standard.

*Categorical Standards, National Categorical Pretreatment Standards,* or *Pretreatment Standards* means any regulation containing pollutant discharge limits promulgated by the EPA per Sections 307(b) and (c) of the Act (33 USC 1317(b)) that apply to a specific category of industrial users in 40 CFR Subpart I, Subchapter N, Parts 405-471 and state pretreatment standards as established in 327 IAC 5-18.

*Chemical oxygen demand (or COD) of sewage, sewage effluent, polluted waters, or industrial wastes* means a measure of the oxygen equivalent of that portion of organic matter in a sample that is susceptible to oxidation by a strong chemical oxidant. The laboratory determination shall be made following the procedures outlined in Standard Methods.

*City* means the City of West Lafayette, Indiana, by and through the Board of Public Works and Safety.

*Collector sewer* means a public sewer that discharges into a branch or other sewer and has no other public sewer tributary to it.

*Combined sewer* means a sewer that carries stormwater or surface runoff in addition to sanitary sewage.

*Compatible pollutants* mean wastewater having or containing:

(1) Measurable biochemical oxygen demand;

(2) Suspended solids;

(3) pH;

(4) E. Coli bacteria; or

(5) Additional pollutants identified or defined in the city's National Pollutant Discharge Elimination System (NPDES) permit or by IDEM or the Board.

It is further clarified that conventional pollutants, as identified by the US EPA according to Section 304(a)(4) of the Act in a form that causes interference with the WRRF operations, shall be non-compatible.

*Constituents and characteristics (of wastewater)* means the chemical, physical, bacteriological, and radiological properties; including volume, flow rate, and other properties that serve to define, classify, or measure the contents, quality, quantity, and strength of wastewater.

*Conventional pollutants* are those pollutants that are usually found in domestic, commercial, or industrial wastes, including suspended solids, biochemical oxygen demand, pathogens, and oil and grease.

*Control authority* means the Utility Director or a person authorized by the Utility Director or the Board of Public Works and Safety.

*Daily Maximum* is the arithmetic average of all effluent samples for a pollutant collected during a calendar day.

*Daily Maximum Limit* is the maximum allowable discharge limit of a pollutant during a calendar day. Where Daily Maximum Limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where Daily Maximum Limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

*Debt service charge* means a charge levied on users of the wastewater conveyance and treatment system to fund debt service on outstanding bonds and current capital costs.

*Direct discharge* means the discharge of a pollutant.

*Domestic Wastewater* means wastewater of the type commonly introduced into a POTW by residential users.

*Effluent* means the water, together with any wastes that may be present, flowing out of a drain, sewer, receptacle, or outlet.

*Environmental Protection Agency* or *EPA* means the U.S. Environmental Protection Agency, or, where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of the agency.

*Existing Source* means any categorical source of discharge that existed before the creation of the categorical standard.

*Fats (wastes)* means triglyceride esters of fatty acids. Erroneously used as a synonym for grease.

*Foundation drains* are any network of pipes, pumps, or drainage mechanisms located at, near, or under a footing, foundation, or floor slab of any building or structure that intentionally or unintentionally conveys groundwater away from a building or structure.

*Garbage* means the animal and vegetable waste resulting from the handling, preparation, cooking, and serving of foods. It is composed largely of putrescible organic matter and its natural moisture.

*Grab sample* means a sample that is taken from a waste stream on a one-time basis with no regard to the flow in the waste stream and over a period not to exceed 15 minutes.

*Grease and oil*, in wastewater, means a group of substances including fats, waxes, free fatty acids, calcium and magnesium soaps, mineral oils, and certain other fatty materials. Water-insoluble organic compounds of plant and animal origins, or industrial wastes, which can be removed by natural flotation skimming.

*Holding tank waste* means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum pump tank trucks.

*Incompatible pollutants* mean any pollutant that is not compatible with the operation of a POTW so that the pollutant passes through the POTW, interferes with it, or is otherwise incompatible with it. Incompatible pollutants may also be toxic wastes not removed by the POTW treatment system.

*Indirect discharger* means a nondomestic discharger introducing pollutants into a POTW, regardless of whether the discharger is within the governmental jurisdiction of the city.

*Industrial User* means an indirect discharger.

*Industrial wastes* mean any solid, liquid, or gaseous substance or form of energy discharged, permitted to flow into, or enter the sanitary sewer or ground from an industrial, manufacturing, commercial, or business process, or from the development, recovery, or processing of any natural resource carried on by any person and shall further mean any waste from an industrial user, but not including sanitary sewage or stormwater.

*Infiltration* means groundwater entering the collection system through service connections, cracked pipes, defective joints, defective pipes, and manhole walls.

*Inflow* means surface runoff that may enter the collection system from sources such as a cellar, yard area, foundation drains, drains from springs and swampy areas, manhole areas, cross connections between storm and sanitary sewers, catch basins, cooling towers, stormwater, surface runoff, and street waters or drainage.

*Inspector* is a person authorized and assigned by the Board or the Utility Director to perform inspection and monitoring duties.

*Instantaneous Limit* means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

*Interference* means a discharge that, alone or in conjunction with a discharge or discharges from other sources inhibits or disrupts the:

a) treatment processes or operations; sludge processes; or selected sludge use or disposal methods; of a POTW.

b) the inhibition or disruption under a) must:

1) cause a violation of a requirement of the city's NPDES permit, including an increase in the magnitude or duration of a violation; or

2) prevent the use of the POTW's sewage sludge or its sludge disposal method selected in compliance with the following statutory provisions, regulations, or permits issued thereunder or more stringent federal, state, or local regulations:

(A) Section 405 of the Clean Water Act (33 USC 1345).

(B) the Solid Waste Disposal Act (42 USC 6901), including Title II, more commonly referred to as the Resource Conservation and Recovery Act; and the rules contained in a state sludge management plan prepared under Subtitle D of the SWDA (42 USC 6941).

(C) the Clean Air Act (42 USC 7401).

(D) the Toxic Substance Control Act (15 USC 2601)

*Local Limit* means the specific discharge limits developed and enforced by the City upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 CFR 403.5(a)(1) and (b).

*May* means that the act referred to is both permissible and approved.

*Monthly Average* means the sum of all “daily discharges” measured during a calendar month divided by the number of “daily discharges” measured during that month.

*Monthly Average Limit* is the highest allowable average of “daily discharges” over a calendar month, calculated as the sum of all “daily discharges” measured during a calendar month divided by the number of “daily discharges” measured during that month.

*Medical Waste* means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

*NPDES permit* means National Pollutant Discharge Elimination System permit now or hereafter held by the city and setting forth conditions for the discharge of any pollutants or combinations of pollutants.

*New source* means any source, the construction of which is commenced after the publication of proposed and/or regulations prescribing a Section 307(c) (33 USC 1317(c)) Categorical Pretreatment Standard which will apply to such source if such standard is thereafter promulgated within 120 days of the proposal in the Federal Register. Where the standard is promulgated later than 120 days after a proposal, the term "new source" means any source, the construction of which is commenced after the date of promulgation of the standard. Where no standard applies, the term "new source" means any source discharging into the sanitary sewer, after the effective date of the ordinance from which this article is derived.

*Non-contact cooling water* means Water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

*Normal domestic sewage* means sanitary wastewater discharged by residential users.

*Nuisance* means any substance that is injurious to health or offensive to the senses or an obstruction to the free use of property to interfere with the comfort or enjoyment of life or property.

*Operation and Maintenance (O&M)* means all expenses related directly to operating and maintaining, including replacement, the sewage works as identified in the "Uniform System of Accounts for Wastewater Utilities" or as prescribed by the state Board of Accounts under the general headings, plant operation and maintenance, sewer operation and maintenance, customer accounts, administrative and general, insurance and taxes.

*Pass-Through* means a discharge proceeding through a POTW into waters of the state in quantities or concentrations that, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the City’s NPDES permit, including an increase in the magnitude or duration of a violation.

*pH* means the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in units.

*Person* means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, Federal, State, and local governmental entity, or any other legal entity, or their legal representatives, agents, or assigns. The masculine gender shall include the feminine; the singular shall include the plural where indicated by the context.

*Pollutant* means any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical waste, chemical waste, solid wastes, toxic wastes, hazardous substances, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, and other industrial, municipal, agricultural waste discharged into water, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

*Pollution* means specific impairment of water quality by agricultural, domestic, or industrial wastes (including thermal and radioactive wastes), to a degree that has any change in the natural state of water, which interferes with its beneficial reuse or causes its failure to meet water quality requirements.

*Pretreatment* or *treatment* means reducing the amount of pollutants, eliminating pollutants, or altering the nature of pollutant properties in wastewater to a less harmful state, other than by dilution, before or instead of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical, or biological processes or through process changes or other means, except by dilution as prohibited by 40 CFR 403.6(d).

*Pretreatment requirements* mean any substantive or procedural requirement related to pretreatment, other than a National Pretreatment Standard imposed on an industrial user, including applicable local limits.

*Pretreatment standards* include requirements under the state pretreatment standards established in 327 IAC 5-18 and mean prohibited discharge standards, categorical pretreatment standards, and local limits.

*Publicly owned treatment works (POTW)* means a treatment works, owned by the city, including devices and systems used to store, treat, recycle, and reclaim sanitary sewage or industrial waste with compatible pollutants. POTW includes sewers, pipes, and other conveyances only if they convey wastewater to a POTW treatment plant. For this article, the POTW shall also include any sewers that convey wastewaters to the POTW from persons outside the (city) who are, by contract or agreement with the (city), users of the (city's) POTW. The City of West Lafayette's POTW is called the Water Resource Recovery Facility (WRRF) and will be referred to as such for this article. POTW also means the municipality having jurisdiction over the indirect discharges to and the discharge from such treatment works, which is the City of West Lafayette's Wastewater Treatment Utility (WWTU) for this article.

*Public sewer* means any combined, sanitary, collector, storm sewer, or lift station located within the public right-of-way or a dedicated easement controlled by a governmental agency or public utility.

*Receiving stream* means the Wabash River and its tributaries within the city.

*Sanitary sewage* means sewage, such as, and having the characteristics of, normal domestic sewage from dwellings (including apartment houses and hotels), office buildings, factories, or institutions, free from stormwater and surface water, and industrial waste.

*Sanitary sewer* means a sewer, or a network of sewers and appurtenances, used for collecting, transporting, and pumping sanitary or sanitary and industrial wastewater from residences, commercial buildings, industrial plants, and institutions.

*Septic tank waste* means any sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

*Sewage* means household and commercial wastewater that contains human waste and gray water; distinguished from industrial waste.

*Sewer* means a pipe or conduit laid for carrying sewage or other liquids and solids suspended or entrained therein.

*Shall* means the act referred to is mandatory.

*Shredded garbage* means garbage shredded to a degree that all particles will be carried freely in suspension under the conditions normally prevailing in the sanitary sewer, with no particles being greater than one-half inch in dimension.

*Significant industrial user* means the following:

(a) Industrial users subject to categorical pretreatment standards.

(b) An industrial user that:

(1) discharges an average of 25,000 gallons per day or more of process wastewater (excluding sanitary, noncontact cooling water, and boiler blowdown wastewater) to the WRRF;

(2) contributes a process waste stream that makes up five percent (5%) or more of the average dry weather hydraulic or organic capacity of the WRRF treatment plant; or

(3) is designated as a significant industrial user by the Utility Director on the basis that the industrial user has a reasonable potential to: (A) adversely affect the WRRF's operation; (B) violate a pretreatment standard; or (C) violate a requirement of 327 IAC 5-19-3.

(c) The Utility Director may, on its own initiative or in response to a petition received from an industrial user or per 327 IAC 5-19-3(6), determine that an industrial user is not a significant industrial user if it does not meet (b)(3) above.

*Significant Noncompliance (SNC)* means a non-domestic waste discharger's effluent discharge is in significant noncompliance if its violations meet one or more of the following criteria:

(a) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all the measurements taken for the same pollutant parameter during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits, as defined by 40 CFR 403.3(1);

(b) Technical Review Criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of all the measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the pretreatment standard or requirement, including instantaneous limits, as defined by 40 CFR 403.3(1) multiplied by the applicable TRC (TRC=1.4 for BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH);

(c) Any other violation of a pretreatment standard or requirement as defined by 40 CFR 403.3(1) (daily maximum, longer-term average, instantaneous limit, or narrative standard) that the WWTU determines has caused, alone or in combination with other discharges, interference or pass-through (including endangering the health of WRRF personnel or the public);

(d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or the environment or has resulted in the WRRF's exercise of its emergency authority under Section 40 CFR 403.8 (f)(1)(F)(i) to halt or prevent such a discharge;

(e) Failure to meet, within 90 days after the scheduled date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;

(f) Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(g) Failure to accurately report non-compliance; and

(h) Any other violation or group of violations, including best management practices, which WWTU determines will adversely affect the operation and implementation of the local pretreatment program.

*Slug Load* or *Slug* means any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge at a flow rate or concentration that has a reasonable potential to cause interference or pass through or in any other way violate this article or an NPDES Permit.

*State* means the State of Indiana.

*Standard industrial classification* is a classification according to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1972.

*Standard Methods* means an assembly of analytical techniques and descriptions commonly accepted in water and wastewater treatment (Standard Methods for the Examination of Water and Wastewater) published jointly by the American Public Health Association, American Water Works Association, and the Water Environment Federation, being the most current addition approved by the EPA.

*Storm sewer* is a sewer intended to carry only stormwater, surface runoff, street wash water, drainage, or unpolluted cooling water.

*Stormwater* means any flow occurring, during, or following, any form of natural precipitation.

*Surcharge* means an extra monetary charge imposed on flows into the wastewater collection system when $BOD_5$ or TSS concentrations, or concentrations along other parameters which shall be determined from time to time by the Board, that exceed those commonly found in normal domestic sewage (Section 40-196).

*Suspended solids* are solids that either float on the surface of or are in suspension in water, sewage, or other liquid or which are removable by laboratory filtration. Their concentration shall be expressed in milligrams per liter. Quantitative determinations shall be made following the procedures outlined in Standard Methods.

*Total Suspended Solids (TSS)* means the total measurement of suspended solids as defined above.

*Toxic pollutant* means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the Administrator of the Environmental Protection Agency under the provision of CWA 307(a), other Acts, or toxic by characteristic. The Board reserves the right to add additional parameters demonstrated to produce toxic effects which may or may not be on the list.

*User* means a person who introduces or discharges any substance whatsoever, into the collection system, including both the owner and occupant of real estate from which any substance whatsoever is introduced or discharged into the collection system.

*User charge* means a charge levied on users of a treatment works for the user's proportionate share of the cost of operation and maintenance (including) replacement of such works.

*User classes* mean each recipient of municipal wastewater treatment services shall be either in the industrial class or the non-industrial class. The industrial class shall include any discharger of trade or process waste or any user that discharges wastewater to the treatment works that contain toxic pollutants or poisonous solids, liquids, or gases in sufficient quantity either singly or by interaction with other waste, to contaminate the biosolids of the treatment works, or to interfere with any sewage treatment process, or which constitutes a hazard to humans or animals, creates a public nuisance, or creates any hazard in or has an adverse effect on the water receiving any discharge from the treatment works. The non-industrial class shall include all domestic and governmental users and those commercial and institutional users whose wastes do not meet the criteria for industrial users as stated above or as determined by the Board.

*Utility Director* means the person subject to the control of the Board in all matters of the WRRF and conveyance system.

*Waste* means sanitary sewage and all other waste substances, liquid, solid, gaseous, or radioactive, associated with human habitation, or of human or animal origin, or from any producing, processing, manufacturing, or industrial operation of whatever nature, including such waste placed within containers of whatever nature before, and for purposes of disposal.

*Wastewater* means the water carried from residences, business buildings, institutions, and industrial establishments, singular or in any combination, together with such groundwater, surface water, and stormwater as may be present.

*Water Resource Recovery Facility (WRRF)* is the designated name for the POTW and has the same meaning.

*Waters of the state* or *Waters of the state of Indiana* means, as outlined in IC 13-11-2-265, the accumulation of water, surface and underground, natural and artificial, public and private; or a part of the accumulation of water; that is wholly or partially within, flow through, or border upon Indiana.

(Prior Code, § 30.01.1)

## Sec. 40-20. Abbreviations.

The following abbreviations shall have the designated meanings:

| | |
|---|---|
| ASTM | American Society of Testing and Materials |
| BOD | Biochemical Oxygen Demand |
| CFR | Code of Federal Regulations |
| CIU | Categorical Industrial User |
| COD | Chemical Oxygen Demand |
| CWA | Clean Water Act |
| EPA | Environmental Protection Agency |

| | |
|---|---|
| IAC | Indiana Administrative Code |
| IC | Indiana Code |
| IDEM | Indiana Department of Environmental Management |
| IWP | Industrial Wastewater Pretreatment |
| L | Liter |
| mg | Milligrams |
| mg/L | Milligrams per Liter |
| NPDES | National Pollution Discharge Elimination System |
| O&M | Operation and Maintenance |
| POTW | Publicly Owned Treatment Works |
| ppm | Parts Per Million |
| RCRA | Resource Conservation And Recovery Act |
| SIC | Standard Industrial Classification |
| SIU | Significant Industrial User |
| USC | United States Codes |
| TSS | Total Suspended Solids |
| WRRF | Water Resource Recovery Facility |
| WWTU | Wastewater Treatment Utility |

(Prior Code, § 30.01.2)

## Sec. 40-21. Laws and regulations of the Board of Public Works and Safety.

The rates and charges established by this article shall be collected by the city. The Board may adopt and enforce such reasonable regulations not in conflict herewith as it may deem necessary for the safe, economical, and efficient management of the city's sanitary sewer and WRRF and for the construction and use of the building (or house connection) sewers and connections to the sanitary sewer, which regulations may include limitations of, or prohibition of, the introduction of, or infiltration by stormwater, surface water, and groundwater into the sanitary sewer; a schedule of initial connection charges to recover capital costs of new sewers installed for the particular new customer, and a capital cost recovery schedule for customers outside the city to include capital investment in existing or contribution in aid of construction for future treatment capacity; and for the regulation, collection, rebating and refunding of such rates and charges.

(Prior Code, § 30.01.3)

## Sec. 40-22. Legal Authority

The Board and the WWTU have the legal authority to:

(a) Develop and enforce specific limits on prohibited substances;

(b) Enter the premises of any industrial user to conduct inspections, surveillance, record review, and/or monitoring, as necessary to determine compliance with the sewer use ordinance and, if applicable, any effective industrial wastewater pretreatment permit or approval;

(c) Accept or deny any new or increased discharges from any indirect discharger;

(d) Immediately halt or prevent any discharge of pollutants to the sanitary sewer which reasonably appears to present an imminent endangerment to the health or welfare of the public, the environment, and/or which threatens to interfere with the operation of the WRRF;

(e) Require compliance with all applicable pretreatment standards and requirements by indirect dischargers;

(f) Impose fees, if necessary to offset the cost incurred by the permittee for administering the pretreatment program requirements established in this article; and

(g) Impose fines per Division 6 of this article.

### Sec. 40-23. Right of entry

Representatives of the WWTU, IDEM, and the EPA, upon reasonable notice to any person who is an owner, tenant, or occupant of any real estate, are empowered to enter, upon presentation of proper credentials, all premises for inspection, observation, measuring, sampling, and testing of water, sewage, and industrial waste.

### Sec. 40-24. Administration

Except as otherwise provided herein, the Board shall administer, implement, and enforce the provisions of this article. The Board may delegate any powers granted to or duties imposed upon the Utility Director or to other WWTU personnel.

### Sec. 40-25. Annual review.

The Board shall file with the Mayor and Common Council of the city during the first calendar quarter of each year beginning in the year 1993 an annual report for the previous calendar year showing the financial condition of the WRRF and the following information, as well as other information the Board may deem useful or appropriate:

(a) The amount of volumetric charges collected;

(b) the amount of surcharges collected;

(c) the activities of the Board and WRRF, concerning industrial surveillance and pretreatment;

(d) plant and treatment facilities;

(e) technical and other personnel; and

(f) combined sewer overflows.

Such report shall contain, where appropriate, recommendations to the council for amendments to this chapter regarding rates, surcharges, industrial surveillance, limitations on pollutants and concentrations thereof, and all other matters either within the scope of this chapter or about the collection and treatment of sewage.

### Sec. 40-26. Discharger's request for interpretation.

To ensure a fuller understanding of and compliance with the goals and objectives of this article, it shall be the privilege of any interested party to request, in writing, an interpretation or ruling by the Board or Utility Director on any matter covered by this municipal article.

(Prior Code, § 30.02.13)

### Sec. 40-27. Severability.

If any provision, paragraph, word, or article of this chapter is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, sections, and chapters shall not be affected and shall continue in full force and effect.

(Prior Code, § 30.11.01)

### Secs. 40-28—40-39. Reserved.

## *DIVISION 2. CONNECTIONS*

### Sec. 40-40. Unauthorized and/or forbidden connection to or use of the public sewer.

No unauthorized person shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance without first obtaining a written permit from the city Engineering Department.

(Prior Code, § 30.06.1)

## Sec. 40-41. Damaging and defacing sewage works property.

A person shall not maliciously, willfully, or recklessly break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance, or equipment that is a part of the WWTU's sanitary sewer and WRRF, or knowingly tamper with, connecting to, or other disturbances of the sanitary sewer without a proper permit.

(Prior Code, § 30.01.4; altered in 2019 recodification)

## Sec. 40-42. Permits.

There shall be two classes of sewer tap permits:

(a) For residential and commercial service; and

(b) For service to establishments producing industrial waste.

In either case, the owner or its agent shall make an application on a form furnished by the Building Department. The permit applications shall be supplemented by any plans, specifications, or other information considered pertinent in the judgment of the Utility Director. A permit and inspection fee for a residential or commercial building sewer permit and an industrial permit shall be paid to the city, at the time the application is filed.

(Prior Code, § 30.06.2; altered in 2019 recodification)

## Sec. 40-43. Costs; indemnification of the city.

All costs and expenses incident to the installation and connection of the building sewer (house connection) shall be borne by the owner. The owner, or the person installing the building sewer for the owner, shall indemnify the city and WWTU from any loss or damage that may directly or indirectly be occasioned by the installation.

(Prior Code, § 30.06.3)

## Sec. 40-44. Privies, septic tanks, cesspools, etc.

A person shall not construct or maintain a privy, septic tank, cesspool, dry well, or other facility intended or used for the disposal of wastewater.

(Prior Code, § 30.06.4)

## Sec. 40-45. When connection to the sanitary sewer is required.

The owner of, or any person constructing, a new house or other building for occupancy, employment, recreation, industrial or commercial activity within the city and abutting on any street, alley or easement in which there is now located, or may in the future be located, a public sanitary or combined sewer, or along or across which there is access to such a sewer, must connect, at their expense, within 90 days after date of official notice, to such sewer in accord with applicable ordinances and regulations, and shall not discharge sewage elsewhere than into the sanitary sewer.

(Prior Code, § 30.06.5)

## Sec. 40-46. Connection is required when public sewer becomes available.

When a public sewer becomes available to a property served by a private sewage disposal system, a direct connection shall be made, within three years, to the public sewer, at the owner's expense.

(Prior Code, § 30.06.6)

## Sec. 40-47. Construction of building (or house connection) sewers.

The size, shape, alignment, materials of construction of a building (or house connection) sewer and the methods to be used in excavating, placing the pipe, jointing, testing, and backfilling the trench shall conform to the requirements of the building and plumbing codes and other applicable rules and regulations of the city.

(a) *Pipe specifications.* The building sewer (house connection) shall be cast iron soil pipe, ASTM specification or equal, polyvinylchloride (PVC) gravity sewer pipe, ATSM specification (D3034-73 and minimum 600 pounds per lineal foot crushing strength) or equal. Joints shall be tight and waterproof. PVC gravity sewer pipe may be required by the inspector where the building sewer is exposed to damage by tree roots. If installed in filled or unstable ground, the building sewer shall be of cast iron soil pipe.

(b) *Size and slope requirements.* The size and slope of the building sewer (house connection) shall be subject to the approval of the engineering department, but in no event shall the diameter be less than six inches. The slope of such a six-inch pipe shall not be less than one-eighth inch per foot.

(c) *Separate sewer requirements.* A separate and independent building (or house connection) sewer shall be provided for every building (or house), except where one building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear of the building (or house) through an adjoining alley, court, yard, or driveway. In such cases, the building (or house connection) sewer from the front building (or house) may be extended to the rear building (or house), and the whole is considered as one building (or house connection) sewer.

(d) *Use of old building (or house connection) sewer for a new building (or house).* Old building (or house connection) sewers may not be used in connection with new buildings (or houses), except with the approval of the city Engineering Department. All new building sewers shall be plastic (PVC) pipe or equal material and all material and construction shall be approved by a representative of the city engineer.

(e) *Elevation and location of building (or house connection) sewer.* Whenever reasonably possible, the building (or house connection) sewer shall be brought to the building (or house) at an elevation below the basement floor. No building sewer shall be laid parallel to or within three feet of any bearing wall, which might thereby be weakened. The depth shall be sufficient to afford protection from frost. The building sewer shall be laid at a uniform grade and in straight alignment as far as possible. Changes in direction shall be made only with properly curved pipes and fittings. In all buildings (or houses) in which any building (or house) drain is too low to permit gravity flow to the appropriate public sewer, wastewater carried by such building (or house) drain shall be lifted by appropriate means and discharged to the building (or house connection) sewer. No water-operated sewage ejectors shall be used.

(f) *Excavations.* All excavations required for the installation of a building sewer (house connection) shall be open trench work unless otherwise approved by the Engineering Department. Pipe laying and backfill shall be performed per ASTM specifications; except that no backfill shall be placed until the work has been inspected by the Engineering Department. All excavations for building sewer (house connection) shall be adequately guarded with barricades and lights to protect the public from hazards. Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the WWTU or Engineering Department.

(g) *Connection of building sewer (house connection) into the public sewer.* The connection of the building sewer to the public sewer shall be made at the "Y" branch. If such a branch is available, the owner shall, at the owner's expense, furnish and install in the public sewer a "Y" at the location specified by the WWTU into which the building sewer (house connection) shall be connected. The invert of the building sewer (house connection) shall be at the same or a higher elevation than the invert of the public sewer. A smooth neat joint shall be made, and the connection made secure and watertight.

(h) *Prohibition against clear water discharges.* It shall be unlawful to connect to or discharge from a building sewer to a public or other building sewer when such building sewer has any of the following sources of clear water connected to it:

(1) Foundation/footing drains;

(2) Sump pumps with foundation drains connected;

(3) Roof drains;

(4) Heat pump discharge;

(5) Noncontact cooling water; or

(6) Any other source of clear water.

The Board reserves the right to require present users to disconnect, at the user's expense, existing sources of such inflow where such disconnection is technically feasible.

(i) *Existing foundation drains, roof drains, defective building sewers, and sump pumps.* In the event the Utility Director determines that a violation of this section exists, the Utility Director shall notify the violator per Division

6 that such violation exists. The notice shall describe the nature of the violation and the corrective action that must be taken. Such corrective action shall be taken within 30 days of receipt of such notice unless extended by the Board and/or the Utility Director.

(j) *Inspection, supervision of connection.* The applicant for the building (or house connection) sewer permit shall notify the WWTU when a building (or house connection) sewer is ready for inspection and connection to the sewer system. If the applicant has installed footing drains, the discharge point will be inspected before connection of the building sewer (house connection) is connected to the public sewer. The connection shall be made under the observation of the representative of the WWTU using materials and techniques conforming to the requirements of the Board. The applicant shall give notice before the burial or covering of the building (or house connection) sewer and shall not cover or bury the sewer until the inspection is completed and the connection approved. The sewer connections shall be made before a permanent water service connection is made.

(Prior Code, § 30.06.7)

### Sec. 40-48. Right to prohibit new connections.

The WWTU shall have the right to prohibit new connections when the capacity of the sanitary sewer is deemed insufficient by the Utility Director to accommodate the expected flow and/or pollutant loading from the prospective sewer user.

(Prior Code, § 30.06.8)

### Sec. 40-49. Extension outside city limits.

No person shall directly or indirectly make any connection with or opening into any public sewer or appurtenance owned or operated by the WWTU to serve an area outside the corporate boundaries of the city, except:

(a) Connection or service is under the terms of a valid agreement or contract with the WWTU and in force at the time this article becomes effective.

(b) Service to Purdue University.

(c) Service to the area served by the facilities formerly a part of the city's regional sewer district.

(d) Service to any area that is expected to become a part of the corporate limits of the city but is not currently contiguous or cannot be immediately annexed under state law, provided that the Board finds that:

(1) Such service would be in the best interests of the WWTU;

(2) The development to be served would conform to city standards and be consistent with city planning; and

(3) That such area should become a part of the corporate limits of the city in the future.

(e) Service has been provided before the effective date of the ordinance from which this article is derived.

(Prior Code, § 30.06.9; Ord. No. 13-00, § 1)

### Secs. 40-50—40-69. Reserved.

## *DIVISION 3. WASTEWATER ADMISSIBILITY*

### Sec. 40-70. Right to reject waste.

The WWTU shall have the right to reject waste and prohibit the introduction of rejected waste into the sanitary sewer or the WWTU may require pretreatment of the waste when the strength or character of the waste is such that it could cause damage to or interfere with the operation of the WRRF.

(Prior Code, § 30.02.11)

### Sec. 40-71. General discharge prohibitions.

(a) It shall be unlawful for a user to discharge any sanitary sewage, industrial waste, household waste, or other polluted waters/wastes into the WRRF, sanitary sewer, or any natural outlet within the city or in any area under

the jurisdiction of the city without an NPDES permit or approval from the city and/or WWTU per the provisions of this article. (Prior Code, § 30.02.8)

(b) No person shall discharge any substance directly into a manhole or other opening in the sanitary sewer other than through the approved building (house connection) sewer, except per the terms of this article or by express permission of the WWTU. (Prior Code, § 30.08.4)

(c) No user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which causes, threatens to cause, or can cause, either alone or in conjunction with other discharges, impact the performance of the WRRF. These general prohibitions apply to all such users of the WRRF whether the user is subject to National Categorical Pretreatment Standards or any other national, state, or local pretreatment standards or requirements.

## Sec. 40-72. Specific discharge prohibitions.

A user may not contribute the following substances to the sanitary sewer and WRRF:

(a) A pollutant from any source of nondomestic wastewater that could pass through or cause interference with the operation or performance of the sewage works and WRRF.

(b) A pollutant that could create a fire or explosion hazard in the sanitary sewer, including waste streams with a closed cup flashpoint of less than 140 degrees Fahrenheit (60 degrees Celsius) using the test methods in 40 CFR 261.21.

(c) A pollutant with a pH less than 5.0 or greater than 10.0, or any other wastewater having any corrosive property capable of causing damage or hazard to structures, equipment, and/or personnel of the WWTU.

(d) Solid or viscous pollutants in an amount that could obstruct the flow in a sewer or other interference with the operation of the WRRF such as, but not limited to grease, garbage with particles greater than one-half inch in any dimension, animal viscera or tissues, manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, wipes, spent grains, spent hops, waste paper, paper dishes and cups, milk containers, wood, plastics, gasoline, tar, asphalt residues, residues from refining, or processing of fuel or lubricating oil, mud, or glass grinding or polishing wastes.

(e) Any pollutants, including oxygen-demanding pollutants (BOD, etc.) released at a flow rate and/or pollutant concentration that a user knows or has reason to know will cause interference.

(f) Heat in an amount that could inhibit biological activity in the WRRF and result in interference or damage to the WRRF, but in no case wastewater with a temperature at the introduction into the WRRF which exceeds 104 degrees Fahrenheit (40 degrees Celsius).

(g) Petroleum, oil, nonbiodegradable cutting oil, or products of mineral oil origin in an amount that could cause interference or pass through.

(h) A pollutant that could result in the presence of toxic gases, vapors, or fumes within the sewers or WRRF in a quantity that may cause acute worker health and safety problems.

(i) Any liquids, solids, or gases which, because of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fire or explosion or be injurious in any other way to the WRRF or the operation of the WRRF. Prohibited materials include, but are not limited to gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, sulfides, and any other substances which the WWTU, IDEM, or the EPA has notified the user is a fire hazard or hazard to the system.

(j) A trucked or hauled pollutant, except with the permission of the WRRF and when introduced to the POTW at ta discharge point designated by the WRRF.

(k) Any noxious or malodorous liquids, gases, or solids which either singly or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

(l) Any substance which may cause the WRRF's effluent or any other product of the WRRF such as residuals, biosolids, or scums to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case, shall a substance discharged to the WRRF cause the WRRF to be in non-compliance with biosolids use or disposal criteria, guidelines, or regulations developed under Section 405 of the Act; any criteria, guidelines, or regulations affecting biosolids use or disposal developed per the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substance Control Act, or state criteria applicable to the biosolids management being used.

(m) Any substance that causes the WRRF to violate its NPDES Permit or the receiving stream's water quality standards.

(n) Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to dye waste and vegetable tanning solutions.

(o) Any wastewater containing any radioactive waste.

(p) Any wastewater causing a hazard to human life or creates a public nuisance or is deleterious to the WRRF. When the Utility Director determines that a user is contributing to the WRRF, any of the above-described substances in such amounts as to interfere with the operation of the WRRF, the Utility Director shall advise the user of the impact of the contribution on the WRRF; and develop effluent limitation for such user to correct the interference with the WRRF.

(Prior Code, § 30.02.1)

## Sec. 40-73. Local limits.

No person shall discharge wastewater containing more than:

| Limit | Pollutant |
|---|---|
| 0.1 mg/l | Arsenic |
| 1.0 mg/l | Cadmium |
| 6.0 mg/l | Chromium, Total |
| 2.5 mg/l | Copper |
| 1.0 mg/l | Cyanide, Total |
| 0.6 mg/l | Lead |
| 0.02 mg/l | Mercury |
| 1.0 mg/l | Molybdenum |
| 2.0 mg/l | Nickel |
| 4.39 mg/l | Selenium |
| 1.0 mg/l | Silver |
| 4.2 mg/l | Zinc |
| 1.0 mg/l | Phenolic Compounds |
| 8.0 mg/l | Phosphorus |

(Prior Code, § 30.02.4; altered in 2019 recodification)

## Sec. 40-74. Excessive discharge.

No user shall ever increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or in any other pollutant-specific limitation developed by the WWTU or IDEM.

(Prior Code, § 30.02.7)

## Sec. 40-75. Prohibition of unpolluted waters.

(a) No person shall discharge or cause to be discharged any stormwater, surface water, groundwater, roof runoff, subsurface drainage, noncontact cooling water, or unpolluted industrial process water to any sanitary sewer.

(b) Unpolluted water, including, but not limited to the public water supply, noncontact cooling water, process water, or blowdown from cooling towers or evaporative coolers shall not be discharged through direct or indirect connection to the sanitary sewer or for purposes of diluting wastewater.

(c) Stormwater and all other unpolluted drainage shall be discharged to sewers that are specifically designated as storm sewers or to a natural outlet approved by the Utility Director and/or under an NPDES Permit from IDEM.

(d) No user shall contribute non-contact cooling waters or unpolluted process waters to the sanitary sewer. Non-contact cooling waters or unpolluted process waters may be discharged to a storm sewer after an NPDES Permit is approved by IDEM and provided to the Utility Director.

(e) Limitations on the amount of unpolluted water that is discharged shall be part of an Industrial Wastewater Pretreatment (IWP) Permit from IDEM or an Industrial Discharge Approval from the WWTU.

(Prior Code, § 30.02.9)

### Sec. 40-76. Licensed commercial or industrial waste hauling.

A person who is a licensed commercial or industrial waste hauler may discharge compatible pollutants and those incompatible pollutants within the limits of admissibility set out in Division 3 of this article to the WRRF at a time and place and in such amounts as permitted by the Utility Director. The Utility Director shall not be required to accept any such discharge if it elects in given cases not to do so. Wastewater so received must be preceded with a copy of any IDEM permits and a manifest of constituents and concentrations for each truckload.

(Prior Code, § 30.08.5; Ord. No. 31-09)

### Sec. 40-77. Federal and State requirements.

If Federal or State requirements are more stringent than the limitations imposed under this article, the most stringent limits shall supersede the limitations in this article.

(Prior Code, § 30.02.5)

### Sec. 40-78. City's right of revision.

The WWTU reserves the right to change rates and fees and establish, by ordinance, more stringent limitations, or requirements on discharges to the sanitary sewer if deemed necessary to comply with the objectives of this article.

(Prior Code, § 30.02.6)

### Secs. 40-79—40-89. Reserved.

## *DIVISION 4. INDUSTRIAL WASTE DISCHARGE*

### Sec. 40-90. Applicable users.

This section applies to industrial users that discharge pollutants from non-domestic wastewater sources to the WRRF. Industrial users include:

(a) A categorical industrial user (CIU) or significant industrial user (SIU) requiring an IWP Permit from IDEM;

(b) A user deemed by the Utility Director that has the potential to discharge specifically prohibited discharges described in Section 40-72; or

(c) A user that has the potential to discharge a pollutant above the local limitations in Section 40-73.

### Sec. 40-91. Pretreatment requirements.

(a) Industrial users shall separate non-domestic, industrial waste from domestic wastewater to provide a single point of discharge of all non-domestic, industrial process waste to determine compliance with the requirements of this article.

(b) Industrial users shall provide wastewater treatment as necessary to comply with this article and shall achieve compliance with all pretreatment standards and requirements, IWP Permit requirements (if applicable), local limits, and the prohibitions set out in this article within the time limitations specified by EPA, IDEM, or the WWTU, whichever is more stringent.

(c) Any equipment required to pretreat wastewater to a level acceptable to the WWTU shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating

procedures shall be submitted to the WWTU with the Industrial Discharge Approval application for review and shall be acceptable to the WWTU before the construction of the facility.

(d) Whenever deemed necessary, the Utility Director, or designee, may require industrial users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, and such other conditions as may be necessary to protect the sanitary sewer and determine the industrial user's compliance with the requirements of this article.

(e) When requested by the Utility Director, or designee, an industrial user shall submit information on the nature and characteristics of its wastewater within 30 days of the request. The Utility Director, or designee, is authorized to prepare a form for this purpose and may periodically require users to update this information.

(f) The Utility Director, or designee, may require an industrial user discharging into the sanitary sewer to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An Industrial Discharge Approval may be issued solely for flow equalization. Detailed plans describing such facilities and operating procedures shall be provided with the Industrial Discharge Approval application.

(g) An industrial user shall provide, at the user's own expense, the WWTU an independent access and facilities for observation, measurement, and sampling of the building sewer and/or internal drainage systems. The WWTU shall have full, 24-hour access to the monitoring facility or facilities to conduct tests on the quality and quantity of effluent.

(1) The monitoring facility should normally be situated on the industrial user's premises, but the WWTU may, when such a location would be impractical for purposes of providing for independent and unscheduled monitoring activities or cause undue hardship on the industrial user, allow the facility to be constructed in the public street, right-of-way, parkway, or sidewalk area and located so that it will not be obstructed by landscaping or parked vehicles.

(2) There shall be ample room in or near such sampling manhole or facility to allow accurate sampling preparation of samples for analysis.

(3) The facility, sampling, and measurement equipment shall be maintained in a safe and proper operating condition at the expense of the industrial user. Whether constructed on public or private property, the sampling and monitoring facilities shall be provided per the WWTU's requirements and all applicable local construction standards and specifications, and such sampling and monitoring facilities shall be constructed and maintained in such a manner to enable WWTU personnel to perform independent and unscheduled monitoring activities. (Prior Code, § 30.03.4)

(4) Any violation of the requirements for the construction of control manholes or monitoring facilities and installation and operation of monitoring equipment shall be punishable by a fine in an amount established by the WWTU for each daily violation.

(h) Industrial user shall provide a reliable measurement of the volume or quantity of industrial waste discharged into the sanitary sewer. The measurement shall be comprised of industrial waste only and exclude all domestic wastewater sources. The WWTU may review the calibration procedure at the flow monitoring station and shall have the right to be present during calibration.

(Prior Code, § 30.03.4)

(i) Grease, oil, and sand interceptors shall be provided at all restaurants, industries, and commercial enterprises as necessary to contain grease, flammable wastes, sand, and other harmful inert materials. All interceptors shall be approved by the WWTU and shall be readily and easily accessible for cleaning and inspection. Interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight, and equipped with easily removable covers which when bolted in place shall be gas-tight and watertight. When installed, the owner shall maintain all interceptors, at the owner's expense, and in continuously efficient operation at all times. Shop drawings for all interceptors shall be submitted to the WWTU for approval before being put in service. (Prior Code, § 30.02.10)

(j) Industrial users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter. (Prior Code, § 30.03.6)

(k) Protection against accidental discharges.

(1) Each user shall protect from accidental discharge of prohibited materials or other substances regulated by this article and 40 CFR 117. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the owner or user's own cost and expense.

(2) Detailed plans showing facilities and operating procedures to provide this protection for reportable quantities of hazardous materials as defined in 40 CFR 117 shall be submitted to the Utility Director, or designee, as part of the Industrial Discharge Approval application. The plans shall be approved by the Utility Director, or designee, before the construction of the facility, whenever applicable.

(3) Said plan shall be revised and updated whenever plant operation changes the validity of the plan, but, in any case, not less than every five years.

(4) Failure to comply with this requirement shall result in legal remedies as defined in Division 6 of this article.

(5) No user who commences contribution to the WRRF after the effective date of the ordinance from which this article is derived shall be permitted to introduce pollutants into the system until accidental discharge procedures have been approved by the WWTU. Review and approval of such plans and operating procedures shall not relieve the user from the responsibility to modify the user's facility as necessary to meet the requirements of this article.

(Prior Code, § 30.02.12)

## Sec. 40-92. Industrial Discharge Approval.

(a) Application.

(1) All CIUs or SIUs proposing to connect to or contribute to the WRRF shall obtain an IWP Permit from IDEM before connecting to or contributing to the WRRF. Each industrial user who applies to IDEM for an IWP Permit shall file a copy of such application and all supporting documents with the Utility Director, or designee, on the same day as IDEM. Industrial users applying for an IWP Permit are still subject to all the requirements of this article.

(2) All other industrial users shall apply for Industrial Discharge Approval from the WWTU before connecting or contributing to the WRRF. All industrial users shall obtain Industrial Discharge Approval 180 days before discharging to the WRRF.

(3) Industrial users shall submit the Industrial Discharge Approval application form, accompanying fees, building plans, schematics, and any additional information requested by the Utility Director or Board to obtain an Industrial Discharge Approval. Fees are established by Section 40-197. The application form identifies information to be submitted to the WWTU for approval.

(b) Review process.

(1) The review process for an IWP Permit from IDEM will follow IDEM procedures.

(2) The Utility Director, or designee, will evaluate the data furnished from the Industrial Discharge Approval application by the industrial user and may require additional information. Within 60 days of receipt of a complete application, the Utility Director, or designee, will determine whether to issue an Industrial Discharge Approval.

(3) Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be acceptable to the WWTU before the user initiates the changes.

(4) The review of such plans and operating procedures shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the WWTU under the provisions of this article. The Utility Director may deny any application.

(c) *Approval*. Industrial Discharge Approval shall be subject to all provisions of this article and all other applicable regulations, user charges, and fees established by the WWTU. An Industrial Discharge Approval may contain the following:

(1) Requirements as specified in this article;

(2) Limits on the average and maximum wastewater constituents and characteristics;

(3) Limits on average and maximum rate and time of discharge or requirements for flow regulations and equalization;

(4) Requirements for installation and maintenance of inspection and monitoring facilities;

(5) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types and standards for tests, and reporting schedule;

(6) Compliance schedules;

(7) Requirements for submission of technical reports or discharge reports (Sections 40-110 and 40-111);

(8) Requirements for maintaining and retaining records relating to wastewater discharge as specified by the WWTU, and affording WWTU access thereto;

(9) Requirements for notification of the WWTU of any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the wastewater treatment system;

(10) Requirements for notification of slug discharges as per Section 40-112;

(11) Other conditions as deemed appropriate by the WWTU to ensure compliance with this article.

(12) Approvals shall be issued for a specified period, not to exceed five years. Approvals may be issued for less than one year or may be stated to expire on a specific date.

(d) *Modifications*. The WWTU may modify a wastewater discharge approval for good cause, including, but not limited to, the following reasons:

(1) To incorporate any new or revised Federal, State, or local pretreatment standards or requirements;

(2) To address significant alterations or additions to the industrial user's operation, processes, or wastewater volume or character since the time of the approval;

(3) A change in the WRRF that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(4) Information indicating that the approved discharge poses a threat to the sanitary sewer, WRRF, personnel, or the receiving waters;

(5) Violation of any terms or conditions of the approval;

(6) Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge application or any required reporting; or

(7) To correct typographical or other errors in the approval.

(e) *Renewal.* The industrial user shall apply for renewal a minimum of 180 days before the expiration of the user's existing permit or approval. The terms and conditions of the approval may be subject to modification by the WWTU during the term of the approval as limitations or requirements, as identified in Division 3 of this article, are modified or other just cause exists. The industrial user shall be informed of any proposed changes in their present approval at least 30 days before the effective date of the change. Any changes or new conditions in the approval shall include a reasonable schedule for compliance.

(f) *Transfers.* Industrial Discharge Approvals are issued to a specific industrial user for a specific operation. An Industrial Discharge Approval shall not be reassigned, transferred, or sold to a new owner, new user, different premises, or a new or changed operation without the approval of the Utility Director, or designee. A transfer may be requested in writing to the Utility Director at least 60 days before a new owner or user generates industrial waste. Any succeeding owner or user shall also comply with the terms and conditions of the existing approval and confirm operations are not changing. Permits may be obtained from the Utility Director.

(g) *Records retention*. All information, records, books, etc., required under this article, whether prepared by or on behalf of the discharger, shall be retained and preserved by such discharger for a minimum period of five years from the date of their creation. This period shall be automatically extended for the duration of any litigation

concerning the user or City, or where the user has been specifically notified of a longer retention period by the Utility Director, IDEM, or the EPA.

(h) Revocation of discharge approval.

(1) The WWTU may revoke an Industrial Discharge Approval for good cause, including, but not limited to, any of the following:

a. Violation of any condition of the approval, this article, or other State or Federal law;

b. Failure to meet the terms and conditions of the approval;

c. Misrepresentation or failure to disclose all relevant facts in the application;

d. Failure to factually report wastewater characteristics; or

e. Refusal of reasonable access to the industrial user's premises for review of records, inspection, or monitoring.

(2) Except in cases of willfulness or those in which the public health interest or safety requires otherwise, the revocation, withdrawal, or suspension of the Industrial Discharge Approval is lawful only if, before the institution of proceedings thereof, the industrial user has been given notice by the WWTU, in writing, of the facts or conduct which may warrant the action; and provided an opportunity to demonstrate or achieve compliance with all lawful requirements.

(Prior Code, § 30.03.2; altered in 2019 recodification)

### Sec. 40-93. Confidential information.

Per 40 CFR 403.14, any information submitted to the WWTU under these regulations may be claimed as confidential by the submitter. Any such claim must be asserted at the time of submission in the manner prescribed on the application form or instructions, or, in the case of other submissions, by stamping the words "confidential business information" on each page containing such information. If no claim is made at the time of submission, the WWTU may make the information available to the public without further notice. If a claim is asserted, the information will be treated per the procedures in 40 CFR Part 2 (Public Information). Information and data provided to the WWTU according to this article, which is effluent data shall be available to the public without restriction. All other information which is submitted to IDEM or the WWTU shall be available to the public at least to the extent provided by 40 CFR 2.302.

(Prior Code, § 30.03.7)

### Secs. 40-94—40-109. Reserved.

## *DIVISION 5. PRETREATMENT PROGRAM*

### Sec. 40-110. Industrial user self-monitoring and reporting.

(a) All industrial users with an IDEM IWP Permit shall monitor as described in the IWP Permit and provide a copy of such monitoring report to the Utility Director, or designee, on the same day as IDEM. Industrial users may add the WWTU to the distribution list in IDEM's electronic submittal program or provide a hard copy to the WWTU at 500 S. River Road, West Lafayette, IN 47906.

(b) All other industrial users required to complete routine monitoring as described in their Industrial Discharge Approval shall provide the monitoring results in a format provided by the WWTU by the 28$^{th}$ of the following month. The monitoring report shall be provided to the WWTU via electronic mail with an original signed (wet-ink signature) hard copy mailed or delivered to the WWTU at 500 S. River Road, West Lafayette, IN 47906.

(c) All analyses shall be performed under the procedures outlined in Standard Methods for the Analysis of Water and Wastewater and Industrial Waste or, absent such standard methods, by analytical techniques approved by the EPA.

## Sec. 40-111. Additional industrial user reporting.

(a) Industrial users with an IDEM IWP Permit will follow the reporting provisions described in their permit and submit copies to the Utility Director, or designee. The Utility Director, or designee, may require an industrial user to provide additional reports to the WWTU.

(b) The WWTU may require routine reporting requirements for other industrial users in their Wastewater Discharge Approval.

(c) *Baseline reports.* Within 180 days after the effective date of a categorical pretreatment standard, existing industrial users subject to such categorical pretreatment standards and currently discharging to the WRRF will follow the reporting requirements in 40 CFR 403.12(b)(1)—(7) and 327 IAC 5-16-5.

(d) *Compliance schedule reports.* If additional pretreatment and/or operations and maintenance are required to meet the pretreatment standards, the industrial user will provide a compliance schedule. This schedule is necessary whenever an industrial user is not meeting categorical pretreatment standards at the time of promulgation of that standard. The schedule contains increments of progress that correspond to specific dates for their completion. These represent major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical pretreatment standard. All industrial users subject to these conditions must submit a compliance schedule per 40 CFR 403.12 (c) and 327 IAC 5-16-5.

(e) *Compliance schedule reports (for non-categorical industries)*. Any non-categorical industrial user that is not in compliance with the local limits (Section 40.73) at the time of Industrial Discharge Approval shall develop a compliance schedule to meet the WWTU's standards. The schedule shall contain increments of progress that correspond to specific dates for their completion. All non-categorical industrial users subject to these conditions must submit a progress report to the WWTU no later than 14 calendar days following each date in the compliance schedule. This report must include whether the user complied with the increment of progress to be met on that date, the reason for delay if the date was not met, and the steps being taken to return to compliance. In no event can more than nine months elapse between progress reports.

(Prior Code, § 30.03.3)

## Sec. 40-112. Required notifications.

All industrial users shall notify the WWTU in the following situations.

(a) Notification of Potential Problems, Accidental Discharges, and Noncompliance

(1) In case of an accidental discharge, it is the responsibility of the user to immediately (within one hour) telephone and notify the WWTU at 765-775-5145 of the incident. The notification shall include:

a. Name of the company;

b. Location of discharge;

c. Type of waste discharged;

d. Concentration and volume of waste discharged;

e. Corrective actions taken to minimize the impact of the discharge to the WRRF, and

f. Date and time of the occurrence.

(2) The industrial user shall notify the WWTU, within two (2) hours of the discharger obtaining knowledge, if it is unable to comply with any requirement of this article and/or any pretreatment standard because of a breakdown of its treatment equipment, accidents caused by human error, or upsets. The notification should include the information required in paragraph (1) above.

(3) Within five (5) calendar days following an accidental discharge or incident of noncompliance, the industrial user shall submit to the Utility Director, or designee, a detailed written report signed by the user describing:

a. The cause of the accidental discharge or noncompliance;

b. The period of the accidental discharge or noncompliance, including exact dates and times or if not corrected, the anticipated time the noncompliance is expected to continue; and

c. Steps being taken and/or planned to reduce, eliminate, or prevent the recurrence of a similar incident in the future.

(4) Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred because of damage to the WRRF, fish kills, or any other damage to person or property; nor shall such notification relieve the user of any fines, civil penalties, or other liability which may be imposed by this article or other applicable law.

(b) Notification of Changed Conditions

(1) All industrial users shall notify the WWTU of any planned substantial changes to the industrial user's operations or system that might alter the nature, quality, or volume of its wastewater at least 30 days before the change.

(2) The WWTU may require the industrial user to submit such information as may be deemed necessary to evaluate the changed condition, including an Industrial Discharge Application as described in this article.

(3) The WWTU may issue an Industrial Discharge Approval as described in this article or modify an existing approval in response to changed conditions or anticipated changed conditions.

(4) For this requirement, substantial changes include, but are not limited to, flow increases and decreases of 20% or greater, the expansion, reduction, or addition of wastewater-generating processes, and discharging any previously unreported pollutants.

(c) Change in Ownership or Business

(1) Industrial users with an IWP Permit will follow the permit provisions described in their permit and submit copies to the Utility Director, or designee.

(2) Users with a change in ownership will be recognized as a new industrial facility and shall comply with all requirements of this article.

(3) Discharge approval for an SIU shall not be reassigned, transferred, or sold to a new owner, new user, different premises, or a new or changed operation without prior notification to and approval by the Utility Director, or designee.

(4) If a change in a business occurs, the property owner and/or user shall inform the Utility Director, or designee of the change within 30 days and inform the Utility Director, or designee of the new type of business that is currently operating at said location.

(d) Notification of the Discharge of Hazardous Waste

(1) Any industrial user who commences the discharge of hazardous waste into the sanitary sewer shall notify the Utility Director, the EPA Regional Waste Management Division Director, and State hazardous waste authorities, within 10 days in writing, of any discharge into the WRRF of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. The industrial user shall follow all notifications and requirements specified in 40 CFR 403.12 (p). If changes occur to the hazardous waste discharge, the industrial user shall notify the WWTU within 10 days.

(2) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this article, a permit issued thereunder, or any applicable Federal or State law.

(Prior Code, § 30.02.12)

## Sec. 40-113. Tampering with effluent monitoring station.

It shall be a violation of this article for any person to tamper with or modify any pump, valving appurtenance, flow control section, meter, or sampling equipment to have the effect of rendering inaccurate any meter or other monitoring equipment.

(Prior Code, § 30.01.5)

## Sec. 40-114. WWTU surveillance.

(a) Industrial user inspection.

(1) The WWTU shall inspect the facilities of any industrial user to ascertain whether the purpose and requirements of this article are being met. Inspections shall occur at least annually.

(2) Owners or occupants of premises where wastewater is created or discharged shall allow the WWTU or its representative, bearing proper credentials and identification, ready access at all times of operation to all parts of the premises for inspection, sampling, records examination, or copying, and the performance of any of duties.

(3) Where a user has security measures in force that would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with security guards so that, upon presentation of suitable identification, personnel from the WWTU, IDEM, and EPA will be permitted to enter, without delay, to perform their specific responsibilities.

(Prior Code, § 30.03.5)

(b) Industrial user monitoring.

(1) The WWTU shall monitor each industrial user at least twice per year separate from an industrial user's self-monitoring, if applicable, to determine compliance with this article and an IWP Permit.

(2) These monitoring frequencies may be a combination of scheduled and unscheduled monitoring. The WWTU may require more frequent monitoring based on the potential degree of impact on the WRRF, variability in types or amounts of pollutants discharged, or concentration or loading of conventional pollutants.

(3) The WWTU, IDEM, and EPA shall have the right to set up on the user's property such devices as are necessary to conduct compliance monitoring and/or metering operations.

(4) The WWTU may monitor and analyze the wastewater stream of any industrial user daily when just cause exists. If, at any time, the rate of wastewater discharge or concentration or quantity of a pollutant exceeds the maximum limits established in the IWP Permit or this article, the Utility Director shall notify the industrial user. The industrial user shall investigate and submit the applicable notifications under 40-122 to the WWTU. (Prior Code, § 30.08.3; altered in 2019 recodification)

(5) The WWTU may provide metering and/or monitoring equipment during a surveillance period for control manholes or other access means supplemental to those provided by the user.

(c) Accidental Discharge/Slug Control Plans. The Utility Director, or designee, shall evaluate an industrial user and determine the need for an accidental discharge/slug control plan. The Utility Director, or designee, may require any such user to develop, submit for approval, and implement such a plan. An accidental discharge/slug control plan shall address, at a minimum, the following:

(1) Description of discharge practices, including non-routine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the WWTU of any accidental or slug discharge, as required by Section 40-112 of this article; and

(4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include but are not limited to, inspection and maintenance of storage areas; handling and transfer of materials; loading and unloading operations; control of plant site runoff; worker training; building of containment structures or equipment; measures for containing toxic organic pollutants, including solvents; and/or measures and equipment for emergency response.

## Sec. 40-115. Pretreatment program fees.

The Board is hereby empowered to review on an annual basis the actual costs versus charges for surveillance and to adjust charges accordingly to achieve cost reimbursement. The WWTU has adopted reasonable fees as described in Division 8 for reimbursement of costs of setting up and operating the pretreatment program that include:

(a) Fees for wastewater discharge approvals including the cost of review of such approvals;

(b) Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing a user's discharge, and reviewing monitoring reports submitted by users;

(c) Fees for reviewing and responding to accidental discharge procedures and construction;

(d) Fees for filing appeals; and

(e) Other fees and expenses as the WWTU may deem necessary to conduct the requirements contained herein. These fees and expenses relate solely to the matters covered by this article and are separate from all other fees, fines, and penalties chargeable by the WWTU or city.

(Prior Code, § 30.08.2)

### Sec. 40-116. Publication of Users in Significant Noncompliance

The WWTU shall annually publish in the newspaper of general circulation having the largest circulation within the city a list of users who were not in compliance with pretreatment requirements or standards at least once during the 12 previous months. The notification shall also summarize any enforcement actions taken against the user during the same 12 months. All records relating to compliance with pretreatment standards shall be made available to officials of the WWTU, IDEM, and EPA.

(Prior Code, § 30.03.6)

### Sec. 40-117. Special agreements.

Special agreements and arrangements between the WWTU and any person may be established when, in the opinion of the Board and/or the Utility Director, unusual or extraordinary circumstances compel special terms and conditions. The Board and/or the Utility Director shall consider the total cost of application technology in relation to the pollutant reduction benefits to be achieved from such application, the quality of pollutants that will be included in the discharge, the impact of those pollutants on the WRRF, sanitary sewer, receiving stream, and such factors as the Board and/or the Utility Director deem appropriate. There cannot be special agreements and arrangements where federal categorical pretreatment standards and requirements apply. No statement contained in this article shall be construed as preventing any special agreement or arrangement between the WWTU and any user whereby waste of unusual strength or character may be accepted by the WWTU for treatment, subject to payment by the user.

(Prior Code, § 30.08.6)

### Sec. 40-118. Liability for maintenance of pretreatment and other equipment.

Where pretreatment or flow equalization facilities are provided for any water or waste, they shall be maintained continuously in satisfactory and effective operation by the user at the user's expense and shall always be open to inspection and testing by the WWTU.

(Prior Code, § 30.08.7)

### Secs. 40-119—40-129. Reserved.

## *DIVISION 6. ENFORCEMENT*

### Sec. 40-130. Liability of violators for damage and loss to the city.

If any person discharges sewage, industrial wastes, or other wastes into the sanitary sewer contrary to the provisions of this article, federal or state pretreatment requirements, or any other order of the WWTU, such person shall be liable for any damages, losses, and expenses sustained by the WWTU as a result of such discharge or violation and the Corporation Counsel may commence an action for appropriate legal and/or equitable relief in the appropriate court of this county.

(Prior Code, § 30.04.5)

## Sec. 40-131. Falsifying information.

Any person who knowingly makes any false statements, representation, or certification in any permit, application, record, report, plan, or other document filed or required to be maintained according to this article, permit, or approval, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article, shall, upon conviction, be punished by a fine in an amount established by the WWTU for each violation.

(Prior Code, § 30.05.2; altered in 2019 recodification)

## Sec. 40-132. Public nuisances.

A violation of any provision of this article, permit or approval, order issued hereunder, or any other pretreatment standard or requirement is declared a public nuisance and shall be corrected or abated as directed by the Utility Director, or designee. Any person(s) creating a public nuisance shall be subject to the provisions of the city code governing such nuisances, including reimbursing the city and/or the WWTU for any costs incurred in removing, abating, or remedying said nuisance.

## Sec. 40-133. Informal notification of violation.

When the WWTU finds that a user has violated any provision of this article, the Utility Director, or designee, may serve upon that user an informal Notice of Violation via email, phone call, or other method. Within 10 days of receipt of this notice, the user shall submit to the Utility Director, or designee, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, including specific required actions. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the informal Notice of Violation.

## Sec. 40-134. Written notification of violation.

Whenever the WWTU finds that a user has violated or continues to violate any provision of this article, the Utility Director, or designee, may serve upon such a person a written Notice of Violation stating the nature of the violation and providing a reasonable time limit for the satisfactory correction thereof. The user shall, within the time stated in such notice, permanently cease all violations. Within 10 days of receipt of this notice, the user shall submit to the Utility Director, or designee, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, including specific required actions. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the written Notice of Violation. Nothing in this section shall limit the authority of the Utility Director, or designee, to take any action, including emergency actions or any other enforcement action, without first issuing a Notice of Violation.

(Prior Code, § 30.04.3)

## Sec. 40-135. Administrative Orders

(a) Consent Orders.

The WWTU may enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such documents will include specific actions to be taken by the user to correct the noncompliance within a period specified by the document. Such documents shall be judicially enforceable.

(b) Compliance Orders.

When the WWTU finds that a user has violated, or continues to violate, any provision of this article, the WWTU may issue an order to the user responsible for the discharge directing that the user come into compliance within a specified time. If the user does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged into the sewer. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the user.

(c) Show cause hearing.

(1) The WWTU may order any user who violates this ordinance to show cause before the Board why the proposed enforcement action should not be taken. A notice shall be served on the user specifying the time and place of a hearing to be held by the Board regarding the violation, the reasons why the action is to be taken, the proposed enforcement action, and directing the user to show cause before the Board why the proposed enforcement action should not be taken. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten working days before the hearing. Service may be made on any agent or officer of a corporation.

(2) The Board may itself conduct the hearing and take the evidence, or may designate a representative to:

a. Issue in the name of the Board notices of hearings requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in such hearings;

b. Take the evidence;

c. Transmit a report of the evidence and hearing, including transcripts and other evidence, together with recommendations to the Board for action thereon.

(3) At any hearing held according to this article, testimony taken must be under oath, recorded, and transcribed. The transcript, so recorded, will be made available to any member of the public or any party to the hearing upon payment of the usual charges thereof.

(4) After the Board has reviewed the evidence, it may issue an order to the user responsible for the discharge directing that, following a specified period, the sewer service be disconnected unless adequate treatment facilities, devices, or other related appurtenances shall have been installed on existing treatment facilities, devices or other related appurtenances and are properly operated. Further orders and directives as necessary and appropriate may be issued.

(Prior Code, § 30.04.4)

(d) Cease and Desist Orders.

When the WWTU finds that a user has violated, or continues to violate, any provision of this article, or that the user's past violations are likely to reoccur, the WWTU may issue an order to the user directing it to cease all such violations and directing the user to:

(1) Immediately comply with all requirements; and

(2) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease-and-desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.

## Sec. 40-136. Administrative Fines

(a) When the WWTU finds that a user has violated, or continues to violate, any provision of this article, the WWTU may impose a fine of not more than $2,500 per day, per violation for a first violation, nor more than $7,500 per day, per violation for subsequent violations, per IC 36-1-3-8 (a) (10) (B), or as hereafter re-codified.

(b) Unpaid charges, fines, and penalties shall, after 60 calendar days, be assessed an additional penalty of 10% of the unpaid balance, and interest shall accrue thereafter at a rate of 1% per month. A lien against the user's property will be sought for unpaid charges, fines, and penalties.

(c) Users desiring to dispute such fines must file a written request for the Utility Director to reconsider the fine along with full payment of the fine amount within 30 days of being notified of the fine. Where a request has merit, the Utility Director may convene a hearing on the matter. In the event the user's appeal is successful, the payment, together with any interest accruing thereto, shall be returned to the user. The costs of preparing administrative enforcement actions, such as notices and orders, may be added to the fine.

(d) Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the user.

## Sec 40-137. Cost Recovery

The WWTU may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the WWTU and/or city.

## Sec. 40-138. Administrative appeals.

(a) Any user affected by any decisions, action, or determination, including cease and desist orders, made by the WWTU, interpreting or implementing the provisions of this article, any permit or approval issued herein, or any regulation of the Board adopted pursuant hereto, may file with the Board a written request for review and reconsideration within ten days of a decision, action, or determination, setting forth in detail the facts supporting the user's request for reconsideration.

(b) The appeal shall, if possible, be heard by the Board within 30 days of the date of filing. The Utility Director's decision, action, or determination shall remain in effect during the period of reconsideration unless the Board otherwise determines on request of the user.

## Sec. 40-139. Emergency suspension.

(a) The WWTU may suspend the wastewater treatment service and/or an Industrial Discharge Approval after informal notice when such suspension is necessary, in the opinion of the WWTU, to stop an actual or threatened discharge that presents or may present an imminent or substantial endangerment to the health or welfare of persons, to the environment, causes interference to the WRRF, or causes the WRRF to violate any condition of its NPDES Permit. Any person notified of a suspension of the wastewater treatment service shall immediately stop or eliminate the contribution.

(b) In the event of a failure of the person to comply voluntarily with the suspension order, the WWTU shall take such steps as deemed necessary, including immediate severance of the sewer connection (termination of discharge), to prevent or minimize damage to the WRRF system or endangerment to any individual.

(c) The WWTU shall reinstate the Industrial Discharge Approval and/or wastewater treatment service upon proof of the elimination of the non-complying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any future occurrence shall be submitted to the Utility Director, or designee, within 15 calendar days of the date of occurrence.

(Prior Code, § 30.04.1)

## Sec. 40-140. Termination of discharge.

Any user who violates the following conditions of this chapter, or applicable state and federal regulations, is subject to having the user's permit or discharge approval revoked per the procedures set forth herein:

(a) Failure of a user to factually report the wastewater constituents and characteristics of the user's discharge;

(b) Failure of the user to report significant changes in operations, or wastewater constituents and characteristics;

(c) Refusal of reasonable access to the user's premises or the purpose of inspection or monitoring;

(d) Violation of conditions of the permit or approval; or

(e) Failure to comply with a cease-and-desist order or other administrative orders.

(Prior Code, § 30.04.2)

## Sec. 40-141. Judicial enforcement actions.

(a) Injunctive relief.

When the WWTU finds that a user has violated, or continues to violate, any provision of this article, IWP Permit, or an Industrial Discharge Approval, the WWTU may petition the appropriate Court through the Corporation Counsel for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the permit or approval, order, or other pretreatment requirement or standard imposed by this article on activities of the user. The WWTU may also seek such other action as is appropriate for legal and/or

equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

(b) Civil penalties.

(1) A user who has violated, or continues to violate, any provision of this article, IWP Permit, approval, or pretreatment requirements or standards, shall be liable to the WWTU for a civil fine of not less than $2,500.00 for a first violation, and not less than $7,500.00 for a second or subsequent violation. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

(2) In determining the amount of civil liability, the Court shall consider all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

(3) Filing a suit for civil fines shall not be a bar against, or a prerequisite for, taking any other action against a user.

(c) Criminal prosecution.

(1) A user who willfully or negligently violates any provision of this article, an IWP Permit, Industrial Discharge Approval, or order issued hereunder, or any other pretreatment standard or requirement may be punished by a fine and/or criminal prosecution as applicable.

(2) A user who willfully or negligently introduces any substance into the sanitary sewer that causes personal injury or property damage may be punished by a fine and/or criminal prosecution as applicable.

(3) A user who knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, per this article, permit or approval, or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article may be punished by a fine and/or criminal prosecution as applicable.

### Sec. 40-142. Remedies nonexclusive.

The remedies provided for in this article are not exclusive. The WWTU may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be per the WWTU's Enforcement Response Plan. However, the WWTU may take other action against any user when the circumstances warrant. Further, the WWTU is empowered to take more than one enforcement action against any noncompliant user.

### Secs. 40-143—40-159. Reserved.

## *DIVISION 7. PRIVATE WELLS*

### Sec. 40-160. Registration of wells.

Every owner or occupant of real estate within the corporate limits of the city, or real estate from which there is a building (or house connection) sewer or other means or path of direct or indirect flow into the sanitary sewer, shall, on a form provided by the Board, report the existence of such well to the clerk. The information furnished on such form by the owner or occupant shall include, among other items, the name of the owner and occupant of such real estate, the location on said real estate of such well, the size of the well pipe, the size (voltage, amperage, and horsepower) of the well pump motor and the purpose for which the well water is used by the owner, occupant or others.

(Prior Code, § 30.07.1)

### Sec. 40-161. Metering well water.

The Board shall determine by any reasonable means, including, but not limited to, the use of water meters and timing devices, the flow of such well to determine the amount of sewage entering the sanitary sewer. The owner or

occupant of such real estate shall pay for such metering device, which shall be of a type approved by the Board, and which shall remain the property of the owner but shall be under the exclusive control of the Board and shall not, under any circumstances, be tampered with by the owner, occupant, or any other person. It shall further be a violation of this article for any person to tamper with or modify any pump on any such well to render inaccurate the meter on such well. In the case of wells for household use only, the Board may, instead of metering or timing the use of the well, provide for the use of reasonable estimates regarding water volume.

(Prior Code, § 30.07.2)

### Sec. 40-162. Inspection of wells.

The Board may direct the Utility Director, inspector, or any other employee to enter upon private property to inspect, determine the existence of private wells, oversee or directing the installation of metering or timing devices, and reading such meters and devices.

(Prior Code, § 30.07.3)

### Sec. 40-163. Exception.

The requirement that wells be registered shall not apply to single-family dwellings or apartment buildings with four or fewer apartments on one parcel unless the parcel is connected to the sanitary sewer.

(Prior Code, § 30.07.4)

### Sec. 40-164. Well digging.

A person shall not dig or drive a well within the city limits without first applying to the city engineering department, whose application shall be on a form approved by the Board and shall show all pertinent data regarding size and flow. The application shall be signed by both the installer of the well (the contractor or other person doing the work) and the owner or agent (other than the installer). The failure to file such an application shall be a violation of this article.

(Prior Code, § 30.07.5)

### Secs. 40-165—40-179. Reserved.

## *DIVISION 8. SERVICE CHARGES AND SERVICE FEES*

### Sec. 40-180. Persons subject to fees and sewer charges.

For the use and service rendered by the sewage works, sewer charges shall be collected from the person who owns each parcel of real estate that is connected to the WWTU's sanitary sewer or otherwise discharges wastewater, sanitary sewage, industrial waste, water, or other liquid, either directly or indirectly into the sanitary sewer of the WWTU, which sewer rates and charges shall be payable as provided in this article.

(Prior Code, § 30.09.1)

### Sec. 40-181. Effective date; extension to additional property.

The sewer charges fixed by this article shall become effective at the time the user first discharges to the sanitary sewer. These sewer charges shall be extended to and cover any additional premises thereafter served, without the necessity of any hearing or notice.

(Prior Code, § 30.09.2)

### Sec. 40-182. Rate basis.

The sewer flow rates and charges shall be based on the quantity of water used on or in the property or premises subject to such rates and charges, as measured by the water meter there in use, except as otherwise provided in this article. Sewage service rates shall be based upon the amount of water used, effective for all service rendered on and after the effective date of the ordinance from which this article is derived.

## Sec. 40-183. Rates; general determination and review.

(a) Six dollars and seventy-four cents per one thousand gallons for service rendered up to and including December 31, 2022. For service rendered after December 31, 2022 and up to and including December 31, 2023, six dollars and ninety-four cents per one thousand gallons. For service rendered after December 31, 2023 and up to and including December 31, 2024, seven dollars and eight cents per one thousand gallons. For service rendered after December 31, 2024 and up to and including December 31, 2025, seven dollars and twenty-two cents per one thousand gallons. For service rendered after December 31, 2025, seven dollars thirty-six cents per one thousand gallons.

(b) The water usage schedule on which the amount of rates and charges shall be determined for Purdue University is as follows:

(1) A billing charge of five dollars and seventeen cents per month plus a usage charge of six dollars and forty-two cents per one thousand gallons for service rendered up to and including December 31, 2022.

(2) For service rendered after December 31, 2022 and up to and including December 31, 2023, a billing charge of five dollars and thirty-three cents per month plus a usage charge of six dollars and sixty-one cents per one thousand gallons.

(3) For service rendered after December 31, 2023 and up to and including December 31, 2024, a billing charge of five dollars and forty-four cents per month plus a usage charge of six dollars and seventy-four cents per one thousand gallons.

(4) For service rendered after December 31, 2024 and up to and including December 31, 2025, a billing charge of five dollars and fifty-five cents per month plus a usage charge of six dollars and eighty-seven cents per one thousand gallons.

(5) For service rendered after December 31, 2025, a billing charge of five dollars and sixty-six cents per month plus a usage charge of seven dollars and one cent per one thousand gallons.

(c) The minimum charge for any service where the user is a metered water consumer shall be determined as provided in Section 40-186, and shall be based on the size of the service connection, but no such charge shall be less than the charge for the minimum gallonage for such meter size.

(d) On an annual basis commencing January 1, 2017, the common council will review the WWTU revenues, expenses, and rates and take any necessary action to maintain rates as required by applicable bond ordinances as recommended by the utility's financial advisor.

(e) Rates for summer months. To provide for water used during the summer months which does not pass through the sanitary sewer, for one-family dwelling users only, sewage service bills for June, July, and August shall be rendered at the then current rate, but on the quantity used if the quantity used is less than or equal to the average consumption for January, February, and March. If the quantity used in June, July, and August is greater than the average consumption for January, February, and March, the billing rendered shall be based on the average flow for January, February, and March for water used on the property or premises subject to such rates and charges; provided, however, that if no prior sewage service bill was rendered for such property or premises during the said calendar year, then in that event, the city may determine in such manner and by such method as it may deem practicable the percentage of metered water entering the sanitary sewer. Such percentages, when so determined, shall constitute the basis for sewage services for June, July, and August; provided further, that one-family dwelling users desiring to pay sewage service charges for June, July, and August in the manner provided in this article other than under the methods set out in this section, may notify the Board requesting such election at least 30 days before the time of mailing by the WWTU of the billing to such user for June, July, and August of any calendar year.

(Prior Code, § 30.09.3; Ord. No. 39-15; altered in 2019 recodification; Ord. No. 03-22, § 1, 2-7-22)

## Sec. 40-184. CSO surcharge.

In addition to all other charges for the use and service rendered by the WWTU, there shall be charged to each property owner that is connected to the WWTU's sanitary sewer or otherwise discharges wastewater, sanitary sewage, industrial waste, water, or other liquid, either directly or indirectly into the sanitary sewer of the city, a

monthly combined sewer overflow ("CSO") surcharge to cover costs of addressing combined sewer overflow improvements to the sanitary sewer. The CSO surcharge shall be charged monthly per equivalent dwelling unit ("EDU"), based upon the size of the water meter as follows:

| Meter Size | EDUs | Monthly CSO Surcharge Effective up to 12/31/2022 | Monthly CSO Surcharge Effective 01/01/2023 to 12/31/2023 | Monthly CSO Surcharge Effective 01/01/2024 to 12/31/2024 | Monthly CSO Surcharge Effective 01/01/2025 to 12/31/2025 | Monthly CSO Surcharge Effective 01/01/2026 and thereafter |
|---|---|---|---|---|---|---|
| 5/8 inch or 3/4 inch | 1.0 | $ 10.80 | $ 11.12 | $ 11.34 | $ 11.57 | $ 11.80 |
| 1 inch | 2.5 | 27.00 | 27.80 | 28.35 | 28.93 | 29.50 |
| 1 1/4 inch | 4.0 | 43.20 | 44.48 | 45.36 | 46.28 | 47.20 |
| 1 1/2 inch | 5.8 | 62.64 | 64.50 | 65.77 | 67.11 | 68.44 |
| 2 inch | 10.0 | 108.00 | 111.20 | 113.40 | 115.70 | 118.00 |
| 3 inch | 23.0 | 248.40 | 255.76 | 260.82 | 266.11 | 271.40 |
| 4 inch | 40.0 | 432.00 | 444.80 | 453.60 | 462.80 | 472.00 |
| 6 inch | 91.0 | 982.80 | 1,011.92 | 1,031.94 | 1,052.87 | 1,073.80 |
| 8 inch | 161.8 | 1,747.44 | 1,799.22 | 1,834.81 | 1,872.03 | 1,909.24 |
| 10 inch | 252.8 | 2,730.24 | 2,811.14 | 2,866.75 | 2,924.90 | 2,983.04 |
| 12 inch | 364.0 | 3,931.20 | 4,047.68 | 4,127.76 | 4,211.48 | 4,295.20 |

Concerning multi-family residential apartments only, each individual apartment unit shall constitute 0.66 EDUs.

(Prior Code, § 30.09.3; Ord. No. 39-15; altered in 2019 recodification; Ord. No. 03-22, § 2, 2-7-22)

## Sec. 40-185. Procedure when water is obtained partially or wholly from sources other than the public water supplier.

In the event a user obtains water partially or wholly from sources other than the public water supplier, the total water used must be measured or determined as provided in Section 40-161 or does not meter the same or, in the alternative, uses other water in addition to the regular waterworks utility, the following rates shall apply:

(a) For a single-family residence dwelling, the sewer flow charge shall be a flat rate based on 8,000 gallons/month unless a meter is installed on the well at the request of either the user or the city.

(b) For any property other than a single-family dwelling, it may be charged a flat rate as determined by the Board.

(c) For any property connected to the WWTU's sanitary sewer, the WWTU may require the user to install a water meter and meter the amount of water used and submit a monthly reading for the billing.

(Prior Code, § 30.09.4; Ord. No. 14-11, app. A, item 12)

## Sec. 40-186. Minimum billing.

The minimum monthly charge shall be based upon the monthly minimum gallonage multiplied by the applicable rate for the size of the water meter as follows:

| Meter Size | Monthly Minimum Gallons |
|---|---|
| ⅝ inch | 3,000 |
| ¾ inch | 4,000 |
| 1 inch | 7,000 |
| 1¼ inch | 12,000 |
| 1½ inch | 15,000 |
| 2 inch | 24,000 |
| 3 inch | 45,000 |
| 4 inch | 75,000 |
| 6 inch | 150,000 |
| 8 inch | 240,000 |
| 10 inch | 345,000 |
| 12 inch | 645,000 |

If two or more dwelling units, such as trailers, apartments, or housekeeping rooms discharging wastewater, sanitary sewage, water, or other liquids into the WWTU's sanitary sewer, either directly or indirectly, are users of water, and the quantity of water is measured by a single water meter, then, in such case, billing shall be for a single service.

(Prior Code, § 30.09.5)

## Sec. 40-187. Rates for the city.

For the services rendered to the city, the city shall be subject to the same rates and charges provided in this article, or to rates and charges established in harmony therewith.

(Prior Code, § 30.09.6)

## Sec. 40-188. Portion of water not entering the sanitary sewer.

If a user utilizing more than 1,000 gallons of water per average workday, can substantiate to the WWTU that a portion of said water does not and cannot enter the sanitary sewer, the Board shall either determine the portion of measured water to be used in determining the appropriate sewer charges, or approve the manner and technique of flow measurement provided by the user for determining wastewater discharge to the sanitary sewer. Facilities utilized to accomplish this shall be installed and maintained in a serviceable condition by the user at the user's expense but shall be under the exclusive control of the WWTU.

(Prior Code, § 30.09.7)

## Sec. 40-189. General billing procedure.

(a) *Monthly billing.* Sewer billings and invoices shall be rendered and collected approximately monthly. Such rates and charges shall be prepared and billed by the WWTU, and shall be collected in the manner provided by IC ch. 36-9-23 and ordinances of the city. Fees collected shall be considered revenues of the wastewater treatment utility.Sewer billings and invoices shall be rendered and collected approximately monthly. Such rates and charges shall be prepared and billed by the WWTU and shall be collected in the manner provided by IC Ch. 36-9-23 and ordinances of the city and/or WWTU. Fees collected shall be considered revenues of the WWTU.

(b) *SIUs.* SIUs with a flow greater than 25,000 gallons per average workday shall have billing determined based on wastewater discharged as monitored per Division 5 of this article, with the following exception: At its option, the WWTU may accept monitoring data and information from such an SIU to substantiate billing determination on a more frequent basis than as established in Division 5 of this article. Such allowances, however, do not exempt the SIU from the surveillance survey fee set by the WWTU to offset the costs of monitoring performed by the WWTU. In the event there is a difference in analytical results that is not explainable by normal variation in the testing procedure, the user may, within 30 days (calendar) of billing, appeal to the Board.

(c) *Appeals.* A customer of the WWTU may appeal any billing dispute to the Board. Such appeal shall be filed in writing on forms prescribed by the Board, together with supporting evidence. The Board shall not consider an appeal unless filed within 30 days after the customer discovers or should have discovered the basis for claiming an error in billing. The Board shall render a decision in writing within 30 days of submission of the appeal.

(Prior Code, § 30.09.8)

## Sec. 40-190. Tenants may be billed; the right of owners to examine records.

The sewer charges may be billed to the tenants occupying the premises served, unless otherwise instructed in writing by the person who owns the premises. Such billings shall in no way relieve the owner of liability in the event payment is not made as herein required. The owners of the premises served, which are occupied by tenants, shall have the right to examine the collection records of the WWTU to determine whether such sewer charges have been paid by such tenants; provided that such examination shall be made at the office at which the records are kept and during the hours that such office is open for business.

(Prior Code, § 30.09.9)

## Sec. 40-191. Fire protection.

Where a metered water supply is used for fire protection as well as for other uses, the WWTU may, at its discretion by and through the Board, adjust the minimum charge and the use charge as may be equitable.

(Prior Code, § 30.09.10)

## Sec. 40-192. Liability of city for charges.

For the service rendered to any department or agency of the city, except the WWTU, the city shall be subject to the sewer charges provided herein.

(Prior Code, § 30.09.11)

## Sec. 40-193. Tap fees.

If a sewer connection or any connection is made, after the effective date of the ordinance from which this article is derived, from any lot, parcel of real estate, or building or improvement of any kind, that connects with or uses the sanitary sewer and/or WRRF of the city, or that in any way directly or indirectly uses or is served by such sewage works, an initial or additional connection charge or surcharge, otherwise provided by written contract as provided by law, with the Board, shall be levied against said lot or parcel of real estate per charges or surcharges established by the City, hereinafter referred to as "tap fees."

(a) Tap fees shall be paid for all new connections and existing connections when an increase in the number of dwelling units or allowable occupancy occurs because of an improvement for residential usage or when a change in the type of use occurs for a business, commercial or industrial usage and a building permit is required.

(b) Tap fees shall be paid to the WWTU billing office. The Utility Director has approved the acceptance of the tap fee having verified that there is adequate capacity within the collection system whether privately or publicly owned, and the WWTU's sewer system has adequate capacity for acceptance of the tap fee. The Building Department shall not issue a building sewer permit or an improvement location permit until presented with a receipt from the WWTU billing office indicating that the tap fee has been paid. Funds from the collection of the tap fees shall be placed into the operating account of the WWTU.

(c) The surcharge shall constitute a lien against such lot, parcel of real estate, or building until paid and shall be collected in the manner provided by IC 36-9-23-1 et seq., or under any state statute repealed by IC 19-2-5-30 and the ordinances of the WWTU. The connection charges set out in this section shall be over and above any or all costs or charges for making the connection from the lot, parcel of real estate, or building to the sewer and any assessments collected by the WWTU from reimbursement agreements.

(d) All building sewer permits for the connection to the WWTU's sewer system that are outside the city's corporation limits shall include a waiver agreeing not to oppose any future annexation by the city.

(Prior Code, § 30.09.12; altered in 2019 recodification)

## Sec. 40-194. Surcharge based on flow and concentration of wastewater.

All wastewater discharged shall meet the admissibility standards in Division 3 of this article, by pretreatment, if necessary, as determined by the Utility Director, or designee. Wastewater from any user beyond the limits of admissibility outlined in this article may be accepted and surcharged per the rates in Section 40-196.

(Prior Code, § 30.09.13)

## Sec. 40-195. Determination of rate of surcharge.

Surcharges shall be based on actual quantities discharged for treatment as determined from measured concentrations and flow. Surcharge rates for wastewater characteristics not provided herein may be set at the reasonable discretion of the Utility Director, considering all the WWTU’s significant costs factors, relating to treatment, handling, and disposal.

(Prior Code, § 30.09.14)

## Sec. 40-196. Rates of surcharge.

The rates of surcharge, in addition to volumetric charges, for the following constituents shall be as follows:

(a) For biochemical oxygen demand (BOD) more than 250 milligrams per liter: $0.07 per pound;

(b) For suspended solids more than 250 milligrams per liter: $0.10 per pound; and

(c) For ammonia more than 30 milligrams per liter: $0.29 per pound.

(Prior Code, § 30.09.14)

## Sec. 40-197. Pretreatment charges.

(a) Pretreatment program charges.

(1) Industrial Discharge Approval fee: $600.00 (anticipated every five years).

(2) Investigative inspections/accidental discharges: $50 per incident.

(3) Costs for laboratory analysis to be reimbursed by the user.

(4) Surcharges as described in Sec. 40-196.

(5) Monitoring setup/teardown fee: $75.00 per event (anticipated two per year).

(6) Site inspection fee: $50.00 per visit (anticipated once per year).

(7) Additional parameters: The Utility Director reserves the right to require additional parameters at a unit charge to be based on the WWTU's cost of providing the service.

(b) The Board is empowered to determine rates, charges, and fees for septic tanks, industrial wastes, and other disposable wastewater and wastes delivered to the WRRF, as provided in Section 40-76, and to collect such charges.

(c) The Board is empowered to determine and to collect such charges as it may reasonably provide for under special agreements and arrangements entered into by the Board, on behalf of the WWTU, under this chapter.

(Prior Code, § 30.09.15)

## Sec. 40-198. Delinquent accounts.

Charges for sewage service levied under this chapter shall be due and payable on or before the due dates shown on the bills. Any service charge not paid by the due date (approximately 15 calendar days after the bill is rendered) shall be considered delinquent. The delinquent charge shall be ten percent of the billed amount and shall be added to the next statement rendered unless by then paid. Delinquent sewage charges together with delinquent penalties, cost of collection, legal fees, and other expenses of collection may be collected by any lawful remedy, including, where applicable, the placing of and foreclosure of liens on real estate as provided by state law.

(Prior Code, § 30.09.16)

## Sec. 40-199. Annual review of rates.

On an annual basis, within a reasonable period following the normal accounting period, the Board shall cause a study to be made to review the sufficiency, fairness, equity, and proportionality of the rates and charges for wastewater treatment services. Upon completion of the study, the Board shall recommend new rates and charges to the common council.

(Prior Code, § 30.09.17)

## Sec. 40-200. Reduced charges for certain residents.

(a) There shall be a 50 percent reduction in monthly sewer charge for a resident of a residential property who is entitled to low-income relief under Section 10-253.

(b) The controller shall have the authority to suspend the operation of this provision if the controller determines, with the advice of the WWTU's financial advisor, which continued operation of this provision would materially adversely affect the ability of the WWTU to meet the statutory revenue requirements of the WRRF. In such case, the controller shall cease approving any new requests for reduced charges and may cause residents who have received reduced charges to begin paying the full schedule of monthly sewer charges.

(Prior Code, § 30.09.18; altered in 2019 recodification)

Sponsored by Councilor Kathy Parker

# ORDINANCE NO. 35-2024

## ORDINANCE ESTABLISHING AN EQUITABLE IMPACT FEE FOR THE PURPOSE OF PLANNING AND FINANCING PARK AND RECREATIONAL INFRASTRUCTURE TO SERVE NEW DEVELOPMENT IN THE CITY OF WEST LAFAYETTE, INDIANA

**WHEREAS**, it has been determined that it is reasonable and necessary to promote and accommodate orderly growth and development and to promote the general public health, safety, and general welfare of the citizens of the City of West Lafayette ("the City") by providing for an equitable program to fund the capital costs of new park and recreational infrastructure necessary to serve the new development; and

**WHEREAS**, it is further determined that it is reasonable and necessary to promote the orderly development of the City by establishing standards by which the City may require that new development shall pay an Impact Fee representing the development's proportionate share of the cost of capital costs of new park and recreational infrastructure necessary to serve the new development; and

**WHEREAS**, it is determined that new development should not be required to pay a fee for the capital costs of such new park and recreational infrastructure greater than the development's proportionate share of the capital costs of such infrastructure which is needed to serve such development; and

**WHEREAS**, the City has caused to be prepared an Infrastructure Improvement Plan for Parks and Recreation Facilities ("the Plan") by Rundell Ernstberger Associates, Inc. and Bakertilly Municipal Advisors with the input and guidance of the Impact Fee Advisory Committee, which plan is attached hereto as Exhibit A to this Ordinance and made a part hereof; and

**WHEREAS**, the cost of implementing the park and recreational recommendations of said Plan in their entirety exceeds:

(1) The income capacity of the City through its ad valorem property tax receipts or other tax distributions allocated to park and recreational improvements relative to the chronological needs of the City for said improvements; and

(2) The general obligation and bond capacity of the City based upon net assessed valuation; and

(3) The revenue bond potential of the City based upon an existing means of acquiring revenue related to such improvements; and

**WHEREAS**, because of the size of the City, considering both its population and geographic area, as well as the distribution of public and private institutions, services and other facilities through the City, any park and recreational improvements benefits all citizens of the City equally; and

**WHEREAS**, it has been the objective of the City that the Plan should result in the determination of an impact fee which meets the rational nexus test as that test is understood by current applicable statutory law and case law; and

**WHEREAS**, the West Lafayette City Council having conducted a public hearing upon, and given the deliberation to, the Zone Improvement Plan encompassed by the Plan, has adopted the Plan by _____ ayes and _____ nays; and

**WHEREAS**, the executive of the Unit, pursuant to Indiana Code § 36-7-4-1312(b)(1), has previously appointed the West Lafayette Impact Fee Advisory Committee to advise the City Council pursuant to Indiana Code § 36-7-4-1312; and

**WHEREAS**, the purpose of this Ordinance is declared not to deter growth, remedy existing infrastructure deficiencies, or pay for maintenance or other “non-capital costs”; and

**THEREFORE, BE IT ORDAINED** that the City Council of the City of West Lafayette, Indiana, as follows:

**SECTION I**

Limitation on Imposition of Impact Fee. This Ordinance shall expire five (5) years after its effective date as required by Indiana Code § 36-7-4-1340, unless action is undertaken to extend this Ordinance consistent with Indiana law.

**SECTION II**

Establishment of Impact Zone. There is hereby established one Recreation Infrastructure Impact Zone (the "Impact Zone"), the boundaries of which are co-terminus with the existing corporate boundaries of the City, as such boundaries may be extended from time to time through annexation, and over which boundaries the City exercises planning and zoning jurisdiction. In this regard, the City Council specifically finds that there is a functional relationship between the components of the Plan and that the Plan provides a reasonable uniform benefit to all citizens throughout the Impact Zone as of the adoption of this Ordinance. The City Council further finds that all areas within the Impact Zone are contiguous as required by Indiana Code § 36-7-4-1316. Except as provided

herein, this Ordinance shall apply uniformly to all residential developments within the Impact Zone. This Ordinance shall not apply to:

a. Development meeting the requirements set forth in Indiana Code § 36-7-4-1322(g);
b. Improvements which do not require a building permit;
c. Improvements which do not create a need for new and additional infrastructure, including the erection of a sign, construction of accessory buildings, structures or fences or the alteration, renovation or expansion of an improvement where the use, or intensity thereof, has not changed;
d. The replacement of a destroyed or partially destroyed improvement provided that the replacement improvement does not create a need for new and additional infrastructure over and above the infrastructure needed by the original improvement prior to the destruction or partial destruction thereof; and
e. Non-residential development.

**SECTION III**

Zone Improvement Plan. As a precondition to the adoption of this Ordinance, the City Council undertook a comprehensive and detailed park and recreational impact analysis through the employment for that purpose of Rundell Ernstberger Associates Inc. and Bakertilly Municipal Advisors. The City Council now finds that the resulting study and database constitute a sufficient study to constitute a "Zone Improvement Plan" as contemplated by Indiana Code § 36-7-4-1318. The City Council does hereby adopt the plan prepared by Rundell Ernstberger Associates, Inc. and Bakertilly Municipal Advisors, dated September 9, 2024, as its Zone Improvement Plan and specifically finds that said Zone Improvement Plan contains the following elements:

a. Reasonable estimates relating to the nature and location of development that is expected within the Impact Zone during the planning period, which, for purposes of this Ordinance is defined to be a period of ten (10) years commencing with the date of adoption hereof.
b. A reasonable determination of the community level of service for the Impact Zone.

c. A reasonable determination of the current level of service provided within the Impact Zone.

d. A reasonable estimate of the nature, location, sequencing, and timing of the park and recreational requirements and costs necessary to provide the community level of service for the developments contemplated in sub-paragraph (a) hereof.

e. A reasonable estimate of the share of the park and recreational costs identified in sub-paragraph (b) hereof that will be used to:

   1. Raise the current level of service for existing development or provide services to existing development; or
   2. Provide service to new development.

f. A reasonable estimate of revenues that:

   1. Are from sources other than impact fees; and
   2. Will be used to finance the cost identified in sub-paragraph (e)(1) above.

g. A description of the nature and location of existing infrastructure in the Impact Zone.

h. A general description of the sources and amounts of money used to pay for infrastructure during the previous five (5) years.

Additionally, the City Council hereby specifically adopts the Zone Improvement Plan as an official part of the Comprehensive Plan of the City of West Lafayette, pursuant to Indiana Code § 36-7-4-500 et seq.

**SECTION IV**

Establishment of Park and Recreation Impact Fee. Based upon the Plan, it is determined that each dwelling unit hereafter constructed in the City of West Lafayette, not specifically excepted hereunder, shall pay the following sum as the Fee.

| | |
|---|---|
| Single-family home | $2,138.00 |
| Multi-family unit | $3,563.00 |

The City Council hereby makes as part of the record of these proceedings, all the data collected, calculations made, and conclusions reached by the City's consultant, Rundell Ernstberger Associates, Inc. and Bakertilly Municipal Advisors, in the process of developing the Zone Improvement Plan, and specifically instructs the employees of the

City to make such data available to the public for review during regular business hours, along with any other information that is part of the public record created as a result of the process involved in enacting this Ordinance.

In the event any parcel of real estate subject to the Plan undergoes a change in use from a use for which the impact fee does not pertain to a dwelling unit, an impact fee will be assessed against said real estate.

**SECTION V**

Credit in Lieu of Payment Exemptions. Indiana Code § 36-7-4-1335 authorizes a fee payer to receive a credit against the Fee under certain circumstances. Any person or entity obligated to pay a fee pursuant to the terms of this Ordinance may have the option of financing, constructing, and dedicating park and recreational infrastructure to be owned and operated by the City of right public benefit, all as described and defined in the Plan, instead of making all or part of any impact fee payment which may be due, so long as such financing, construction, and dedication are accomplished pursuant to the Plan of the City, and in accordance with the park and recreational specifications for such park and recreational infrastructure to be improved in force with the City's jurisdiction at the time. Such fee payer, or other person or entity providing the infrastructure or improvement(s), shall be given credit for the actual costs of planning, financing, and constructing such park and recreational infrastructure dedicated to the City. Such request for credit shall be presented prior to the issuance of the structural building permit. In the event the actual cost of such planning, financing, and construction do not equal the amount of the impact fee pursuant to the calculation provided for in the schedule set forth in Section IV above, the remaining balance shall be due in accordance with the provision stated hereafter.

Credits against impact fees otherwise due shall be allowed pursuant to this Section for all infrastructure improvements constructed or furnished in accordance with Indiana Code § 36-7-4-1313 and Indiana Code§ 36-7-4-1335 since January 1, 1989. In addition, a fee payer or other person or entity responsible for installing infrastructure or improvements may designate in writing a method of allocating its credits to future fee payers who may be successors in interest to the credits earned by the fee payer or others, as part of the certification provided for above.

Any person or entity otherwise obligated to pay the fee established by this Ordinance whose property was totally or partially destroyed by fire, storm, or other casualty beyond his/her/its control, shall be exempt from said fee if he/she/it repairs or replaces the destroyed structure without creating a burden on infrastructure greater than the burden imposed by the destroyed infrastructure. In the event of such additional burden, the fee shall be calculated based only on the increased burden created by the structure.

**SECTION VI**

Impact Fee Due Upon Issuance of a Building Permit. The Fee imposed pursuant to the terms of this Ordinance shall be due and payable upon the issuance of a building permit by the City. It is understood that the term "building permit" is synonymous with the term "structural building permit" as that term is used in Indiana Code § 36-7-4-1323, in that the issuance of a building permit authorizes the applicant to commence construction activities, structural or otherwise. The Fee which is calculated pursuant to the terms of this Ordinance which is a per dwelling unit Fee shall be due at said time unless the amount of the fee upon calculation is greater than Five Thousand Dollars ($5,000.00), in which case an installment plan may be requested by the applicant in accordance with the terms set forth in Indiana Code § 36-7-4-1324(a) through (d). The West Lafayette Impact Fee Review Board shall establish specific rules consistent with said code provisions for installment payments. The penalty for late payments, if any, shall be established at the discretion of the Impact Fee Review Board.

If a fee payer requests, the amount of the Fee shall be assessed upon the voluntary submission of a development plan or upon the issuance of the building permit whichever is earlier. For purposes of this section, assessment means the act of calculating the amount of the Fee which shall be due. The City shall make such assessment within thirty (30) days of the date of such voluntary request or at the issuance of the building permit with or without the request.

**SECTION VII**

Lien Rights Established. Pursuant to Indiana Code § 36-7-4-1325, the City acquires a lien against the real estate which is the subject of the Fee on the date a building permit is issued. Upon adoption, this Ordinance shall be recorded, and thereafter, it shall continue constructive notice of the lien rights of the City with respect to a parcel of real

estate which is the subject of an installment payment of the Fee. The City may, in its discretion, file a specific instrument setting forth its lien rights with respect to a parcel of real estate which is the subject of an installment payment of the Fee, and such instrument shall constitute actual notice in addition to the constructive notice provided for by the recording of this Ordinance.

**SECTION VIII**

Form of Receipt. The City of West Lafayette shall issue a receipt for all Fees collected and the form of such receipt shall be as follows:

Received of (fee payer) this ___ day of _____ the sum of $. _____ in (full)(partial) satisfaction of Park and Recreation Impact Fees due pursuant to West Lafayette City Council Ordinance No. _____ relating to improvements to be constructed on the real estate located at _____ made part hereof, and subject to lien rights in favor of the City of West Lafayette in the event of partial payment with payments remaining due. The remaining balance due (if any) is in the following amount: $ _____.

_____

City of West Lafayette

**SECTION IX**

Establishment of West Lafayette Impact Fee Review Board. The West Lafayette City Council hereby establishes, pursuant to Indiana Code§ 36-7-4-1338, a West Lafayette Impact Fee Review Board which shall consist of three (3) citizen members appointed by the executive of the unit and who shall qualify as follows:

One (l) member shall be a real estate broker licensed in Indiana; and

One (I) member shall be an engineer licensed in Indiana; and

One (l) member shall be a certified public accountant.

A Board member shall not be a member of the Tippecanoe County Area Planning Commission.

a. The term of the office of the members of the West Lafayette Impact Fee Review Board shall commence from the date of their appointment and expire two (2) years from the date of appointment.

b. At the expiration of the respective terms of each of the West Lafayette Impact Fee Review Board members originally appointed, their respective successors shall be appointed in the same manner as the original appointee, and each such succeeding member shall serve for a term of two (2) years. Each member shall continue to serve until his/her successor is appointed and qualified.

c. In the event any person appointed as a West Lafayette Impact Fee Review Board member shall fail to qualify as provided within ten (10) days after the mailing to him/her of notice of his/her appointment, or any member after qualifying shall die, resign, vacate office, or in the event a member is unable to hear a petition due to a conflict of interest, the executive of the unit shall fill such vacancy with a new or temporary (in the event of a conflict of interest) member meeting the qualifications of the member being replaced. A new member shall serve out the remainder of the vacated term, while a temporary member shall serve for the period necessary to dispose of the petition giving rise to the conflict.

d. Such Board members shall receive no salaries but shall be entitled to reimbursement for any expenses necessarily incurred in the performance of their duties.

e. The Board shall elect one of its members as President, one as Vice-President, each of which officers shall serve from the day of his/her election until the 31st day of January next following his/her election and until his successor is elected and qualified.

f. The Board is authorized to adopt by-laws, rules, regulations, and procedures as it may deem necessary for the proper conduct of its proceedings, and the carrying out of its duties. Meetings and hearings shall be held at such time as it may determine and upon such notice as it may fix, in accordance with the provisions of the by-laws, rules, and regulations adopted and Indiana law.

g. A majority of the Board shall constitute a quorum and the concurrence of a majority shall be necessary to authorize any action.

h. The Board shall conduct its review of the amount of an impact fee assessed, the amount of a refund, and the amount of a credit using the procedures established in Indiana Code§ 36-7-4-1338(c).

i. The West Lafayette Impact Fee Review Board shall be governed by Indiana Code § 36-7-4-1338 and all other applicable provisions of the Impact Fee Statute.

**SECTION X**

Appeals. Any fee payer who believes itself to be aggrieved by the calculation of the Fee may appeal from such calculation to the West Lafayette Impact Fee Review Board, and the West Lafayette Impact Fee Review Board shall conduct a hearing with regard thereto. At such hearing, the fee payer shall bear the burden of going forward with the evidence and shall present evidence addressing either of the following propositions:

a. A fact of assumption used in determining the amount of the Fee is incorrect; or

b. The amount of the Fee is greater than the amount allowed under Indiana Code § 36-7-4-1320, 1321, and 1322.

Upon conclusion of the hearing at which the matter is first presented, or at the conclusion of the hearing if the matter is continued, the West Lafayette Impact Fee Review Board shall make a determination based upon the facts presented and may reverse, affirm, modify, or make such adjustments in the Fee, as it believes are appropriate under the circumstances, if any, including establishing the amount of an impact fee, a credit, a refund, or any combination of fees, credit, or refunds. The West Lafayette Impact Fee Review Board shall provide a copy of its decision to the City Council and the fee payer involved in the appeal within five (5) days after making its decision and shall make written findings of fact to support its decision.

An appeal under this Section must be filed no later than thirty (30) days after the issuance of the building permit. The appeal shall be initiated with the filing of a Petition

for Review with the City together with a filing fee in the amount of One Hundred Dollars ($ 100.00). The filing fee shall be refunded in full if:

a. The Petition for Review is granted and the Fee is eliminated, reduced or adjusted by the West Lafayette Impact Fee Review Board, by independent action of the City, or by a court having jurisdiction; and
b. The reviewing body determines that the amount of the Fee, reductions, or credits were arbitrary or capricious.

The Petition for Review shall be in a form calculated to inform the West Lafayette Impact Fee Review Board of the nature of complaint, the parties of the action, and relief requested. In addition, the petition shall describe the new development on which the Fee has been assessed, all facts related to the assessment of the Fee, and the reasons the petitioner believes that the amount of the Fee assessed is erroneous or is greater than the amount allowed by the Fee limitation set forth in the enabling statute.

The City shall not deny the issuance of a building permit on the basis that the Fee has not been paid or condition issuance of the permit on the payment of the Fee while the Fee is the subject of a Petition for Review properly filed with the West Lafayette Impact Review Board.

Notwithstanding the provisions of this Section, if the Fee totals One Thousand Five Hundred Dollars ($1,500.00) or less, the City may require the fee payer to pay the Fee or initiate an appeal under this section before the building permit is issued.

**SECTION XI**

Establishment of Park and Recreation Infrastructure Improvement Fund. There is hereby established the West Lafayette Park and Recreation Infrastructure Improvement Fund ("the Fund") of the City. The Fund shall be a non-reverting fund and shall receive any and all sums collected pursuant to this Ordinance to be utilized in connection with the purposes set forth herein. The Fund shall consist initially of one account based upon the current existence of one impact zone. In the event, and only in the event, that an additional impact zone is created hereafter, a separate account shall be maintained for each separate impact zone established within the City. Interest earned on the Fund or

on any account with the Fund, shall be deposited and maintained within the Fund or the separate account. The City shall maintain records of the status of the Fund or any account which may be established therein, and shall make an annual report of said Fund and accounts which shall be available to the public in general and fee payers, upon request.

Pursuant to Indiana Code § 36-7-4-1332, the City shall designate a City official responsible for acting on refund requests. In order to facilitate refunds when they may be due, the City official is directed to identify the purpose of any Fee paid in order that a refund, if any, may be paid from the Fund or account into which the Fee was originally deposited.

**SECTION XII**

Use of Impact Fees Collected Pursuant to this Ordinance. Any and all Fees collected pursuant to the provisions of this Ordinance may be utilized for the following purposes only by the City, acting by and through its Parks and Recreation Board, which for the purposes of this Ordinance is identified as the infrastructure agency contemplated by Indiana Code § 36-7-4-1317:

a. Providing funds to be utilized by the City for the purpose of paying the capital costs of new park and recreational infrastructure that is needed to serve the new development within the corporate limits of the City as the same may be amended from time to time and any area over which the City may exercise any of its authority;
b. An amount not to exceed Five Percent (5%) of the annual collections of the fee to be utilized for expenses incurred by the City for the consulting services used to establish this Ordinance.
c. To pay any refund due pursuant to the terms of this Ordinance; and
d. To pay the debt service cost of an obligation issued to provide new park and recreational infrastructure described in sub-paragraph (a) above.

## SECTION XIII

Indiana Impact Fee Law. The City Council specifically acknowledges the existence of the "1300 series impact fees" adopted by General Assembly of the State of Indiana which regulates the imposition of impact fee by municipal corporation within the State of Indiana. The substantive and procedural requirements of Indiana Code § 36-7-4-1300 et seq. shall control in the events of conflicts with this Ordinance which are unintended by the Council.

## SECTION XIV

Amendment and Review. The Fee provided for herein is based upon data which, in large part, is subject to inflation and other economic and market forces over which the City has no control. The Council may cause a review to be made by City staff or consultants as may be required, to determine the continuing validity of the impact fee, the Impact Fee Zone, and the Plan. The Council shall consider and adopt such amendments as are necessary to cause a substantive compliance with all constitutional and statutory requirements. To the extent required by the facts and circumstances, this process shall include the steps necessary to update the Plan and the Comprehensive Plan.

## SECTION XV

Effective Date. This Ordinance shall be effective May 4, 2025, which is not earlier than six (6) months after its adoption by the Council in accordance with Indiana Code § 36-7-4-1340.

## SECTION XVI

Construction of Clause Headings. The clause headings appearing herein have been provided for convenience and reference and do not purport and shall not be deemed to define, limit, or extend the scope or intent of the clause to which they pertain.

## SECTION XVII

Severability. If any part of this Ordinance shall be held invalid, such part shall be deemed severable and the invalidity thereof shall not affect the remainder of this Ordinance.

## SECTION XVIII

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

bakertilly
MUNICIPAL ADVISORS

Baker Tilly Municipal Advisors, LLC
8365 Keystone Crossing, Ste 300
Indianapolis, IN 46240
United States of America

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September 9, 2024

Members of the West Lafayette City Council
222 North Chauncey Avenue
West Lafayette, IN 47906

Re: West Lafayette 2025-2030 Zone Improvement Plan

In connection with the calculation of the recreation impact fee for the purpose of financing capital improvements to the recreation infrastructure of the City of West Lafayette (the "City"), we have, at your request, compiled this special purpose report (the "Report") including the following schedules and appendices:


| Page(s) | |
|---|---|
| 2-4 | General Comments |
| 5 | Summary of 2025 Impact Fee Calculation |
| 6 | Historical Population and Housing Unit Growth 2015-2024 and Estimated Population and Housing Unit Growth 2025-2034 |
| 7 | Estimated Housing Unit Growth and Impact Fee Equivalent |
| 8 | Current Amenities Inventory and Community Service Ratios for 2024 Population |
| 9 | Estimated Amenities Needs to Meet Estimated Population Level of Service |
| 10 | Estimated Cost of Park and Recreation Amenities |
| 11 | Estimated Cost of Raising Current Inventory to 2025 Target Level of Service Standards |
| 12 | Estimated Impact Fee Cost of 2029 Improvements |
| 13 | Estimated Impact Fee Cost of 2034 Improvements |
| 14 | Estimated Annual 2025 Impact Fee Revenues |
| 15 | Estimated Non-Local Revenue Credit |
| 16 | Estimated New Population Share of Capital Budget |
| 17 | Historical Recreation Capital Improvements Expenditures Not Funded Through Recreation Impact Fees, Donations or Tax Increment Finance Debt |
| 18 | Estimated Annual 2025 Impact Fee Revenues and Expenditures |

**Appendix A** Maps of Impact Zone
**Appendix B** Amenities Definitions and Cost Estimates


These schedules are intended for use by City officials, the City Building Department, the City Department of Development, the Parks and Recreation Department and their respective advisors, for use in connection with implementation of the recreation impact fee within the City. The use of these schedules should be restricted to this purpose.

The schedules and underlying assumptions are based upon information provided to us by the City Building Department, the City Department of Development, the City Parks & Recreation Department, their respective advisors and other resources identified within. In the preparation of the schedules contained in this Report, assumptions were made as noted regarding certain future events. As is the case with such assumptions regarding future events and transactions, some or all may not occur as expected and the resulting differences could be material. We have not examined the underlying assumptions, nor have we audited or reviewed the historical data. Consequently, we express no opinion nor provide any other form of assurance thereon nor do we have a responsibility to prepare subsequent reports.

Very Truly Yours,

BAKER TILLY MUNICIPAL ADVISORS, LLC

**DRAFT**

Matt Eckerle, Principal

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## GENERAL COMMENTS

The City of West Lafayette, Indiana (the "City") is pursuing the adoption of a recreation impact fee through an ordinance (the "Impact Fee Ordinance") pursuant to IC 36-7-4-1300 through IC 36-7-4-1342 (the "Enabling Legislation"). This report is intended to serve as the "Zone Improvement Plan" for the establishment of a new recreation impact fee (the "Impact Fee") pursuant to the Enabling Legislation.

The 2025 Impact Fee calculation is based on the infrastructure information and amenity level of service standards compiled by Rundell Ernstberger Associates ("REA"), and the West Lafayette Impact Fee Advisory Committee (herein defined) and was calculated based on an analysis of recreation infrastructure needs over a 10-year planning horizon (2025-2034). It is anticipated that the City Council will adopt an ordinance (the "Impact Fee Ordinance") approving the Zone Improvement Plan and the Impact Fee on December __, 2024. The Impact Fee Ordinance will be effective six months after the date of adoption, anticipated to be June __, 2025, through June __, 2030.

### Impact Fees

Impact fees, as described by this ZIP, will shift the cost of new and expanded park facilities from the community at large to the new development that is generating the need for those new and expanded facilities. Impact fees, however, cannot be used to finance improvements to overcome existing deficiencies in park facilities, nor can they be used to fund maintenance or operations.

### Impact Zone

The Enabling Legislation requires the Parks & Recreation Department to define the geographic area for the recreation infrastructure (the "Impact Zone") that is analyzed in the Zone Improvement Plan. For the purposes of this Zone Improvement Plan, the Impact Zone is defined as the corporate limits of the City. A map of the Impact Zone is attached to this Report as Appendix A.

### Impact Fee Advisory Committee

As a part of the process of establishing the 2025 Impact Fee, the City was required to form an "Impact Fee Advisory Committee" that consisted of five to ten members, with at least 40% of the members representing the development, building, and real estate industries. The Impact Fee Advisory Committee convened by the City consisted of Jen VanSchuyer, David Kucik, Paul Brennan, Kathy Parker, Gale Turco, Ryan Kennedy, Brian Russell, Kevin Noe, Ryan O'Gara, Jim Pitoukkas, and Chris Bradford. The Impact Fee Advisory Committee met during the Zone Improvement Plan development process to discuss the 2025 Impact Fee and the Zone Improvement Plan.

### Summary of Impact Fee Calculation – Page 5

This schedule illustrates the calculation of the maximum allowable 2025 Impact Fee of $3,563 for an individual housing unit. The costs to be funded through the 2025 Impact Fee are based on the estimated 2034 cost of infrastructure improvements to meet the estimated Level of Service ("LOS"), with credits and deductions for the estimated non-local revenue contribution to recreation capital projects, the contribution of new residents to principal payments on outstanding bonds issued to fund recreation capital improvements, and the contribution of new residents to the Parks & Recreation Department's annual capital projects budget through traditional means. The calculation of the 2025 Impact Fee was based upon a base implementation year of 2025.

This Zone Improvement Plan, based upon input from the City and the Impact Fee Advisory Committee, proposes the 2025 Impact Fee for a single-family housing unit is adjusted to $2,138 in order to reflect the varying needs for housing inventory in the City (the "Adjusted 2025 Impact Fee"). The adjustment factor for single-family units was determined based on discussion and consideration of the Impact Fee Advisory Committee. The maximum allowable 2025 Impact fee of $3,563 is proposed for multi-family housing units.

**Historical Population Housing Unit Growth 2015-2024 and Estimated Population and Housing Unit Growth 2025-2034 – Page 6**

The schedule on page 6 illustrates the City's historical population and housing units for the time period of 2015-2024, and the estimated population and housing units for 2025-2034. The historic and population and housing unit information and estimates are per the City Building Department, and the City of West Lafayette Housing Analysis Report of April 2024.

**Estimated Housing Unit Growth and Impact Fee Equivalent – Page 7**

This schedule illustrates the estimated residential unit growth for the City over the planning horizon of 2025-2034 as shown on page and adjusts it for multi-family housing units. The adjustment factors for these units were calculated based on average household size of occupied housing units data per the U.S. Census Bureau's American Community Survey. The adjustment is made in recognition of the varying recreation infrastructure needs created by different residential development types.

**Current Amenities Inventory and Community Service Ratios for 2024 Population – Page 8**

This schedule illustrates the Zone Improvement Plan amenities and analyzes the current inventory of City owned or managed amenities versus the LOS standards for the amenities developed by the Parks & Recreation Department for the Zone Improvement Plan and the Master Plan. The target inventory was calculated by multiplying the target LOS ratios for the respective amenity types by the 2024 population of 45,990. The inventory deficits identified in this Report must be addressed by the City using funding methods other than 2025 Impact Fee revenues, and they must be addressed prior to spending any 2025 Impact Fee revenues on that amenity type.

**Estimated Amenities Needs to Meet Estimated Population Level of Service – Page 9**

The estimated amenities needed to service the estimated 2029 and 2034 population of the City are illustrated in this schedule. To determine the amenities inventory needs for the 2029 and 2034 populations, the LOS target ratios from page 8 are multiplied by the estimated population for the respective years from page 6. The estimated deficits and surpluses are calculated based on the assumption that the 2025 target inventory is reached for each amenity. Revenues from the 2025 Impact Fee may only be used to fund amenities that have identified deficits due to population growth.

**Estimated Cost of Park and Recreation Amenities – Page 10**

The estimated costs of the various recreation amenities are shown in this schedule. These costs are based on information provided by REA. The assumption for land cost per acre is based upon recent land acquisitions completed by the City. Appendix B provides a definition for each amenity type, which is the basis for the cost estimate.

**Estimated Cost of Raising Current Inventory to 2025 Target Level of Service Standards – Page 11**

The estimated cost of bringing the current recreation inventory up to the 2025 target LOS standards is shown in this schedule. Per the Enabling Legislation, the current inventory for each amenity must meet the LOS standards defined in the Zone Improvement Plan for the 2025 Impact Fee before 2025 Impact Fee revenues may be spent on that amenity type. Based on the current inventory for each amenity and the target LOS ratios defined in the 2025 Impact Fee Zone Improvement Plan the total estimated cost of bringing the current recreation amenities inventory up to the LOS standards defined on page 8 is $3,968,560. It is anticipated that these costs will be funded through the use of the existing capital budget. Grants and other non-local revenues will be utilized to the extent that they are available.

**Estimated Impact Fee Cost of 2029 Improvements – Page 12**

The estimated cost of amenities needed to serve the estimated 2029 population of the City is shown in this schedule. The 2025 Impact Fee will be effective six months after the adoption of the 2025 Impact Fee Ordinance. This schedule is meant to illustrate the estimated costs of new amenities needed to serve the 2029 population. The estimated cost amount is based on the costs identified on page 10, with no inflation factor applied.

**Estimated Impact Fee Cost of 2034 Improvements – Page 13**

The estimated cost of amenities needed to serve the estimated 2034 population of the City is shown in this schedule. The Enabling Legislation specifies that the impact fee calculation be based on the estimated costs of infrastructure over a 10-year planning horizon. Thus, the total cost identified in this schedule is used as the total cost of infrastructure that may be funded using the 2025 Impact Fee revenues. The estimated cost amount is based on the costs identified on page 10, with no inflation factor applied.

**Estimated Annual 2025 Impact Fee Revenues – Page 14**

This schedule shows the estimated annual revenues for the 2025 Impact Fee. The estimated revenues are calculated by multiplying the estimated residential units for each year by the 2025 Impact Fee for the respective residential development type. The calculations are based upon a base implementation year of 2025.

**Estimated Non-Local Revenue Credit – Page 15**

The estimated credit for non-local revenues used for recreation infrastructure is shown in this schedule. It is assumed, based on historical experience, that 75% of the estimated cost of all impact-fee related land acreage needs will be met through the use of impact fee revenues, with the rest being acquired through private donations or other, non-impact fee means. The City received grants in the amount of $449,000 for recreation capital projects over the previous 5 years. It is assumed the amount of grants received over the 10-year planning horizon will be proportional to the total grants received historically. The estimated total value of the non-local revenue credit is $1,342,920.

**Estimated New Population Share of Capital Budget – Page 16**

This schedule shows the calculation of the estimated share of the Parks & Recreation Department's annual capital budget that will be funded by new residents. The annual Parks & Recreation Department capital budget is funded from sources including (but not limited to) property taxes, financial institutions taxes, commercial vehicle excise taxes, auto/aircraft excise taxes, food & beverage taxes, tax increment financing, and other local revenue sources.

It is assumed that the historical average annual capital budget amount of $5,392,000 will be held constant into the future, and new residents will pay a share proportional to their makeup of the total population of the City. Based on these assumptions, it is assumed that new residents will contribute 11.68% of the total capital projects budget in 2034, or $3,528,520 over the entire 10-year planning horizon.

**Historical Recreation Infrastructure Improvements Expenditures Not Funded Through Recreation Impact Fees, Donations or Debt – Page 17**

The schedule on page 17 shows the historical capital expenditures for recreation from 2020 through 2024.

**Estimated Annual 2025 Impact Fee Revenues and Expenditures – Page 18**

The estimated annual revenues from the 2025 Impact Fee, the estimated new population's contribution to the capital budget, and the estimated non-local revenues received, are compared to the estimated expenditures of these revenues over the 10-year planning horizon in this schedule. The estimates are based on the accumulation of revenues and the estimated need for new infrastructure as dictated by population growth and the Community Level of Service standards.

**CITY OF WEST LAFAYETTE, INDIANA**

**SUMMARY OF 2025 IMPACT FEE CALCULATION**

**2025 Impact Fee Calculation:**

| | | |
|---|---|---|
| Cost of meeting 2034 Level of Service needs | $12,321,315 | (1) |
| Less: Estimated non-local revenues | (1,342,920) | (2) |
| Less: New resident capital budget contribution | (3,528,520) | (3) |
| Less: New resident contribution to bond principal payments | 0 | (4) |
| Capital costs to be funded by 2025 Impact Fees | 7,449,875 | |
| Divided by estimated equivalent housing units | 2,091 | (5) |
| 2025 Impact Fee for single-family unit | $3,563 | |

**2025 Impact Fee Schedule by Development Type:**

| | | |
|---|---|---|
| Single-family home | 60% | $2,138 |
| Multi-family home | 100% | $3,563 |

(1) See page 13.
(2) See page 15.
(3) See page 16.
(4) As of the date of this information, the City does not have any outstanding debt payable from a property tax levy or local income taxes issued to fund recreation amenities. The principal payments related to the outstanding West Lafayette (Indiana) Redevelopment Authority Lease Rental Bonds of 2019 (Recreation Center Project) payable from tax increment revenues are accounted for in the new resident capital budget contribution quantified on page 12.
(5) See page 7.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

## HISTORICAL POPULATION AND HOUSING UNIT GROWTH 2015-2024

| Year | Population | Population Change | New Housing Units: Single Family | New Housing Units: Multi-Family | New Housing Units: Total |
|---|---|---|---|---|---|
| **Historical (1)** | | | | | |
| 2015 | 43,999 | | 37 | 36 | 73 |
| 2016 | 44,543 | 544 | 51 | 80 | 131 |
| 2017 | 45,110 | 567 | 36 | 362 | 398 |
| 2018 | 47,224 | 2,114 | 24 | 1,100 | 1,124 |
| 2019 | 48,551 | 1,327 | 19 | 563 | 582 |
| 2020 | 44,595 | (3,956) | 15 | 303 | 318 |
| 2021 | 44,515 | (80) | 31 | 118 | 149 |
| 2022 | 44,861 | 346 | 28 | 235 | 263 |
| 2023 | 45,422 | 561 | 43 | 625 | 668 |
| 2024 (2) | 45,990 | 568 | 87 | 177 | 264 |

## ESTIMATED POPULATION AND HOUSING UNIT GROWTH 2025-2034

| | | | | | |
|---|---|---|---|---|---|
| **Estimated (2)** | | | | | |
| 2025 | 46,564 | 574 | 88 | 179 | 267 |
| 2026 | 47,146 | 582 | 89 | 182 | 271 |
| 2027 | 47,736 | 590 | 90 | 184 | 274 |
| 2028 | 48,332 | 596 | 92 | 186 | 278 |
| 2029 | 48,937 | 605 | 93 | 188 | 281 |
| 2030 | 49,548 | 611 | 94 | 191 | 285 |
| 2031 | 50,168 | 620 | 95 | 193 | 288 |
| 2032 | 50,795 | 627 | 96 | 196 | 292 |
| 2033 | 51,430 | 635 | 97 | 198 | 295 |
| 2034 | 52,073 | 643 | 99 | 200 | 299 |

(1) Per the City of West Lafayette Housing Analysis Report of April 2024.
(2) Per the City Building Department and population estimates in the Housing Analysis Report. Assumes a population of approximately 2.15 per housing unit.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

## ESTIMATED HOUSING UNIT GROWTH AND IMPACT FEE EQUIVALENT

| | Estimated Housing Unit Growth (1) | | | Housing Unit Adjustment Percentage (2) | | Adjusted Equivalent Housing Unit Growth (3) | | |
|---|---|---|---|---|---|---|---|---|
| Year | Single Family | Multi-Family | Total | Single Family | Multi-Family | Single Family | Multi-Family | Total |
| 2025 | 88 | 179 | 267 | 100% | 61% | 88 | 109 | 197 |
| 2026 | 89 | 182 | 271 | 100% | 61% | 89 | 111 | 200 |
| 2027 | 90 | 184 | 274 | 100% | 61% | 90 | 112 | 202 |
| 2028 | 92 | 186 | 278 | 100% | 61% | 92 | 113 | 205 |
| 2029 | 93 | 188 | 281 | 100% | 61% | 93 | 115 | 208 |
| 2030 | 94 | 191 | 285 | 100% | 61% | 94 | 117 | 211 |
| 2031 | 95 | 193 | 288 | 100% | 61% | 95 | 118 | 213 |
| 2032 | 96 | 196 | 292 | 100% | 61% | 96 | 120 | 216 |
| 2033 | 97 | 198 | 295 | 100% | 61% | 97 | 121 | 218 |
| 2034 | 99 | 200 | 299 | 100% | 61% | 99 | 122 | 221 |
| Totals | 933 | 1,897 | 2,830 | | | 933 | 1,158 | 2,091 |

(1) See page 6.
(2) Based on population per household in occupied housing units data from the American Community Survey of the U.S. Census Bureau.
(3) Represents equivalent housing units for the impact fee calculation.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**CURRENT AMENITIES INVENTORY AND COMMUNITY SERVICE RATIOS FOR 2024 POPULATION**

| Amenity | Target Ratio (1) | Current Ratio (2) | Current Inventory Total (1)(3) | Unit | 2025 Target Inventory (4) | 2025 Inventory Surplus/ (Deficit) |
|---|---|---|---|---|---|---|
| Park Acreage | 10.33 acres/1,000 people | 10.09 acres/1,000 people | 464.00 | Acres | 475.08 | (11.08) |
| Hard Surface Trails | 0.65 miles/1,000 people | 0.64 miles/1,000 people | 29.30 | Miles | 29.89 | (0.59) |
| Unpaved Trails | 0.08 miles/1,000 people | 0.08 miles/1,000 people | 3.53 | Miles | 3.68 | 0.00 |
| Basketball Courts | 0.07 courts/1,000 people | 0.07 courts/1,000 people | 3.00 | Ea. | 3.22 | 0.00 |
| Multi-use Fields | 0.11 fields/1,000 people | 0.11 fields/1,000 people | 5.00 | Ea. | 5.06 | 0.00 |
| Baseball/Softball Fields | 0.07 fields/1,000 people | 0.07 fields/1,000 people | 3.00 | Ea. | 3.22 | 0.00 |
| Restroom Buildings | 0.09 buildings/1,000 people | 0.07 buildings/1,000 people | 3.00 | Ea. | 4.14 | (1.14) |
| Shelters | 0.33 structures/1,000 people | 0.30 structures/1,000 people | 14.00 | Ea. | 15.18 | (1.18) |
| Playgrounds | 0.17 structures/1,000 people | 0.17 structures/1,000 people | 8.00 | Ea. | 7.82 | 0.00 |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | 0.02 sites/1,000 people | 1.00 | Ea. | 0.92 | 0.00 |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | 0.02 sites/1,000 people | 1.00 | Ea. | 1.38 | (0.38) |
| Splashpad | 0.02 sites/1,000 people | 0.00 sites/1,000 people | 0.00 | Ea. | 0.92 | (0.92) |
| Canoe Launch | 0.10 sites/1,000 people | 0.07 sites/1,000 people | 3.00 | Ea. | 4.60 | (1.60) |
| Native Plantings | 0.12 sites/1,000 people | 0.00 sites/1,000 people | 0.00 | Ea. | 5.52 | (5.52) |
| Dog Park | 0.04 sites/1,000 people | 0.04 sites/1,000 people | 2.00 | Ea. | 1.84 | 0.00 |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | 1.69 sites/1,000 people | 78.00 | Ea. | 78.18 | (0.18) |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | 0.00 sites/1,000 people | 0.00 | Ea. | 0.92 | (0.92) |
| Community Center Space | 1,598.17 sq.ft./1,000 people | 1,587.30 sq.ft./1,000 people | 73,000.00 | S.F. | 73,499.84 | (499.84) |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | 147.31 sq.ft./1,000 people | 6,775.00 | S.F. | 7,524.88 | (749.88) |

(1) Per Rundell Ernstberger Associates.
(2) Represents the current ratio provided by City owned/managed facilities. Calculated by dividing the current inventory of City owned/managed amenities by the estimated 2024 West Lafayette population of 45,990.
(3) Represents City owned/managed amenities, does not include third party owned/managed amenities available for public use.
(4) Based on the Target Ratios multiplied by the estimated 2024 West Lafayette population of 45,990.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**ESTIMATED AMENITIES NEEDS TO MEET ESTIMATED POPULATION LEVEL OF SERVICE**

| Amenity | Level of Service Target Ratio | 2025 Current Inventory | Unit | 2025 Target Inventory | Year 2029 Target Inventory | Year 2029 Inventory Surplus/ (Deficit) | Year 2034 Target Inventory | Year 2034 Inventory Surplus/ (Deficit) |
|---|---|---|---|---|---|---|---|---|
| | (1) | (1) | | (2) | (3) | | (4) | |
| Park Acreage | 10.33 acres/1,000 people | 464.00 | Acres | 475.08 | 505.52 | (30.44) | 537.91 | (62.83) |
| Hard Surface Trails | 0.65 miles/1,000 people | 29.30 | Miles | 29.89 | 31.81 | (1.92) | 33.85 | (3.96) |
| Unpaved Trails | 0.08 miles/1,000 people | 3.53 | Miles | 3.68 | 3.91 | (0.23) | 4.17 | (0.49) |
| Basketball Courts | 0.07 courts/1,000 people | 3.00 | Ea. | 3.22 | 3.43 | (0.21) | 3.65 | (0.43) |
| Multi-use Fields | 0.11 fields/1,000 people | 5.00 | Ea. | 5.06 | 5.38 | (0.32) | 5.73 | (0.67) |
| Baseball/Softball Fields | 0.07 fields/1,000 people | 3.00 | Ea. | 3.22 | 3.43 | (0.21) | 3.65 | (0.43) |
| Restroom Buildings | 0.09 buildings/1,000 people | 3.00 | Ea. | 4.14 | 4.40 | (0.26) | 4.69 | (0.55) |
| Shelters | 0.33 structures/1,000 people | 14.00 | Ea. | 15.18 | 16.15 | (0.97) | 17.18 | (2.00) |
| Playgrounds | 0.17 structures/1,000 people | 8.00 | Ea. | 7.82 | 8.32 | (0.32) | 8.85 | (0.85) |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | 1.00 | Ea. | 0.92 | 0.98 | 0.02 | 1.04 | (0.04) |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | 1.00 | Ea. | 1.38 | 1.47 | (0.09) | 1.56 | (0.18) |
| Splashpad | 0.02 sites/1,000 people | 0.00 | Ea. | 0.92 | 0.98 | (0.06) | 1.04 | (0.12) |
| Canoe Launch | 0.10 sites/1,000 people | 3.00 | Ea. | 4.60 | 4.89 | (0.29) | 5.21 | (0.61) |
| Native Plantings | 0.12 sites/1,000 people | 0.00 | Ea. | 5.52 | 5.87 | (0.35) | 6.25 | (0.73) |
| Dog Park | 0.04 sites/1,000 people | 2.00 | Ea. | 1.84 | 1.96 | 0.04 | 2.08 | (0.08) |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | 78.00 | Ea. | 78.18 | 83.19 | (5.01) | 88.52 | (10.34) |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | 0.00 | Ea. | 0.92 | 0.98 | (0.06) | 1.04 | (0.12) |
| Community Center Space | 1,598.17 sq.ft./1,000 people | 73,000.00 | S.F. | 73,499.84 | 78,209.65 | (4,709.81) | 83,221.51 | (9,721.67) |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | 6,775.00 | S.F. | 7,524.88 | 8,007.07 | (482.19) | 8,520.18 | (995.30) |

(1) Per Rundell Ernstberger Associates.
(2) Based on the Target Ratios multiplied by the estimated 2024 West Lafayette population of 45,990.
(3) Based on the Target Ratios multiplied by the estimated 2029 population of 48,937.
(4) Based on the Target Ratios multiplied by the estimated 2034 population of 52,073.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

## ESTIMATED COST OF PARK & RECREATION AMENITIES

| Amenity | Target Service Ratio (1) | Estimated Unit Cost (2) | | Unit |
|---|---|---|---|---|
| Park Acreage | 10.33 acres/1,000 people | $28,000 | (3) | Acres |
| Hard Surface Trails | 0.65 miles/1,000 people | 850,000 | | Miles |
| Unpaved Trails | 0.08 miles/1,000 people | 160,000 | | Miles |
| Basketball Courts | 0.07 courts/1,000 people | 65,000 | | Ea. |
| Multi-use Fields | 0.11 fields/1,000 people | 100,000 | | Ea. |
| Baseball/Softball Fields | 0.07 fields/1,000 people | 150,000 | | Ea. |
| Restroom Buildings | 0.09 buildings/1,000 people | 350,000 | | Ea. |
| Shelters | 0.33 structures/1,000 people | 150,000 | | Ea. |
| Playgrounds | 0.17 structures/1,000 people | 350,000 | | Ea. |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | 500,000 | | Ea. |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | 3,000,000 | | Ea. |
| Splashpad | 0.02 sites/1,000 people | 500,000 | | Ea. |
| Canoe Launch | 0.10 sites/1,000 people | 50,000 | | Ea. |
| Native Plantings | 0.12 sites/1,000 people | 8,000 | | Ea. |
| Dog Park | 0.04 sites/1,000 people | 250,000 | | Ea. |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | 10,000 | | Ea. |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | 250,000 | | Ea. |
| Community Center Space | 1,598.17 sq.ft./1,000 people | 500 | | S.F. |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | 500 | | S.F. |

(1) See page 8.
(2) Per Rundell Ernstberger Associates.
(3) Based on recent land acquisitions by the City of West Lafayette.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**ESTIMATED COST OF RAISING CURRENT INVENTORY TO 2025 TARGET LEVEL OF SERVICE STANDARDS**

| Amenity | Target Service Ratio | Unit Cost | Current Inventory (City Provided) | 2025 Target Inventory | 2025 Inventory Surplus/ (Deficit) | Cost to Meet 2025 Need | Anticipated Funding Source |
|---|---|---|---|---|---|---|---|
| | (1) | (2) | (1) | (1) | (1) | (3) | (3) |
| Park Acreage | 10.33 acres/1,000 people | $28,000 | 464.00 | 475.08 | (11.08) | $310,240 | Budget |
| Hard Surface Trails | 0.65 miles/1,000 people | 850,000 | 29.30 | 29.89 | (0.59) | 501,500 | Budget |
| Unpaved Trails | 0.08 miles/1,000 people | 160,000 | 3.53 | 3.68 | 0.00 | 0 | |
| Basketball Courts | 0.07 courts/1,000 people | 65,000 | 3.00 | 3.22 | 0.00 | 0 | |
| Multi-use Fields | 0.11 fields/1,000 people | 100,000 | 5.00 | 5.06 | 0.00 | 0 | |
| Baseball/Softball Fields | 0.07 fields/1,000 people | 150,000 | 3.00 | 3.22 | 0.00 | 0 | |
| Restroom Buildings | 0.09 buildings/1,000 people | 350,000 | 3.00 | 4.14 | (1.14) | 399,000 | Budget |
| Shelters | 0.33 structures/1,000 people | 150,000 | 14.00 | 15.18 | (1.18) | 177,000 | Budget |
| Playgrounds | 0.17 structures/1,000 people | 350,000 | 8.00 | 7.82 | 0.00 | 0 | |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | 500,000 | 1.00 | 0.92 | 0.00 | 0 | |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | 3,000,000 | 1.00 | 1.38 | (0.38) | 1,140,000 | Budget |
| Splashpad | 0.02 sites/1,000 people | 500,000 | 0.00 | 0.92 | (0.92) | 460,000 | Budget |
| Canoe Launch | 0.10 sites/1,000 people | 50,000 | 3.00 | 4.60 | (1.60) | 80,000 | Budget |
| Native Plantings | 0.12 sites/1,000 people | 8,000 | 0.00 | 5.52 | (5.52) | 44,160 | Budget |
| Dog Park | 0.04 sites/1,000 people | 250,000 | 2.00 | 1.84 | 0.00 | 0 | |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | 10,000 | 78.00 | 78.18 | (0.18) | 1,800 | Budget |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | 250,000 | 0.00 | 0.92 | (0.92) | 230,000 | Budget |
| Community Center Space | 1,598.17 sq.ft./1,000 people | 500 | 73,000.00 | 73,499.84 | (499.84) | 249,920 | Budget |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | 500 | 6,775.00 | 7,524.88 | (749.88) | 374,940 | Budget |
| Total | | | | | | $3,968,560 | |

(1) See page 8.
(2) See page 10.
(3) Per State law, impact fees cannot be used to finance projects needed to meet current infrastructure deficits. The Parks budget is funded through property taxes, income taxes, tax increment revenues, and other local revenue sources.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**ESTIMATED IMPACT FEE COST OF 2029 IMPROVEMENTS**

| Amenity | Target Service Ratio | | Unit Cost | Current Inventory (City Provided) | 2025 Target Inventory | 2029 Target Inventory | 2029 Inventory Surplus/ (Deficit) | Cost to Meet 2029 Need |
|---|---|---|---|---|---|---|---|---|
| | (1) | | (2) | (1) | (1) | (3) | (4) | (5) |
| Park Acreage | 10.33 acres/1,000 people | | $28,000 | 464.00 | 475.08 | 505.52 | (30.44) | $852,320 |
| Hard Surface Trails | 0.65 miles/1,000 people | | 850,000 | 29.30 | 29.89 | 31.81 | (1.92) | 1,632,000 |
| Unpaved Trails | 0.08 miles/1,000 people | | 160,000 | 3.53 | 3.68 | 3.91 | (0.23) | 36,800 |
| Basketball Courts | 0.07 courts/1,000 people | | 65,000 | 3.00 | 3.22 | 3.43 | (0.21) | 13,650 |
| Multi-use Fields | 0.11 fields/1,000 people | | 100,000 | 5.00 | 5.06 | 5.38 | (0.32) | 32,000 |
| Baseball/Softball Fields | 0.07 fields/1,000 people | | 150,000 | 3.00 | 3.22 | 3.43 | (0.21) | 31,500 |
| Restroom Buildings | 0.09 buildings/1,000 people | | 350,000 | 3.00 | 4.14 | 4.40 | (0.26) | 91,000 |
| Shelters | 0.33 structures/1,000 people | | 150,000 | 14.00 | 15.18 | 16.15 | (0.97) | 145,500 |
| Playgrounds | 0.17 structures/1,000 people | | 350,000 | 8.00 | 7.82 | 8.32 | (0.32) | 112,000 |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | | 500,000 | 1.00 | 0.92 | 0.98 | 0.02 | 0 |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | | 3,000,000 | 1.00 | 1.38 | 1.47 | (0.09) | 270,000 |
| Splashpad | 0.02 sites/1,000 people | | 500,000 | 0.00 | 0.92 | 0.98 | (0.06) | 30,000 |
| Canoe Launch | 0.10 sites/1,000 people | | 50,000 | 3.00 | 4.60 | 4.89 | (0.29) | 14,500 |
| Native Plantings | 0.12 sites/1,000 people | | 8,000 | 0.00 | 5.52 | 5.87 | (0.35) | 2,800 |
| Dog Park | 0.04 sites/1,000 people | (6) | 250,000 | 2.00 | 1.84 | 1.96 | 0.04 | 0 |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | (6) | 10,000 | 78.00 | 78.18 | 83.19 | (5.01) | 50,100 |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | | 250,000 | 0.00 | 0.92 | 0.98 | (0.06) | 15,000 |
| Community Center Space | 1,598.17 sq.ft./1,000 people | | 500 | 73,000.00 | 73,499.84 | 78,209.65 | (4,709.81) | 2,354,905 |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | | 500 | 6,775.00 | 7,524.88 | 8,007.07 | (482.19) | 241,095 |
| Total | | | | | | | | $5,925,170 |

(1) See page 8.
(2) See page 10. Does not assume any inflation over current cost estimates.
(3) See page 9.
(4) Assumes that the 2025 target inventory is reached for amenities with current deficiencies.
(5) Represents the estimated cost to meet amenities deficits caused by population growth. The cost is based on the unit cost for each amenity type multiplied by the 2024 Inventory Deficits.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation y of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**ESTIMATED IMPACT FEE COST OF 2034 IMPROVEMENTS**

| Amenity | Target Service Ratio | | Unit Cost | Current Inventory (City Provided) | 2025 Target Inventory | 2034 Target Inventory | 2034 Inventory Surplus/ (Deficit) | Cost to Meet 2034 Need |
|---|---|---|---|---|---|---|---|---|
| | (1) | | (2) | (1) | (1) | (3) | (4) | (5) |
| Park Acreage | 10.33 acres/1,000 people | | $28,000 | 464.00 | 475.08 | 537.91 | (62.83) | $1,759,240 |
| Hard Surface Trails | 0.65 miles/1,000 people | | 850,000 | 29.30 | 29.89 | 33.85 | (3.96) | 3,366,000 |
| Unpaved Trails | 0.08 miles/1,000 people | | 160,000 | 3.53 | 3.68 | 4.17 | (0.49) | 78,400 |
| Basketball Courts | 0.07 courts/1,000 people | | 65,000 | 3.00 | 3.22 | 3.65 | (0.43) | 27,950 |
| Multi-use Fields | 0.11 fields/1,000 people | | 100,000 | 5.00 | 5.06 | 5.73 | (0.67) | 67,000 |
| Baseball/Softball Fields | 0.07 fields/1,000 people | | 150,000 | 3.00 | 3.22 | 3.65 | (0.43) | 64,500 |
| Restroom Buildings | 0.09 buildings/1,000 people | | 350,000 | 3.00 | 4.14 | 4.69 | (0.55) | 192,500 |
| Shelters | 0.33 structures/1,000 people | | 150,000 | 14.00 | 15.18 | 17.18 | (2.00) | 300,000 |
| Playgrounds | 0.17 structures/1,000 people | | 350,000 | 8.00 | 7.82 | 8.85 | (0.85) | 297,500 |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | | 500,000 | 1.00 | 0.92 | 1.04 | (0.04) | 20,000 |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | | 3,000,000 | 1.00 | 1.38 | 1.56 | (0.18) | 540,000 |
| Splashpad | 0.02 sites/1,000 people | | 500,000 | 0.00 | 0.92 | 1.04 | (0.12) | 60,000 |
| Canoe Launch | 0.10 sites/1,000 people | | 50,000 | 3.00 | 4.60 | 5.21 | (0.61) | 30,500 |
| Native Plantings | 0.12 sites/1,000 people | | 8,000 | 0.00 | 5.52 | 6.25 | (0.73) | 5,840 |
| Dog Park | 0.04 sites/1,000 people | (6) | 250,000 | 2.00 | 1.84 | 2.08 | (0.08) | 20,000 |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | (6) | 10,000 | 78.00 | 78.18 | 88.52 | (10.34) | 103,400 |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | | 250,000 | 0.00 | 0.92 | 1.04 | (0.12) | 30,000 |
| Community Center Space | 1,598.17 sq.ft./1,000 people | | 500 | 73,000.00 | 73,499.84 | 83,221.51 | (9,721.67) | 4,860,835 |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | | 500 | 6,775.00 | 7,524.88 | 8,520.18 | (995.30) | 497,650 |
| Total | | | | | | | | $12,321,315 |

(1) See page 8.
(2) See page 10. Does not assume any inflation over current cost estimates.
(3) See page 9.
(4) Assumes that the 2025 target inventory is reached for amenities with current deficiencies.
(5) Represents the estimated cost to meet amenities deficits caused by population growth. The cost is based on the unit cost for each amenity type multiplied by the 2024 Inventory Deficits.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**ESTIMATED ANNUAL 2025 IMPACT FEE REVENUES**

| | Estimated Housing Unit Growth (1) | | | Impact Fee per Unit (2) | | Estimated 2025 Impact Fee Revenues | | | |
|---|---|---|---|---|---|---|---|---|---|
| Year | Single Family | Multi-Family | Total | Single Family | Multi-Family | Single Family | Multi-Family | Total | Cumulative Revenues |
| 2025 | 88 | 179 | 267 | $2,138 | $3,563 | $188,144 | $637,777 | $825,921 | $825,921 |
| 2026 | 89 | 182 | 271 | 2,138 | 3,563 | 190,282 | 648,466 | 838,748 | 1,664,669 |
| 2027 | 90 | 184 | 274 | 2,138 | 3,563 | 192,420 | 655,592 | 848,012 | 2,512,681 |
| 2028 | 92 | 186 | 278 | 2,138 | 3,563 | 196,696 | 662,718 | 859,414 | 3,372,095 |
| 2029 | 93 | 188 | 281 | 2,138 | 3,563 | 198,834 | 669,844 | 868,678 | 4,240,773 |
| 2030 | 94 | 191 | 285 | 2,138 | 3,563 | 200,972 | 680,533 | 881,505 | 5,122,278 |
| 2031 | 95 | 193 | 288 | 2,138 | 3,563 | 203,110 | 687,659 | 890,769 | 6,013,047 |
| 2032 | 96 | 196 | 292 | 2,138 | 3,563 | 205,248 | 698,348 | 903,596 | 6,916,643 |
| 2033 | 97 | 198 | 295 | 2,138 | 3,563 | 207,386 | 705,474 | 912,860 | 7,829,503 |
| 2034 | 99 | 200 | 299 | 2,138 | 3,563 | 211,662 | 712,600 | 924,262 | 8,753,765 |
| Totals | 933 | 1,897 | 2,830 | | | $1,994,754 | $6,759,011 | $8,753,765 | |

(1) See page 6.

(2) See page 5.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

## ESTIMATED NON-LOCAL REVENUE CREDIT

| | | |
|---|---|---|
| Estimated land deficiency for plan horizon (acres) | 63.56 | (1) |
| Less: Estimated land acquisition through impact fee purchase (acres) | (47.67) | (2) |
| Estimated land acquisition through donation/conversion (acres) | 15.89 | |
| Estimated 2034 price per acre of land | $28,000 | (3) |
| Estimated non-local revenue credit for land | $444,920 | |
| Estimated grant receipts for plan horizon | 898,000 | (4) |
| Total estimated non-local revenue credit | $1,342,920 | |

(1) See page 9.
(2) Assumes that 25% of the acreage deficit will be addressed through donations received, based on historical trends.
(3) Based on the estimated cost of an acre of land, as shown on page 10.
(4) Assumes the amount of grants will be received during the plan horizon will be proportional to the total grants received by the City for Park projects in the past five years.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

## ESTIMATED NEW POPULATION SHARE OF CAPITAL BUDGET

| Budget Year | Capital Budget | New Population Percentage of Total Population | New Population Contribution to Capital Budget |
|---|---|---|---|
| | (1) | (2) | (3) |
| 2025 | $5,392,000 | 1.23% | $66,320 |
| 2026 | 5,392,000 | 2.45% | 132,100 |
| 2027 | 5,392,000 | 3.66% | 197,350 |
| 2028 | 5,392,000 | 4.85% | 261,510 |
| 2029 | 5,392,000 | 6.02% | 324,600 |
| 2030 | 5,392,000 | 7.18% | 387,150 |
| 2031 | 5,392,000 | 8.33% | 449,150 |
| 2032 | 5,392,000 | 9.46% | 510,080 |
| 2033 | 5,392,000 | 10.58% | 570,470 |
| 2034 | 5,392,000 | 11.68% | 629,790 |
| Total | | | $3,528,520 |

(1) See page 17. Assumes the Town's future capital projects expenditures for park projects remains constant through the planning horizon of 2034.
(2) Based on the current and estimated population of the City of West Lafayette.
(3) Assumes the contribution of new residents to the capital projects budget is proportional to the number of new residents compared to the total population of the City of West Lafayette.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**HISTORICAL RECREATION CAPITAL IMPROVEMENTS EXPENDITURES NOT FUNDED THROUGH RECREATION IMPACT FEES, GRANTS, DONATIONS OR TAX INCREMENT FINANCE DEBT**

| Budget Year | Capital Expenditures (1) |
|---|---|
| 2020 | $2,923,502.73 |
| 2021 | 3,407,526.49 |
| 2022 | 2,577,546.84 |
| 2023 | 11,327,922.58 |
| 2024 | 6,719,922.58 |
| Average | $5,392,000 |

(1) Per the City of West Lafayette.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

**CITY OF WEST LAFAYETTE, INDIANA**

**ESTIMATED ANNUAL 2025 IMPACT FEE REVENUES AND EXPENDITURES**

| Amenity | Base Unit Cost | Estimated Cost (1) Year 2025 | 2026 | 2027 | 2028 | 2029 | 2030 | 2031 | 2032 | 2033 | 2034 | Total |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| | (1) | | | | | | | | | | | |
| Park Acreage | $28,000 | ($168,000) | ($168,000) | ($168,000) | ($168,000) | ($168,000) | ($168,000) | ($177,240) | ($182,000) | ($196,000) | ($196,000) | ($1,759,240) |
| Hard Surface Trails | 850,000 | (306,000) | (340,000) | (340,000) | (340,000) | (340,000) | (340,000) | (340,000) | (340,000) | (340,000) | (340,000) | (3,366,000) |
| Unpaved Trails | 160,000 | (14,400) | (16,000) | (16,000) | (16,000) | (16,000) | 0 | 0 | 0 | 0 | 0 | (78,400) |
| Basketball Courts | 65,000 | (1,950) | (6,500) | (6,500) | (6,500) | (6,500) | 0 | 0 | 0 | 0 | 0 | (27,950) |
| Multi-use Fields | 100,000 | (7,000) | (10,000) | (10,000) | (10,000) | (10,000) | (10,000) | (10,000) | 0 | 0 | 0 | (67,000) |
| Baseball/Softball Fields | 150,000 | (4,500) | (15,000) | (15,000) | (15,000) | (15,000) | 0 | 0 | 0 | 0 | 0 | (64,500) |
| Restroom Buildings | 350,000 | (17,500) | (17,500) | (17,500) | (17,500) | (17,500) | (21,000) | (21,000) | (21,000) | (21,000) | (21,000) | (192,500) |
| Shelters | 150,000 | (30,000) | (30,000) | (30,000) | (30,000) | (30,000) | (30,000) | (30,000) | (30,000) | (30,000) | (30,000) | (300,000) |
| Playgrounds | 350,000 | 0 | (17,500) | (35,000) | (35,000) | (35,000) | (35,000) | (35,000) | (35,000) | (35,000) | (35,000) | (297,500) |
| Ice Rink (outdoor) | 500,000 | 0 | 0 | 0 | 0 | 0 | 0 | (5,000) | (5,000) | (5,000) | (5,000) | (20,000) |
| Aquatic Center (outdoor) | 3,000,000 | (30,000) | (30,000) | (60,000) | (60,000) | (60,000) | (60,000) | (60,000) | (60,000) | (60,000) | (60,000) | (540,000) |
| Splashpad | 500,000 | (5,000) | (5,000) | (5,000) | (5,000) | (5,000) | (5,000) | (5,000) | (5,000) | (10,000) | (10,000) | (60,000) |
| Canoe Launch | 50,000 | 0 | 0 | 0 | 0 | (5,000) | (5,000) | (5,000) | (5,000) | (5,000) | (5,500) | (30,500) |
| Native Plantings | 8,000 | 0 | 0 | 0 | (800) | (800) | (800) | (800) | (800) | (800) | (1,040) | (5,840) |
| Dog Park | 250,000 | 0 | 0 | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (20,000) |
| Community Gardens (Ind. Plot) | 10,000 | (10,000) | (10,000) | (10,000) | (10,000) | (10,000) | (10,000) | (10,400) | (11,000) | (11,000) | (11,000) | (103,400) |
| Arboretum/Public Gardens | 250,000 | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (2,500) | (5,000) | (5,000) | (30,000) |
| Community Center Space | 500 | 0 | 0 | 0 | (500,000) | (500,000) | (500,000) | (500,000) | (860,835) | (1,000,000) | (1,000,000) | (4,860,835) |
| Nature Education Center Space | 500 | (47,650) | (50,000) | (50,000) | (50,000) | (50,000) | (50,000) | (50,000) | (50,000) | (50,000) | (50,000) | (497,650) |
| Total Cost | | (644,500) | (718,000) | (768,000) | (1,268,800) | (1,273,800) | (1,239,800) | (1,254,440) | (1,610,635) | (1,771,300) | (1,772,040) | ($12,321,315) |
| Estimated Impact Fee Revenues (2) | | 825,921 | 838,748 | 848,012 | 859,414 | 868,678 | 881,505 | 890,769 | 903,596 | 912,860 | 924,262 | |
| Estimated Non-Local Revenue Credit (3) | | 134,292 | 134,292 | 134,292 | 134,292 | 134,292 | 134,292 | 134,292 | 134,292 | 134,292 | 134,292 | |
| Estimated Capital Budget Contribution (4) | | 66,320 | 132,100 | 197,350 | 261,510 | 324,600 | 387,150 | 449,150 | 510,080 | 570,470 | 629,790 | |
| Estimated Net Revenues/(Loss) | | 382,033 | 387,140 | 411,654 | (13,584) | 53,770 | 163,147 | 219,771 | (62,667) | (153,678) | (83,696) | |
| Beginning Balance | | 0 | 382,033 | 769,173 | 1,180,827 | 1,167,243 | 1,221,013 | 1,384,160 | 1,603,931 | 1,541,264 | 1,387,586 | |
| Ending Balance | | $382,033 | $769,173 | $1,180,827 | $1,167,243 | $1,221,013 | $1,384,160 | $1,603,931 | $1,541,264 | $1,387,586 | $1,303,890 | |

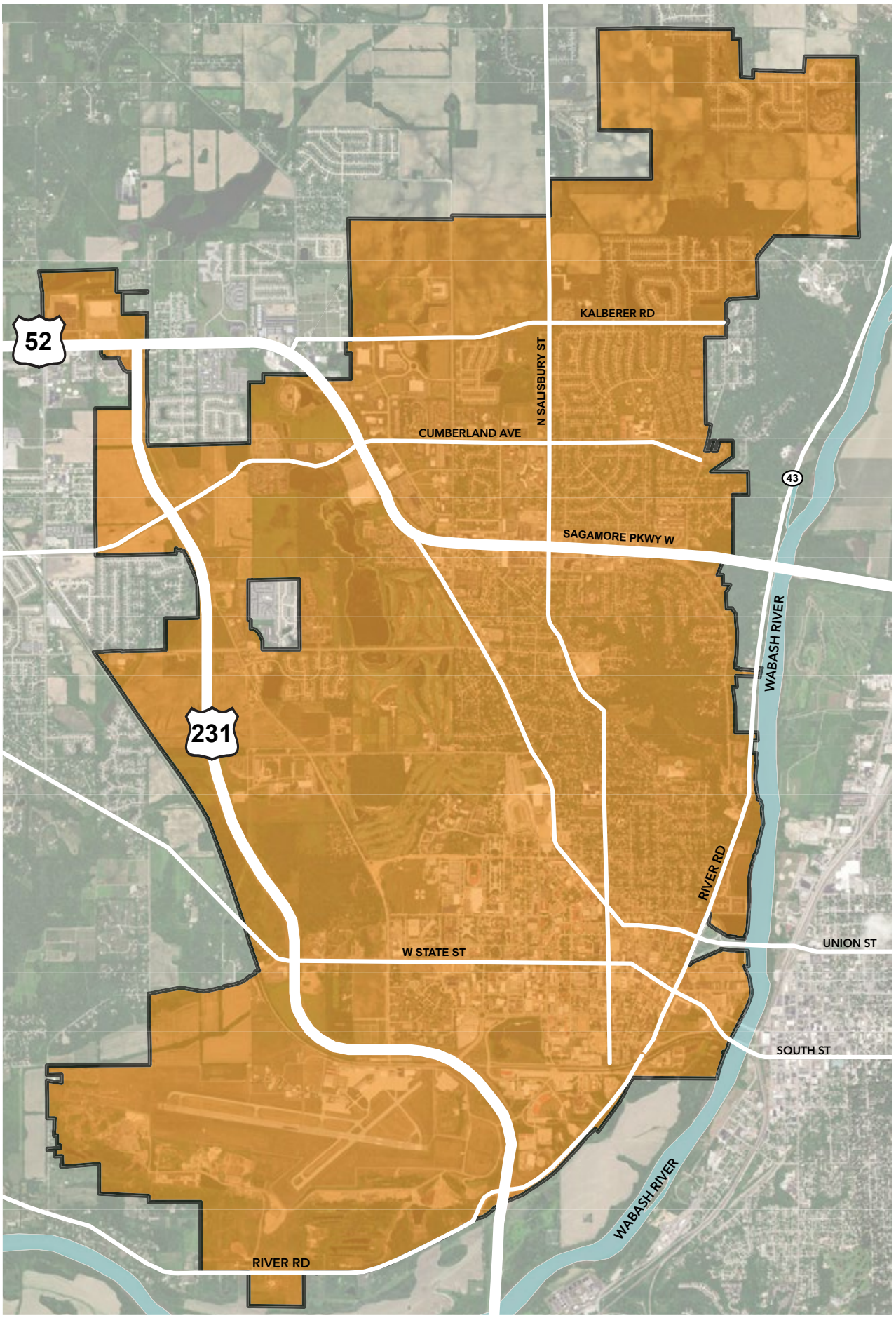
(1) See page 10.
(2) See page 14.
(3) See page 15. Assumes the credit is applied equally over the 10-year plan horizon.
(4) See page 16.

Note: The effective date of the 2025 Impact Fee will be six months following the adoption of the Impact Fee Ordinance. The calculation was completed assuming a base implementation year of 2025.

(Subject to the comments in the attached Report
dated September 9, 2024 of Baker Tilly Municipal Advisors, LLC)

# APPENDIX A

# MAPS OF IMPACT ZONE




West Lafayette Corporate Boundary

# APPENDIX B

# AMENITIES DEFINITIONS AND COST ESTIMATES

| WEST LAFAYETTE PARK IMPACT FEE REPORT<br>Estimated Amenity Cost | | | |
|---|---|---|---|
| Amenity | Level of Service Target Ratio per 1,000 population | Cost | Unit |
| Park Acreage | 10.33 | $28,000.00 | Acre |
| Hard Surface Trails | 0.65 | $850,000.00 | Mile |
| Unpaved Trails | 0.08 | $160,000.00 | Mile |
| Basketball Court | 0.07 | $65,000.00 | Each |
| Multi-Use Field | 0.11 | $100,000.00 | Each |
| Baseball/Softball Field | 0.07 | $150,000.00 | Each |
| Restroom Buildings | 0.09 | $350,000.00 | Each |
| Shelters/Pavilions | 0.33 | $150,000.00 | Each |
| Playground | 0.17 | $350,000.00 | Each |
| Ice Rink (outdoor) | 0.02 | $500,000.00 | Each |
| Aquatic Center (outdoor) | 0.03 | $3,000,000.00 | Each |
| Splash Pad | 0.02 | $500,000.00 | Each |
| Canoe Launch | 0.10 | $50,000.00 | Each |
| Native Plantings | 0.12 | $8,000.00 | Acre |
| Dog Park | 0.04 | $250,000.00 | Each |
| Community Gardens (Ind. Plot) | 1.70 | $10,000.00 | Each |
| Arboretum/Public Gardens | 0.02 | $250,000.00 | Each |
| Community Center Space | 1,598.17 | $500.00 | S.F. |
| Nature Education Center Space | 163.62 | $500.00 | S.F. |
| | | | |

| PARK IMPACT FEE: STANDARD COMMUNITY AMENITY/FACILITY PRELIMINARY COST ESTIMATES | | | |
|---|---|---|---|
| **STANDARD CITY AMENITY/FACILITY** | **DEFINITION/ASSUMPTIONS OR PERFORMANCE STANDARDS** | **UNIT** | **UNIT COST (2023 $)** |
| **PARK ACREAGE** | *Land purchased for the purpose of parks and recreation use and owned by the City of West Lafayette through the Parks and Recreation Board.*<br>Land measured in acres. | AC. | $28,000 |
| **NATIVE PLANTINGS** | *Those plantings that have naturally evolved in a specific region's ecosystem, to the extent that said plantings were growing naturally in the area before humans introduced plants from distant places. Native plantings typically require no special care, including irrigation or fertilization, to thrive. They are typically pest resistant and disease resistant, and are truly low-maintenance grading and landscaping plants.*<br>Native grass/herbaceous plantings (plugs) | AC | $8,000 |
| **CANOE LAUNCH** | *A location on a body of water that is designated for the purpose of launching a canoe/kayak (i.e. placing a canoe/kayak in the water) typically for recreational purposes. A typical canoe launch is a simple clearing in the landscape adjacent to a waterway where paddlers can access the waterway with their canoe/kayak.*<br>None | EA | $50,000 |
| **HARD SURFACE TRAILS** | *An established asphalt multi-use path for travel or access; a course for pedestrian and bicycle passage. Does not include bridges.*<br>Primary trail - 12'-15' (desired) - 10' (minimum);<br>Secondary trail - 10'-12' (desired) - 8' (minimum);<br>Multi-use asphalt trail | MI | $850,000 |
| **UNPAVED TRAILS** | *An established line of travel or access; any natural or landscaped course for pedestrian or bicycle passage. Does not include bridges.*<br>Trail: 6' wide crushed aggregate (preferred) walking trail (no equestrian use). | MI | $160,000 |
| **RESTROOM BUILDING** | *A stand-alone or combination concession stand/restroom facility in association with a recreation facility. A concession building may or may not have maintenance closets, storage facilities and/or announcer's booths. Restroom facility contains both facilities for men and women and are not portable chemical toilets.*<br>Enclosed structure meeting ADA requirements. | EA | $350,000 |
| **ICE RINK (Outdoor)** | *Outdoor ice surface that is designed for recreational skating.*<br>Ice surface with safety railings. May be covered or uncovered. Dimensions range from 30'x60' to 70'x 120'. | MI | $500,000 |
| **AQUATIC CENTER (Outdoor)** | *A complex that offers water sports facilities which may include one or more of the following: splash pads, splash play elements, swimming pools, zero-depth swimming, waterslides, flumes, and wave pools.*<br>Size and complexity varies. | EA | $3,000,000 |
| **SPLASH PAD** | *An outdoor play area with sprinklers, fountains, and nozzles that spray water. Splash pads have little to no standing water. Splash pads may be designed for water play or may be more decorative in nature and include lighting.*<br>Includes a non-slip safety surface, nozzles and water features to shower, spray, rain, mist, shoot water. Splash pads may include circulating or non-circulating water systems. Water features can be continuous or activated by push button. Size varies from 10'x10' to regulation pool size. | EA | $500,000 |
| **SHELTER/PAVILION** | *A typical open-sided shelter structure located in a park and which is intended to protect users of the park from the elements (i.e. sun, wind and rain). Includes seating and often tables. Typically utilized for larger gatherings, families or as a rental space.* | EA | $150,000 |

| PARK IMPACT FEE: STANDARD COMMUNITY AMENITY/FACILITY PRELIMINARY COST ESTIMATES | | | |
|---|---|---|---|
| **STANDARD CITY AMENITY/FACILITY** | **DEFINITION/ASSUMPTIONS OR PERFORMANCE STANDARDS** | **UNIT** | **UNIT COST (2023 $)** |
| | 25' x 30', large open air shelter with seating | | |
| **PLAYGROUND** | *An outdoor play area designated for children to play; a small area with dedicated play equipment.*<br>Single piece of play structure equipment. | EA | $350,000 |
| **MULTI-USE FIELD** | *A relatively flat, grassy area that is suitable for scheduled league or team sports activities, such as rugby, lacrosse, soccer, softball, and baseball, that is between seven and ten acres in size, but which does not include permanent buildings or structures. Estimate does not include irrigation or lighting.*<br>Space - 7-10 Acres | EA | $100,000 |
| **TENNIS COURT** | *A facility on which the game of tennis is played. For the purpose of this estimate, a tennis court facility includes, but is not necessarily limited to, the following: rectangular flat surface, net, fencing and stands. Lighting is not included.*<br>Size/Dimensions - 36' x 78' w/12' clearance on both ends<br>Space - 7,200 s.f. minimum singe court area<br>Service Area - 1/4 to 1/2 mile | EA | $50,000 |
| **PICKLEBALL COURT** | *A facility on which the game of pickleball is played. For the purpose of this estimate, a pickleball court facility includes, but is not necessarily limited to, the following: rectangular flat surface, net, fencing and stands. Lighting is not included.*<br>Size/Dimensions - 20' x 44'<br>Space - Minimum surface area: 30' x 60' with 34'x64' recommended<br>Service Area - 1/4 to 1/2 mile | EA | $50,000 |
| **BASKETBALL COURT** | *A facility on which the game of basketball is played. For the purposes of this estimate, a basketball court facility includes, but is not necessarily limited to, the following: floor/asphalt surface, goals, team benches, and stands.*<br>Youth Basketball Court<br>Size/Dimensions - 46' to 50' x 84'<br>Space - 2,400 to 3,036 s.f.<br>Service Area - 1/4 to 1/2 mile radius | EA | $65,000 |
| **BASEBALL/SOFTBALL FIELD** | *A facility on which the game of baseball or softball is played. For the purposes of this estimate, a baseball /softball field facility includes the following: infield, outfield, team benches/dugouts, scoreboards, fencing, field lighting, irrigation and stands/bleachers.*<br>Standard Baseball Field (adaptable for Little League)<br>Baselines - 90'<br>Pitching distance - 60.5'<br>Foul lines - min. 320'<br>Center field - 400' or more<br>Space - 3.7 Acres (160,000 s.f.)<br>Service Area - 1/4 to 1/2 mile radius | EA | $150,000 |
| **COMMUNITY CENTER SPACE** | *A space where members of a municipality can gather for social or cultural activities. Community rooms may be dedicated for public use or designated as flexible space with the opportunity to reserve when that space is not being used for it's primary purpose (i.e. designated community rooms located within City Hall will serve the town government's needs first with reservation opportunities as secondary use).*<br>Multi-purpose room, offices, meeting rooms, etc. available for use by the public. | SF | $500 |

| PARK IMPACT FEE: STANDARD COMMUNITY AMENITY/FACILITY PRELIMINARY COST ESTIMATES | | | |
|---|---|---|---|
| **STANDARD CITY AMENITY/FACILITY** | **DEFINITION/ASSUMPTIONS OR PERFORMANCE STANDARDS** | **UNIT** | **UNIT COST (2023 $)** |
| **NATURE EDUCATION CENTER SPACE** | *A place of interest, such as a park or historical site, where a building or group of buildings provide visitors with an interpretation of that place through a variety of media, such as video displays and exhibitions of materials. An education space may include restrooms, concessions, or gift shops. For the purposes of this estimate, the phrase "interpretive center" also includes "visitors center." An interpretive center may include a self-guided trail. Estimate does not include costs associated with creating/graphic design/fabricating the interpretive displays.* | SF | $500 |
| | Multi-purpose room, exhibit rooms, meeting rooms, etc. available for use by the public. | | |
| **ARBORETUM/PUBLIC GARDENS** | *An outdoor space devoted to specimen plantings of trees and shrubs. An outdoor museum of trees where many varities of trees are grown for research, educational, and ornamental purposes.* | SF | $25,000 |
| | An outdoor museum of trees and shrubs used for education, research, and ornamentation. | | |
| **DOG PARK** | *An area of land set aside and designated for dogs so that they may exercise and socialize off leash in a controlled environment under the supervision of their owners. For the purposes of this estimate, a dog park facility includes, but is not necessarily limited to, the following: 6' or taller metal fence; separate, double-entry and exit points; adequate drainage; benches for dog owners; tools to pick up and dispose of dog waste (i.e. covered trash cans) and shade. A dog park may or may not include potable water taps, a pond for swimming, or a separate enclosure for small dogs. Does not include property acquisition costs.* | SF | $25,000 |
| | Two 2.5 acre large dog areas (for rotation purposes) and a 0.5 acre area for small dogs<br>Keyed entry, 15' x 15' bull pin at entry with two gates, 8' chain-link fence enclosure, water fountain(s), wash off facility, benches, dog waste stations, etc. | | |
| **COMMUNITY GARDENS (IND. PLOT)** | *A small area, typically 20' x 20', of ground for gardening.* | SF | $10,000 |
| | Starter garden with 40 plots. | | |

WEST LAFAYETTE parks and recreation

# CITY OF WEST LAFAYETTE

## Park Impact Fee Study

October 07, 2024

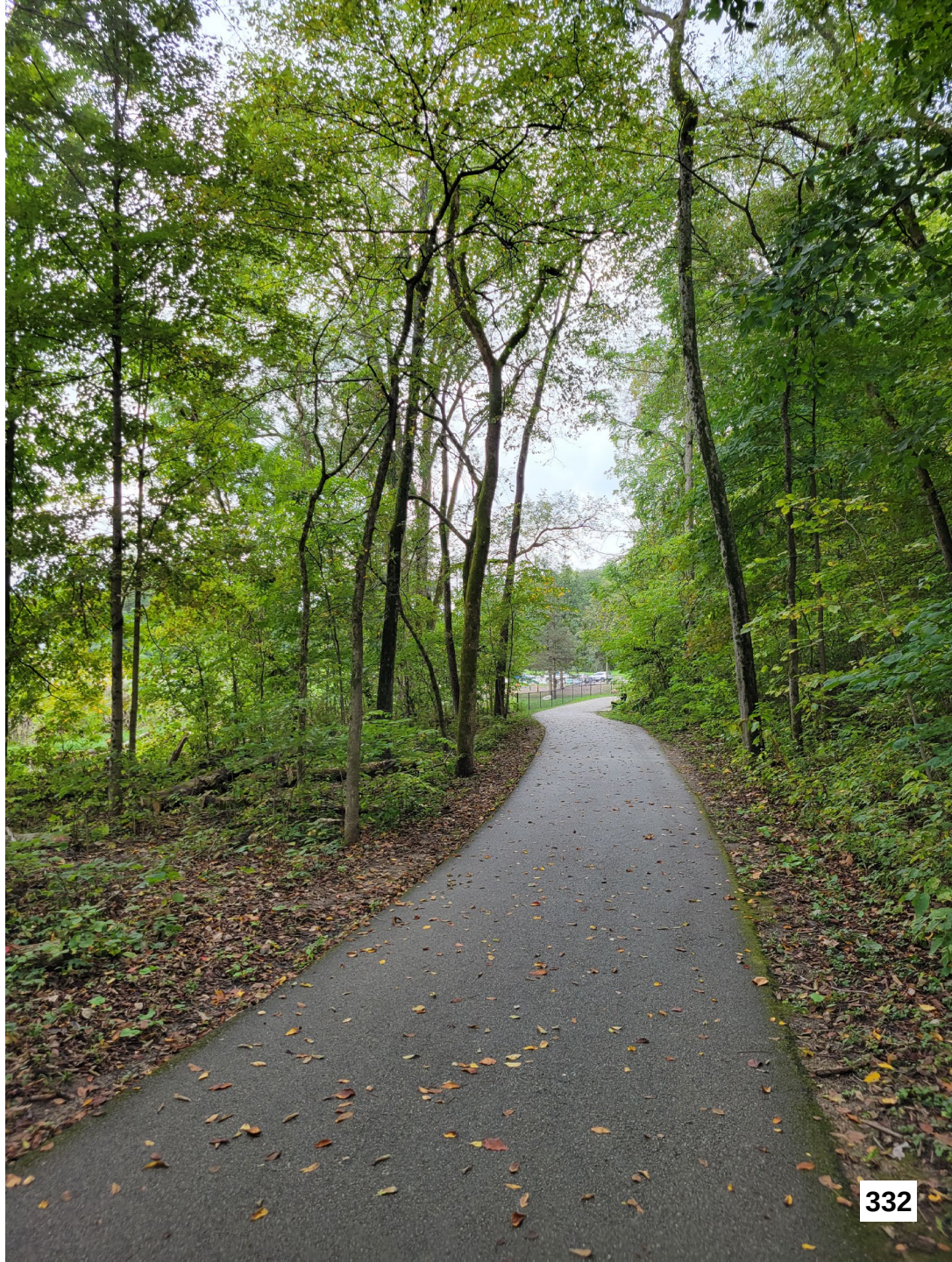
City Council Presentation

REA
RUNDELL ERNSTBERGER ASSOCIATES

bakertilly

# Park Impact Fee

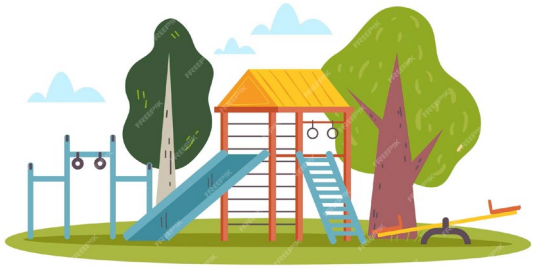
1. Fees Assessed to New Developments.
2. Allow the community to make capital improvements to parks to serve residents.
3. Does not cover existing amenity deficiencies.
4. Fees are based on a proportionate share of reasonable estimate of costs needed for new residents.



# Park Impact Fee

Existing Population

New Population



Existing Park Needs (Based on LOS)

Future Park Needs (Based on LOS + Projections)

Paid for Out of Existing Budget

Paid for With Impact Fees

# Steering Committee

1. 10 Members
2. 40% representing the development, building, and real estate industry
3. 4 meetings – Guided development of impact fee

# Projected growth (Zone Improvement Plan Pg. 6)

**HISTORICAL POPULATION AND HOUSING UNIT GROWTH 2015-2024**

| Year | Population | Population Change | New Housing Units | | |
|---|---|---|---|---|---|
| | | | Single Family | Multi-Family | Total |
| **Historical (1)** | | | | | |
| 2015 | 43,999 | | 37 | 36 | 73 |
| 2016 | 44,543 | 544 | 51 | 80 | 131 |
| 2017 | 45,110 | 567 | 36 | 362 | 398 |
| 2018 | 47,224 | 2,114 | 24 | 1,100 | 1,124 |
| 2019 | 48,551 | 1,327 | 19 | 563 | 582 |
| 2020 | 44,595 | (3,956) | 15 | 303 | 318 |
| 2021 | 44,515 | (80) | 31 | 118 | 149 |
| 2022 | 44,861 | 346 | 28 | 235 | 263 |
| 2023 | 45,422 | 561 | 43 | 625 | 668 |
| 2024 (2) | 45,990 | 568 | 87 | 177 | 264 |

**ESTIMATED POPULATION AND HOUSING UNIT GROWTH 2025-2034**

| | | | | | |
|---|---|---|---|---|---|
| **Estimated (2)** | | | | | |
| 2025 | 46,564 | 574 | 88 | 179 | 267 |
| 2026 | 47,146 | 582 | 89 | 182 | 271 |
| 2027 | 47,736 | 590 | 90 | 184 | 274 |
| 2028 | 48,332 | 596 | 92 | 186 | 278 |
| 2029 | 48,937 | 605 | 93 | 188 | 281 |
| 2030 | 49,548 | 611 | 94 | 191 | 285 |
| 2031 | 50,168 | 620 | 95 | 193 | 288 |
| 2032 | 50,795 | 627 | 96 | 196 | 292 |
| 2033 | 51,430 | 635 | 97 | 198 | 295 |
| 2034 | 52,073 | 643 | 99 | 200 | 299 |

# Level of Service (Zone Improvement Plan Pg. 8)

1. 5-Year Parks Master Plan Recommendations
2. Public Input from Parks Master Plan
3. Discussions with Parks and Recreation Staff
4. Discussions with Steering Committee

# Projected Amenity Costs (Zone Improvement Plan Pg. 13)

**ESTIMATED IMPACT FEE COST OF 2034 IMPROVEMENTS**

| Amenity | Target Service Ratio | | Unit Cost | Current Inventory (City Provided) | 2025 Target Inventory | 2034 Target Inventory | 2034 Inventory Surplus/ (Deficit) | Cost to Meet 2034 Need |
|---|---|---|---|---|---|---|---|---|
| | (1) | | (2) | (1) | (1) | (3) | (4) | (5) |
| Park Acreage | 10.33 acres/1,000 people | | $28,000 | 464.00 | 475.08 | 537.91 | (62.83) | $1,759,240 |
| Hard Surface Trails | 0.65 miles/1,000 people | | 850,000 | 29.30 | 29.89 | 33.85 | (3.96) | 3,366,000 |
| Unpaved Trails | 0.08 miles/1,000 people | | 160,000 | 3.53 | 3.68 | 4.17 | (0.49) | 78,400 |
| Basketball Courts | 0.07 courts/1,000 people | | 65,000 | 3.00 | 3.22 | 3.65 | (0.43) | 27,950 |
| Multi-use Fields | 0.11 fields/1,000 people | | 100,000 | 5.00 | 5.06 | 5.73 | (0.67) | 67,000 |
| Baseball/Softball Fields | 0.07 fields/1,000 people | | 150,000 | 3.00 | 3.22 | 3.65 | (0.43) | 64,500 |
| Restroom Buildings | 0.09 buildings/1,000 people | | 350,000 | 3.00 | 4.14 | 4.69 | (0.55) | 192,500 |
| Shelters | 0.33 structures/1,000 people | | 150,000 | 14.00 | 15.18 | 17.18 | (2.00) | 300,000 |
| Playgrounds | 0.17 structures/1,000 people | | 350,000 | 8.00 | 7.82 | 8.85 | (0.85) | 297,500 |
| Ice Rink (outdoor) | 0.02 sites/1,000 people | | 500,000 | 1.00 | 0.92 | 1.04 | (0.04) | 20,000 |
| Aquatic Center (outdoor) | 0.03 sites/1,000 people | | 3,000,000 | 1.00 | 1.38 | 1.56 | (0.18) | 540,000 |
| Splashpad | 0.02 sites/1,000 people | | 500,000 | 0.00 | 0.92 | 1.04 | (0.12) | 60,000 |
| Canoe Launch | 0.10 sites/1,000 people | | 50,000 | 3.00 | 4.60 | 5.21 | (0.61) | 30,500 |
| Native Plantings | 0.12 sites/1,000 people | | 8,000 | 0.00 | 5.52 | 6.25 | (0.73) | 5,840 |
| Dog Park | 0.04 sites/1,000 people | (6) | 250,000 | 2.00 | 1.84 | 2.08 | (0.08) | 20,000 |
| Community Gardens (Ind. Plot) | 1.70 sites/1,000 people | (6) | 10,000 | 78.00 | 78.18 | 88.52 | (10.34) | 103,400 |
| Arboretum/Public Gardens | 0.02 sites/1,000 people | | 250,000 | 0.00 | 0.92 | 1.04 | (0.12) | 30,000 |
| Community Center Space | 1,598.17 sq.ft./1,000 people | | 500 | 73,000.00 | 73,499.84 | 83,221.51 | (9,721.67) | 4,860,835 |
| Nature Education Center Space | 163.62 sq.ft./1,000 people | | 500 | 6,775.00 | 7,524.88 | 8,520.18 | (995.30) | 497,650 |
| Total | | | | | | | | $12,321,315 |

# Impact Fee Calculation

## SUMMARY OF 2025 IMPACT FEE CALCULATION

**2025 Impact Fee Calculation:**

| | | |
|---|---|---|
| Cost of meeting 2034 Level of Service needs | $12,321,315 | (1) |
| Less: Estimated non-local revenues | (1,342,920) | (2) |
| Less: New resident capital budget contribution | (3,528,520) | (3) |
| Less: New resident contribution to bond principal payments | 0 | (4) |
| Capital costs to be funded by 2025 Impact Fees | 7,449,875 | |
| Divided by estimated equivalent housing units | 2,091 | (5) |
| 2025 Impact Fee for single-family unit | $3,563 | |

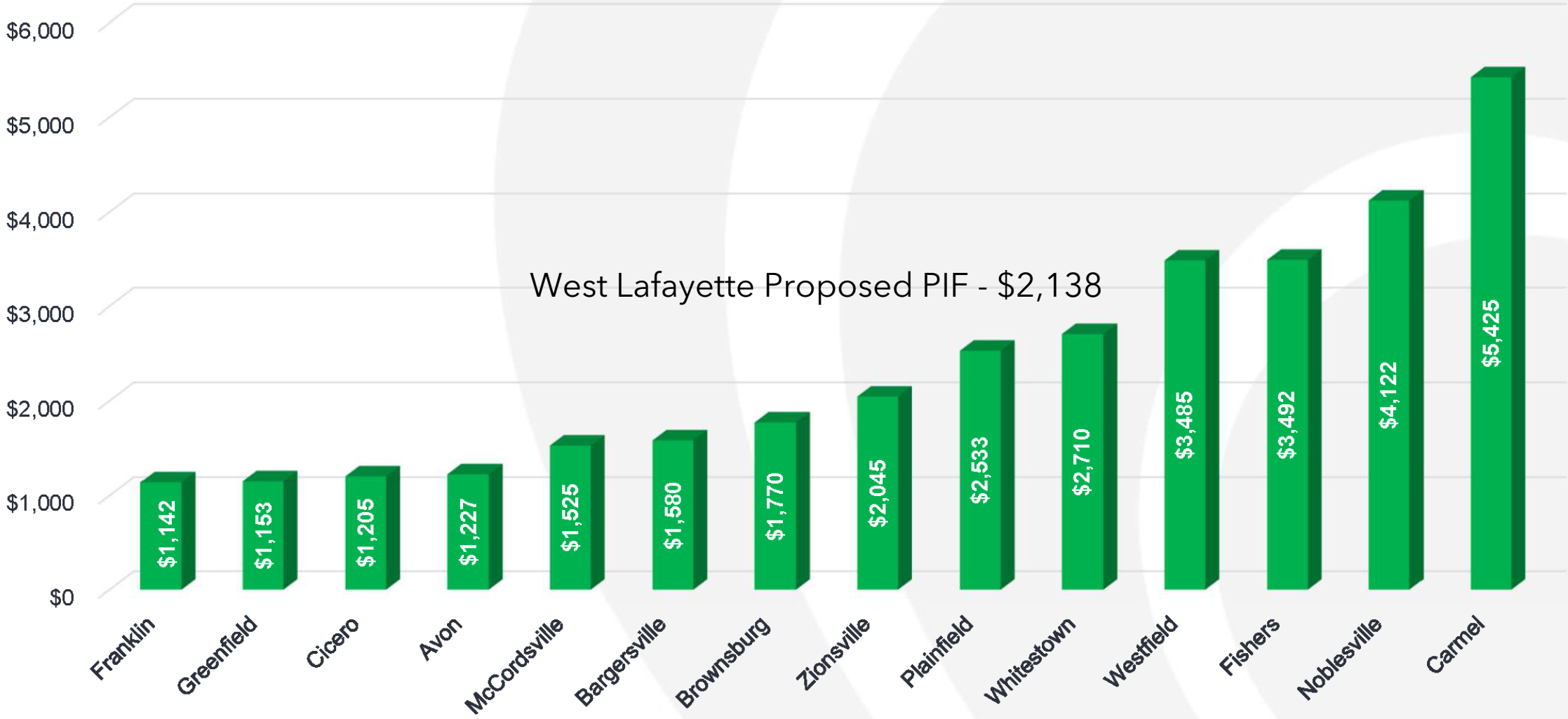
**2025 Impact Fee Schedule by Development Type:**

| | | |
|---|---|---|
| Single-family home | 60% | $2,138 |
| Multi-family home | 100% | $3,563 |

# Parks and Recreation Impact Fee Review Board

- Three citizen members appointed by executive of the City.
  - 1 real estate broker
  - 1 licensed engineer
  - 1 certified public accountant
- Can not be a member of Plan Commission.
- Will hear appeals for refund/credits and amount of impact fee.

# Indianapolis Metro Area Park Impact Fee Amounts



# NEXT STEPS

- Revisions to Impact Fee Report
- Form Park Impact Fee Review Board
- Ordinance Adoption
  - Public Hearing/City Council First Reading
  - City Council Second Reading/Adoption
  - First fee can’t be collected until 6 months after Ordinance is adopted.
  - Plan will need to be reviewed/adjusted every 5 years.

**WEST LAFAYETTE**
**NOTICE OF PUBLIC HEARING**

Notice is hereby given that the City of West Lafayette, Indiana, will hold a public hearing during the regularly scheduled West Lafayette City Council Meeting on November 4, 2024, at 6:30 p.m. at West Lafayette City Hall, 222 N. Chauncey Ave, West Lafayette, IN 47906 for the purpose of receiving comment on and then approving the Park & Recreation Zone Improvement Plan to establish a Park Impact Fee. A Park Impact Fee enables communities to impose an impact fee on new development to offset or mitigate the capital cost of infrastructure that is needed to serve new development pursuant to Indiana Code 36-7-4-1300.

Sponsored by: Iris O'Donnell Bellisario & Laila Veidemanis

# Resolution No. 20-2024

## Resolution to Recognize Digital Inclusion Week

WHEREAS, Broadband services play an important role in civic and cultural participation, lifelong learning and access to essential services for West Lafayette communities; and

WHEREAS, Digital equity ensures all individuals and communities have the information technology capacity needed for full participation in our society, democracy and economy; and

WHEREAS, The COVID-19 pandemic highlighted how the digital divide impacts our residents, particularly our racially and ethnically diverse residents and communities; and

WHEREAS, Nationally, nearly half of all people who are digitally disconnected are people of color and are less likely to have a broadband internet connection or a desktop or laptop at home; and

WHEREAS, According to Purdue Center for Regional Development's Digital Divide Index, within Tippecanoe County: 11.4% of people do not have access to 100/20 Mbps, 6.3% households do not have internet access, and 4.2% households are without a computing device.

WHEREAS, Access to a reliable, affordable internet connection is a social determinant of health; and

WHEREAS, Digital Inclusion Week 2024 is sponsored by the National Digital inclusion Alliance and aims to raise awareness of solutions addressing home training and support programs

NOW THEREFORE, The City Council of West Lafayette, Indiana, hereby declares October 7 – October 11, as Digital Inclusion Week 2024 and urge all residents of West Lafayette to join us in recognition of this important occasion.

INTRODUCED ON FIRST AND ONLY READING ON THE _____ DAY OF _____ 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

# Tippecanoe, Indiana

## 2021 DIGITAL DIVIDE PROFILE

The digital divide index score (DDI) ranges between 0 and 100, where a lower score indicates a lower divide. The infrastructure adoption score and the socioeconomic (see scores and indicators below) contribute to the overall DDI. State averages are shown in parenthesis.

## DIGITAL DIVIDE INDEX SCORE | 15.18

## INFRASTRUCTURE/ADOPTION SCORE | 7.23

If this score is much higher than the socioeconomic score, efforts should be made to upgrade the broadband infrastructure.

**4.2**
**(8.3)**
percent households without a computing device

**6.3**
**(12.0)**
percent households with no internet access (not subscribing)

**11.4**
**(46.5)**
percent people without access to 100/20 Mbps based on Ookla speed tests

**169**
**(166)**
average download speed based on Ookla speed tests in Mbps

**97**
**(57)**
average upload speed based on Ookla speed tests in Mbps

## SOCIOECONOMIC SCORE | 22.74

If this score is much higher than the infrastructure/adoption score, efforts should be made to focus on digital literacy and exposing residents to the benefits of the technology

**12.1**
**(15.7)**
percent population age 65 and older

**7.4**
**(10.3)**
percent age 25 and older with less than a high school degree

**9.5**
**(13.6)**
percent noninstitutionalized civilian population with a disability

**18.4**
**(12.5)**
percent of individuals in poverty

**5.5**
**(5.9)**
internet income ratio - a higher number denotes higher inequality

*For more information visit: pcrd.purdue.edu/ddi*

PURDUE UNIVERSITY | Center for Regional Development

*Source: Census 5-year ACS 2017-2021*
*Q1-Q4 2021 Speedtest® by Ookla® Global Fixed Network Performance Maps*

# RESOLUTION NO. 21-2024

## A RESOLUTION AUTHORIZING THE MAYOR TO COMMIT AND DESIGNATE MATCHING FUNDS FOR THE ECONOMIC DEVELOPMENT ADMINISTRATION PUBLIC WORKS AND ECONOMIC ADJUSTMENT ASSISTANCE PROGRAM

**WHEREAS**, the Department of Commerce and the Economic Development Administration released a notice of funding for planning and technical assistance for construction of infrastructure to increase the communities' and regions' economic development needs in accordance with the Public Works and Economic Development Act of 1965, as amended; and

**WHEREAS**, under the Public Works and Economic Development Act of 1965, as amended, the City of West Lafayette is eligible to apply as a city government for Public Works and Economic Adjustment Assistance Program; and

**WHEREAS**, the City of West Lafayette Indiana, under the direction of the Department of Development will complete the required application; and

**WHEREAS**, the Mayor of the City of West Lafayette, Indiana, is authorized as the official representative of the applicant to act in connection with the application and commit matching funds; and

**WHEREAS**, it is in the public interest of the City of West Lafayette, Indiana, to avail itself to commit matching financial assistance required for the Public Works and Economic Adjustment Assistance Program.

**NOW THEREFORE, BE IT RESOLVED**, by the Common Council of the City of West Lafayette, Indiana, that the Common Council hereby authorizes the Mayor as the official representative to commitment matching funds to the Public Works and Assistance Program application with the U.S. Department of Commerce.

THIS RESOLUTION SHALL BE IN FULL FORCE AND EFFECT FROM AND AFTER ITS PASSAGE AND SIGNING BY THE MAYOR.

INTRODUCED ON FIRST AND ONLY READING ON THE _____ DAY OF _____ 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF

_____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

| | AYE | NAY | ABSENT | ABSTAIN |
|---|---|---|---|---|
| Bellisario | | | | |
| Blanco | | | | |
| Burr | | | | |
| Dennis | | | | |
| Lee | | | | |
| Leverenz | | | | |
| Parker | | | | |
| Sanders | | | | |
| Veidemanis | | | | |

_____
Larry J. Leverenz, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk